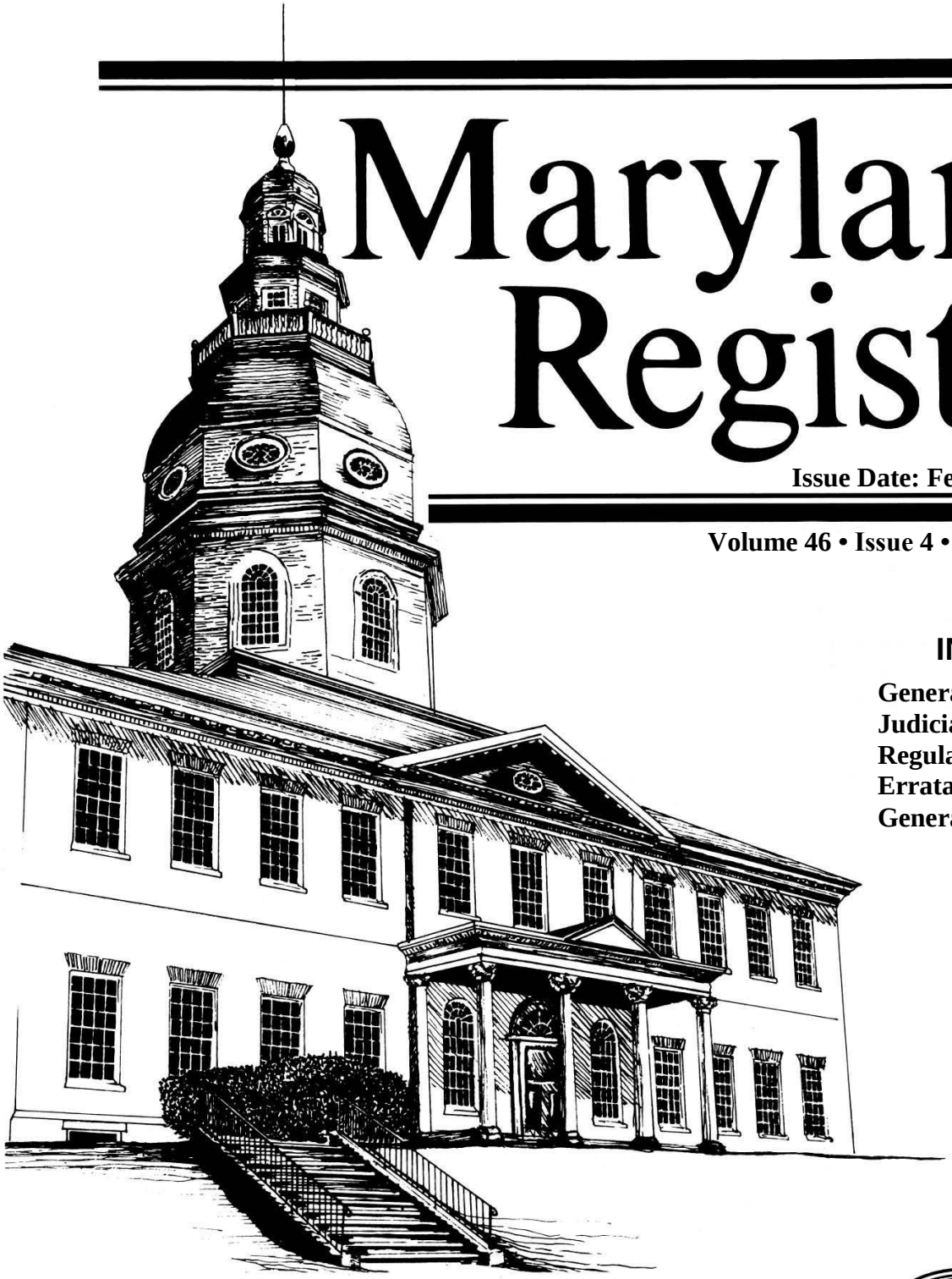


Maryland Register

Issue Date: February 15, 2019

Volume 46 • Issue 4 • Pages 165—272

IN THIS ISSUE

General Assembly
Judiciary
Regulations
Errata
General Notices

Pursuant to State Government Article, §7-206, Annotated Code of Maryland, this issue contains all previously unpublished documents required to be published, and filed on or before January 28, 2019, 5 p.m.

Pursuant to State Government Article, §7-206, Annotated Code of Maryland, I hereby certify that this issue contains all documents required to be codified as of January 28, 2019.

Gail S. Klakring
Administrator, Division of State Documents
Office of the Secretary of State

Information About the Maryland Register and COMAR

MARYLAND REGISTER

The Maryland Register is an official State publication published every other week throughout the year. A cumulative index is published quarterly.

The Maryland Register is the temporary supplement to the Code of Maryland Regulations. Any change to the text of regulations published in COMAR, whether by adoption, amendment, repeal, or emergency action, must first be published in the Register.

The following information is also published regularly in the Register:

- Governor's Executive Orders
- Attorney General's Opinions in full text
- Open Meetings Compliance Board Opinions in full text
- State Ethics Commission Opinions in full text
- Court Rules
- District Court Administrative Memoranda
- Courts of Appeal Hearing Calendars
- Agency Hearing and Meeting Notices
- Synopses of Bills Introduced and Enacted by the General Assembly
- Other documents considered to be in the public interest

CITATION TO THE MARYLAND REGISTER

The Maryland Register is cited by volume, issue, page number, and date. Example:

• 19:8 Md. R. 815—817 (April 17, 1992) refers to Volume 19, Issue 8, pages 815—817 of the Maryland Register issued on April 17, 1992.

CODE OF MARYLAND REGULATIONS (COMAR)

COMAR is the official compilation of all regulations issued by agencies of the State of Maryland. The Maryland Register is COMAR's temporary supplement, printing all changes to regulations as soon as they occur. At least once annually, the changes to regulations printed in the Maryland Register are incorporated into COMAR by means of permanent supplements.

CITATION TO COMAR REGULATIONS

COMAR regulations are cited by title number, subtitle number, chapter number, and regulation number. Example: COMAR 10.08.01.03 refers to Title 10, Subtitle 08, Chapter 01, Regulation 03.

DOCUMENTS INCORPORATED BY REFERENCE

Incorporation by reference is a legal device by which a document is made part of COMAR simply by referring to it. While the text of an incorporated document does not appear in COMAR, the provisions of the incorporated document are as fully enforceable as any other COMAR regulation. Each regulation that proposes to incorporate a document is identified in the Maryland Register by an Editor's Note. The Cumulative Table of COMAR Regulations Adopted, Amended or Repealed, found online, also identifies each regulation incorporating a document. Documents incorporated by reference are available for inspection in various depository libraries located throughout the State and at the Division of State Documents. These depositories are listed in the first issue of the Maryland Register published each year. For further information, call 410-974-2486.

HOW TO RESEARCH REGULATIONS

An Administrative History at the end of every COMAR chapter gives information about past changes to regulations. To determine if there have been any subsequent changes, check the ''Cumulative Table of COMAR Regulations Adopted, Amended, or Repealed'' which is found online at http://www.dsd.state.md.us/PDF/CumulativeTable.pdf. This table lists the regulations in numerical order, by their COMAR number, followed by the citation to the Maryland Register in which the change occurred. The Maryland Register serves as a temporary supplement to COMAR, and the two publications must always be used together. A Research Guide for Maryland Regulations is available. For further information, call 410-260-3876.

SUBSCRIPTION INFORMATION

For subscription forms for the Maryland Register and COMAR, see the back pages of the Maryland Register. Single issues of the Maryland Register are $15.00 per issue.

CITIZEN PARTICIPATION IN THE REGULATION-MAKING PROCESS

Maryland citizens and other interested persons may participate in the process by which administrative regulations are adopted, amended, or repealed, and may also initiate the process by which the validity and applicability of regulations is determined. Listed below are some of the ways in which citizens may participate (references are to State Government Article (SG), Annotated Code of Maryland):

- By submitting data or views on proposed regulations either orally or in writing, to the proposing agency (see ''Opportunity for Public Comment'' at the beginning of all regulations appearing in the Proposed Action on Regulations section of the Maryland Register). (See SG, §10-112)
- By petitioning an agency to adopt, amend, or repeal regulations. The agency must respond to the petition. (See SG §10-123)
- By petitioning an agency to issue a declaratory ruling with respect to how any regulation, order, or statute enforced by the agency applies. (SG, Title 10, Subtitle 3)
- By petitioning the circuit court for a declaratory judgment on the validity of a regulation when it appears that the regulation interferes with or impairs the legal rights or privileges of the petitioner. (SG, §10-125)
- By inspecting a certified copy of any document filed with the Division of State Documents for publication in the Maryland Register. (See SG, §7-213)

Maryland Register (ISSN 0360-2834). Postmaster: Send address changes and other mail to: Maryland Register, State House, Annapolis, Maryland 21401. Tel. 410-260-3876; Fax 410-280-5647. Published biweekly, with cumulative indexes published quarterly, by the State of Maryland, Division of State Documents, State House, Annapolis, Maryland 21401. The subscription rate for the Maryland Register is $225 per year (first class mail). All subscriptions post-paid to points in the U.S. periodicals postage paid at Annapolis, Maryland and additional mailing offices.

Lawrence J. Hogan, Jr., Governor; **John C. Wobensmith**, Secretary of State; **Gail S. Klakring**, Administrator; **Mary D. MacDonald**, Senior Editor, Maryland Register and COMAR; **Elizabeth Ramsey**, Editor, COMAR Online, and Subscription Manager; **Tami Cathell**, Help Desk, COMAR and Maryland Register Online.

Front cover: State House, Annapolis, MD, built 1772—79.

Illustrations by Carolyn Anderson, Dept. of General Services

Note: All products purchased are for individual use only. Resale or other compensated transfer of the information in printed or electronic form is a prohibited commercial purpose (see State Government Article, §7-206.2, Annotated Code of Maryland). By purchasing a product, the buyer agrees that the purchase is for individual use only and will not sell or give the product to another individual or entity.

Contents

Closing Dates for the Maryland Register

Schedule of Closing Dates and Issue Dates for the Maryland Register 168

COMAR Research Aids

Table of Pending Proposals 169

Index of COMAR Titles Affected in This Issue

COMAR Title Number and Name		Page
04	Department of General Services	190
08	Department of Natural Resources	190
09	Department of Labor, Licensing, and Regulation	190
10	Maryland Department of Health	192
13A	State Board of Education	191, 227
31	Maryland Insurance Administration	191

PERSONS WITH DISABILITIES

Individuals with disabilities who desire assistance in using the publications and services of the Division of State Documents are encouraged to call (410) 974-2486, or (800) 633-9657, or FAX to (410) 974-2546, or through Maryland Relay.

General Assembly

SYNOPSIS NO. 1 173

The Judiciary

COURT OF APPEALS OF MARYLAND
DISCIPLINARY PROCEEDINGS 189

Final Action on Regulations

04 DEPARTMENT OF GENERAL SERVICES
BUILDINGS AND GROUNDS
General Regulations 190
Legislative Branch Buildings and Grounds in Annapolis 190
08 DEPARTMENT OF NATURAL RESOURCES
FISHERIES SERVICE
Fish 190
09 DEPARTMENT OF LABOR, LICENSING, AND REGULATION
BOARD OF STATIONARY ENGINEERS
General Regulations 190
BOARD OF ARCHITECTS
Code of Ethics 190
BOARD OF EXAMINERS OF LANDSCAPE ARCHITECTS
Code of Ethics 191
BOARD OF FORESTERS
General Regulations 191
13A STATE BOARD OF EDUCATION
CERTIFICATION
General Provisions 191
31 MARYLAND INSURANCE ADMINISTRATION
INSURANCE PRODUCERS AND OTHER INSURANCE PROFESSIONALS
Producer Registers and Documentation of Appointments 191

Proposed Action on Regulations

10 MARYLAND DEPARTMENT OF HEALTH
HOSPITALS
Nursing Homes 192
13A STATE BOARD OF EDUCATION
FAMILY CHILD CARE
Scope and Definitions 227
Registration Application and Maintenance 227
Management and Administration 227
Operational Requirements 227
Home Environment and Equipment 227
Provider Requirements 227
Child Protection 227
Child Supervision 227
Child Safety 227
Health 227
Nutrition 227
Inspections, Complaints, and Enforcement 227
Administrative Hearings 227
Public Access to Licensing Records 227
CHILD CARE CENTERS
Scope and Definitions 237
License Application and Maintenance 237
Management and Administration 237
Physical Plant and Equipment 237
Staff Requirements 237
Child Protection 237
Child Supervision 237
Program Requirements 237
Safety 237
Health 237
Nutrition 237
Centers for Children with Acute Illness 237
Adolescent Centers 237
Drop-In Centers 237
Educational Programs in Nonpublic Nursery Schools 237
Inspections, Complaints, and Enforcement 237
Administrative Hearings 237
Public Access to Licensing Records 237
CHILD CARE—LETTERS OF COMPLIANCE
Scope and Definitions 249
Letter of Compliance Application and Maintenance 249
Management and Administration 249
Physical Plant and Equipment 249
Staff Requirements 249
Child Protection 249
Child Supervision 249
Safety 249
Health 249
Nutrition 249
Adolescent Facilities 249
Educational Programs in Nonpublic Nursery Schools 249
Inspections, Complaints, and Enforcement 249
Administrative Hearings 249
Public Access to Licensing Records 249
LARGE FAMILY CHILD CARE HOMES
Scope and Definitions 258
Registration Application and Maintenance 258
Management and Administration 258
Operational Requirements 258
Home Environment and Equipment 258
Provider and Staff Requirements 258
Child Protection 258

Contents

Child Supervision 258
Program Requirements 258
Safety 258
Health 258
Nutrition 258
Inspections, Complaints, and Enforcement 258
Administrative Hearings 258
Public Access to Licensing Records 258

Errata

COMAR 22.01.02 270

General Notices

MARYLAND DEPARTMENT OF HEALTH
Receipt of Application — Administration-Sponsored Community Health Facilities Grant Program 271
Receipt of Application — Administration-Sponsored Federally Qualified Health Centers Grant Program 271
HISTORIC ST. MARY'S CITY COMMISSION
Public Meeting 271
DEPARTMENT OF INFORMATION TECHNOLOGY
Public Meeting 271
Public Meeting 271
MARYLAND STATE LOTTERY AND GAMING CONTROL COMMISSION
Public Meeting 271
MARYLAND HEALTH CARE COMMISSION
Public Meeting 271
Public Meeting 272
Formal Start of Review 272
DEPARTMENT OF NATURAL RESOURCES/FISHING AND BOATING SERVICES
Public Notice — Commercial Striped Bass Common Pool Gill Net Season Modification — Effective 1/22/19 272
Public Notice — Commercial Striped Bass Common Pool Gill Net Season Modification — Effective 2/5/19 272
BOARD OF WELL DRILLERS
Public Meeting 272
WORKERS' COMPENSATION COMMISSION
Public Meeting 272

COMAR Online

The Code of Maryland Regulations is available at www.dsd.state.md.us as a free service of the Office of the Secretary of State, Division of State Documents. The full text of regulations is available and searchable. Note, however, that the printed COMAR continues to be the only official and enforceable version of COMAR.

The Maryland Register is also available at www.dsd.state.md.us.

For additional information, visit www.dsd.state.md.us, Division of State Documents, or call us at (410) 974-2486 or 1 (800) 633-9657.

Availability of Monthly List of Maryland Documents

The Maryland Department of Legislative Services receives copies of all publications issued by State officers and agencies. The Department prepares and distributes, for a fee, a list of these publications under the title ''Maryland Documents''. This list is published monthly, and contains bibliographic information concerning regular and special reports, bulletins, serials, periodicals, catalogues, and a variety of other State publications. ''Maryland Documents'' also includes local publications.

Anyone wishing to receive ''Maryland Documents'' should write to: Legislative Sales, Maryland Department of Legislative Services, 90 State Circle, Annapolis, MD 21401.

CLOSING DATES AND ISSUE DATES through July 2019

Issue Date	Emergency and Proposed Regulations 5 p.m.*	Final Regulations 10:30 a.m.	Notices, etc. 10:30 a.m.
March 1	February 11	February 20	February 15**
March 15	February 25	March 6	March 4
March 29	March 11	March 20	March 18
April 12	March 25	April 3	April 1
April 26	April 8	April 17	April 15
May 10	April 22	May 1	April 29
May 24	May 6	May 15	May 13
June 7	May 20	May 29	May 24**
June 21	June 3	June 12	June 10
July 5	June 17	June 26	June 24
July 19	July 1	July 10	July 22

* Due date for documents containing 8 to 18 pages — 48 hours before date shown; due date for documents exceeding 18 pages — 1 week before date shown

NOTE: ALL DOCUMENTS MUST BE SUBMITTED IN TIMES NEW ROMAN, 9-POINT, SINGLE-SPACED FORMAT. THE REVISED PAGE COUNT REFLECTS THIS FORMATTING.

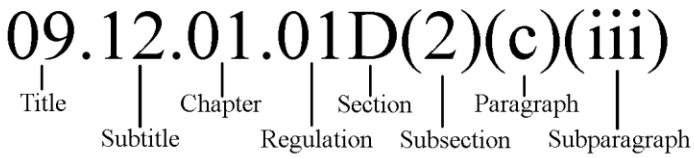
** Note closing date changes

*** Note issue date changes

The regular closing date for Proposals and Emergencies is Monday.

REGULATIONS CODIFICATION SYSTEM

Under the COMAR codification system, every regulation is assigned a unique four-part codification number by which it may be identified. All regulations found in COMAR are arranged by title. Each title is divided into numbered subtitles, each subtitle is divided into numbered chapters, and each chapter into numbered regulations.



A regulation may be divided into lettered sections, a section divided into numbered subsections, a subsection divided into lettered paragraphs, and a paragraph divided into numbered subparagraphs.

Cumulative Table of COMAR Regulations Adopted, Amended, or Repealed

This table, previously printed in the Maryland Register lists the regulations, by COMAR title, that have been adopted, amended, or repealed in the Maryland Register since the regulations were originally published or last supplemented in the Code of Maryland Regulations (COMAR). The table is no longer printed here but may be found on the Division of State Documents website at www.dsd.state.md.us.

Table of Pending Proposals

The table below lists proposed changes to COMAR regulations. The proposed changes are listed by their COMAR number, followed by a citation to that issue of the Maryland Register in which the proposal appeared. Errata pertaining to proposed regulations are listed, followed by "(err)". Regulations referencing a document incorporated by reference are followed by "(ibr)". None of the proposals listed in this table have been adopted. A list of adopted proposals appears in the Cumulative Table of COMAR Regulations Adopted, Amended, or Repealed.

01 EXECUTIVE DEPARTMENT

01.02.11.01—.10,.14,.16—.22 • 45:23 Md. R. 1073 (11-9-18)

03 COMPTROLLER OF THE TREASURY

03.03.05.04 • 45:18 Md. R. 835 (8-31-18)

05 DEPARTMENT OF HOUSING AND COMMUNITY DEVELOPMENT

05.02.01.01—.07 • 46:1 Md. R. 16 (1-4-19) (ibr)
05.02.02.01—.12 • 46:1 Md. R. 16 (1-4-19)
05.02.03.01—.07 • 46:1 Md. R. 16 (1-4-19)
05.02.04.01—.18 • 46:1 Md. R. 16 (1-4-19) (ibr)
05.02.06.01,.02 • 46:1 Md. R. 16 (1-4-19)
05.02.07.01—.09 • 46:1 Md. R. 16 (1-4-19) (ibr)
05.16.01.01—.08 • 46:1 Md. R. 16 (1-4-19)

08 DEPARTMENT OF NATURAL RESOURCES

08.01.07.13 • 46:1 Md. R. 15 (1-4-19)
08.02.03.03,.06,.11 • 46:2 Md. R. 55 (1-18-19)
08.07.01.03,.17 • 46:1 Md. R. 15 (1-4-19)

09 DEPARTMENT OF LABOR, LICENSING, AND REGULATION

09.08.01.27 • 45:24 Md. R. 1167 (11-26-18)
09.10.01.64 • 46:3 Md. R. 110 (2-1-19)
09.10.03.04 • 46:3 Md. R. 110 (2-1-19)
09.12.50.01—.07 • 46:1 Md. R. 16 (1-4-19) (ibr)
09.12.51.01—.09 • 46:1 Md. R. 16 (1-4-19) (ibr)
09.12.52.01—.18 • 46:1 Md. R. 16 (1-4-19) (ibr)
09.12.53.01—.12 • 46:1 Md. R. 16 (1-4-19)
09.12.54.01—.07 • 46:1 Md. R. 16 (1-4-19)
09.12.55.01,.02 • 46:1 Md. R. 16 (1-4-19)
09.12.58.01—.08 • 46:1 Md. R. 16 (1-4-19)
09.14.02.08 • 46:1 Md. R. 22 (1-4-19)
09.23.01.04 • 46:2 Md. R. 56 (1-18-19)
09.26.01.07 • 45:26 Md. R. 1253 (12-21-18)
09.32.01.05 • 45:19 Md. R. 869 (9-14-18)
09.34.01.11,.13 • 45:21 Md. R. 982 (10-12-18)

10 DEPARTMENT OF HEALTH AND MENTAL HYGIENE

Subtitles 01—08 (1st volume)

10.01.04.02 • 45:24 Md. R. 1169 (11-26-18)
10.06.02.03 • 46:3 Md. R. 111 (2-1-19)
10.07.02.01—.80 • 46:4 Md. R. 192 (2-15-19) (ibr)

Subtitle 09 (2nd volume)

10.09.05.01—.05,.07 • 46:1 Md. R. 22 (1-4-19)
46:2 Md. R. 90 (1-18-19) (err)
10.09.07.01,.03—.06 • 46:2 Md. R. 57 (1-18-19)
10.09.07.08 • 45:23 Md. R. 1077 (11-9-18)
10.09.08.05 • 46:2 Md. R. 58 (1-18-19)
10.09.10.07,.08,.11,.13 • 45:23 Md. R. 1080 (11-9-18)
10.09.20.14 • 45:23 Md. R. 1077 (11-9-18)
10.09.24.02,.03,.08-2 • 45:26 Md. R. 1253 (12-21-18)
10.09.27.06 • 45:23 Md. R. 1077 (11-9-18)
10.09.28.01—.04,.06 • 46:2 Md. R. 59 (1-18-19)
10.09.53.07 • 45:23 Md. R. 1077 (11-9-18)
10.09.54.22 • 45:23 Md. R. 1077 (11-9-18)
10.09.56.22 • 45:23 Md. R. 1077 (11-9-18)
10.09.61.01,.03,.06 • 46:2 Md. R. 57 (1-18-19)
10.09.69.04,.14,.17 • 46:2 Md. R. 61 (1-18-19)
10.09.70.02 • 46:2 Md. R. 61 (1-18-19)
10.09.84.24 • 45:23 Md. R. 1077 (11-9-18)
10.09.93.01,.05,.07,.08 • 46:3 Md. R. 111 (2-1-19)

Subtitles 10 — 22 (3rd Volume)

10.12.06.01—.10 • 46:2 Md. R. 62 (1-18-19)
10.13.03.01—.04 • 45:13 Md. R. 675 (6-22-18)
10.13.04.01—.03 • 46:3 Md. R. 112 (2-1-19)
10.15.09.01—.22 • 46:3 Md. R. 114 (2-1-19) (ibr)
10.17.01.05,.06,.06-1,.07—.11,.55 • 46:2 Md. R. 64 (1-18-19)
10.18.01.02,.04,.05 • 46:3 Md. R. 126 (2-1-19)
10.18.05.01—.04,.09 • 46:3 Md. R. 126 (2-1-19)
10.18.06.01,.03,.04,.04-1,.04-2,.05,.09,.11 • 46:3 Md. R. 126 (2-1-19)
10.18.07.01—.04,.06,.07,.11 • 46:3 Md. R. 126 (2-1-19)
10.18.10.02—.05 • 46:3 Md. R. 126 (2-1-19)
10.21.04.01—.12 • 45:7 Md. R. 357 (3-30-18)
10.21.16.01—.16 • 45:7 Md. R. 357 (3-30-18)
10.21.17.01—.17 • 45:7 Md. R. 357 (3-30-18)
10.21.18.01—.13 • 45:7 Md. R. 357 (3-30-18)
10.21.19.01—.11 • 45:7 Md. R. 357 (3-30-18)
10.21.20.01—.11 • 45:7 Md. R. 357 (3-30-18)
10.21.21.01—.13 • 45:7 Md. R. 357 (3-30-18)
10.21.22.01—.12 • 45:7 Md. R. 357 (3-30-18)
10.21.25.03-2,.05—.13 • 45:7 Md. R. 357 (3-30-18)
10.21.26.01—.12 • 45:7 Md. R. 357 (3-30-18)
10.21.27.01—.08 • 45:7 Md. R. 357 (3-30-18)
10.21.28.01—.12 • 45:7 Md. R. 357 (3-30-18)
10.21.29.01—.09 • 45:7 Md. R. 357 (3-30-18)
10.22.17.06,.07,.08 • 45:26 Md. R. 1255 (12-21-18)
10.22.18.04 • 45:26 Md. R. 1255 (12-21-18)

Subtitles 23 — 36 (4th Volume)

10.24.08.01 • 45:25 Md. R. 1210 (12-7-18) (ibr)
10.24.20.01 • 45:25 Md. R. 1211 (12-7-18) (ibr)
10.27.01.01,.13 • 45:24 Md. R. 1170 (11-26-18)
10.27.06.01—.06 • 45:26 Md. R. 1264 (12-21-18)
10.27.17.01—.06 • 45:26 Md. R. 1265 (12-21-18)
10.28.02.02,.04,.05,.07 • 46:3 Md. R. 131 (2-1-19)
10.28.12.02 • 46:3 Md. R. 131 (2-1-19)
10.32.05.01—.07 • 45:24 Md. R. 1171 (11-26-18)
10.32.17.01—.03 • 46:3 Md. R. 133 (2-1-19)
10.33.01.13,.16 • 46:3 Md. R. 135 (2-1-19)
10.34.05.05 • 45:26 Md. R. 1267 (12-21-18)
46:1 Md. R. 27 (1-4-19) (err)
10.34.09.02 • 45:26 Md. R. 1267 (12-21-18)
10.34.30.01—.06 • 46:2 Md. R. 68 (1-18-19)
10.36.10.01—.06 • 46:2 Md. R. 69 (1-18-19)

Subtitles 37—66 (5th Volume)

10.37.10.26 • 46:3 Md. R. 135 (2-1-19)
10.42.01.01,.02,.04—.18 • 45:21 Md. R. 989 (10-12-18)
10.42.02.02—.06 • 45:21 Md. R. 989 (10-12-18)
10.42.03.01—.07 • 46:2 Md. R. 71 (1-18-19)
10.42.04.11 • 46:2 Md. R. 71 (1-18-19)
10.42.06.04—.11 • 46:2 Md. R. 71 (1-18-19)
10.42.08.01—.11 • 45:21 Md. R. 989 (10-12-18)
10.42.09.01,.04,.07 • 45:21 Md. R. 989 (10-12-18)
10.43.05.01—.04 • 46:3 Md. R. 136 (2-1-19)
10.47.02.01—.11 • 45:7 Md. R. 357 (3-30-18)
10.47.03.01—.07 • 45:7 Md. R. 357 (3-30-18)
10.47.04.01—.08 • 45:7 Md. R. 357 (3-30-18)
10.47.05.01—.05 • 45:7 Md. R. 357 (3-30-18)
10.47.08.01—.12 • 46:2 Md. R. 73 (1-18-19)
10.52.08.01—.16 • 46:3 Md. R. 138 (2-1-19)
10.53.01.01 • 46:3 Md. R. 144 (2-1-19)
10.53.02.02—.04,.06,.07,.09 • 46:3 Md. R. 144 (2-1-19)
10.53.03.01—.04 • 46:3 Md. R. 144 (2-1-19)
10.53.04.01—.04 • 46:3 Md. R. 144 (2-1-19)
10.53.05.02,.03 • 46:3 Md. R. 144 (2-1-19)
10.53.06.05—.07 • 46:3 Md. R. 144 (2-1-19)
10.53.12.01 • 46:3 Md. R. 144 (2-1-19)
10.58.06.01—.06 • 46:2 Md. R. 77 (1-18-19)
10.60.02.06 • 45:26 Md. R. 1268 (12-21-18)
10.62.01.01 • 45:26 Md. R. 1268 (12-21-18)
10.62.02.05 • 45:26 Md. R. 1268 (12-21-18)
10.62.08.05 • 45:26 Md. R. 1268 (12-21-18)
10.62.19.04 • 45:26 Md. R. 1268 (12-21-18)
10.62.25.05 • 45:26 Md. R. 1268 (12-21-18)
10.63.07.02,.03,.05,.06 • 46:2 Md. R. 78 (1-18-19)

11 DEPARTMENT OF TRANSPORTATION

Subtitles 11—23 (MVA)

11.12.01.01,.22 • 46:1 Md. R. 25 (1-4-19)
11.12.02.03,.06 • 46:1 Md. R. 25 (1-4-19)

12 DEPARTMENT OF PUBLIC SAFETY AND CORRECTIONAL SERVICES

12.04.01.01,.04 • 45:20 Md. R. 936 (9-28-18)
45:22 Md. R. 1033 (10-26-18) (err)
12.04.08.01—.05 • 45:25 Md. R. 1212 (12-7-18)

13A STATE BOARD OF EDUCATION

13A.04.07.01—.04,.06 • 45:26 Md. R. 1269 (12-21-18)
46:1 Md. R. 26 (1-4-19) (err)
13A.12.04.03 • 45:26 Md. R. 1270 (12-21-18)
46:1 Md. R. 26 (1-4-19)
13A.15.01.02 • 46:4 Md. R. 227 (2-15-19)
13A.15.02.01—.03, .07 and .08 • 46:4 Md. R. 227 (2-15-19)
13A.15.03.02—.05 • 46:4 Md. R. 227 (2-15-19)
13A.15.04.03 and .04 • 46:4 Md. R. 227 (2-15-19)
13A.15.05.02, .05 and .06 • 46:4 Md. R. 227 (2-15-19)
13A.15.06.02—.05 • 46:4 Md. R. 227 (2-15-19)
13A.15.07.04 • 46:4 Md. R. 227 (2-15-19)
13A.15.08.01, .03—.05 • 46:4 Md. R. 227 (2-15-19)
13A.15.10.01, .04 and .06 • 46:4 Md. R. 227 (2-15-19)
13A.15.11.03, .04 and .06 • 46:4 Md. R. 227 (2-15-19)
13A.15.12.01 • 46:4 Md. R. 227 (2-15-19)
13A.15.13.02, .05—.09 • 46:4 Md. R. 227 (2-15-19)
13A.15.14.01, .03 and .04 • 46:4 Md. R. 227 (2-15-19)
13A.15.15.03 and .04 • 46:4 Md. R. 227 (2-15-19)
13A.16.01.01 and .02 • 46:4 Md. R. 237 (2-15-19)
13A.16.02.01—.04 and .06 • 46:4 Md. R. 237 (2-15-19)
13A.16.03.01—.06 and .09 • 46:4 Md. R. 237 (2-15-19)
13A.16.05.05, .12 and .13 • 46:4 Md. R. 237 (2-15-19)
13A.16.06.03—.06 and .09—.13 • 46:4 Md. R. 237 (2-15-19)
13A.16.07.02, .03 and .06 • 46:4 Md. R. 237 (2-15-19)
13A.16.08.01, .03 and .06 • 46:4 Md. R. 237 (2-15-19)
13A.16.09.04 • 46:4 Md. R. 237 (2-15-19)
13A.16.10.02 and .05 • 46:4 Md. R. 237 (2-15-19)
13A.16.11.02—.04 and .06 • 46:4 Md. R. 237 (2-15-19)
13A.16.12.01 • 46:4 Md. R. 237 (2-15-19)
13A.16.13.02 • 46:4 Md. R. 237 (2-15-19)
13A.16.14.01 • 46:4 Md. R. 237 (2-15-19)
13A.16.15.03 • 46:4 Md. R. 237 (2-15-19)

13A.16.16.02—.04 • 46:4 Md. R. 237 (2-15-19)
13A.16.17.01 and .03—.08 • 46:4 Md. R. 237 (2-15-19)
13A.16.18.01—.05 • 46:4 Md. R. 237 (2-15-19)
13A.16.19.03 and .04 • 46:4 Md. R. 237 (2-15-19)
13A.17.01.02 • 46:4 Md. R. 249 (2-15-19)
13A.17.02.01, .02, .05 and .06 • 46:4 Md. R. 249 (2-15-19)
13A.17.03.02—.06 and .09 • 46:4 Md. R. 249 (2-15-19)
13A.17.05.05, .12 and .13 • 46:4 Md. R. 249 (2-15-19)
13A.17.06.02—.05 • 46:4 Md. R. 249 (2-15-19)
13A.17.07.02, .03 and .06 • 46:4 Md. R. 249 (2-15-19)
13A.17.08.06 and .08 • 46:4 Md. R. 249 (2-15-19)
13A.17.10.01 and .02 • 46:4 Md. R. 249 (2-15-19)
13A.17.11.02—.04 and .06 • 46:4 Md. R. 249 (2-15-19)
13A.17.12.01 • 46:4 Md. R. 249 (2-15-19)
13A.17.13.01 • 46:4 Md. R. 249 (2-15-19)
13A.17.14.02 and .03 • 46:4 Md. R. 249 (2-15-19)
13A.17.15.01 and .03—.08 • 46:4 Md. R. 249 (2-15-19)
13A.17.16.01—.05 • 46:4 Md. R. 249 (2-15-19)
13A.17.17.03 and .04 • 46:4 Md. R. 249 (2-15-19)
13A.18.01.02 • 46:4 Md. R. 258 (2-15-19)
13A.18.02.01—.08 • 46:4 Md. R. 258 (2-15-19)
13A.18.03.02—.06 • 46:4 Md. R. 258 (2-15-19)
13A.18.04.04 • 46:4 Md. R. 258 (2-15-19)
13A.18.05.05, .12 and .13 • 46:4 Md. R. 258 (2-15-19)
13A.18.06.03—.08 and .10 • 46:4 Md. R. 258 (2-15-19)
13A.18.07.02 and .03 • 46:4 Md. R. 258 (2-15-19)
13A.18.08.01, .02, .06 and .08 • 46:4 Md. R. 258 (2-15-19)
13A.18.09.04 • 46:4 Md. R. 258 (2-15-19)
13A.18.10.01 • 46:4 Md. R. 258 (2-15-19)
13A.18.11.02—.04 • 46:4 Md. R. 258 (2-15-19)
13A.18.12.01 and .06 • 46:4 Md. R. 258 (2-15-19)
13A.18.14.02, and .05—.09 • 46:4 Md. R. 258 (2-15-19)
13A.18.15.01, .03 and .04 • 46:4 Md. R. 258 (2-15-19)
13A.18.16.03 and .04 • 46:4 Md. R. 258 (2-15-19)

13B MARYLAND HIGHER EDUCATION COMMISSION

13B.02.03.02,.20 • 45:26 Md. R. 1271 (12-21-18)
13B.08.10.01—.17 • 45:24 Md. R. 1172 (11-26-18)
13B.08.20.01—.13 • 45:24 Md. R. 1179 (11-26-18)
13B.08.21.01—.22 • 45:26 Md. R. 1272 (12-21-18)

14 INDEPENDENT AGENCIES

14.09.02.04 • 46:2 Md. R. 79 (1-18-19)
14.09.03.02 • 46:2 Md. R. 79 (1-18-19)
14.09.04.03 • 46:2 Md. R. 79 (1-18-19)
14.09.07.00 • 46:2 Md. R. 79 (1-18-19)
14.35.01.02 • 45:23 Md. R. 1088 (11-9-18)
14.35.07.01—.21 • 45:23 Md. R. 1089 (11-9-18)
14.35.14.01—.10 • 45:23 Md. R. 1099 (11-9-18)
14.35.15.01—.11 • 45:23 Md. R. 1102 (11-9-18)
14.35.16.01—.12 • 45:23 Md. R. 1105 (11-9-18)
14.35.17.01—.09 • 45:23 Md. R. 1109 (11-9-18)

15 DEPARTMENT OF AGRICULTURE

15.15.13.03,.05 • 45:7 Md. R. 380 (3-30-18)

20 PUBLIC SERVICE COMMISSION

20.31.01.02 • 46:3 Md. R. 147 (2-1-19)
20.31.03.06 • 46:3 Md. R. 147 (2-1-19)
20.53.06.02,.06,.07 • 45:25 Md. R. 1215 (12-7-18)
20.53.07.07 • 45:25 Md. R. 1216 (12-7-18)
20.53.08.01—.07 • 45:25 Md. R. 1216 (12-7-18)
20.59.06.06,.07 • 45:25 Md. R. 1217 (12-7-18)
20.59.07.07 • 45:25 Md. R. 1217 (12-7-18)
20.59.08.01—.07 • 45:25 Md. R. 1218 (12-7-18)
20.70.09.01—.06 • 46:3 Md. R. 149 (2-1-19)
20.75.08.01—.06 • 46:3 Md. R. 151 (2-1-19)

21 STATE PROCUREMENT REGULATIONS

21.01.02.01 • 45:20 Md. R. 942 (9-28-18)
21.01.03.01 • 45:20 Md. R. 942 (9-28-18)
21.02.01.05 • 45:20 Md. R. 942 (9-28-18)
21.02.05.04 • 45:20 Md. R. 942 (9-28-18)
21.05.01.01,.02,.05 • 45:20 Md. R. 942 (9-28-18)
21.05.02.04,.05 • 45:20 Md. R. 942 (9-28-18)
21.05.03.01—.03 • 45:20 Md. R. 942 (9-28-18)
21.05.06.01 • 45:20 Md. R. 942 (9-28-18)
21.05.07.01,.04,.05 • 45:20 Md. R. 942 (9-28-18)
21.05.08 • 45:20 Md. R. 942 (9-28-18)
21.05.09.04,.05,.08 • 45:20 Md. R. 942 (9-28-18)
21.05.13.01—.07 • 45:20 Md. R. 942 (9-28-18)
21.07.01.19,.25 • 45:20 Md. R. 942 (9-28-18)
21.07.02.10 • 45:20 Md. R. 942 (9-28-18)
21.07.03.07,.08 • 45:20 Md. R. 942 (9-28-18)
21.10.04.04 • 45:20 Md. R. 942 (9-28-18)
21.11.01.01,.04—.06 • 45:20 Md. R. 942 (9-28-18)
21.11.03.10,.12,.12-1 • 45:20 Md. R. 942 (9-28-18)
21.11.05.01,.04,.07 • 45:20 Md. R. 942 (9-28-18)
21.11.13.01 • 45:20 Md. R. 942 (9-28-18)
21.13.01.17 • 45:20 Md. R. 942 (9-28-18)
45:21 Md. R. 1008 (10-12-18) (err)

26 DEPARTMENT OF THE ENVIRONMENT

Subtitles 01—07 (Part 1)

26.03.13.04 • 46:3 Md. R. 153 (2-1-19)
26.04.02.01,.05 • 46:3 Md. R. 154 (2-1-19)

Subtitles 08—12 (Part 2)

26.08.01.01 • 46:3 Md. R. 155 (2-1-19)
26.08.04.01 • 46:3 Md. R. 155 (2-1-19) (ibr)

Subtitles 13 — 18 (Part 3)

26.17.02.08,.09 • 46:3 Md. R. 156 (2-1-19) (ibr)

31 MARYLAND INSURANCE ADMINISTRATION

31.04.15.04 • 46:2 Md. R. 80 (1-18-19)
31.09.02.11 • 46:2 Md. R. 81 (1-18-19)
31.09.04.03 • 46:2 Md. R. 82 (1-18-19)
31.10.06.02,.28,.30,.31 • 45:23 Md. R. 1119 (11-9-18)
31.10.25.04 • 46:2 Md. R. 83 (1-18-19)
31.10.28.05 • 46:2 Md. R. 83 (1-18-19)
31.12.07.05 • 46:2 Md. R. 83 (1-18-19)
31.15.12.03 • 46:2 Md. R. 84 (1-18-19)

33 STATE BOARD OF ELECTIONS

33.13.01.01 • 45:21 Md. R. 1003 (10-12-18)
33.13.07.01,.02 • 45:21 Md. R. 1003 (10-12-18)
33.13.10.02 • 45:21 Md. R. 1003 (10-12-18)
33.13.15.13 • 45:21 Md. R. 1003 (10-12-18)
33.13.17.01,.02 • 45:21 Md. R. 1003 (10-12-18)
33.13.19.01—.04 • 45:21 Md. R. 1003 (10-12-18)
33.13.20.01,.02 • 45:21 Md. R. 1003 (10-12-18)
33.13.22.01—.07 • 45:21 Md. R. 1003 (10-12-18)

34 DEPARTMENT OF PLANNING

34.04.01.09 • 46:2 Md. R. 85 (1-18-19)
34.04.02.08 • 46:2 Md. R. 85 (1-18-19)
34.04.07.02,.03,.05,.06 • 46:2 Md. R. 87 (1-18-19)
34.04.09.08 • 46:2 Md. R. 85 (1-18-19)

35 DEPARTMENT OF VETERANS AFFAIRS

35.07.01.01—.04 • 46:2 Md. R. 88 (1-18-19)

The General Assembly

For additional up-to-date information concerning bills introduced in the General Assembly, log on to http://mlis.state.md.us and click on Bill Information and Status. You may then enter a specific bill number for information about that bill. You may also click on Senate Synopsis or House Synopsis for the most recent synopsis list for each house, or click on Synopsis Index for a listing of all bill synopses since the beginning of the legislative session.

SYNOPSIS NO. 1

House Bills

HB0001 Del Lafferty. Natural Resources - Prohibition on Dredging Buried Oyster Shells on Man-O-War Shoals.
HB0002 Del Glenn. Task Force to Improve Baltimore City Homeless Transitions From Low-Barrier Shelters to Permanent Housing.
HB0003 Del Carr. Vehicle Laws - Multiyear Registration.
HB0004 Del Chang. Crimes - Hate Crimes - Use of a Noose or Swastika to Threaten or Intimidate.
HB0005 Del Ebersole. Commercial Driver's Licenses - Recognition, Prevention, and Reporting of Human Trafficking.
HB0006 Del Lierman. Baltimore City - Vehicle Height Monitoring Systems - Enforcement.
HB0007 Del Glenn. General Provisions - Commemorative Days - Missing Children Day.
HB0008 Del Chang. Business Regulation - Amusement Attractions - Maryland Rider Safety Act.
HB0009 Del Chang. Consolidated Senior Sport Fishing License - Minimum Age.
HB0010 Del Carr. State Highway Administration – Sidewalks Within Priority Funding Areas – Repair and Maintenance.
HB0011 Del Sydnor. Juveniles Charged as Adults - Confidentiality of Photos and Videos.
HB0012 Dels McKay and Wivell. State Correctional Facilities - Correctional Officers - Background Check.
HB0013 Del Barron. Criminal Procedure - Partial Expungement.
HB0014 Del Brooks. Income Tax - Subtraction Modification - Retirement Income.
HB0015 Del Sydnor. Health Insurance – Pediatric Autoimmune Neuropsychiatric Disorders – Coverage.
HB0016 Del Glenn. Criminal Procedure - Partial Expungement.
HB0017 Del Glenn. Natalie M. LaPrade Medical Cannabis Commission - Food Containing Medical Cannabis.
HB0018 Del Glenn. Natalie M. LaPrade Medical Cannabis Commission - Certifying Providers.
HB0019 Del Glenn. Criminal Procedure - Expungement - Nonviolent Convictions.
HB0020 Del Luedtke. State Agricultural Land Transfer Tax - Nonagricultural Use Exemption - Repeal.
HB0021 Del Carr. Maryland Transportation Authority - Video Streaming and Archiving - Open Meetings.
HB0022 Del Sydnor. Occupational Licenses or Certificates - Application Determinations - Use of Criminal History.
HB0023 Del Carr. Housing and Community Development – Rental Residential Buildings – Prohibition on Exclusive Access Agreements.
HB0024 Del Glenn. Procurement - Public Work Contracts - Contractor Occupational Safety and Health Requirements.
HB0025 Del Barron, et al. Public Health - Prescription Drug Monitoring Program - Revisions.
HB0026 Del Lierman. Baltimore City - Ranked Choice Voting and Open Primaries.
HB0027 Del Holmes. Clean Indoor Air Act - Use of Electronic Cigarette Devices - Prohibition.
HB0028 Del Clark. Natural Resources - Shellfish Nursery Operations - Wetlands License Requirements.
HB0029 Del McKay. Correctional Officers' Retirement System - Membership - Chaplains.
HB0030 Del Sydnor. Public Safety – DNA Analysis – Search of Data Base.
HB0031 Del Glenn. Baltimore City - Weapons on School Property - School Resource Officer.
HB0032 Del Carr. Vehicle Emissions Inspection Program - Prohibition on Suspension or Revocation of Registration.
HB0033 Del Glenn. Medical Cannabis - Provider Applications - Opioid Use Disorder.
HB0034 Del Carr. Business Regulation - Trader's Licenses - License Fees.
HB0035 Del Glenn. Public Health - Opioid Maintenance Therapy Programs - Medical Director Requirement and Qualifications.
HB0036 Del Wivell. Surface Mining - Zone of Dewatering Influence - Water Supply Replacement.
HB0037 Del Sydnor. Criminal Procedure - Cell Site Simulator Technology.
HB0038 Del Carr. Labor and Employment - Noncompete and Conflict of Interest Clauses.
HB0039 Del Grammer. Baltimore County Board of Education - Members - Publication of Contact Information.
HB0040 Del Grammer. Dredging on Man-O-War Shoals - Prohibition.
HB0041 The Spkr (Admin). Student Debt Relief Act of 2019.
HB0042 The Spkr (DLS). State Government - Consumer Price Index - Revised Statutory References.
HB0043 The Spkr (Admin), et al. Elections - Legislative and Congressional Redistricting and Apportionment - Commission and Process.
HB0044 The Spkr (Admin), et al. Legislative and Congressional Redistricting and Apportionment.
HB0045 The Spkr (Admin), et al. Accountability in Education Act of 2019.
HB0046 The Spkr (Admin), et al. Small Business Relief Tax Credit - Expansion.
HB0047 Del Cullison. State Department of Education and Maryland Department of Health - Maryland School-Based Health Center Standards - Revision.
HB0048 Dels Grammer and Luedtke. eSports Act.
HB0049 Chr HGO (Dept). Recoupment of the Health Insurance Provider Fee - Calculation.
HB0050 Chr ENT (Dept). Department of Agriculture - Maryland Produce Safety Program.
HB0051 Dels Wivell and McKay. Sales and Use Tax Exemption - Target Redevelopment Area - Washington County.
HB0052 Dels Wivell and McKay. Vehicle Emissions Inspection Program - Exemptions - Vehicles With Low Annual Mileage.
HB0053 Del Chang, et al. County Boards of Education - Length of School Year - Adjustments.
HB0054 Chr ENT (Dept). Natural Resources - Lands Formed by Excavation Materials - Transfer of Authority.
HB0055 Dels Barron and Sydnor. Transportation - Ignition Interlock Devices - Definition.
HB0056 Del Wivell. Maryland Healthy Working Families Act - Employers With On-Site Health Clinics - Exemption.

HB0057 The Spkr. State Government - Legislative and Executive Branches - Workplace Bullying.
HB0058 The Spkr. Mandated Reports and Statutory Commissions, Councils, and Committees - Revisions.
HB0059 Chr ECM (Dept). Financial Institutions - Commissioner of Financial Regulation - Debt Settlement Services.
HB0060 Chr ECM (Dept). Department of Labor, Licensing, and Regulation - Renaming.
HB0061 Chr ECM (Dept). Financial Institutions - Commissioner of Financial Regulation - Mortgage Lenders, Loan Servicers, and Loan Originators.
HB0062 Del B. Barnes (Chr Jt Com on Pnsns). Employees' Pension System - Purchase of Eligibility Service Credit - Clarification.
HB0063 Del B. Barnes (Chr Jt Com on Pnsns). State Retirement and Pension System - Maryland Pension Administration System - Member Contributions.
HB0064 Del B. Barnes (Chr Jt Com on Pnsns). State Retirement and Pension System - Designation of Beneficiary.
HB0065 Del Adams, et al. Sales and Use Tax - Aircraft Parts and Equipment - Exemption.
HB0066 Del Stein. Railroad Company - Movement of Freight - Required Crew.
HB0067 Del Reznik. Potomac Compact for Fair Representation.
HB0068 Del Holmes. Real Property - Maryland Condominium Act - Powers of Council of Unit Owners.
HB0069 Del Holmes. Real Property - Maryland Condominium Act - Implied Warranties From Developers.
HB0070 Del Holmes. Public Safety - Rental Unit - Carbon Monoxide Alarms.
HB0071 Dels Korman and Buckel. State Board of Elections - Open Meetings - Video Streaming and Recording (State Board of Elections Transparency Act).
HB0072 Del Korman, et al. Extension of Electric Vehicle Incentives Act.
HB0073 Del Moon, et al. Jury Service - Qualification Criteria - Criminal Conviction or Charge.
HB0074 Del Moon, et al. Criminal Procedure - Coram Nobis - Time for Filing.
HB0075 Del Grammer. State Retirement and Pension System - Investment Management Fee Reporting.
HB0076 Del Moon, et al. Vehicle Laws - Canceled, Revoked, and Suspended Driver's Licenses - Penalties.
HB0077 Del Moon, et al. Criminal Law - Decriminalization of Attempted Suicide.
HB0078 Del Wilkins, et al. Correctional Services - Inmates - Labor.
HB0079 Del Luedtke. Election Law - Early Voting Centers - Establishment and Hours.
HB0080 Cecil County Delegation. Horse Racing at Fair Hill - Union Hospital Allocation - Repeal.
HB0081 Del Wilkins, et al. Property Tax Credit - Surviving Spouse of Veteran.
HB0082 Del Charkoudian, et al. Transportation - Complete Streets - Access to Healthy Food.
HB0083 Del Lafferty. Action for Change of Name - Minors - Prohibition of Publication Requirement.
HB0084 Del Charkoudian, et al. Maryland Farms and Families Fund - Purpose, Use, Funding, and Grant Qualifications - Alterations.
HB0085 Del Moon, et al. General Assembly - Special Election to Fill a Vacancy in Office.
HB0086 Del Wilkins, et al. Health Insurance - Continuation Coverage - Change in Employment Status.
HB0087 Del Ebersole, et al. State Board of Education - Membership - Teachers and Parent.
HB0088 Del Charkoudian, et al. Criminal Law - Alcohol Offenses - Civil Offenses (Decriminalization of Petty Nonviolent Offenses Act).
HB0089 Dels Ebersole and Atterbeary. Vehicle Laws - Use of Handheld Telephone While Driving - Penalty.
HB0090 Del Moon, et al. Public Safety - Smoke Detection System Violation - Civil Offense.
HB0091 Dels Carr and Korman. Public-Private Partnerships - Presolicitation Reports - Environmental Impact Statement Requirement.
HB0092 Del Dumais. Public Safety - Handgun Permits - Payment of Fees.
HB0093 Del Rosenberg. Walter Sondheim Jr. Public Service Internship Scholarship Program - Repeal of Award Cap.
HB0094 Del Rosenberg, et al. State Retirement and Pension System - Accidental Disability Retirement Application.
HB0095 Del Dumais. Public Safety - Firearms Disqualifications - Antique Firearm (Shadé's Law).
HB0096 Del Dumais. Public Safety - Regulated Firearms - Transfer.
HB0097 Del Dumais. Criminal Law - Sale or Display of Obscene Item to Minor - Video Image.
HB0098 Del Bromwell, et al. State Employee and Retiree Health and Welfare Benefits Program - Retiree Participation in the State Prescription Drug Benefit Plan.
HB0099 Del Dumais. Estates and Trusts - Elective Share of Surviving Spouse.
HB0100 The Spkr (Admin). Budget Bill (Fiscal Year 2020).
HB0101 The Spkr (Admin). Creation of a State Debt - Maryland Consolidated Capital Bond Loan of 2019, and the Maryland Consolidated Capital Bond Loans of 2009, 2011, 2012, 2013, 2014, 2015, 2016, 2017, and 2018.
HB0102 Del Lierman, et al. Toll Roads, Highways, and Bridges - County Government Consent Requirement - Expansion.
HB0103 Dels Reilly and Cassilly. Law Enforcement Officers' Pension System - Benefits.
HB0104 Del Malone. Income Tax - Subtraction Modification for Qualified Higher Education Expenses - Annual Limitation.
HB0105 Chr ENT (Dept). Maryland Transportation Authority Facilities - Video Tolls - Collection.
HB0106 Chr ENT (Dept). Environmental Trust Fund - Surcharge Extension.
HB0107 Chr ENT (Dept). Real Property - Residential Property Foreclosure Procedures.
HB0108 Dels Carr and Korman. Vehicle Laws - Intersections - Prohibited Acts.
HB0109 Del Lierman, et al. Environment - Expanded Polystyrene Food Service Products - Prohibition.
HB0110 Del Walker, et al. Elementary School Students - Daily Physical Activity (Student Health and Fitness Act).
HB0111 Del J. Lewis, et al. Income Tax Credit - Agency Shop Fees and Union Dues.
HB0112 Del Lafferty. Vehicle Laws - Injury or Death of Vulnerable Individual - Penalties.
HB0113 Del Moon, et al. Criminal Law - Gaming - Civil Offense.
HB0114 Dels Reilly and Cassilly. Income Tax Subtraction Modification - Retirement Income of Correctional Services, Law Enforcement, or Fire, Rescue, or Emergency Services Personnel.
HB0115 Del Reilly. Maryland Income Tax Refund - Warrant Intercept Program - Termination Repeal.
HB0116 Del Barron, et al. Public Health - Correctional Services - Opioid Use Disorder Examinations and Treatment.
HB0117 Del Lafferty. Maryland Smart Growth Investment Fund.

HB0118 Del Washington, et al. Higher Education - Senatorial and Delegate Scholarships - In-State Tuition.
HB0119 Dels Washington and Palakovich Carr. Election Law - Permanent Absentee Ballot List.
HB0120 Del Love, et al. Natural Resources - No Net Loss of Forest - Definition.
HB0121 Del Dumais. Criminal Procedure - Charge by Citation - Violation of Condition of Release.
HB0122 Del Dumais, et al. Protective Orders – Relief Eligibility – Rape and Sexual Offenses.
HB0123 Del Miller. Real Estate Salespersons and Brokers - Advertisements - Use of "and Associates".
HB0124 Del K. Young, et al. Tanning Devices - Use by Minors.
HB0125 Del Miller, et al. Solar Photovoltaic Recycling.
HB0126 Del Miller, et al. Labor and Employment - Labor Organizations - Right to Work.
HB0127 Del Kelly. Health Insurance - Health Benefit Plans - Special Enrollment Period for Pregnancy.
HB0128 Del Reznik, et al. General Provisions - State Song - Advisory Panel.
HB0129 Dels Busch and Cain. Mandated Appropriation - City of Annapolis - Services.
HB0130 Del R. Lewis, et al. Maryland Transit Administration – Workgroup to Study Dedicated Bus Lanes in Baltimore City.
HB0131 Del K. Young, et al. Criminal Law and Procedure - Animal Abuse Registry.
HB0132 Del Reznik, et al. Education - Robotics Grant Program - Alterations.
HB0133 Del Reznik, et al. Public Schools - Provision of Feminine Hygiene Products.
HB0134 Del Love, et al. Environment - Single-Use Plastic Straws - Use in Restaurants.
HB0135 Del Moon, et al. Criminal Law - Cruelty to Animals - Seizure and Removal.
HB0136 Del Hill, et al. Department of General Services - Energy-Conserving and Bird-Safe Building Standards (Maryland Sustainable Buildings Act of 2019).
HB0137 Del Kerr, et al. State Personnel - Professional Service - Maryland School for the Deaf - Teachers.
HB0138 Del Moon, et al. Law Enforcement – Federal Military Surplus Program – Equipment Acquisition.
HB0139 Del Pena-Melnyk, et al. Public Health – Overdose and Infectious Disease Prevention Site Program.
HB0140 Del Luedtke. Special Education - Administrative Proceedings and Judicial Actions - Attorney's and Expert Witness Fees and Related Costs.
HB0141 Del Reznik, et al. Commercial Law - Internet Privacy and Net Neutrality.
HB0142 Del McKay. Family Law - Opioid-Exposed Newborns and Parents Addicted to Opioids - Mobile Application (I'm Alive Today App).
HB0143 Del Moon, et al. Criminal Procedure - Providing Electronic Device Location Information - Historical Data.
HB0144 Dels Szeliga and Moon. General Assembly - Live and Archived Video Streaming of Meetings.
HB0145 Del K. Young, et al. Hospitals - Patient's Bill of Rights.
HB0146 Del Fennell, et al. Motor Vehicles - Duplicate Driver's Licenses - Victims of Robbery or Theft.
HB0147 Del Moon, et al. Election Law - Local Public Campaign Financing - Boards of Education.
HB0148 The Spkr (Admin), et al. Safe Schools Maryland Act of 2019.
HB0149 The Spkr (Admin), et al. Retirement Tax Fairness Act of 2019.
HB0150 The Spkr (Admin), et al. More Opportunities for Marylanders Act of 2019.
HB0151 The Spkr (Admin), et al. Clean Cars Act of 2019.
HB0152 The Spkr (Admin), et al. Pathways in Technology Early College High (P-TECH) Expansion Act of 2019.
HB0153 The Spkr (Admin), et al. Building Opportunity Act of 2019.
HB0154 The Spkr (Admin), et al. Income Tax Subtraction Modification - Qualified Retired Public Safety Employee (Hometown Heroes Act of 2019).
HB0155 The Spkr (Admin), et al. Maryland Department of Health - Capital and Grant Programs - State Grants.
HB0156 The Spkr (Admin). Public Charter School Facility Fund.
HB0157 The Spkr (Admin), et al. State Government - Regulations Impacting Small Businesses.
HB0158 The Spkr (Admin), et al. State Personnel Recruitment Modernization Act of 2019.
HB0159 The Spkr (By Request). Judgeships - Circuit Court and District Court.
HB0160 Del Ebersole, et al. Property Tax Credits - Real Property Used for Robotics Programs.
HB0161 Del Mosby, et al. Baltimore City - Tax Sales of Real Property - Water Liens (Water Taxpayer Protection Act of 2019).
HB0162 Chr ECM (Dept). Medical Professional Liability Insurance Policies - Mandated Deductible Levels - Limitation.
HB0163 Chr ECM (Dept). Electricity - Combined Heat and Power Systems - Metering.
HB0164 Chr ECM (Dept). Business Occupations and Professions - Licensing and Regulation of Electricians.
HB0165 Chr ECM (Dept). Corporations and Associations - Fees for Processing Articles of Dissolution, Certificates of Cancellation, and Other Documents - Repeal.
HB0166 Del Fennell, et al. Labor and Employment - Payment of Wages - Minimum Wage and Enforcement (Fight for Fifteen).
HB0167 Chr JUD (Dept). Juvenile Causes - Safe Haven Newborns.
HB0168 Chr JUD (Dept). Public Safety - Reporting of Hate Crimes.
HB0169 Chr JUD (Dept). State Advisory Board for Juvenile Services - Duties and Access to Records.
HB0170 Chr ECM (Dept). Jane E. Lawton Conservation Loan Program - Eligible Borrowers.
HB0171 Chr W&M (Dept). Elections - Campaign Finance Entities - Termination and Filing of Final Campaign Finance Report.
HB0172 Chr W&M (Dept). Election Law - Voter Registration Deadlines and Security of Voter Registration Information.
HB0173 Chr W&M (Dept). Economic Development - Job Creation Tax Credit - Sunset Extension.
HB0174 Chr W&M (Dept). Election Law - Absentee Ballot Requests - Last Four Digits of Social Security Number.
HB0175 Chr W&M (Dept). Maryland Research and Development Tax Credit - Sunset Extension.
HB0176 Chr W&M (Dept). Election Law - Certificates of Candidacy and Nomination - Revisions.
HB0177 Chr W&M (Dept). Election Law - Judicial Proceedings Involving Local Boards of Elections - Notice.
HB0178 The Spkr (Admin), et al. Maryland Stadium Authority - Ocean City Convention Facility - Renovation.
HB0179 Chr APP (Dept). Correctional Services - Patuxent Institution - Appointing Authority.
HB0180 Chr ENT (Dept). Motor Vehicle Administration - Licenses and Identification Cards - Electronic Credentials.
HB0181 Del Cardin, et al. Criminal Law - Electronic Harassment and Bullying (Grace's Law 2.0).
HB0182 Del Cardin, et al. Judges - Mandatory Retirement Age.

HB0183 Prince George's County Delegation. Prince George's County - Property Tax Credit for Security Camera Systems PG 413-19.
HB0184 Prince George's County Delegation. Prince George's County - Elementary School - Limit on Class Size PG 503-19.
HB0185 Prince George's County Delegation. Prince George's County - Alcoholic Beverages - Class BLX License for Movie Theaters PG 302-19.
HB0186 Prince George's County Delegation. Prince George's County - Alcoholic Beverages - Family Entertainment Permit PG 301-19.
HB0187 Prince George's County Delegation. Prince George's County – Speed Monitoring Systems – Maryland Route 210 (Indian Head Highway) PG 305–19.
HB0188 Prince George's County Delegation. Prince George's County - Property Tax Credits - Grocery Stores PG 409-19.
HB0189 Prince George's County Delegation. Prince George's County - Alcoholic Beverages - Class BLX Licenses PG 304-19.
HB0190 Del Lafferty. Environment - Failing On-Site Sewage Disposal System - Definition.
HB0191 Del Sydnor, et al. Homeowner's Insurance - Discrimination in Underwriting and Rating - Status as Surviving Spouse.
HB0192 Prince George's County Delegation. Prince George's County Board of Education – Members' Expense Forms – Publication on Website PG 502–19.
HB0193 Del Barron. Life Insurance - Life of a Minor - Statement on Disclosure.
HB0194 Prince George's County Delegation. Prince George's County Public Schools - Office of Accountability and Compliance - Establishment PG 508-19.
HB0195 Prince George's County Delegation. Prince George's County Board of Education – Financial Literacy Curriculum – Graduation Requirement PG 504–19.
HB0196 Prince George's County Delegation. Prince George's County - Elementary School Students - Daily Physical Activity (Student Health and Fitness Act) PG 509-19.
HB0197 Wicomico County Delegation. Wicomico County - Alcoholic Beverages - Bed and Breakfast License.
HB0198 Wicomico County Delegation. Wicomico County - Alcoholic Beverages - Basket of Cheer Permit.
HB0199 Wicomico County Delegation. Wicomico County - Deer Hunting - Sundays.
HB0200 Wicomico County Delegation. Wicomico County – Sales and Use Tax Exemption – Aircraft Parts and Equipment.
HB0201 Del Korman, et al. Maryland Transit Administration - State Employees Subject to Collective Bargaining - Free Ridership (Transit Benefit for State Employees).
HB0202 Montgomery County Delegation. Department of the Environment - SepticSmart Week in Montgomery County MC 17-19.
HB0203 Montgomery County Delegation. Montgomery County - Maximum Speed Limits Outside Urban Districts MC 24-19.
HB0204 Del Luedtke, et al. Income Tax - Subtraction Modification - Employee-Owned Businesses.
HB0205 Del Healey, et al. Higher Education - Academic Forgiveness Policy - Established.
HB0206 Del K. Young, et al. Public and Nonpublic Schools - Classwork and Assessment Involving Live and Dead Animals - Student Choice Policy.
HB0207 Del Cullison. Condominiums and Homeowners Associations - Amendment of Governing Documents.
HB0208 Del Reilly, et al. Campaign Finance - Death of Elected Official - Transfer of Funds to Slate Account.
HB0209 Del Healey, et al. Privately Owned Transportation Projects - Construction and Authorization to Use State-Owned Rights-of-Way and Property - Requirements.
HB0210 Del Reilly, et al. Campaign Finance - Campaign Committee of Deceased Elected Official - Transfer to Appointed Spouse.
HB0211 Dels Barron and W. Fisher. Criminal Law - Crimes Involving Computers - Ransomware.
HB0212 Del Malone. Anne Arundel County - Toll Roads, Highways, and Bridges and Chesapeake Bay Crossing - Consent Requirement.
HB0213 Del Stein, et al. Cownose Ray Fishery Management Plan and Moratorium on Contests.
HB0214 Del Pena-Melnyk, et al. Victims and Witnesses - U Nonimmigrant Status - Certification of Victim Helpfulness.
HB0215 Del Jackson. Public Information Act - 9-1-1 Communications - Denial of Part of a Public Record.
HB0216 Del Sydnor. Speed Monitoring Systems - School Zone in Multiple Counties - Limitation.
HB0217 Del Sydnor. Baltimore County - Nuisance Actions - Community Association Standing.
HB0218 Del Krebs, et al. Public Health - Disposition of Remains - Forfeiture or Waiver of Right of Disposition.
HB0219 Prince George's County Delegation. Prince George's County - New Homes - Correction of Drainage Defects PG 408-19.
HB0220 Prince George's County Delegation. Prince George's County - Condominiums and Homeowners Associations - Reserve Studies - Annual Budgets PG 402-19.
HB0221 Prince George's County Delegation. Prince George's County - Utility Services - Master Meters Task Force - Extension PG 407-19.
HB0222 Del Holmes. Real Property - Residential Real Estate Transactions - Escrow Agents.
HB0223 Prince George's County Delegation. Prince George's County - Property Tax Credits - Teachers PG 410-19.
HB0224 Del Barron, et al. State and Local Government - Correctional Units - Detention Agreements and Contracting for Privatization of Facilities.
HB0225 Prince George's County Delegation. Prince George's County - School Facilities Surcharge - Exemptions - Transit Oriented Development - Workforce Housing PG 415-19.
HB0226 Del Lopez, et al. Food Stamp Program - Minimum Benefit for Disabled Individuals - State Supplement.
HB0227 Prince George's County Delegation. Prince George's County – Ethics – Limitations on Applicant Campaign Contributions PG 404–19.
HB0228 Del Cullison. State Board of Nursing - Criminal History Records Checks - Certified Nursing Assistants and Certified Medication Technicians.
HB0229 The Spkr (Admin), et al. State Commission on Criminal Sentencing Policy - Annual Report - Crimes of Violence.
HB0230 The Spkr (Admin), et al. Vehicle Laws - Drunk and Drugged Driving - Subsequent Offenders - Felonies (Repeat Drunk Driving Offenders Act of 2019).
HB0231 The Spkr (Admin), et al. Income Tax - Subtraction Modification - Volunteer Fire, Rescue, and Emergency Medical Services Members.
HB0232 The Spkr (Admin), et al. Transparency Act of 2019.
HB0233 The Spkr (Admin), et al. Workers' Compensation - Medical Presumptions.
HB0234 The Spkr (Admin), et al. Criminal Law - Crime of Violence - Human Trafficking.
HB0235 The Spkr (Admin). Economic Development - Maryland Technology Infrastructure Program.

HB0236 The Spkr (Admin), et al. Crimes - Use of a Firearm in the Commission of a Crime of Violence or Felony - Penalties (The Repeat Firearms Offender Act of 2019).
HB0237 Del Washington. Election Law - Early Voting Centers - Hours of Operation.
HB0238 Del Atterbeary, et al. Education - Removal of County Superintendents - Procedures.
HB0239 Del Jackson. Criminal Procedure - Maryland Animal Abuse Registry.
HB0240 Del Rosenberg, et al. Hate Crimes - Threats and Penalties.
HB0241 Del Rosenberg, et al. Vehicle Laws - License and Registration Renewal - Denial.
HB0242 Cecil County Delegation. Cecil County - Natural Resources - Hunting.
HB0243 Allegany County Delegation. Allegany County - Property Tax Credit - Cumberland Economic Development Corporation.
HB0244 Garrett County Delegation. Garrett County - Hotel Rental Tax - Rate and Distribution of Revenue.
HB0245 Del Kaiser, et al. Education - Student Data Privacy Council.
HB0246 Del Shetty, et al. General Assembly - Fiscal Notes - Environmental Impact Statements.
HB0247 Del K. Young, et al. Maryland Health Care Commission - Surgical Birth Rate - Study.
HB0248 Del Jones, et al. Education - Child Care Subsidies - Mandatory Funding Level.
HB0249 Del Stein. Condominiums - Responsibility for Property Insurance Deductibles.
HB0250 Del Stewart, et al. Real Property - Maryland Condominium Act - Priority of Liens.
HB0251 Del Hill, et al. Department of Aging - Grants for Aging-in-Place Programs (Nonprofits for our Aging Neighbors Act - "NANA").
HB0252 Del Washington, et al. Election Law - Eligible Detainees - Information on Voting Rights.
HB0253 Del Valentino-Smith, et al. Protective Orders - Relief - Transfer of Wireless Telephone Service.
HB0254 Del Grammer, et al. Clerks of the Courts - Maryland Judiciary Case Search - Information on Judge or Magistrate.
HB0255 Del Shoemaker, et al. Public Schools - Agricultural Education Programs.
HB0256 Del Wilkins, et al. State Department of Education - Guidelines on Trauma-Informed Approach.
HB0257 Del R. Lewis. Civil Actions - Immunities - Donated Food.
HB0258 Dels Pena-Melnyk and Pendergrass. Health Insurance - Individual Market Stabilization - Provider Fee.
HB0259 Del Moon, et al. Criminal Procedure - Expungement - Boating Offenses.
HB0260 Del Cardin. Election Law - Campaign Finance Violations - Injunctive Relief.
HB0261 Del Cardin. Election Law - Campaign Material - Clarification of Definition.
HB0262 Del Luedtke, et al. Higher Education - Tuition Rates - Exemptions.
HB0263 Del Atterbeary. Criminal Procedure - Pretrial Release Services Program - Victim Notification.
HB0264 Del Long. Homestead Property Tax Credit - Calculation of Credit for Dwelling Purchased by First-Time Homebuyer.
HB0265 Del B. Barnes (Chr Jt Com on Pnsns). Alternate Contributory Pension Selection - Return to Employment.
HB0266 Del B. Barnes (Chr Jt Com on Pnsns). State Retirement and Pension System - Designated Beneficiary Change - Rescission.
HB0267 Del B. Barnes (Chr Jt Com on Pnsns). Optional Retirement Program - Regulations.
HB0268 Del Beitzel, et al. Maryland Community College Promise Scholarship Program - Alterations to the Award of Scholarship Funds.
HB0269 Del Reznik, et al. Election Law - Voting by Absentee Ballot - Prepaid Postage for the Return of Ballots.
HB0270 Del Korman, et al. Higher Education - Collective Bargaining - Graduate Assistants (Graduate Assistant Collective Bargaining Fairness Act).
HB0271 Del Krebs, et al. Income Tax - Standard Deduction - Alteration.
HB0272 Del Lafferty, et al. Natural Resources - State and Local Forest Conservation Funds.
HB0273 Del B. Barnes. Anne Arundel County - Solicitation of Money or Donations From Occupants of Vehicles - Prohibitions and Permit Program.
HB0274 Dels Barron and Dumais. Justice Reinvestment Act - Diminution Credits - Sentencing.
HB0275 Del Stein, et al. Pesticides - Use of Chlorpyrifos - Prohibition.
HB0276 Al Co Deleg and Chr Gar Co Deleg. Allegany County and Garrett County - School Buses - Length of Operation.
HB0277 Del Korman, et al. Regional Initiative to Limit or Reduce Greenhouse Gas Emissions in Transportation Sector - Authorization (Regional Transportation and Climate Protection Act of 2019).
HB0278 Del Branch, et al. Baltimore City - Control of Police Department of Baltimore City.
HB0279 Del Dumais. Child Support - Multifamily Adjustment and Deviation From Guidelines.
HB0280 Del Dumais. Criminal Procedure - Charging Procedures and Documents - Citation.
HB0281 Del Dumais. Crimes - Adultery - Repeal.
HB0282 Del Beitzel. State Designations - Maryland State Amphibian - Long-Tailed Salamander.
HB0283 Al Co Deleg and Wash Co Deleg. Correctional Officers' Retirement System - Membership.
HB0284 Del J. Lewis, et al. Procurement – Small Businesses and Minority Businesses – Qualification and Certification (Small and Minority Business Certification Streamlining Act of 2019).
HB0285 Del Palakovich Carr, et al. Hotel Rental Tax - Limitation of Municipal Authority to Tax Small Hotels - Repeal.
HB0286 Del Reznik, et al. Election Law - Registration and Voting at Precinct Polling Places.
HB0287 Frederick County Delegation. Frederick County - Alcoholic Beverages - Promoter's Permit.
HB0288 Frederick County Delegation. Frederick County - Alcoholic Beverages Licenses - Sunday Sales.
HB0289 Frederick County Delegation. Frederick County - Alcoholic Beverages - Cinema/Theater License.
HB0290 Del Otto. Somerset County – Alcoholic Beverages – Board of License Commissioners – Salaries.
HB0291 Del Otto. Somerset County - Alcoholic Beverages - Liquor Control Board Reserve Fund.
HB0292 Del Otto. Somerset County - Alcoholic Beverages Licenses - Proximity to Places of Worship, Schools, Public Libraries, or Youth Centers.
HB0293 Frederick County Delegation. Frederick County - Alcoholic Beverages - Volunteer Fire Company or Volunteer Ambulance Company License.
HB0294 Del Wilkins, et al. Correctional Services - Diminution Credits - Education.
HB0295 Del Wilkins, et al. Nonpublic Elementary and Secondary Schools - Discrimination - Prohibition.

HB0296 Del Shetty, et al. Health Occupations - Pharmacists - Disclosure of Price and Cost Share for Prescription Drugs.
HB0297 Montgomery County Delegation. Montgomery County - Alcoholic Beverages - Sale of Chilled Beer and Chilled Wine MC 4-19.
HB0298 Del Busch, et al. Oysters - Tributary-Scale Sanctuaries - Protection and Restoration.
HB0299 Del Hill, et al. Public Health - Sale and Distribution of Products Containing NMP and DCM - Prohibition.
HB0300 Del Hill, et al. Public Health - Sale or Distribution of Trichloroethylene - Prohibition.
HB0301 Del Wilkins, et al. Vehicle Laws - Ethnicity-Based or Race-Based Traffic Stops - Policy and Reporting Requirements.
HB0302 Montgomery County Delegation. Montgomery County Housing Opportunities Commission - Collective Bargaining - Exclusive Representative Duty of Fair Representation MC 26-19.
HB0303 Del Moon, et al. Interstate Compact on Washington Area Professional Football Team Franchise Facility Incentives.
HB0304 Montgomery County Delegation. Montgomery County - Authority of County Council Over Inspector General - Montgomery College MC 12-19.
HB0305 Del Charkoudian, et al. State Procurement - Maryland Food for Maryland Institutions Task Force.
HB0306 Del Sydnor, et al. Mental Health - Involuntary Admission - Inmates in Correctional Facilities.
HB0307 Del Pena-Melnyk, et al. Maryland Lynching Truth and Reconciliation Commission.
HB0308 Del R. Lewis, et al. Public Service Commission - Certificate of Public Convenience and Necessity - Rapid Health Impact Assessment and Final Action.
HB0309 Del Cullison, et al. Task Force on Oral Health in Maryland.
HB0310 Del Valentino-Smith, et al. Task Force to Study Impaired Driving and New Technologies.
HB0311 Dorchester County Delegation. Dorchester County - Alcoholic Beverages - Class A Licenses.
HB0312 Frederick County Delegation. Frederick County - Alcoholic Beverages - Multiple Licenses Allowed.
HB0313 Del Washington, et al. State Income and Property Tax Credits - Purple Line Construction Zone.
HB0314 Frederick County Delegation. Frederick County - Alcoholic Beverages License Applications - Repeal of Petition of Support - Notice.
HB0315 Dels Kelly and Saab. Insurance Law - Application to Direct Primary Care Agreements - Exclusion.
HB0316 Del Kelly. Public Health - Vaccination Reporting Requirements - ImmuNet.
HB0317 Del Cullison. Maryland Commission on Civil Rights - Civil Penalties.
HB0318 Del Sydnor. Public Institutions of Higher Education - Residency Requirement - Determination of In-State Tuition Status.
HB0319 Del McIntosh, et al. University of Maryland University College - Renaming.
HB0320 Del Wilkins, et al. 2020 Census Complete Count Commission.
HB0321 Del Stein. State Government - Written Policies for Public Communications - Revisions.
HB0322 Del Palakovich Carr, et al. Election Law - References to Absentee Voting in Public Communications - Voting by Mail.
HB0323 Del Otto. Somerset County - Commissioners - Residency Requirements.
HB0324 Mont Co Deleg and PG Co Deleg. Washington Suburban Sanitary Commission - Discrimination - Prohibited in Contracts MC/PG 107-19.
HB0325 Mont Co Deleg and PG Co Deleg. Washington Suburban Sanitary Commission - Indirect Customer Assistance Program MC/PG 105-19.
HB0326 Mont Co Deleg and PG Co Deleg. Washington Suburban Sanitary Commission - Office of the Inspector General - Technical Changes MC/PG 104-19.
HB0327 Del Wivell, et al. Income Tax - Itemized Deductions.
HB0328 Del Ebersole, et al. Institutions of Higher Education - Financial Aid Reductions - Notice.
HB0329 Del Sydnor, et al. Motor Vehicle Insurance - Discrimination in Underwriting and Rating - Use of Occupation or Education Level.
HB0330 Del Miller, et al. Education - County Boards of Education - County Superintendent Contracts.
HB0331 Del Jacobs, et al. Farm Area Motor Vehicles - Registration and Authorized Use.
HB0332 Del McKay. Maryland Department of Health - Community Dental Clinics Grant Program.
HB0333 Montgomery County Delegation. Montgomery County - Alcoholic Beverages - Micro-Breweries and Farm Breweries MC 18-19.
HB0334 Montgomery County Delegation. Montgomery County - Alcoholic Beverages - Community Performing Arts Facility Special Event Permit MC 30-19.
HB0335 Montgomery County Delegation. Montgomery County - Alcoholic Beverages Licenses - Fee Refunds MC 28-19.
HB0336 Del Feldmark, et al. Unemployment Insurance - Civilian Federal Employees - Benefits (Federal Shutdown Paycheck Protection Act).
HB0337 Del Reilly, et al. Criminal Law - Opioids - Distribution Causing Death of Minor.
HB0338 Del Queen, et al. Human Services - Food Supplements (Summer SNAP for Children Act).
HB0339 Del Valentino-Smith, et al. Family Investment Program - Temporary Cash Assistance - Funding.
HB0340 Dels McKay and Wilson. State Lottery - Instant Ticket Lottery Machines - Fraternal Organizations ("Slots" for Homeless Veterans Act).
HB0341 Del Kelly, et al. Labor and Employment – Family and Medical Leave Insurance Program – Establishment (Time to Care Act of 2019).
HB0342 Del Reilly, et al. Public Safety - Permit to Carry, Wear, or Transport a Handgun - Qualifications.
HB0343 Del Lopez, et al. School Bus Monitoring Cameras - Civil Penalty - Sunset Repeal.
HB0344 Montgomery County Delegation. Montgomery County - Authority of County Council Over Inspector General - Housing Opportunities Commission MC 7-19.
HB0345 Montgomery County Delegation. Montgomery County – Damascus – Alcoholic Beverages Licenses MC 9–19.
HB0346 Del Glenn, et al. Baltimore City Board of School Commissioners - Elected Voting Members.
HB0347 Dels Glenn and Smith. Baltimore City - Alcoholic Beverages - Class B-D-7 Licenses.
HB0348 Del Jacobs, et al. Natural Resources - Oyster Planting - Substrate Material.
HB0349 Del Jacobs, et al. Limited Fishing Guide License - Payment for Service - Alteration.
HB0350 Del Valentino-Smith, et al. Vehicle Laws - Smoking Marijuana in Vehicles - Prohibition.
HB0351 Del Sydnor, et al. Motor Vehicle Insurance - Use of Credit History in Rating Policies.
HB0352 Mont Co Deleg and PG Co Deleg. Property Tax Credits - Maryland-National Capital Park and Planning Commission Park Police Officers MC/PG 108-19.

HB0353 Frederick County Delegation. Frederick County - Alcoholic Beverages - Theater Licenses - Seating Capacity.
HB0354 Washington County Delegation. Washington County - Alcoholic Beverages - Wineries - Special Event Permits.
HB0355 Del Patterson, et al. Public Ethics Law - School Boards - Disclosures and Requirements (School System Ethics and Transparency Act of 2019).
HB0356 Del Patterson, et al. Primary and Secondary Education - Nonpublic Schools - Required Information.
HB0357 Del Ebersole, et al. Appointment of County Superintendent of Schools - Disapproval by State Superintendent of Schools.
HB0358 St. Mary's County Delegation. St. Mary's County - Public Facility Bonds.
HB0359 St. Mary's County Delegation. St. Mary's County - Building Authority Commission - Repeal.
HB0360 St. Mary's County Delegation. St. Mary's County - Alcoholic Beverages - Sunday Sales at a Bar or Counter.
HB0361 Del Korman. Effective Corporate Tax Rate Transparency Act of 2019.
HB0362 Mont Co Deleg and PG Co Deleg. Maryland-National Capital Park and Planning Commission - Collective Bargaining - Exclusive Representative Duty of Fair Representation MC/PG 109-19.
HB0363 Del Lehman, et al. Evidence - Testimony by Spouse - Violation of Protective Order.
HB0364 Del Bagnall, et al. Health Care Practitioners - Medical Examinations on Anesthetized or Unconscious Patients.
HB0365 Del Bagnall. State Grants and Contracts - Reimbursement of Nonprofit Indirect Costs - Application.
HB0366 Del Krimm. Commission to Study Non-Emergency Medical Transportation Funding.
HB0367 Del Solomon, et al. Public Safety - Education - Firearm Funding.
HB0368 Del Valentino-Smith, et al. Criminal Law - Life-Threatening Injury Involving a Vehicle or Vessel - Criminal Negligence.
HB0369 Del Hornberger, et al. Admissions and Amusement Tax - Limitations on Municipal Corporations - Drive-In Movies and Roller Skating Rinks.
HB0370 Chr APP (Dept). Department of Labor, Licensing, and Regulation - Police Force - Repeal.
HB0371 Del Walker, et al. State Board of Education - Financial Literacy Curriculum - Graduation Requirement.
HB0372 Del W. Fisher, et al. Evidence - Chain of Custody of DNA.
HB0373 Chr JUD (Dept). Family Law - Paternity and Birth Certificates.
HB0374 Del Chang, et al. Anne Arundel County - Alcoholic Beverages - Racetrack License.
HB0375 Del Buckel, et al. Corporate Income Tax - Rate Reduction.
HB0376 Chr ENT (Dept). Vehicle Laws - Traffic Accident or Incident Management (Clear the Road Act of 2019).
HB0377 Del Gilchrist, et al. Natural Resources - Submerged Aquatic Vegetation Protection Zones - Revisions.
HB0378 Del Reznik, et al. Public Health - State-Provided Health Care Benefits.
HB0379 Chr ECM (Dept). Maryland Automobile Insurance Fund - Commercial Policies - Notice and Quotes.
HB0380 Del Walker. Income Tax Subtraction Modification - Mortgage Forgiveness Debt Relief - Extension.
HB0381 Del Long. Baltimore County Public Schools - Student Misconduct - Penalty for Parent or Guardian.
HB0382 Del Washington. Election Law - Absentee and Provisional Ballots - Status Information.
HB0383 Del K. Young, et al. Maryland Department of Health - Biosafety Level 3 Laboratories.
HB0384 Del Gilchrist, et al. Soft-Shell Clams and Razor Clams - Fishery Management Plans.
HB0385 Del Walker. Income Tax - Subtraction Modification for Classroom Supplies Purchased by Teachers - Alteration.
HB0386 Del Hornberger, et al. Admissions and Amusement Tax - Limitations on Municipal Corporations - Agricultural Tourism.
HB0387 Del Hornberger, et al. Income Tax - Subtraction Modification - Maryland Transportation Authority Police.
HB0388 Charles County Delegation. Charles County - Alcoholic Beverages - View of Licensed Premises.
HB0389 Chr Charles County Delegation. Charles County - Alcoholic Beverages - Resort Complex License.
HB0390 Del Jones, et al. State Department of Education - Employment Categories and Practices.
HB0391 Del Saab, et al. Vehicle Laws - High Occupancy Vehicle (HOV) Lanes - Hours of Operation on U.S. Route 50.
HB0392 Del Healey, et al. Real Property - Condominiums and Homeowners Associations - Dispute Settlement.
HB0393 Del Cassilly, et al. Natural Resources - Park Services Associates - Parking Citations.
HB0394 Del Cassilly, et al. Tidal Fish Licenses - Authorization to Catch Crabs - Application Requirements.
HB0395 Del Cassilly, et al. Motor Vehicles - Operation When Approaching Vehicle With Visual Signals.
HB0396 Del Carr, et al. Property Tax - Optional Installment Payment Schedule.
HB0397 Del Krebs, et al. Public Safety - 9-1-1 Emergency Telephone System (Carl Henn's Law).
HB0398 Dels Cassilly and Jalisi. Vehicle Laws – Overtaking and Passing Bicycles.
HB0399 Del Pendergrass, et al. End-of-Life Option Act (Richard E. Israel and Roger "Pip" Moyer Act).
HB0400 Chr Charles County Delegation. Charles County - Alcoholic Beverages - Exemption From Off-Sale License Quota.
HB0401 Harford County Delegation. Harford County - Hunting - Deer Management Permits.
HB0402 Del Atterbeary. Family Law - Grounds for Divorce.
HB0403 Dels Ebersole and P. Young. Income Tax Credit - Qualified Farms - Food Donation Pilot Program - Expansion and Extension.
HB0404 Del R. Lewis. State Acupuncture Board - Practice of Acupuncture - Definition and Education Requirements.
HB0405 Del Beitzel, et al. Natural Resources - State Lakes Protection and Restoration Fund - Mandatory Funding and Repeal of Termination Date.
HB0406 Del Beitzel. Wetlands and Waterways Program - State-Owned Lands - Structural Shoreline Stabilization.
HB0407 Del Beitzel. Garrett County - Pretrial Release, Work Release, and Home Detention Programs.
HB0408 Del Beitzel. Natural Resources - Chesapeake and Atlantic Coastal Bays Trust Fund.
HB0409 Del Barron, et al. Drugs and Devices - Electronic Prescriptions - Requirements.
HB0410 Del Impallaria, et al. Task Force on Prohibiting Debris From Entering Storm Drains or Stormwater Inlets.
HB0411 Dels Lafferty and Ebersole. Environment - Sale and Application of Coal Tar and Coal Tar Pavement Products - Prohibition.
HB0412 Del Rosenberg. Civil Actions - Strategic Lawsuits Against Public Participation.

HB0413 Del Barron, et al. Public Information Act - Personnel and Investigatory Records - Formal Complaints Against Public Employees.
HB0414 Del Healey, et al. Cooperative Housing Corporations - Dispute Settlement and Eviction Procedures.
HB0415 Del Rosenberg. Medical Assistance Employment Initiative Pilot Program.
HB0416 Chr Jt Com on Fed Rels. Atlantic States Marine Fisheries Compact - Amendment I - Adoption.
HB0417 Del Hill, et al. Water Pollution Control - Public Notification of Sewer Overflows and Treatment Plant Bypasses - Alteration.
HB0418 Dels Moon and Sydnor. Juvenile Law - Waiver and Transfer of Jurisdiction.
HB0419 Del K. Young, et al. Pharmacists - Administering Injectable Medications and Biological Products.
HB0420 Del Sydnor. Criminal Law - Threat of Mass Violence.
HB0421 Del Love, et al. Vehicle Laws - Licenses, Identification Cards, and Moped Operator's Permits - Indication of Applicant's Sex.
HB0422 Dels Anderson and J. Lewis. Criminal Procedure - Expungement of Convictions - Clarification.
HB0423 Del Kelly, et al. Election Law - Voter Registration - High Schools.
HB0424 Del Corderman. Washington County - Disposition of Marriage Ceremony Fee.
HB0425 Dels Sydnor and Pena-Melnyk. Civil Actions - Unfair, Abusive, or Deceptive Trade Practices by Mortgage Servicer - Statute of Limitations.
HB0426 Del Korman. 21st Century Transportation Funding Act.
HB0427 Del Barron, et al. Behavioral Health Administration - Outpatient Civil Commitment - Statewide Expansion.
HB0428 Del C. Watson, et al. Comprehensive Flood Management Grant Program – Awards for Flood Damage and Mandatory Funding.
HB0429 Del Lisanti, et al. Tow Trucks - Driver Safety Act.
HB0430 Del Cox. State Retirement and Pension System - Military Service Credit.
HB0431 Del Barron. State Treasurer - Task Force to Study Alternative Financial Investment Bonds.
HB0432 Del Dumais, et al. Property Tax - Exemptions - Nonprofit Charitable Museums.
HB0433 Del Fraser-Hidalgo, et al. Maryland Police Training and Standards Commission - Police Officer Certification - Eligibility (Freedom to Serve Act).
HB0434 Del K. Young, et al. Pediatric Stroke - Awareness, Training, and Resource Materials (Laney Jaymes Fitzsimmons Act).
HB0435 Del Kelly, et al. Health Insurance - Prescription Drugs - Formulary Changes.
HB0436 Del Hill, et al. Estates and Trusts - Protection of Minors and Disabled Persons - Guardianship.
HB0437 Del Ebersole, et al. County Boards of Education - School Year - Start and End Dates.
HB0438 Charles County Delegation. Charles County - Alcoholic Beverages - Golf Course Privilege.
HB0439 Dels Washington and Charkoudian. Public Schools - School Resource Officers - Prohibited Conduct.
HB0440 Del Harrison, et al. Pathways in Technology Early College High (P-TECH) Expansion Act of 2019.
HB0441 Del Crosby, et al. Income Tax - Subtraction Modification - Volunteer Fire, Rescue, and Emergency Medical Services Members.
HB0442 Del Ebersole. Business Regulation - Junk Dealers and Scrap Metal Processors - Reporting Requirements.
HB0443 Del Queen, et al. Inmates - Life Imprisonment - Parole Reform.
HB0444 Prince George's County Delegation. Prince George's County - State Highways - Mowing, Maintenance, and Litter Removal PG 419-19.
HB0445 Prince George's County Delegation. Prince George's County - Alcoholic Beverages - Class B-ECF/DS Beer, Wine, and Liquor License PG 306-19.
HB0446 Frederick County Delegation. Frederick County - Alcoholic Beverages - Class DDS (Distillery) License.
HB0447 Frederick County Delegation. Frederick County - Alcoholic Beverages - Basket of Cheer.
HB0448 Del Cullison. Health Occupations - Violations of the Maryland Dentistry Act - Penalties and Cease and Desist Orders.
HB0449 Del Lafferty. Baltimore County - Development Impact Fees - Authorization.
HB0450 Dels Krebs and Kittleman. Income Tax - Itemized Deductions.
HB0451 Del Lafferty, et al. Fair Housing Opportunities Act of 2019.
HB0452 Del Krebs, et al. Procurement Contracts - Architectural and Engineering Services - Indemnity Clauses.
HB0453 Del Bromwell. Unemployment Insurance - Exemption From Covered Employment - Bulk Vending Item Assembly.
HB0454 Del Kipke. Sales and Use Tax - List of Tangible Personal Property and Services - Publication.
HB0455 Del Kipke. Physicians - Discipline - Procedures and Effects.
HB0456 Prince George's County Delegation. Prince George's County - State Highways - Toll Facilities PG 420-19.
HB0457 Dels Korman and Krebs. Income Tax Interest and Penalty Waiver Act of 2019.
HB0458 Del Turner, et al. Prince George's County - Video Lottery Terminals - Distribution of Local Impact Grants.
HB0459 Del Chang. Anne Arundel County - Alcohol Awareness.
HB0460 Harford County Delegation. Harford County Board of Education - Elected Members - Start Date of Term.
HB0461 Del Hettleman, et al. Maryland Higher Education Commission - Private Nonprofit Institutions of Higher Education - Regulation (Private Nonprofit Institution of Higher Education Protection Act of 2019).
HB0462 Dels Moon and Sydnor. Maryland Police Training and Standards Commission - Body-Worn Camera Policy.
HB0463 Del Malone, et al. Congressional Districts - Standards (Anti-Gerrymandering of Maryland's Congressional Districts).
HB0464 Del Hettleman, et al. Private Career Schools and For-Profit Institutions of Higher Education - Disclosures and Regulation.
HB0465 Chr W&M (Dept). State Department of Assessments and Taxation - Distribution of Recordation and Transfer Tax Revenues.
HB0466 Del Kerr, et al. Prescription Drug Monitoring Program - Program Evaluation.
HB0467 Del Lisanti, et al. Motor Vehicle Registration - Exception for Low Speed Electric Vehicles - City of Havre de Grace.
HB0468 Del Stein, et al. Public Safety - Access to Firearms - Storage Requirements.
HB0469 Chr APP (Dept). Supplemental Retirement Plans - Investments - Procurement of Investment Management Services.
HB0470 Del Cullison. State Board of Dental Examiners - Ownership, Management, or Operation of a Dental Practice.
HB0471 Del K. Young, et al. Health Occupations - Requirements for the Practice of Optometry - Miscellaneous Revisions.
HB0472 Del Lafferty, et al. Constitutional Amendment - Environmental Rights.

HB0473 Del Lafferty, et al. Residential Leases - Definition of "Rent".
HB0474 Dels Krimm and Mautz. Joint Use of Utility and Telecommunications Infrastructure.
HB0475 Queen Anne's County Delegation. Queen Anne's County - Alcohol Awareness Program.
HB0476 Queen Anne's County Delegation. Queen Anne's County - Alcoholic Beverages - Beauty Salon and Barbershop License.
HB0477 Del Clark, et al. Property Tax Credit - Public Safety Officer - Definition.
HB0478 Del Kelly. Procurement - Qualification Based Selection - Land Surveying Services.
HB0479 Del Ebersole, et al. Education - Salaries of Noncertificated Public School Employees - Minimum Living Salaries.
HB0480 Del Luedtke, et al. Alcoholic Beverages - Maryland Brewery Promotion Program - Establishment.
HB0481 Del Mosby, et al. Criminal Law - Sale of a Minor - Felony.
HB0482 Del Mosby, et al. Income Tax Credit - Endowments of Maryland Historically Black Colleges and Universities.
HB0483 Del Kipke, et al. Service Contracts - Work Verification Clause.
HB0484 St. Mary's County Delegation. St. Mary's County - Charitable or Fundraising Campaign Fraud - Police Dispatcher.
HB0485 Del Stein. Office of the Attorney General - Senior and Vulnerable Adult Asset Recovery Unit.
HB0486 Del Wilson, et al. Education - Personnel Matters - Child Sexual Abuse and Sexual Misconduct Prevention.
HB0487 Del Dumais. Judicial Elections - Retention and Frequency.
HB0488 Del McIntosh. Forestry - Mel Noland Fellowship Program - Establishment.
HB0489 Del Krebs. Cemeteries - Perpetual Care - Distribution From Perpetual Care Trust Fund.
HB0490 Del Hornberger, et al. State Prescription Drug Benefit Plan - Termination of Coverage for Retirees - Exemptions and Alterations.
HB0491 Del Hettleman, et al. State Contractual Employees - Paid Leave.
HB0492 Del Gilchrist, et al. Procurement - Carbon-Intensive Foods.
HB0493 Del Valentino-Smith, et al. Crimes - Solicitation to Commit Murder - Penalty.
HB0494 Dels Gilchrist and Stein. Natural Resources - Land Trust Grant Fund - Grant Awards and Funding.
HB0495 Del Valentino-Smith, et al. Juvenile Law - Informal Adjustment.
HB0496 Del Healey, et al. Department of the Environment - Public and Nonpublic Schools - Inspections for Environmental Hazards.
HB0497 Dels Sample-Hughes and Holmes. Real Property - Sales of Mobile Home Parks - Notice Requirements.
HB0498 Prince George's County Delegation. Prince George's County - School Construction Master Plan Workgroup - Reporting and Sunset Extension PG 510-19.
HB0499 Del Fraser-Hidalgo, et al. Civil Actions - Interstate Pipeline Liability Act.

[19-04-15]

Senate Bills

SB0001 Chr JPR (Dept). Paternity Proceedings - Attorney for the Child Support Administration.
SB0002 Sen Eckardt, et al. Sales and Use Tax - Aircraft Parts and Equipment - Exemption.
SB0003 Sen Rosapepe. Maryland Smart Growth Investment Fund.
SB0004 Sen Serafini. Sales and Use Tax - Aircraft Parts and Equipment - Exemption.
SB0005 Sen Kagan. Public Information Act - 9-1-1 Communications - Denial of Part of a Public Record.
SB0006 Sen Eckardt. Wicomico County - Alcoholic Beverages - Basket of Cheer Permit.
SB0007 Chr EHE (Dept). Natural Resources - Regulation and Use of Commercial Finfish Trotlines - Repeal of Sunset.
SB0008 Sen Benson. Criminal Law - Computer-Aided Firearm Fabrication - Prohibitions.
SB0009 Sen Young, et al. Income Tax - Subtraction Modification - Expenses of Medical Cannabis Grower, Processor, Dispensary, or Independent Testing Laboratory.
SB0010 Chr EHE (Dept). Natural Resources - Oysters, Clams, and Clamming - Licenses and Regulations.
SB0011 Chr FIN (Dept). Distressed Counties - References and Definitions.
SB0012 Chr FIN (Dept). Capital Projects - Inclusion of Public Art.
SB0013 Sen Serafini. Juveniles - Reportable Offenses.
SB0014 Sen Lam. Vehicle Laws - Personal Electric Transportation Devices - Definitions.
SB0015 Sen Serafini. Public School Construction - Innovation Incentive Pilot Program - Prevailing Wage Requirements.
SB0016 Sen Serafini. Workgroup on Categories for Funding Priorities in the Annual State Budget.
SB0017 Sen Kagan. State Grants and Contracts - Reimbursement of Nonprofit Indirect Costs - Application.
SB0018 Sen Serafini. Income Tax - Flat Tax.
SB0019 Sen Eckardt. Wicomico County - Alcoholic Beverages - Bed and Breakfast License.
SB0020 Chr FIN (Dept). Appraisal Management Companies - Notice and Response Requirements for Violations - Repeal of Exception.
SB0021 Chr FIN (Dept). Department of Labor, Licensing, and Regulation - State Occupational Mechanical Licensing Boards' Fund - Elevator Safety Review Board.
SB0022 Chr FIN (Dept). Insurance Regulation - Third Party Administrators - Life Insurance.
SB0023 Chr JPR (Dept). Child Support - Lien Against Monetary Award.
SB0024 Chr JPR (Dept). Family Law - Kinship Caregivers.
SB0025 Chr JPR (Dept). Real Property - Conservation Easements, Covenants, Restrictions, and Conditions - Recording Notice.
SB0026 Chr JPR (Dept). State Department of Assessments and Taxation - Expedited Document Processing.
SB0027 Chr EHE (Dept). State Archives – Acquisition of Fine Art or Decorative Art – Procurement Exemption.
SB0028 Chr FIN (Dept). Health Insurance - Coverage Requirements for Behavioral Health Disorders - Short-Term Limited Duration Insurance.
SB0029 Chr FIN (Dept). Insurance - Licensure of Insurance Producers and Public Adjusters - Continuing Education Requirements.
SB0030 Chr FIN (Dept). Insurance - Breach of Security of a Computer System - Notification Requirement.
SB0031 Chr FIN (Dept). Insurance - Insurance Holding Company Model Act.

SB0032 Sen Benson. Election Law - Early Voting Centers - Reduced Days of Operation.
SB0033 Sen McCray. Baltimore City - Home Inspectors - Residential Rental Inspections.
SB0034 Sen Young. Tourist Area and Corridor Program and Task Force on Attraction Signs.
SB0035 Sen Young. State Personnel - Professional Service - Maryland School for the Deaf - Teachers.
SB0036 Sen Lam. Health Insurance - Health Benefit Plans - Special Enrollment Period for Pregnancy.
SB0037 Sen Serafini. Corporate Income Tax - Rate Reduction.
SB0038 Sen Serafini. Maryland Healthy Working Families Act – Employers With On–Site Health Clinics – Exemption.
SB0039 Sen McCray. Baltimore City - Police Districts - Redistricting.
SB0040 Sen Serafini. Procurement - Prevailing Wage - Modifications.
SB0041 Sen McCray. Office of Legislative Audits - Audits of the Baltimore Police Department.
SB0042 Sen McCray. Baltimore City - Fines, Fees, and Other Monetary Payments - Methods of Payment.
SB0043 Sen McCray. Baltimore City - At-Will Supervisory Members of the Police Department - Residency Requirements.
SB0044 Chr FIN (Dept). Insurance - Corporate Governance Annual Disclosure Act.
SB0045 Chr FIN (Dept). Health Care Provider Malpractice Insurance - Authorization to Settle - Clarification.
SB0046 Chr FIN (Dept). Long-Term Care Insurance - Contingent Benefit Upon Lapse - Application.
SB0047 Chr FIN (Dept). Health Insurance - Technical Correction and Required Conformity With Federal Law.
SB0048 Chr FIN (Dept). Health Insurance - Referral to Specialists - Definition of Provider Panel.
SB0049 Chr FIN (Dept). Task Force to Study Cooperative Purchasing for Health Insurance - Membership and Staffing.
SB0050 Chr FIN (Dept). Health Insurance - Form Filings - Review and Waiting Period Extensions.
SB0051 Chr FIN (Dept). Maryland Heritage Areas Authority - Target Investment Zones - Repeal.
SB0052 Chr FIN (Dept). State Government - Strategic Energy Investment Program - Reporting.
SB0053 Chr FIN (Dept). State Finance and Procurement - Energy Performance Contracts.
SB0054 Chr EHE (Dept). Surface Mining - Zone of Dewatering Influence - Contested Case Hearing.
SB0055 Chr EHE (Dept). Department of Planning - Central Depository.
SB0056 Chr EHE (Dept). Secretary of Agriculture - Regulation of Poultry to Protect Animal Health and Control Avian Influenza.
SB0057 Chr EHE (Dept). Agriculture - County Agricultural Land Preservation Programs.
SB0058 Chr EHE (Dept). Maryland Agricultural Land Preservation Foundation - Elimination of District Agreements.
SB0059 Chr B&T (Dept). State Department of Assessments and Taxation - Notices and Orders - E-Mail.
SB0060 Chr JPR (Dept). Vehicle Laws - Driver's Licenses - Expiration and Renewal.
SB0061 Chr JPR (Dept). Criminal Injuries Compensation Board - Claims - Electronic Filing.
SB0062 Chr FIN (Dept). Uninsured Employers' Fund - Suspension and Resumption of Assessments - Repeal.
SB0063 Chr FIN (Dept). Uninsured Employers' Fund - Liability for Insolvent Self-Insured Employers - Limitation.
SB0064 Chr FIN (Dept). Maryland School for the Deaf - Employees - Annual and Personal Leave.
SB0065 Sen Young, et al. Income Tax - Subtraction Modification - Retirement Income.
SB0066 Chr FIN (Dept). Labor and Employment - Occupational Safety and Health - Enforcement of Regulations.
SB0067 Chr FIN (Dept). Financial Institutions - Examination and Investigation of Licensed Persons - Disclosure of Information.
SB0068 Chr FIN (Dept). Commercial Law - Credit Services Businesses - Information Statements.
SB0069 Chr FIN (Dept). Appraisal Management Companies – Annual Fee and Reports.
SB0070 Chr JPR (Dept). Vehicle Laws – HOV Lanes – Hybrid Vehicles.
SB0071 Chr JPR (Dept). Juvenile Law - Intake Procedures.
SB0072 Chr JPR (Dept). Membership - Department of Juvenile Services State Advisory Board.
SB0073 Chr FIN (Dept). Insurance - Life Insurance and Annuities - Record Retention.
SB0074 Chr EHE (Dept). Higher Education - Charles W. Riley Firefighter and Ambulance and Rescue Squad Member Scholarship - Alterations.
SB0075 Chr FIN (Dept). Juvenile Services Education Program - Employees - Employment Contracts and Leave.
SB0076 Sen Young, et al. Small Business Fairness Act.
SB0077 Sen Lam. Estates and Trusts - Protection of Minors and Disabled Persons - Guardianship.
SB0078 Sen Young, et al. Plug-In Electric Drive Vehicle Excise Tax Credit - Sunset - Repeal.
SB0079 Chr EHE (Dept). Public Ethics - Lobbyist Registration and Reporting - Mandatory Electronic Filing.
SB0080 Sen Benson. Sales and Use Tax - Tax-Free Weekends - Emergency Preparedness Equipment.
SB0081 Sen McCray. Baltimore City - Police Department - Reports on Funds.
SB0082 Sen Lam. Public Health - Sale and Distribution of Products Containing NMP and DCM - Prohibition.
SB0083 Sen Lam. Public Health - Sale or Distribution of Trichloroethylene - Prohibition.
SB0084 Chr JPR (Dept). Vehicle Laws - Certificate of Title Application - Signature Requirement.
SB0085 Sen Kagan (Chr JtCMPF) and Sen Reilly. Capital Debt Affordability Committee - Annual Estimate.
SB0086 Sen Serafini. Possession of Medical Cannabis - Local Correctional Facilities and Home Detention Program - Prohibition.
SB0087 Sen Serafini. Income Tax - Standard Deduction - Alteration.
SB0088 The Pres (Admin). Student Debt Relief Act of 2019.
SB0089 The Pres (Admin), et al. Small Business Relief Tax Credit - Expansion.
SB0090 The Pres (Admin), et al. Elections - Legislative and Congressional Redistricting and Apportionment - Commission and Process.
SB0091 The Pres (Admin), et al. Legislative and Congressional Redistricting and Apportionment.
SB0092 The Pres (Admin), et al. Accountability in Education Act of 2019.
SB0093 Sen Reilly. Anne Arundel County - Controlled Water Ski Area in Maynadier Creek - Operation of Vessel - Hours of Operation.
SB0094 The Pres (DLS). State Government - Consumer Price Index - Revised Statutory References.
SB0095 Sen Simonaire. Natural Resources - Recreational License Donation Program - Program Extension and Monetary Donations via Electronic Licensing.
SB0096 Sen Washington, et al. Baltimore City - Tax Sales of Real Property - Water Liens (Water Taxpayer Protection Act of 2019).

SB0097 Sens Hough and Zirkin. Firearms - Right to Purchase, Possess, and Carry - Use of Medical Cannabis.
SB0098 Sen Hough, et al. Family Law - Child Conceived Without Consent - Child Support.
SB0099 Sen Elfreth, et al. Anne Arundel County - Public Safety - Buildings Used for Agritourism.
SB0100 Sen Zirkin. Civil Actions - Interstate Pipeline Liability Act.
SB0101 Sen Zirkin. Civil Actions - Prelitigation Discovery of Insurance Coverage.
SB0102 Sen Zirkin. Courts - Direct Action Against Insurer.
SB0103 Sen Zirkin, et al. Criminal Law - Electronic Harassment and Bullying (Grace's Law 2.0).
SB0104 Washington County Senators. Washington County - Alcoholic Beverages - Wineries - Special Event Permits.
SB0105 Sen Simonaire. Maryland Veterans Service Animal Program - Therapy Horses.
SB0106 Sen Serafini. Sales and Use Tax Exemption - Target Redevelopment Area - Washington County.
SB0107 Sen Reilly. Anne Arundel County - Toll Roads, Highways, and Bridges and Chesapeake Bay Crossing - Consent Requirement.
SB0108 Sen Reilly. Income Tax - Subtraction Modification for Qualified Higher Education Expenses - Annual Limitation.
SB0109 Sen Reilly. Maryland Income Tax Refund - Warrant Intercept Program - Termination Repeal.
SB0110 Sen Reilly. Congressional Districts - Standards.
SB0111 Sen Eckardt. Dorchester County - Alcoholic Beverages - Class A Licenses.
SB0112 The Pres. Mandated Reports and Statutory Commissions, Councils, and Committees - Revisions.
SB0113 Sen Hough, et al. Public Safety - Handgun Permits - Payment of Fees.
SB0114 Sen Hough, et al. Firearms - Handgun Permit - Preliminary Approval.
SB0115 Sen Hough, et al. Public Safety - Permit to Carry, Wear, or Transport a Handgun - Qualifications.
SB0116 Sen McCray. Transportation - Complete Streets - Access to Healthy Food.
SB0117 Sen McCray. Public Safety - Smoke Detection System Violation - Civil Offense.
SB0118 Sen Ready, et al. Handgun Permits - Criminal History Records Checks - Fingerprint Submission Exception.
SB0119 Sen Griffith (Chr Jt Com on Pnsns). Employees' Pension System - Purchase of Eligibility Service Credit - Clarification.
SB0120 Sen Griffith (Chr Jt Com on Pnsns). State Retirement and Pension System - Designation of Beneficiary.
SB0121 Sen Kelley, et al. Inmates - Life Imprisonment - Parole Reform.
SB0122 Sen Guzzone. Property Tax Credits - Real Property Used for Robotics Programs.
SB0123 Sen Pinsky. Election Law - Coordinated Expenditures and Donations - Investigation.
SB0124 Sen Simonaire. Anne Arundel County and Harford County - Court Dog and Child Witness Pilot Program - Extension.
SB0125 The Pres (Admin). Budget Bill (Fiscal Year 2020).
SB0126 The Pres (Admin). Creation of a State Debt - Maryland Consolidated Capital Bond Loan of 2019, and the Maryland Consolidated Capital Bond Loans of 2009, 2011, 2012, 2013, 2014, 2015, 2016, 2017, and 2018.
SB0127 Sen Simonaire. Education - Public School Attendance - Homeless Children.
SB0128 Sens Pinsky and King. County Boards of Education - School Year - Start and End Dates.
SB0129 Sen Lee. Criminal Law - Continuing Course of Conduct With a Child - Unit of Prosecution.
SB0130 Sen Lee. Criminal Procedure - Charge by Citation - Violation of Condition of Release.
SB0131 Sen King. County Boards of Education - Length of School Year - Adjustments.
SB0132 Cecil County Senators. Horse Racing at Fair Hill - Union Hospital Allocation - Repeal.
SB0133 Sen Gallion, et al. Farm Area Motor Vehicles - Registration and Authorized Use.
SB0134 Sen Nathan-Pulliam, et al. State Board of Nursing - Criminal History Records Checks - Certified Nursing Assistants and Certified Medication Technicians.
SB0135 Sen Feldman, et al. Public Health - Overdose and Infectious Disease Prevention Site Program.
SB0136 Sens Waldstreicher and West. Corporations - Corporate Records and Electronic Transmission.
SB0137 Sens Waldstreicher and West. Corporations - Maryland General Corporation Law - Miscellaneous Provisions.
SB0138 Sen Lee, et al. Stalking - Violation of Conditions of Release and Disqualifying Crime.
SB0139 Sen Lee, et al. Criminal Law - Threat of Mass Violence.
SB0140 Washington County Senators. Washington County - Archery Hunting - Safety Zone.
SB0141 Washington County Senators. Washington County - Disposition of Marriage Ceremony Fee.
SB0142 Sen Edwards. State Designations - Maryland State Amphibian - Long-Tailed Salamander.
SB0143 Sen Young, et al. Cownose Ray Fishery Management Plan and Moratorium on Contests.
SB0144 Sen Augustine, et al. Victims and Witnesses - U Nonimmigrant Status - Certification of Victim Helpfulness.
SB0145 Sen Klausmeier, et al. Natural Resources - Prohibition on Dredging Buried Oyster Shells on Man-O-War Shoals.
SB0146 Sen Klausmeier. Commercial Driver's Licenses - Recognition, Prevention, and Reporting of Human Trafficking.
SB0147 Sen Klausmeier. Public Health - Disposition of Remains - Forfeiture or Waiver of Right of Disposition.
SB0148 Sen Hough, et al. Correctional Services - Murder - Diminution Credits.
SB0149 Sen Hough, et al. Task Force to Study Crime Classification and Penalties.
SB0150 Sen Hough, et al. Correctional Services - Eligibility for Parole - Life Imprisonment.
SB0151 Sen Lee, et al. Criminal Law - Crimes Involving Computers - Ransomware.
SB0152 Sen Ready, et al. Criminal Law - Cruelty to Animals - Seizure and Removal.
SB0153 Sen Griffith (Chr Jt Com on Pnsns). Alternate Contributory Pension Selection - Return to Employment.
SB0154 Sen Simonaire. Election Law - Election Day - Opening Time for Polling Places.
SB0155 Sen Simonaire. Recreational License Donation Program - Grants to Eligible Sponsor Organizations and Program Extension.
SB0156 Sen Elfreth. Mandated Appropriation - City of Annapolis - Services.
SB0157 Sen Beidle. Labor and Employment - Overtime Exemption - Service Advisors.
SB0158 Sen Guzzone. Maryland Department of Health - Community Dental Clinics Grant Program.
SB0159 The Pres (Admin), et al. Building Opportunity Act of 2019.
SB0160 The Pres (Admin), et al. Workers' Compensation - Medical Presumptions.

SB0161 The Pres (Admin), et al. Income Tax - Subtraction Modification - Volunteer Fire, Rescue, and Emergency Medical Services Members.
SB0162 The Pres (Admin), et al. Criminal Law - Crime of Violence - Human Trafficking.
SB0163 The Pres (Admin), et al. Vehicle Laws - Drunk and Drugged Driving - Subsequent Offenders - Felonies (Repeat Drunk Driving Offenders Act of 2019).
SB0164 The Pres (Admin), et al. Maryland Department of Health - Capital and Grant Programs - State Grants.
SB0165 The Pres (Admin), et al. Safe Schools Maryland Act of 2019.
SB0166 The Pres (Admin), et al. Crimes - Use of a Firearm in the Commission of a Crime of Violence or Felony - Penalties (The Repeat Firearms Offender Act of 2019).
SB0167 The Pres (Admin), et al. Pathways in Technology Early College High (P-TECH) Expansion Act of 2019.
SB0168 The Pres (Admin), et al. Clean Cars Act of 2019.
SB0169 The Pres (Admin), et al. State Personnel Recruitment Modernization Act of 2019.
SB0170 The Pres (Admin), et al. Retirement Tax Fairness Act of 2019.
SB0171 The Pres (Admin), et al. Income Tax Subtraction Modification - Qualified Retired Public Safety Employee (Hometown Heroes Act of 2019).
SB0172 The Pres (Admin). Public Charter School Facility Fund.
SB0173 The Pres (Admin), et al. State Government - Regulations Impacting Small Businesses.
SB0174 The Pres (Admin), et al. More Opportunities for Marylanders Act of 2019.
SB0175 The Pres (Admin). Economic Development - Maryland Technology Infrastructure Program.
SB0176 The Pres (Admin), et al. State Commission on Criminal Sentencing Policy - Annual Report - Crimes of Violence.
SB0177 The Mnrty Ldr (Admin), et al. Maryland Stadium Authority - Ocean City Convention Facility - Renovation.
SB0178 Sen Eckardt. Behavioral Health Programs - Medical Directors - Telehealth.
SB0179 Sen Griffith (Chr Jt Com on Pnsns). Optional Retirement Program - Regulations.
SB0180 Sen King. Education - Robotics Grant Program - Alterations.
SB0181 Sen King, et al. Education - Child Care Subsidies - Mandatory Funding Level.
SB0182 Sen King, et al. Community Colleges - Supplemental Services and Supports for Students With Disabilities Grant Program.
SB0183 Sen Kagan. Recycling - Lodging Establishments - Notification to Guests.
SB0184 Sen Kagan. State Board of Elections - Open Meetings - Video Streaming and Recording (State Board of Elections Transparency Act).
SB0185 Sen Feldman. Life Insurance - Life of a Minor - Statement on Disclosure.
SB0186 Sen Griffith (Chr Jt Com on Pnsns). State Retirement and Pension System - Designated Beneficiary Change - Rescission.
SB0187 Sen Young, et al. Maryland Department of Health - Biosafety Level 3 Laboratories.
SB0188 Sen Young, et al. Public and Nonpublic Schools - Classwork and Assessment Involving Live and Dead Animals - Student Choice Policy.
SB0189 Sen Cassilly. Condominiums and Homeowners Associations - Election of Governing Body.
SB0190 Sen West, et al. Corporate Income Tax - Rate Reduction.
SB0191 Sen Kelley, et al. Compensation to Individual Erroneously Convicted, Sentenced, and Confined or Whose Conviction or Adjudication Is Reversed.
SB0192 Sen Kelley, et al. Estates and Trusts - Elective Share of Surviving Spouse.
SB0193 Sen Klausmeier, et al. State Employee and Retiree Health and Welfare Benefits Program - Retiree Participation in the State Prescription Drug Benefit Plan.
SB0194 Sen Lee, et al. Public Safety - Crime of Violence - Witness Intimidation.
SB0195 Sen Kelley, et al. Public Health - Prescription Drug Monitoring Program - Revisions.
SB0196 Sen Smith, et al. Vehicle Laws - Licenses, Identification Cards, and Moped Operator's Permits - Indication of Applicant's Sex.
SB0197 Sen Cassilly. Juvenile Law - Jurisdiction - Attempted Carjacking and Attempted Armed Carjacking.
SB0198 Sens Hough and Cassilly. Crimes - Solicitation to Commit Murder - Penalty.
SB0199 Sen Hough, et al. General Assembly - Live and Archived Video Streaming of Meetings.
SB0200 Sens Pinsky and Peters. State Finance and Procurement - Prohibited Appropriations - Magnetic Levitation Transportation System.
SB0201 Sen Pinsky. University of Maryland University College - Renaming.
SB0202 Sens Pinsky and Rosapepe. Washington Suburban Sanitary Commission - Water Leakage - Billing MC/PG 113-19.
SB0203 Sen Young, et al. Natural Resources - No Net Loss of Forest - Definition.
SB0204 Sens Young and Hough. Frederick County - Alcoholic Beverages - Volunteer Fire Company or Volunteer Ambulance Company License.
SB0205 The Pres (By Request) and Sen Zirkin. Judgeships - Circuit Court and District Court.
SB0206 The Pres (DLS - Code Rev). Code Revision - Courts - Sheriffs' Salaries and Expenses.
SB0207 The Pres (Admin), et al. Transparency Act of 2019.
SB0208 Sen Zirkin. Maryland Automobile Insurance Fund - Notice of Claim for Damages - Repeal.
SB0209 Sen Zirkin, et al. Protective Orders - Relief Eligibility - Rape and Sexual Offenses.
SB0210 Sen Lee. Law Enforcement - Federal Military Surplus Program - Equipment Acquisition.
SB0211 Sen Lee. Evidence - Causing Unavailability of Witness - Standard of Proof.
SB0212 Sen Lee. Estates and Trusts - Execution of Wills - Presence of Witnesses.
SB0213 Sen Edwards. Natural Resources - State Lakes Protection and Restoration Fund - Mandatory Funding and Repeal of Termination Date.
SB0214 Sen Edwards. Allegany County - Property Tax Credit - Cumberland Economic Development Corporation.
SB0215 Sen Edwards. Allegany County and Garrett County - School Buses - Length of Operation.
SB0216 Sen Edwards. Garrett County - Hotel Rental Tax - Rate and Distribution of Revenue.
SB0217 Sen Edwards. Garrett County - Pretrial Release, Work Release, and Home Detention Programs.
SB0218 Sen McCray, et al. Human Services - Food Supplements (Summer SNAP for Children Act).
SB0219 Sen Cassilly. Employers of Ex-Offenders - Liability for Negligent Hiring or Inadequate Supervision - Immunity.
SB0220 Sen Kelley. Maryland Medical Assistance Program - Coverage of Dental Services - Repeal of Contingency.

SB0221 Sen Kelley, et al. Workgroup on Establishing an Independent School Board for the Juvenile Services Education System.
SB0222 Sen Nathan-Pulliam, et al. Appointment of County Superintendent of Schools - Disapproval by State Superintendent of Schools.
SB0223 Sen Nathan-Pulliam, et al. State Department of Education - Guidelines on Trauma-Informed Approach.
SB0224 Sens Young and Hough. Frederick County - Alcoholic Beverages License Applications - Repeal of Petition of Support - Notice.
SB0225 Sen West. Election Law - Campaign Material - Clarification of Definition.
SB0226 Sen West. Election Law - Campaign Finance Violations - Injunctive Relief.
SB0227 Sen Kelley. Insurance - Principle-Based Reserves.
SB0228 Sen Ready, et al. Criminal Procedure - Pretrial Release - Sex Offenders.
SB0229 Sen McCray, et al. Baltimore City - Summer Youth Employment - Funding and Incentives.
SB0230 Sen Hough. Election Law - Canvassing of Absentee Ballots - Reporting Unofficial Results.
SB0231 Sen Zirkin. Family Law - Marriage - Age Requirements.
SB0232 Sen Zirkin. Hate Crimes - Threats and Penalties.
SB0233 Sen Young, et al. Motor Vehicle Insurance - Discrimination in Underwriting and Rating - Use of Occupation or Education Level.
SB0234 Sen Young, et al. Natural Resources - State and Local Forest Conservation Funds.
SB0235 Sen Young, et al. Motor Vehicle Insurance - Use of Credit History in Rating Policies.
SB0236 Sens Carter and Smith. Jury Service - Qualification Criteria - Criminal Conviction or Charge.
SB0237 Sen Carter, et al. Vehicle Laws - Canceled, Revoked, and Suspended Driver's Licenses - Penalties.
SB0238 Sen Carter, et al. Criminal Procedure - Partial Expungement.
SB0239 Sen Feldman. Health Insurance - Individual Market Stabilization - Provider Fee.
SB0240 Sen Edwards. Maryland Community College Promise Scholarship Program - Alterations to the Award of Scholarship Funds.
SB0241 Sen Lee. Evidence - Testimony by Spouse - Violation of Protective Order.
SB0242 Sen Lee, et al. Criminal Procedure - Incompetency and Criminal Responsibility - Dismissal of Charges.
SB0243 Sen Kramer. Small Business Development Center Network Fund - Minimum Appropriation.
SB0244 Sen Kramer, et al. Income Tax Credit - Individuals Working in STEM Fields - Student Loan Payments.
SB0245 Sen Kramer. Transportation - Ignition Interlock Devices - Definition.
SB0246 Sen Kramer. Circuit Court Judges - Election.
SB0247 Sen Jennings. Rental and Replacement Vehicles - Age-Based Service Determinations - Prohibition.
SB0248 Sen Carozza, et al. Criminal Law - Life-Threatening Injury Involving a Vehicle or Vessel - Criminal Negligence.
SB0249 Sen Lam. Regional Initiative to Limit or Reduce Greenhouse Gas Emissions in Transportation Sector - Authorization (Regional Transportation and Climate Protection Act of 2019).
SB0250 Sen Lam. Baltimore County Public Schools - Capital Project Scoring System.
SB0251 Sen Lam, et al. Public Health - Treatment for the Prevention of HIV - Consent by Minors.
SB0252 Sen Hayes. Railroad Company - Movement of Freight - Required Crew.
SB0253 Sen Hayes, et al. Major Information Technology Development Project Fund - Money Received by Baltimore City Community College - Exemption.
SB0254 Sen Hayes, et al. Baltimore City Community College - Procurement Authority.
SB0255 Sens Hayes and Miller. Abandoned Property in Possession of a Museum.
SB0256 Carroll County Senators. Carroll County - Alcoholic Beverages - Class D Beer and Wine Licenses.
SB0257 Carroll County Senators. Carroll County - Instant Ticket Lottery Machines - Fraternal and Sororal Organizations.
SB0258 Carroll County Senators. Carroll County - Gaming Events - Repeal of Sunday Prohibition.
SB0259 Cecil County Senators. Cecil County - Special Taxing Districts - Broadband Internet Service.
SB0260 Sen Pinsky, et al. Community Colleges - Maryland Community College Promise Scholarships - Revisions.
SB0261 Sen Ferguson. Estates and Trusts - Administration of Estates - Waiver of Fees - Required.
SB0262 Sen Ferguson, et al. Earned Income Tax Credit - Individuals Without Qualifying Children - Calculation and Refundability.
SB0263 Sen Ferguson, et al. Earned Income Tax Credit - Individuals Without Qualifying Children - Eligibility and Refundability.
SB0264 Sen Lee. General Provisions - Age of Majority - Right to Parental Support and Maintenance.
SB0265 Sen Zucker, et al. Income Tax Subtraction Modification - Mortgage Forgiveness Debt Relief - Extension.
SB0266 Sen Klausmeier. Parking for Individuals With Disabilities – Continuing Care Retirement Facility – Time Limitation.
SB0267 Sen Klausmeier. Task Force on Prohibiting Debris From Entering Storm Drains or Stormwater Inlets.
SB0268 Sen Lee, et al. Criminal Procedure - Violation of Conditions of Release.
SB0269 Sen Hester, et al. Comprehensive Flood Management Grant Program - Awards for Flood Damage and Mandatory Funding.
SB0270 Sen Nathan-Pulliam, et al. Pesticides - Use of Chlorpyrifos - Prohibition.
SB0271 Sen Lee. Maryland Commission on Civil Rights - Civil Penalties.
SB0272 Sen Carozza, et al. State Correctional Facilities - Correctional Officers - Background Check.
SB0273 Sens Young and Hough. Frederick County - Alcoholic Beverages - Cinema/Theater License.
SB0274 Sens Young and Hough. Frederick County - Alcoholic Beverages Licenses - Sunday Sales.
SB0275 Sens Young and Hough. Frederick County - Alcoholic Beverages - Promoter's Permit.
SB0276 Sens Young and Hough. Frederick County - Alcoholic Beverages - Multiple Licenses Allowed.
SB0277 Sen Edwards. Small, Minority, and Women-Owned Businesses Account - Funding.
SB0278 Sen Edwards, et al. Correctional Officers' Retirement System - Membership.
SB0279 Sen Feldman, et al. Department of Aging - Grants for Aging-in-Place Programs (Nonprofits for our Aging Neighbors Act - "NANA").
SB0280 Sen McCray, et al. Labor and Employment - Payment of Wages - Minimum Wage and Enforcement (Fight for Fifteen).
SB0281 Sen Waldstreicher. Motor Vehicle Registration - Suspension for Failure to Pay Video Toll - Repeal.

SB0282 Sen Waldstreicher. Vehicle Emissions Inspection Program - Prohibition on Suspension or Revocation of Registration.
SB0283 Sen Kramer. Sales and Use Tax - Cleaning of Commercial or Industrial Buildings - Community Property Exemption.
SB0284 Sens Kagan and Reilly. 9-1-1 Specialists - Compensation and Benefits.
SB0285 Sen Kagan, et al. Environment - Expanded Polystyrene Food Service Products - Prohibition.
SB0286 The Pres (DLS). Department of Legislative Services - Publication of Municipal Charter Amendments and Local Laws of Charter and Code Counties.
SB0287 Sen Cassilly, et al. Handgun Qualification License - Training Requirement - Exemption.
SB0288 Sens Young and Hough. Frederick County - Alcoholic Beverages - Class DDS (Distillery) License.
SB0289 Sen Feldman, et al. State Personnel - Grievance Procedures.
SB0290 Sen Smith. Public Health - Cottage Food Products - Definition.
SB0291 Sen Smith, et al. Vehicle Laws - Intersections - Prohibited Acts.
SB0292 Sen Bailey, et al. Property Tax Credit - Public Safety Officer - Definition.
SB0293 Sen Bailey, et al. Natural Resources - Sunday Hunting - Migratory Game Birds.
SB0294 Sen Salling, et al. Income Tax - Subtraction Modification - Military Retirement Income.
SB0295 Sen Salling, et al. Criminal Law - Death Penalty - Law Enforcement Officers and First Responders.
SB0296 Sens King and Feldman. Property Tax - Exemptions - Nonprofit Charitable Museums.
SB0297 Carroll County Senators. Carroll County - Alcoholic Beverages - Class BC Beer, Wine, and Liquor License.
SB0298 Carroll County Senators. Carroll County - Alcoholic Beverages - Required Information on Application.
SB0299 Sen Benson, et al. Tanning Devices - Use by Minors.
SB0300 Sen Benson, et al. Prevailing Wage Rates - Public Work Contracts - Suits by Employees.
SB0301 Sen Benson, et al. Hospitals - Patient's Bill of Rights.
SB0302 Sens Benson and Guzzone. Mental Health - Electroconvulsive Therapy for Minors - Prohibition.
SB0303 Sen Kagan. State Acupuncture Board - Practice of Acupuncture - Definition and Education Requirements.
SB0304 Sen Kagan. Election Law - Absentee Ballot Deposit Boxes.
SB0305 Sen Beidle. Real Property - Homeowners Associations - Number of Declarant Votes.
SB0306 Sen Griffith (Chr Jt Com on Pnsns). State Retirement and Pension System - Maryland Pension Administration System - Member Contributions.
SB0307 Sen Washington, et al. Pediatric Stroke - Awareness, Training, and Resource Materials (Laney Jaymes Fitzsimmons Act).
SB0308 Sens Waldstreicher and Smith. Criminal Procedure - Providing Electronic Device Location Information - Historical Data.
SB0309 Sen Beidle, et al. Anne Arundel County - Alcoholic Beverages - Racetrack License.
SB0310 Sen Hayes, et al. Baltimore City - Unpackaged Cigarettes - Prohibition on Sale.
SB0311 Sen Smith, et al. End-of-Life Option Act (Richard E. Israel and Roger "Pip" Moyer Act).
SB0312 Sen Lam, et al. Life Insurance - Prohibition on Discrimination - Opioid Overdose Reversal Drug.
SB0313 Sen Lam, et al. General Assembly - Special Election to Fill a Vacancy in Office.
SB0314 Sens Lam and Guzzone. Department of General Services - Energy-Conserving and Bird-Safe Building Standards (Maryland Sustainable Buildings Act of 2019).
SB0315 Sens Lam and Rosapepe. Insurance Law - Application to Direct Primary Care Agreements - Exclusion.
SB0316 Sen Lam, et al. Vehicle Laws - Plug-In Electric Drive Vehicles - Reserved Parking Spaces.
SB0317 Sen Reilly, et al. Estates and Trusts - Share of Intestate Estate Inherited by Surviving Spouse (Chuck's Law).
SB0318 Sen Feldman, et al. Education - School Safety Subcabinet Advisory Board - Membership.
SB0319 Sen Augustine, et al. Maryland Transit Administration - State Employees Subject to Collective Bargaining - Free Ridership (Transit Benefit for State Employees).
SB0320 Sen Cassilly, et al. Courts - Documentary Evidence - Protective Order.
SB0321 Sen Cassilly, et al. Civil Actions - Offers of Judgment.
SB0322 Sen Cassilly. Medical Malpractice - Notice of Intent to File Claim.
SB0323 Sen Cassilly. Medical Malpractice - Discovery.
SB0324 Sen Young, et al. Political Subdivisions - Legal Notice Requirements - Posting on Websites.
SB0325 Sens Young and Hough. Frederick County - Alcoholic Beverages - Basket of Cheer.
SB0326 Sen Young, et al. State Lottery - Instant Ticket Lottery Machines - Fraternal Organizations ("Slots" for Homeless Veterans Act).
SB0327 Sen Smith. Justice Reinvestment Act - Diminution Credits - Sentencing.
SB0328 Sen Smith, et al. Labor and Employment - Noncompete and Conflict of Interest Clauses.
SB0329 Sen Smith, et al. Maryland Wage Payment and Collection Law - Awards of Certain Fees and Costs and Prohibition Against Retaliation.
SB0330 Sen Smith, et al. Public Buildings and Places of Public Accommodation - Diaper-Changing Facilities.
SB0331 Sen Kramer. Business Regulation - Trader's Licenses - License Fees.
SB0332 Sen Kramer. State Finance and Procurement - Chesapeake Bay Watershed States - Expenses and Contracts (Quit Polluting My Bay Act of 2019).
SB0333 Sen Kramer, et al. Election Law - Permanent Absentee Ballot List.
SB0334 Sen Hough. County Boards of Education - Appointment to Fill a Vacancy of an Elected Member - Candidate Information Requests.
SB0335 Sen Carozza. Somerset County - Alcoholic Beverages - Liquor Control Board Reserve Fund.
SB0336 Sen Carozza. Somerset County - Commissioners - Residency Requirements.
SB0337 Sen Carozza. Somerset County - Alcoholic Beverages - Board of License Commissioners - Salaries.
SB0338 Sen Carozza. Somerset County - Alcoholic Beverages Licenses - Proximity to Places of Worship, Schools, Public Libraries, or Youth Centers.
SB0339 Sens Kagan and Reilly (CmNxGn911), et al. Public Safety - 9-1-1 Emergency Telephone System (Carl Henn's Law).
SB0340 Sen Kagan, et al. Maryland Technology Development Corporation - Investments and Operations.
SB0341 Sen Kelley, et al. Criminal Procedure - Charging Procedures and Documents - Citation.
SB0342 Chr FIN. Prescription Drug Monitoring Program - Program Evaluation.

SB0343 Sen Kagan. Election Law - Voting by Absentee Ballot - Prepaid Postage for Return of Ballots.
SB0344 Sens Zucker and Feldman. State Agricultural Land Transfer Tax - Nonagricultural Use Exemption - Repeal.
SB0345 Sen Ferguson. State Designations - State Classical Theater - Chesapeake Shakespeare Company.
SB0346 Sen Ferguson, et al. Public Safety - Regulated Firearms - Transfer.
SB0347 The Pres (DLS). State Athletic Commission - Sunset Extension.
SB0348 Sen Klausmeier. Workers' Compensation - Medical Benefits - Reimbursement for Medical Mileage.
SB0349 Sen Klausmeier. Workers' Compensation - Provision of Medical Services and Treatment - Notification to Seek Treatment.
SB0350 Sen Klausmeier, et al. Renewable Energy Portfolio Standard - Tier 1 Eligibility.
SB0351 Sens Rosapepe and Klausmeier. Workgroup to Study Prize-Linked Savings Accounts.
SB0352 Sen Rosapepe. Prince George's County - Alcoholic Beverages - Class BLX License for Movie Theaters.
SB0353 Sen Young. On-Site Sewage Disposal Systems - Construction and Inspection Licenses.
SB0354 Sens Lee and Smith. Vehicle Laws - Overtaking and Passing Bicycles.
SB0355 Sens Lee and Smith. Criminal Law - Sexual Contact With an Animal.
SB0356 Sen Nathan-Pulliam, et al. Health - Maternal Mortality Review Program - Reporting Requirement.
SB0357 Sen Salling, et al. Property Tax Exemption - Disabled Veterans.
SB0358 Sen Serafini. Criminal Procedure - State Child Abuse Registry.
SB0359 Sen Serafini. Maryland Estate Tax - Unified Credit.
SB0360 Sen Guzzone, et al. Income Tax - Theatrical Production Tax Credit.
SB0361 Sen Hershey, et al. Limited Fishing Guide License - Payment for Service - Alteration.
SB0362 Sen Hershey, et al. Natural Resources - Oyster Planting - Substrate Material.
SB0363 Sen Lam, et al. Election Law - Voting Systems - Accessibility for Voters With Disabilities.
SB0364 Sen Simonaire, et al. Election Law - Election Day Page Program - Establishment.
SB0365 Sens West and Nathan-Pulliam. Health Occupations - Violations of the Maryland Dentistry Act - Penalties and Cease and Desist Orders.
SB0366 Sen West, et al. Real Property - Residential Leases - Collectible Rent (Rent Transparency Act).
SB0367 Sen West, et al. Courts - Prohibited Indemnity and Defense Liability Agreements.
SB0368 Sen West, et al. Baltimore-Washington International Thurgood Marshall Airport - Security Screening Checkpoint - Charitable Donations.
SB0369 Sen West, et al. Evidence - Chain of Custody of DNA.
SB0370 Sen West, et al. Environment - Recycling - Commercial Properties.
SB0371 Sen West, et al. State Board of Dental Examiners - Ownership, Management, or Operation of a Dental Practice.
SB0372 Sen West, et al. Physicians - Discipline - Procedures and Effects.
SB0373 Sen Pinsky, et al. Election Law - Deadline for Selection of Lieutenant Governor.
SB0374 Sen Washington, et al. Real Property - Maryland Condominium Act - Priority of Liens.
SB0375 Sen Zucker, et al. Service Contracts - Work Verification Clause.
SB0376 Carroll County Senators. Carroll County - Public Facilities Bonds.
SB0377 Sen Pinsky, et al. Corporate Income Tax - Combined Reporting.
SB0378 Sen Kelley, et al. Tobacco Products and Electronic Nicotine Delivery Systems - Minimum Age and Civil Fines.
SB0379 Sen Kelley, et al. Real Property - Maryland Condominium Act - Powers of Council of Unit Owners.
SB0380 Sen Kelley, et al. Real Property - Maryland Condominium Act - Implied Warranties From Developers.
SB0381 Sen West. Trusts - Maryland Trust Act - Methods of Notice.
SB0382 Sen West. Maryland Trust Act - Division or Consolidation of Trust.
SB0383 Sen Kagan. Natalie M. LaPrade Medical Cannabis Commission - Law Enforcement and Dispensaries.
SB0384 Sen Kagan. Election Law - Voter Data - Security and Reporting of Breach.
SB0385 Sen Zirkin. Election Law - Primary Elections - Voting by Unaffiliated Voters.
SB0386 Sen Zirkin. Baltimore County - Alcoholic Beverages - Sunday Sales.
SB0387 Sen Zirkin. Environment - Water Quality Certifications (Pipeline and Water Protection Act of 2019).
SB0388 Sen Zirkin. Civil Actions - Liability Insurance - Prohibition on Disclaiming Coverage.
SB0389 Sen Cassilly, et al. Motor Vehicle Registration - Exception for Low Speed Electric Vehicles - City of Havre de Grace.
SB0390 Sen Bailey, et al. Natural Resources - Sunday Hunting - Deer.
SB0391 Sen Feldman, et al. Unemployment Insurance - Civilian Federal Employees - Benefits (Federal Shutdown Paycheck Protection Act).
SB0392 Sen Kelley. Legislation - Employee Organizations - Certification of Differential Impact.
SB0393 Chr Jt Com on Fed Rels. Atlantic States Marine Fisheries Compact - Amendment I - Adoption.
SB0394 Sen Waldstreicher, et al. Criminal Procedure - Expungement - Boating Offenses.
SB0395 Sen Waldstreicher, et al. Criminal Law - Decriminalization of Attempted Suicide.
SB0396 Sen Elfreth, et al. Higher Education - Legal Representation Fund for Title IX Proceedings - Established.
SB0397 Sen Elfreth, et al. General Provisions - Commemorative Days - Freedom of the Press Day.
SB0398 The Pres (DLS - Code Rev). Code Revision - Estates and Trusts.
SB0399 Sen Pinsky, et al. Private Career Schools and For-Profit Institutions of Higher Education - Disclosures and Regulation.
SB0400 Sen Pinsky, et al. Maryland Higher Education Commission - Private Nonprofit Institutions of Higher Education - Regulation (Private Nonprofit Institution of Higher Education Protection Act of 2019).
SB0401 Sen Carter. Juvenile Law - Informal Adjustment.
SB0402 Sen Carter, et al. Mental Health - Involuntary Admission - Inmates in Correctional Facilities.
SB0403 Sen Augustine, et al. Behavioral Health Administration - Outpatient Civil Commitment - Statewide Expansion.
SB0404 Sen Lam. State Department of Education and Maryland Department of Health - Maryland School-Based Health Center Standards - Revision.

SB0405 Sen Hayes, et al. Health Insurance - Prescription Drugs - Formulary Changes.
SB0406 Sen Ferguson, et al. Prenatal and Infant Care Coordination - Grant Funding and Task Force.
SB0407 Sen Gallion, et al. Public Schools - Agricultural Education Programs.
SB0408 Sen Ready, et al. Criminal Procedure - Pretrial Release - Assault on a Law Enforcement Officer (Police Protection Act).
SB0409 Sen Guzzone, et al. Income Tax - Subtraction Modification - Employee-Owned Businesses.
SB0410 Sen Beidle, et al. Health Insurance - Coverage for Insulin - Prohibition on Deductible, Copayment, and Coinsurance.
SB0411 Sen West, et al. Election Law - Polling Places at Continuing Care Retirement Communities.
SB0412 Sen Peters. Income Tax - Personal Exemption - Disabled Individuals.
SB0413 Sen Peters, et al. Income Tax - Subtraction Modification - Retirement Income.
SB0414 Sen Pinsky, et al. Public Funding and Small Donor Act for General Assembly Elections.
SB0415 Sen Kramer. Long-Term Care Insurance - Annual Notice.
SB0416 Sen Kramer, et al. Education - Curriculum - Holocaust and Genocide Unit (Lessons of the Holocaust and Genocide Act).
SB0417 Sen Carter, et al. Vehicle Laws - Ethnicity-Based or Race-Based Traffic Stops - Policy and Reporting Requirements.
SB0418 Sen Cassilly. Vehicle Laws - Smoking Marijuana in Vehicles - Prohibition.
SB0419 Sen Washington, et al. Correctional Services - Prerelease Unit for Women - Requirement to Operate.
SB0420 Sen Carozza, et al. Health - Abortions - Reporting Requirements.
SB0421 Sen Benson, et al. Video Lottery Terminals - Minority Business Participation Goals - Enforcement and Reporting.
SB0422 Sen Benson, et al. State Department of Education - Employment Categories and Practices.
SB0423 Sen Benson, et al. Task Force to Study the Impact of Student Cell Phone Use in the Classroom.
SB0424 Sen Benson, et al. Education - Salaries of Noncertificated Public School Employees - Minimum Living Salaries.
SB0425 Sen Benson, et al. Home Energy Assistance - Critical Medical Needs Program.
SB0426 Sen West. Natalie M. LaPrade Medical Cannabis Commission - Licensed Dispensaries.
SB0427 Sen Hershey. Queen Anne's County - Alcohol Awareness Program.
SB0428 Sen Hershey. Queen Anne's County - Alcoholic Beverages - Beauty Salon and Barbershop License.
SB0429 Sens Gallion and Simonaire. Procurement Contracts - Architectural and Engineering Services - Indemnity Clauses.
SB0430 Sen Kelley, et al. Maryland Health Care Commission - Authorized Prescribers - Reporting of Financial Gratuities or Incentives.
SB0431 Sen Nathan-Pulliam, et al. Task Force on Oral Health in Maryland.
SB0432 Sen Nathan-Pulliam, et al. Higher Education - Cyber Warrior Diversity Program - Revisions.
SB0433 Sen Zucker, et al. Responsible Workforce Development Percentage Price Preference Act.
SB0434 Sen Klausmeier. Cemeteries - Perpetual Care - Distribution From Perpetual Care Trust Fund.
SB0435 Sen Klausmeier. Workers' Compensation Commission - Continuing Jurisdiction.
SB0436 Sen Klausmeier, et al. Vehicle Laws - Rental Vehicles - Security.
SB0437 Sen Edwards. Allegany County - Video Lottery Terminals - Distribution of Proceeds.
SB0438 The Pres (DLS). Security Systems Technicians - Sunset Extension.
SB0439 The Pres (DLS). State Board of Barbers - Sunset Extension.
SB0440 The Pres (DLS). State Board of Cosmetologists - Sunset Extension.
SB0441 Sen Smith, et al. Public Safety - Access to Firearms - Storage Requirements.
SB0442 Sen Smith, et al. Toll Roads, Highways, and Bridges - County Government Consent Requirement - Expansion.
SB0443 Sen Klausmeier. Workers' Compensation - Discharge of Employee - Prohibition.
SB0444 Sen Klausmeier. Unemployment Insurance - Exemption From Covered Employment - Bulk Vending Item Assembly.
SB0445 Sen Klausmeier, et al. Maryland Health Care Commission - Surgical Birth Rate - Study.
SB0446 Sen Jennings, et al. Public Safety - Agritourism - Permit Exemption.

[19-04-16]

The Judiciary

COURT OF APPEALS OF MARYLAND

DISCIPLINARY PROCEEDINGS

This is to certify that by an Order of the Court of Appeals dated January 18, 2019, **RICHARD MURRAY**, 6441 Seagull Drive, #269, Bradenton, Florida 34210, has been disbarred, effective immediately, from the further practice of law in this State, and his name as an attorney at law has been stricken from the register of attorneys in this Court (Maryland Rule 19-761).

This is to certify that by an Order of the Court of Appeals dated January 18, 2019, **CHARLES BOILEAU BAILEY**, 2316 Dargan Road, Sharpsburg, Maryland 21782, has been replaced upon the register of attorneys in this Court as of January 18, 2019. Notice of this action is certified in accordance with Maryland Rule 19-761.

This is to certify that by an Opinion and Order of the Court of Appeals dated January 22, 2019, **JEROME P. JOHNSON**, P.O. Box 1041, Bel Air, Maryland 21014, has been disbarred, effective immediately, from the further practice of law in this State, and his name as an attorney at law has been stricken from the register of attorneys in this Court (Maryland Rule 19-761).

This is to certify that by an Opinion and Order of the Court of Appeals dated January 22, 2019, **NEIL WARREN STEINHORN**, 1414 Reisterstown Road, Lower Level, Pikesville, Maryland 21208, has been indefinitely suspended, effective immediately, from the further practice of law in this State, and his name as an attorney at law has been stricken from the register of attorneys in this Court (Maryland Rule 19-761).

This is to certify that by an Order of the Court of Appeals dated January 23, 2019, **EDGAR FABRICE NGATCHA NDJATOU**, 1828 L. Street, NW, Suite 850, Washington, DC 20036, has been indefinitely suspended by consent, effective immediately, from the further practice of law in this State, and his name as an attorney at law has been stricken from the register of attorneys in this Court (Maryland Rule 19-761).

This is to certify that by an Opinion and Order of the Court of Appeals dated January 23, 2019, **SCOTT A. CONWELL**, 2368 Northcliff Drive, Jarrettsville, Maryland 21084, has been disbarred, effective immediately, from the further practice of law in this State, and his name as an attorney at law has been stricken from the register of attorneys in this Court (Maryland Rule 19-761).

[19-04-14]

Final Action on Regulations

Symbol Key

- Roman type indicates text already existing at the time of the proposed action.
- *Italic type* indicates new text added at the time of proposed action.
- *Single underline, italic* indicates new text added at the time of final action.
- Single underline, roman indicates existing text added at the time of final action.
- [[Double brackets]] indicate text deleted at the time of final action.

Title 04 DEPARTMENT OF GENERAL SERVICES

Subtitle 05 BUILDINGS AND GROUNDS

Notice of Final Action

[18-347-F]

On February 5, 2019, the Department of General Services adopted amendments to:

(1) Regulation **.07** under **COMAR 04.05.01 General Regulations**; and

(2) Regulation **.02** under **COMAR 04.05.02 Legislative Branch Buildings and Grounds in Annapolis**.

This action, which was proposed for adoption in 45:26 Md. R. 1250—1251 (December 21, 2018), has been adopted as proposed.

Effective Date: February 25, 2019.

ELLINGTON E. CHURCHILL, JR.
Secretary of General Services

Title 08 DEPARTMENT OF NATURAL RESOURCES

Subtitle 02 FISHERIES SERVICE

08.02.05 Fish

Authority: Natural Resources Article, §4-215, Annotated Code of Maryland

Notice of Final Action

[18-343-F]

On February 5, 2019, the Secretary of Natural Resources adopted amendments to Regulation **.15** under **COMAR 08.02.05 Fish**. This action, which was proposed for adoption in 45:26 Md. R. 1251—1252 (December 21, 2018), has been adopted as proposed.

Effective Date: February 25, 2019.

MARK J. BELTON
Secretary of Natural Resources

Title 09 DEPARTMENT OF LABOR, LICENSING, AND REGULATION

Subtitle 17 BOARD OF STATIONARY ENGINEERS

09.17.01 General Regulations

Authority: Business Occupations and Professions Article, §§6.5-205, *6.5-311*, and *6.5-314(a)(1)(iv)*, Annotated Code of Maryland

Notice of Final Action

[18-276-F]

On January 15, 2109, the Board of Stationary Engineers adopted new Regulation **.04** under **COMAR 09.17.01 General Regulations**. This action, which was proposed for adoption in 45:21 Md. R. 979 (October 12, 2018), has been adopted as proposed.

Effective Date: February 25, 2019.

ROBIN BAILEY
Executive Director

Subtitle 21 BOARD OF ARCHITECTS

09.21.02 Code of Ethics

Authority: Business Occupations and Professions Article §§3-205 and 3-208(a)(1), Annotated Code of Maryland

Notice of Final Action

[18-318-F]

On January 23, 2019, the Board of Architects at their regular meeting adopted amendments to Regulation **.01** under **COMAR 09.21.02 Code of Ethics**. This action, which was proposed for adoption in 45:24 Md. R. 1168 (November 26, 2018), has been adopted as proposed.

Effective Date: February 25, 2019.

JOSHEPH CULLINGFORD
Acting Executive Director

Subtitle 28 BOARD OF EXAMINERS OF LANDSCAPE ARCHITECTS

09.28.02 Code of Ethics

Authority: Business Occupations and Professions Article §9-206, Annotated Code of Maryland

Notice of Final Action

[18-321-F]

On January 28, 2019, the Board of Examiners of Landscape Architects at their regular meeting adopted new Regulation **.07** under **COMAR 09.28.02 Code of Ethics**. This action, which was proposed for adoption in 45:24 Md. R. 1168—1169 (November 26, 2018), has been adopted as proposed.

Effective Date: February 25, 2019.

JOSEPH CULLINGFORD
Acting Executive Director

Subtitle 29 BOARD OF FORESTERS

09.29.01 General Regulations

Authority: Business Occupations and Professions Article, §§7-206(a)(2) and *7-309(a)(1)(vii)*, Annotated Code of Maryland

Notice of Final Action

[18-320-F]

On January 28, 2019, the Board of Foresters adopted new Regulation **.06** under **COMAR 09.29.01 General Regulations**. This action, which was proposed for adoption in 45:24 Md. R. 1169 (November 26, 2018), has been adopted as proposed.

Effective Date: February 25, 2019.

SHANAI JORDAN
Executive Director

Title 13A STATE BOARD OF EDUCATION

Subtitle 12 CERTIFICATION

13A.12.01 General Provisions

Authority: Education Article, §§2-205, 2-303(g), and 6-701—6-706, Annotated Code of Maryland

Notice of Final Action

[18-308-F]

On January 22, 2019, the Maryland State Board of Education adopted new Regulation **.08-1** under **COMAR 13A.12.01 General Provisions**. This action, which was proposed for adoption in 45:23 Md. R. 1087—1088 (November 9, 2018), has been adopted as proposed.

Effective Date: February 25, 2019.

KAREN B. SALMON, Ph.D.
State Superintendent of Schools

Title 31 MARYLAND INSURANCE ADMINISTRATION

Subtitle 03 INSURANCE PRODUCERS AND OTHER INSURANCE PROFESSIONALS

31.03.13 Producer Registers and Documentation of Appointments

Authority: Insurance Article, §§2-109(a)(1), 10-103(c), and 10-118(j), Annotated Code of Maryland

Notice of Final Action

[18-167-F]

On February 5, 2019, the Insurance Commissioner adopted amendments to Regulations **.02** and **.04** under **COMAR 31.03.13 Producer Registers and Documentation of Appointments**. This action, which was proposed for adoption in 45:14 Md. R. 708 (July 6, 2018) and reproposed in 45:25 Md. R. 1219 (December 7, 2018), has been adopted as reproposed.

Effective Date: February 25, 2019.

ALFRED W. REDMER, JR.
Insurance Commissioner

Proposed Action on Regulations

For information concerning citizen participation in the regulation-making process, see inside front cover.

Symbol Key

- Roman type indicates existing text of regulation.
- *Italic type* indicates proposed new text.
- [Single brackets] indicate text proposed for deletion.

Promulgation of Regulations

An agency wishing to adopt, amend, or repeal regulations must first publish in the Maryland Register a notice of proposed action, a statement of purpose, a comparison to federal standards, an estimate of economic impact, an economic impact on small businesses, a notice giving the public an opportunity to comment on the proposal, and the text of the proposed regulations. The opportunity for public comment must be held open for at least 30 days after the proposal is published in the Maryland Register.

Following publication of the proposal in the Maryland Register, 45 days must pass before the agency may take final action on the proposal. When final action is taken, the agency must publish a notice in the Maryland Register. Final action takes effect 10 days after the notice is published, unless the agency specifies a later date. An agency may make changes in the text of a proposal. If the changes are not substantive, these changes are included in the notice of final action and published in the Maryland Register. If the changes are substantive, the agency must repropose the regulations, showing the changes that were made to the originally proposed text.

Proposed action on regulations may be withdrawn by the proposing agency any time before final action is taken. When an agency proposes action on regulations, but does not take final action within 1 year, the proposal is automatically withdrawn by operation of law, and a notice of withdrawal is published in the Maryland Register.

Title 10
MARYLAND DEPARTMENT OF HEALTH

Subtitle 07 HOSPITALS

10.07.02 [Comprehensive Care Facilities and Extended Care Facilities] *Nursing Homes*

Authority: Health-General Article, §§19-308, 19-308.1, 19-323, and 19-1401 et seq.; Public Safety Article, §14-110.1; Annotated Code of Maryland

Notice of Proposed Action

[19-008-P-I]

The Secretary of Health proposes to repeal the Preface and Regulations **.01**, **.01-1**, **.06**, **.12**, **.15**, **.25**, **.26**, **.28**, **.40**, and **.42—.44**, adopt new Regulations **.01**, **.02**, **.08**, **.18—.20**, **.25—.27**, **.41—.46**, **.48—51**, amend and recodify existing Regulations **.02**, **.03**, **.03-1**, **.05**, **.07**, **.07-1**, **.08**, **.08-1**, **.09—.11**, **.11-1, .11-2**, **.13**, **.14**, **.14-1**, **.14-2**, **.16—.21-4**, **.22—.24**, **.27**, **.29—.39**, **.41**, **.45**, **.46**, **.48**, **.49**, and **.56** to be Regulations **.03**, **.04**, **.05**, **.07**, **.09—.17**, **.21—.24**, **.28—.40**, **.47**, **.52—.68**, and **.75**, and recodify existing Regulations **.04**, **.47**, **.50—.55**, and **.57—.61** to be Regulations **.06**, **.66**, **.69—.74**, and **.76—.80** under **COMAR 10.07.02 Nursing Homes**.

Statement of Purpose

The purpose of this action is to:

(1) Amend, repeal, recodify, and adopt new language in order to make this chapter more cohesive, comprehensive, and clear;

(2) Enable the Department to accept electronic submissions of both initial applications and renewal applications and thereby improve efficiency and decrease the administrative burden on providers and the Department;

(3) Repeal the Preface;

(4) Revise the definitions regulation,

(5) Remove outdated references;

(6) Incorporate by reference additional documents;

(7) Require that new facilities shall satisfy the review of the Maryland Health Care Commission for the establishment of new facilities and the increase or decrease in capacity of existing facilities;

(8) Require that an existing facility that wishes to convert, alter, modify, or add to the existing infrastructure shall notify the Office of Health Care Quality in writing;

(9) Require that a nursing home shall employ supervisory personnel and a sufficient number of support personnel, to provide a minimum of 3 hours of bedside care per occupied bed per day, 7 days per week;

(10) Require that the ratio of nursing service personnel on duty providing bedside care to resident may not at any time be less than one to 15;

(11) Require that the nurse manager or the Director of Nursing of vent units shall possess a background in ventilator care or be qualified in ventilator management;

(12) Require that after January 1, 2021 social services responsibilities in the facility will be assigned to a Licensed Bachelor Social Worker, Licensed Graduate Social Worker, Licensed Certified Social Worker, or Licensed Certified Social Worker–Clinical;

(13) Require that the facility shall assign at least one infection preventionist staffed at a ratio of 1.0 Full Time Equivalents for every 200 beds;

(14) Require that facilities shall possess a functioning automated external defibrillator (AED) as of July 1, 2020;

(15) Allow Certified Dietary Managers to share cooking responsibilities with the full-time cook in facilities with fifty or fewer beds.;

(16) Require that unless the supervisor is a licensed registered dietitian, they shall receive regularly scheduled consultation from a licensed dietician;

(17) Specifying that during admission, a resident may not be accepted unless at least one service to meet the rehabilitative needs of the resident can be initiated within the 48-hour period;

(18) Allowing for the provision of a waiver of general requirements for bedrooms in long term care facilities—both for newly constructed bedrooms and already-existing bedrooms; and

(19) Clarifying that supervisory responsibilities for a food service department and food production within a facility shall be assigned to a qualified dietetic service supervisor.

Comparison to Federal Standards

In compliance with Executive Order 01.01.1996.03, this proposed regulation is more restrictive or stringent than corresponding federal standards as follows:

(1) Regulation citation and manner in which it is more restrictive than the applicable federal standard:

42 C.F.R. §483.15 (g)(1)—(3)

(g) Social Services.

(1) The facility must provide medically-related social services to attain or maintain the highest practicable physical, mental, and psychosocial well-being of each resident.

(2) A facility with more than 120 beds must employ a qualified social worker on a full-time basis.

(3) Qualifications of social worker. A qualified social worker is an individual with—

(i) A bachelor's degree in social work or a bachelor's degree in a human services field including but not limited to sociology, special education, rehabilitation counseling, and psychology; and

(ii) One year of supervised social work experience in a health care setting working directly with individuals.

10.07.02.30 B Social Work Staff Responsibility

The federal regulations only require the employ of a qualified social worker (a bachelor's degree in social work or a bachelor's degree in a human services field) if the facility has more than 120 beds. OHCQ through this proposal intends to require that after January 1, 2021 all social work services be provided by a licensed certified social worker. In cases where the facility has an individual providing medically related physical, social, and behavioral health needs of the residents that is not licensed but was providing the services both before and at the time of the adoption of this proposal, they are exempt from this requirement. If the social worker is not a licensed certified social worker LCSW or a licensed certified social worker-clinical LCSW-C, the facility shall provide for an LCSW or LCSW-C to provide sufficient hours of supervision. The agreement shall provide for sufficient hours of consultation to assure that the staff's services meet the medically related social and emotional needs of the residents.

(2) Benefit to the public health, safety or welfare, or the environment:

This requirement ensures that a licensed social worker is providing services to residents of the facility and ensures that residents receive adequate discharge planning and care coordination. Currently, a license has not been required for an individual to operate in this role. Consequently, OHCQ has observed inadequate discharge planning and lack of coordination of care transitions. OHCQ believes that requiring a licensed social worker with adequate training will increase successful care coordination.

(3) Analysis of additional burden or cost on the regulated person:

The proposed requirement that social work services be performed by a licensed social worker becomes effective January 1, 2021. The additional cost to hire or contract with a licensed social worker is estimated to be $11,000 annually. Nursing homes that employ an individual on or before January 1, 2021 shall be exempt from the requirement to have a licensed social worker employed. However, the nursing home would need to contract with a licensed social worker to provide oversight.

The Office of Health Care Quality surveyed multiple facilities and determined that 75 percent or approximately 172 nursing homes did not employ a licensed social worker. Thus approximately 172 facilities would be impacted by this proposal.

(4) Justification for the need for more restrictive standards:

This requirement ensures that a licensed social worker is providing medically related social and emotional services to residents of the facility, and requires that residents receive adequate planning and care coordination during discharge and care transitions.

Currently, a license has not been required for an individual to operate in this role.

Federal regulations require that certain services be provided by a "qualified social worker," the employee would have to represent themselves as a "qualified social worker" and thus under Maryland law, the employee would have to obtain a license to practice social work.

The provider industry is in agreement with the proposed changes in this requirement.

Estimate of Economic Impact

I. Summary of Economic Impact. The Office of Health Care Quality surveyed multiple facilities and determined that 25 percent of nursing homes employed or contracted with a licensed social worker. As of November 1, 2016, there were 229 licensed nursing homes, with an estimated 172 nursing homes that would be out of compliance after January 1, 2021. The additional cost to hire or contract with a licensed social worker is estimated to be $11,000 annually. Nursing homes that employ an individual on or before January 1, 2021 shall be exempt from the license requirement. However, the nursing home would need to contract with a licensed social worker to provide oversight.

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	NONE	
B. On other State agencies:	NONE	
C. On local governments:	NONE	
	Benefit (+) Cost (-)	**Magnitude**
D. On regulated industries or trade groups:		
Nursing homes who hire or contract LCSW or LCSW-C	(-)	$1,892,000
E. On other industries or trade groups:	(+)	$1,892,000
F. Direct and indirect effects on public:	NONE	

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

D. It is estimated that 25 percent of nursing homes currently have a licensed social worker (Bachelors level degree). There are currently 229 licensed nursing homes of which 75 percent or 172 nursing homes would need to hire or contract with a licensed social worker to comply with the regulations. Currently there is an estimated $11,000 salary differential between the salary of a non-licensed employee performing social work services and a licensed social work employee. Thus 172 times $11,000 equals an annual cost increase of $1,892,000 to the regulated industry.

E. The social work industry and trade groups would benefit due to the increase in hiring and contracting with licensed social workers.

OHCQ estimates that 172 nursing homes would need to hire or contract with a licensed social worker. The estimated salary differential to hire a licensed social worker versus a non-licensed employee performing social work services is $11,000. Thus 172 times $11,000 equals an annual benefit of $1,892,000 to the social worker industry and trade groups.

Economic Impact on Small Businesses

The proposed action has minimal or no economic impact on small businesses.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Jake Whitaker, Acting Director, Office of Regulation and Policy Coordination, Maryland Department of Health, 201 West Preston Street, Room 512, Baltimore, MD 21201, or call 410-767-6499 (TTY 800-735-2258), or email to mdh.regs@maryland.gov, or fax to 410-767-6483. Comments will be accepted through March 4, 2019. A public hearing has not been scheduled.

Editor's Note on Incorporation by Reference

Pursuant to State Government Article, §7-207, Annotated Code of Maryland, the following have been declared documents generally available to the public and appropriate for incorporation by reference:

(1) CMS Long-Term Care Facility Resident Assessment Instrument 3.0 User's Manual (Version 1.14, October 2016);

(2) CMS Manual System, Pub. 100-07 State Operations Provider Certification (Transmittal 126, November 26, 2014, U.S. Department of Health and Human Services Centers for Medicare and Medicaid Services);

(3) 2007 Guideline for Isolation Precautions: Preventing Transmission of Infectious Agents Healthcare Settings (Centers for Disease Control and Prevention (CDC), Healthcare Infection Control Practices Advisory Committee (HIPAC), 2007);

(4) Guidelines for Preventing the Transmission of Mycobacterium tuberculosis in Health-Care Settings, 2005 (MMWR2005; 54, No. RR-17, Centers for Disease Control and Prevention (CDC), Atlanta, GA);

(5) Immunization of Health-Care Personnel: Recommendations of the Advisory Committee on Immunization Practices (ACIP), (MMWR2011; 60 No. SS-7, Centers for Disease Control and Prevention (CDC), Atlanta, GA);

(6) National Fire Protections Association, NFPA 99 Health Care Facilities Code (2015 Edition); and

(7) Recommended Dietary Allowances (10th Edition, Food and Nutritional Board, Commission on Life Sciences, and National Research Council, 1989).

For this reason, they will not be printed in the Maryland Register or the Code of Maryland Regulations (COMAR). Copies of these documents are filed in special public depositories located throughout the State. A list of these depositories was published in 46:1 Md. R. 9 (January 4, 2019), and is available online at www.dsd.state.md.us. These documents may also be inspected at the office of the Division of State Documents, 16 Francis Street, Annapolis, Maryland 21401.

.01 Definitions.

A. In this chapter, the following terms have the meanings indicated.

B. Terms Defined.

(1) "Administrator" means the individual licensed by the Board of Examiners of Nursing Home Administrators who is responsible for the operation of the nursing home.

(2) "Attending physician" means an individual licensed to practice medicine in the State who:

(a) Admits residents to the nursing home; and

(b) Is responsible for the overall care of a resident.

(3) "Audiologist" means an individual who holds a Maryland license issued by the State Board of Audiologists, Hearing Aid Dealers, and Speech-Language Pathologists.

(4) "Authorized prescriber" has the meaning stated in Health Occupations Article, §12-101, Annotated Code of Maryland.

(5) "Certified dietary manager" means an individual who:

(a) Is licensed as a dietitian-nutritionist by the Maryland State Board of Dietetic Practice and registered as a dietitian by the Commission on Dietetic Registration;

(b) Is a graduate of a certified dietetic technician program approved by the Academy of Nutrition and Dietetics; or

(c) Has:

(i) Successfully completed the required course;

(ii) Maintains certification as required by the certifying board for the Association of Nutrition and Foodservice Professionals; and

(iii) Is a Certified Food Protection Professional (CFPP).

(6) "Certified medicine aide" means an individual who meets the requirements as stated in COMAR 10.39.01 and 10.39.03.

(7) "Certified social worker" means an individual licensed to practice as a certified social worker in this State.

(8) "Charge nurse" means the registered or licensed practical nurse who is responsible for day-to-day operations of a unit in the nursing home on which residents live.

(9) "Chemical restraint" means the administration of any drug that is used for discipline or convenience and not required to treat medical symptoms.

(10) "Comprehensive care facility" means a nursing home that admits residents requiring medical services and nursing services rendered by or under the supervision of a registered nurse, who:

(a) Are advanced in age; or

(b) Have a disease or a disability.

(11) "Concurrent review" means daily rounds by a licensed nurse which include:

(a) Appraisal and observation of all residents by the licensed nurse to determine any change in each resident's physical or mental status;

(b) If there is a change in the resident's physical or mental status, an evaluation by the licensed nurse of the resident's medications, laboratory values relating to the resident, and clinical data relating to the resident, including the resident's:

(i) Hydration and nutritional needs;

(ii) Skin integrity;

(iii) Noted weight changes; and

(iv) Appetite;

(c) Evaluation of injuries sustained by the resident that result from an accident or incident involving the resident; and

(d) Any other relevant parameters affecting or reflecting the resident's physical and mental status.

(12) "Culture change facility" means a nursing home where physical environment and operational changes have been made to establish person-valued and person-directed care activities and services.

(13) "Deficiency" means a condition existing in a nursing home or an action or inaction by the nursing home staff that results in potential for more than minimal harm, actual harm, or serious and immediate threat to one or more residents.

(14) "Dentist" means an individual licensed to practice dentistry in this State.

(15) "Department" means the Maryland Department of Health.

(16) "Dietitian-nutritionist" means an individual who:

(a) Is licensed by the Maryland Board of Dietetic Practice to practice dietetics;

(b) Has met the certifying requirements for registration as a dietitian as administered by the Commission on Dietetic Registration; and

(c) Maintains the continuing education requirements of registration.

(17) "Discharge" means the removal of a resident from a nursing home when the releasing nursing home is no longer responsible for the resident's care.

(18) "Discipline" means the medical, rehabilitative, nursing, dietetic, activities and social service components affiliated with the operation of a nursing home.

(19) "Distinct part extended care facility" means a portion of a nursing home that is licensed as an extended care facility.

(20) "Extended care facility" means a nursing home that offers sub-acute care and provides medical treatment services for residents who require inpatient care but who do not currently require continuous hospital services.

(21) "Facility" means a nursing home.

(22) "Fire authorities" means the official fire safety agency including the State Fire Marshal or local fire marshals or fire departments as appropriate.

(23) "Full time" means 40 hours per week or the standard work week adopted by the nursing home.

(24) "Geriatric nursing assistant" means a CNA who has successfully completed the requirements for a GNA set forth in 42 CFR §§483.151—483.156 and COMAR 10.39.01.

(25) "Grant" means the award of money to an individual or an organization to:

(a) Study an aspect for the geriatric population; or

(b) Provide a service to nursing home residents or their families.

(26) "Health officer" means the health officer or the designated representative in each of the 23 counties and the Commissioner of Health in Baltimore City.

(27) "HVAC" means heating, ventilation and air conditioning.

(28) "Infection preventionist" means a licensed healthcare worker who:

(a) Manages the infection prevention and control program in the nursing home; and

(b) Has completed a minimum of 15 contact hours of infection prevention and control training that is approved by the:

(i) Department's Office of Infectious Disease Epidemiology and Outbreak Response; and

(ii) Office of Health Care Quality.

(29) "Licensed bachelor social worker (LBSW)" means an individual authorized to practice bachelor social work under Health Occupations Article, Title 19, Annotated Code of Maryland.

(30) "Licensed certified social worker (LCSW)" means an individual authorized to practice certified social work under Health Occupations Article, Title 19, Annotated Code of Maryland.

(31) "Licensed certified social worker–clinical (LCSW-C)" means an individual authorized to practice clinical social work under Health Occupations Article, Title 19, Annotated Code of Maryland.

(32) "Licensed graduate social worker (LGSW)" means an individual authorized to practice graduate social work under Health Occupations Article, Title 19, Annotated Code of Maryland.

(33) "Licensed or certified professional health care practitioner" means a nurse practitioner, physician assistant, or other practitioner licensed or certified under the Health Occupations Article, Annotated Code of Maryland.

(34) "Licensed pharmacist" means an individual who is licensed by the Board to practice pharmacy as defined in Health Occupations Article, §12-101(l), Annotated Code of Maryland.

(35) "Licensed practical nurse" means an individual authorized to practice licensed practical nursing under Health Occupations Article, Title 8, Annotated Code of Maryland.

(36) "Management firm" means an organization, under contract with an applicant for a license or a current licensee, that is intended to have or has full responsibility and control for the day-to-day operations of the nursing home.

(37)"MDS Care Area Assessment" means the investigation of triggered care areas, to determine if the care area or areas require interventions and care planning.

(38) "Medical director" means an individual licensed to practice medicine in this State who, pursuant to a written agreement, is responsible for the overall coordination of the medical care in the nursing home to ensure the adequacy and appropriateness of the medical services provided to residents and to maintain surveillance of the health status of employees.

(39) "Minimum Data Set (MDS)" means a core set of screening, clinical, and functional status elements, including common definitions and coding categories, which:

(a) Forms the foundation of a comprehensive assessment for all nursing home and swing bed residents; and

(b) Standardize communication about resident problems and conditions:

(i) Within these facilities;

(ii) Between these facilities; and

(iii) Between these facilities and outside agencies.

(40) "New nursing home" means a nursing home that does not yet have plans approved by the Department at the time of the adoption of this chapter.

(41) "NFPA" means National Fire Protection Association.

(42) "Nurse" means a licensed practical nurse or registered nurse licensed in the State as defined in Health Occupations Article, §8-101, Annotated Code of Maryland.

(43) "Nurse practitioner" has the meaning stated in Health Occupations Article, §8-101(k), Annotated Code of Maryland.

(44) "Nursing care" has the meaning stated in Health-General Article, §19-301(k), Annotated Code of Maryland.

(45) "Nursing home" means a comprehensive care facility or extended care facility which offers nonacute inpatient care to patients:

(a) Suffering from a disease, chronic illness, condition, disability of advanced age, or terminal disease requiring maximal nursing care without continuous hospital services; and

(b) Who require medical services and nursing services rendered by or under the supervision of a licensed nurse together with convalescent, restorative, or rehabilitative services.

(46) "Nursing service personnel" means staff licensed or certified by the Maryland Board of Nursing.

(47) "Occupational therapist" means an individual who is currently licensed by the State Board of Occupational Therapy Practice as a registered occupational therapist.

(48) "Occupational therapy assistant" means an individual who is currently licensed by the State Board of Occupational Therapy Practice as an occupational therapy assistant.

(49) "Ongoing pattern" means the occurrence of any potential for more than minimal harm or greater deficiency on two consecutive on-site visits as a result of:

(a) Annual surveys;

(b) Follow-up visits and unscheduled visits; or

(c) Complaint investigations.

(50) "Paid feeding assistant" means an individual who:

(a) Meets the requirements of Regulation .58 of this chapter; and

(b) Is paid by a nursing home to feed residents who are unable to perform the task themselves.

(51) "Physical restraint" means any manual method or physical or mechanical devise, material, or equipment attached or adjacent to the resident's body that the individual cannot remove easily which restricts freedom of movement or normal access to one's body including but not limited to:

(a) Leg restraints;

(b) Arm restraints;

(c) Hand mitts;

(d) Soft ties or vests;

(e) Lap cushions; and

(f) Lap trays the resident cannot remove easily.

(52) "Physical therapist" means an individual licensed to practice physical therapy by the State Board of Physical Therapy Examiners.

(53) "Physician" means an individual licensed to practice medicine in this State.

(54) "Physician assistant" has the meaning stated in Health Occupations Article, §15-101(o), Annotated Code of Maryland.

(55) "Plan of correction" means a written response from the nursing home addressing each deficiency cited as a result of an inspection by the Department.

(56) "Positive tuberculin skin test" means a test provided as authorized by the Guidelines for Preventing the Transmission of Mycobacterium tuberculosis in Health-Care Settings.

(57) "Principal physician" means an individual licensed to practice medicine in this State who agrees to perform certain medical services under contract with a nursing home, consistent with the policies of the nursing home.

(58) "Protective device" means any device or equipment:

(a) That is prescribed by a physician;

(b) That limits, but does not eliminate the movement of the resident's head, body, or limbs; and

(c) That:

(i) Shields a resident from self-injury;

(ii) Prevents a resident from aggravating an existing physical problem; or

(iii) Prevents a resident from a precipitating potential physical problem.

(59) "Qualified medical record practitioner" means an individual who:

(a) Has:

(i) Received a baccalaureate degree from an accredited college or university including or supplemented by a successful completion of a course in health record administration approved by the Council on Medical Education of the American Medical Association; and

(ii) Passed the national registration examination for registered record administrators; or

(b) Has:

(i) Received an associate of arts degree in health record technology from a college or university approved by the American Medical Association Council on Medical Education or an equivalent approved health record technology correspondence course of the American Medical Record Association; and

(ii) Passed the national accreditation examination for accredited record technicians.

(60) "Qualified social work consultant" means an individual who:

(a) Is a licensed certified social worker; and

(b) Has a minimum of 3 years' experience in social work programs in a long-term care setting within the last 5 years.

(61) "Quality Improvement and Evaluation System (QIES) Assessment Submission and Processing (ASAP) system" means the standard nationwide system to which several types of health care providers submit CMS required resident information to the National Submissions Database.

(62) "Registered nurse" means an individual licensed to practice as a registered nurse in this State.

(63) Relocation.

(a) "Relocation" means the movement of a resident from one room to another within:

(i) The same Medicare-certified nursing home;

(ii) A Medicaid-only certified nursing home; or

(iii) A licensed-only nursing home.

(b) "Relocation" does not mean the movement of a resident if the effect of the movement is to move the resident from:

(i) The distinct part of the nursing home that is a skilled nursing facility to a distinct part of the nursing home that is not a skilled nursing facility; or

(ii) A bed that is certified for Medicaid to a distinct part of the nursing home that is a skilled nursing facility.

(64) "Resident" means an individual who:

(a) Resides in the nursing home; and

(b) Receives nursing services rendered by or under the supervision of a registered nurse.

(65) "Resident activities coordinator" means an individual who:

(a) Is a:

(i) Certified therapeutic recreation specialist;

(ii) Licensed occupational therapist; or

(iii) Licensed occupational therapy assistant; or

(b) Has 2 years of experience in a social or recreational program in a licensed health care setting within the last 5 years, 1 year of which was full time in a resident activities program with guidance from an individual identified in §B(73)(a) of this regulation.

(66) Resident Assessment Instrument (RAI).

(a) "Resident Assessment Instrument (RAI)" means a standardized and reproducible resident assessment process based on completion of Minimum Data Set (MDS) screening items, and including the MDS Care Area Assessment process, and related process for care planning and evaluation.

(b) "Resident Assessment Instrument (RAI)" includes:

(i) Minimum Data Set;

(ii) MDS Care Area Assessment Process; and

(iii) RAI utilization guidelines.

(67) "Resident's representative" means a person with the authority to act on the resident's behalf regarding the matter at issue.

(68) "Restraint" means any physical or chemical restraint as defined in this chapter.

(69) "Secretary" means the Secretary of Health.

(70) "Serious and immediate threat" means a situation in which immediate corrective action is necessary because a deficiency has caused or is likely to cause serious injury, harm, impairment to, or death of a resident receiving care in the nursing home.

(71) "Special care unit" means a nursing home unit that provides intensive specialized care, such as respiratory, rehabilitative, dementia, or dialysis care, continuously on a 24-hour basis.

(72) "Speech-language pathologist" means an individual licensed by the State Board of Audiologists, Hearing Aid Dispensers, and Speech-Language Pathologists.

(73) "Support personnel" means an aide who:

(a) Is assigned to a particular service such as:

(i) Nursing;

(ii) Dietary;

(iii) Physical therapy; or

(iv) Occupational therapy; and

(b) Has been approved by the manager of the services as having sufficient training and experience to perform the assigned duties.

(74) "Tuberculin skin test" means a test to diagnose tuberculosis infection using purified protein derivative (PPD) that is injected intradermally and read within 48—72 hours with results recorded in millimeters of induration.

(75) Tuberculosis in a Communicable Form.

(a) "Tuberculosis in a communicable form" means that an individual:

(i) Is presumed to have active pulmonary or laryngeal tuberculosis as evidenced by positive X-ray findings with or without positive acid-fast bacilli (AFB) sputum smear or positive AFB sputum culture; and

(ii) Has received chemotherapy for less than 14 days.

(b) "Tuberculosis in a communicable form" does not include:

(i) When the individual who has presumptive or confirmed active disease, has had three negative AFB smears, collected 8—24 hours apart, shows clinical improvement, and has received chemotherapy to which the strain is susceptible for at least 14 days; or

(ii) The individual who has inactive pulmonary scarring, calcification, or a normal chest X-ray.

(76) "Two-step tuberculin skin testing" means the administration of a second tuberculin skin test 1 to 3 weeks after the initial skin test is negative, to identify individuals with a past TB infection who may now have reduced skin reactivity.

.02 Incorporation by Reference.

A. In this chapter, the following documents are incorporated by reference.

B. Documents Incorporated.

(1) CMS Long-term Care Facility Resident Assessment Instrument 3.0 User's Manual, (Version 1.14, October 2016).

(2) CMS Manual System, Pub. 100-07 State Operations Provider Certification, (Transmittal 127, November 26, 2014, U.S. Department of Health and Human Services Centers for Medicare and Medicaid Services).

(3) Guidelines for Design and Construction of Residential Health, Care, and Support Facilities. (2014) Facility Guidelines Institute, which is incorporated in COMAR 10.07.01.02.

(4) 2007 Guideline for Isolation Precautions: Preventing Transmission of Infectious Agents in Healthcare Settings (Centers for Disease Control and Prevention (CDC), Healthcare Infection Control Practices Advisory Committee (HIPAC), 2007).

(5) Guidelines for Preventing the Transmission of Mycobacterium tuberculosis in Health-Care Settings, 2005 (MMWR2005; 54, No. RR-17, Centers for Disease Control and Prevention (CDC), Atlanta, GA).

(6) Immunization of Health-Care Personnel: Recommendations of the Advisory Committee on Immunization Practices (ACIP), (MMWR2011; 60 No. SS-07, Centers for Disease Control and Prevention (CDC), Atlanta, GA).

(7) National Fire Protection Association, NFPA 99 Health Care Facilities Code (2015 Edition).

(8) National Fire Protection Association, NFPA 101 "Life Safety Code", which is incorporated by reference at COMAR 29.06.01.06.

(9) Recommended Dietary Allowances, (10th Edition, Food and Nutritional Board, Commission on Life Sciences, and National Research Council, 1989).

[.02] .*03* License Required.

A.—E. (text unchanged)

F. Provisional License.

(1) The Secretary may issue a license to a **[**comprehensive care facility**]** *nursing home* or an extended care facility for less than a 24-month period under any of the following conditions:

(a)—(c) (text unchanged)

(d) If new construction is completed to the point of being able to provide all necessary services to its residents but certain substantial items of equipment **[**of**]** *for* optional services *are temporarily lacking*, which in the opinion of the Department will have no immediate adverse effect on the safety or health of its residents**[**, are lacking temporarily**]**; or

(e) (text unchanged)

(2)—(3) (text unchanged)

G.—H. (text unchanged)

[.03] .*04* Licensing Procedure.

A. Application for License.

(1) An applicant desiring to open a comprehensive care facility or an extended care facility **[**or to continue the operation of an existing facility as a comprehensive care facility or an extended care facility**]** shall file an application with the Secretary, on a *written or electronic* form provided by the Secretary.

(2)—(6) (text unchanged)

(7) Additional Requirements.

(a) The Secretary shall require an applicant for licensure to submit to the Secretary the following information concerning the applicant's:

(i) (text unchanged)

(ii) Ability to comply with **[**minimum**]** *the applicable* standards of medical and nursing care and applicable State or federal laws and regulations by disclosing the identities of its medical director, director of nursing, and administrator, and by providing the **[**facility's**]** *nursing home's* quality assurance plan, as required in Regulation **[**.46**]** *.66* of this chapter; and

(iii) (text unchanged)

(b) (text unchanged)

(c) A **[**party aggrieved by a**]** *person that disagrees with the* decision of the Secretary *to deny a license application* under this section **[**shall have the right to appeal as provided under the authority of Health-General Article, §2-207, Annotated Code of Maryland**]** *may appeal the Secretary's action by filing a request for a hearing in accordance with Regulation .78 of this chapter*.

B. Restrictions of License.

(1) Nomenclature. **[**Comprehensive care facilities or extended care facilities**]** *A nursing home* licensed under this regulation may not use *the word "hospital"* in **[**their**]** *its* title **[**the word "Hospital"**]**.

(2) (text unchanged)

(3) Local Law or Ordinance, Where Applicable. **[**Comprehensive care facilities or extended care facilities**]** *A nursing home* located in *a* political **[**subdivisions**]** *subdivision* which **[**require them**]** *requires it* to meet certain standards shall submit proof to the Secretary that **[**they meet**]** *the nursing home meets* local laws, regulations, or ordinances at the time application for license is submitted.

[(4) Renewal of License.

(a) A facility shall file an application to renew its license every 2 years at least 60 days before expiration of the issued license.

(b) The renewal application shall be submitted on *written or electronic* forms provided by the Secretary.**]**

[(5)**]** *(4)* Transfer or Assignment of License.

(a) If the sale, transfer, assignment, or lease of a **[**facility**]** *nursing home* causes a change in the person or persons who control or operate the **[**facility**]** *nursing home*, the **[**facility**]** *nursing home*

shall be considered a "new **[**facility**]** *nursing home*" and the licensee shall conform to all regulations applicable at the time of transfer of operations.

(b) The transfer of any stock which results in a change of the person or persons who control the **[**facility**]** *nursing home*, or a 25 percent or greater change in any form of ownership interest, constitutes a sale.

(c) For purposes of Life Safety Code enforcement, the **[**facility**]** *nursing home* is considered **[**as**]** *to be* an existing **[**facility**]** *nursing home* if it has been in continuous use as a nursing home. Waivers may be granted under Regulation **[**.02F**]** *.03F* of this chapter.

[(6) Return of License or Renewal Certificate to the Secretary of Health and Mental Hygiene. If the comprehensive care facility or the extended care facility is sold, leased, discontinued, the operation moved to a new location, the license revoked, or its renewal denied, the current license immediately shall become void and shall be returned to the Secretary.**]**

(5) Return of License or Renewal Certificate to the Secretary of Health. The current license shall immediately become void and shall be returned to the Secretary if the:

(a) Nursing home is sold, leased, or discontinued;

(b) Operation moved to a new location;

(c) License is revoked; or

(d) License renewal is denied.

[.03-1] *.05* Licensed Bed Capacity.

A.—B. (text unchanged)

C. Request for Departmental Permission to Exceed Capacity.

(1)—(2) (text unchanged)

(3) The **[**facility**]** *nursing home* shall:

(a) (text unchanged)

(b) **[**Be**]** *Make the request* for a term not to exceed 30 days.

(4)—(6) (text unchanged)

[.05] *.07* Inspection by Secretary [of Health and Mental Hygiene].

A. Open at all Times for Inspection. Licensed **[**comprehensive care facilities and extended care facilities**]** *nursing homes* and any premises **[**proposed**]** that an applicant for a license proposes to **[**be operated by an applicant for a license**]** operate shall be open at all times to inspection by the Secretary and by any agency designated by the Secretary.

B.—D. (text unchanged)

E. The Department shall make a site visit and conduct a full survey of each licensed nursing home at least once per calendar year.

.08 New Construction, Conversion, Alteration, or Addition.

A. Submission of Plans.

(1) The architect or professional engineer of record shall submit stamped and sealed final construction drawings to the Department.

(2) The architect or professional engineer of record shall submit a letter certifying that the project has been designed in accordance with all applicable federal, State, and local codes, laws, ordinances, and regulations for construction.

B. Plan Approval.

(1) A system of water supply, plumbing, sewerage, electrical power, garbage or refuse disposal may not be installed or extended until the architect or professional engineer of record submits stamped and sealed final construction drawings for Department record and provisional approval in accordance with §A of this regulation.

(2) The architect or professional engineer of record shall also submit a letter certifying that the project has been designed in accordance with all applicable federal, State, and local codes, laws, ordinances, and regulations.

C. New Construction.

(1) A new nursing home shall satisfy the review of the Maryland Health Care Commission for the:

(a) Establishment of a new nursing home; and

(b) Increase or decrease in capacity of an existing nursing home.

(2) After obtaining approval by the Maryland Health Care Commission, the nursing home shall provide written verification of the approval to the Office of Health Care Quality.

(3) Verification shall include:

(a) Details of the proposed nursing home changes; and

(b) Written plans that describe how all residents, staff, and the general public will be kept safe during the duration of the project.

D. Conversion, Alteration, and Additions.

(1) An existing nursing home that wishes to convert, alter, modify, or add to the existing infrastructure shall notify the Office of Health Care Quality in writing.

(2) The nursing home shall provide the Office of Health Care Quality with the documentation that verifies that the applicable local and State governmental authorities have approved work that was done.

(3) The nursing home shall provide additional information upon request.

[.07] *.09* Administration and Resident Care.

A. (text unchanged)

B. Delegation to Administrator.

(1) The licensee, if not acting as an administrator, shall appoint as administrator a responsible person who is **[**qualified**]***:*

(a) Qualified by training and experience**[**,**]***;* and **[**is licensed**]**

(b) Licensed by the Board of Examiners of Nursing Home Administrators for the State.

(2) The administrator shall **[**be**]***:*

(a) Be responsible for the control of the operation on a 24-hour basis*;* and **[**shall serve**]**

(b) With the exception of §B(3) of this regulation, serve full-time **[**except that**]**.

(3) With the Department's approval, an administrator may**[**, with the Department's approval,**]** serve on a less than full-time basis for a maximum of two nursing facilities, one of which shall have a licensed capacity of 35 beds or less.

[(2)**]** *(4)* The Department shall consider the following factors when **[**considering**]** *deciding* whether to approve an administrator to serve on a less than full-time basis:

(a) **[**Geographical**]** *Geographic* location of the facilities;

(b)—(e) (text unchanged)

C. Absence of Administrator.

(1) In the absence of the administrator, the **[**facility**]** *nursing home* at all times shall be under the direct and personal supervision of an experienced, trained, competent employee.

(2) When **[**the director of nursing serves**]** *serving* as relief for the administrator, **[**he**]** *the director of nursing* shall designate an experienced, qualified registered nurse to direct the nursing service.

(3) The relief director of nursing shall be freed from other responsibilities.

D. Excessive Absenteeism of Administrator.

(1) If the **[**administrator is absent from the facility an excessive amount of time and the Department determines that the**]** director of nursing's absence **[**from nursing service**]** *while covering for the administrator* is having an adverse effect on **[**patient**]** *resident* care, the Department may require the designation of a specific registered nurse who shall be named the **[**"**]**assistant director of nursing**[**"**]**.

(2) The Department shall be notified of the name of the assistant director of nursing.

(3) When the designee is replaced, the Department shall be notified of the name of the registered nurse filling the vacancy.

E. Character. The administrator shall **[**be**]***:*

(1) Be of good moral character**[**,**]***;*

(2) Be in good physical and mental health**[**,**]***;* and **[**shall demonstrate**]**

(3) Demonstrate a genuine interest in the well-being and welfare of **[**patients**]** *residents* in the **[**facility**]** *nursing home*.

F. Staffing.

(1) The administrator shall employ sufficient and satisfactory personnel as specified in this chapter to **[**give adequate patient care and to do feeding,**]***:*

(a) Provide maintenance, cleaning, and housekeeping*;*

(b) Assist residents with eating; and

(c) Give adequate resident care.

(2) Voluntary Admissions Ceiling.

(a) A **[**facility**]** *nursing home* may request a **[**"**]**voluntary admissions ceiling**[**"**]** by submitting a written request to the Department to authorize a temporary restriction on **[**patient**]** *resident* admissions based upon anticipated bed usage.

(b) When the **[**facility**]** *nursing home* wishes to request that the restriction be removed, the request shall include the specific effective date and a statement that personnel staffing is sufficient to meet the State's requirements at the designated census **[**figure**]** *level*.

(c) The Department shall approve the increase in beds within 72 hours following receipt of the **[**facility's**]** *nursing home's* documentation that the required additional staff is **[**"**]**in **[**place"**]** *position* to serve the increased number of beds.

(d) Management of the **[**facility**]** *nursing home* may not permit the **[**patient**]** *resident* census to exceed the admissions ceiling without prior approval from the Department.

[(3) As requested by the Department, the administrator or his designee shall telephone the Department's central bed registry, advising the Department of:

(a) The number of vacant licensed beds in the facility;

(b) The levels of care of the beds reported vacant;

(c) The types of patients who will be accepted —private, Medicare, or Medicaid.**]**

G. Educational Program. **[**An**]**

(1) The administrator shall plan an ongoing educational program **[**shall be planned and conducted for the development and improvement of**]** *to develop and improve the* skills of all the **[**facility's**]** *nursing home's* personnel, including training related to problems and needs of the aged, ill, and disabled. **[**Records shall be maintained**]**

(2) The administrator shall maintain records reflecting attendance, by name and title, and training content.

(3) In-service training shall include at least:

[(1)**]** *(a)* (text unchanged)

[(2)**]** *(b)* Fire prevention programs and **[**patient**]** *resident* related safety procedures in emergency situations or conditions;

[(3)**]** *(c)* (text unchanged)

[(4)**]** *(d)* Confidentiality of **[**patient**]** *resident* information;

[(5)**]** *(e)* Preservation of **[**patient**]** *resident* dignity, including protection of the **[**patient's**]** *resident's* privacy and personal and property rights;

[(6)**]** *(f)* **[**Psychophysical**]** *Physical, functional,* and psychosocial needs of the aged ill;

[(7)**]** *(g)*—**[**(8)**]** *(h) (*text unchanged)

H. Employment Records. A written application shall be on file for each employee and shall contain *at least the*:

(1) Employee's **[**social security**]** *Social Security* number**[**.**]***;*

(2) Home address**[**.**]***;*

(3) Educational background**[**.**]***;*

(4) Past employment **[**with**]** documentation **[**that**]** *with* references **[**have been considered by the facility. If the employee formerly worked in a**]***;*

(5) Past nursing home**[**, consideration shall be given to the record as it relates to**]** *employment documentation, including any past instances of* abuse of **[**patients**]** *residents*, theft, and fires**[**.**]***;*

[(5)**]** *(6)* **[**The**]** *Verified* licensure of personnel employed **[**as registered or licensed practical nurses shall be verified by the facility.**]***; and*

(7) Proof of criminal background check.

I. **[**Supportive**]** *Support* Personnel.

(1) To support placement in a specific position, there shall be sufficient documentation in the employee's record reflecting his training and experience.

(2) In instances when an aide is to be assigned to a particular service such as dietary, physical therapy, or occupational therapy, the person in charge of the service shall be responsible for the evaluation and approval of the qualifications.

J. New **[**Supportive**]** *Support* Personnel.

(1) New **[**supportive**]** *support* personnel shall be credited for 50 percent of their working time until the employee's orientation program, as approved by the Department, is completed.

(2) Employee Orientation Program.

(a) New support personnel shall have an employee orientation program.

(b) The person in charge of the service to which the employee is assigned shall **[**have**]**:

(i) Have input into the contents of the orientation program; **[**Policies for the orientation program shall include**]**

(ii) Determine the number of hours of orientation required for the various levels of **[**supportive**]** *support* personnel; *and*

(iii) Following the period of orientation, **[**the person responsible for the orientation program and the person in charge of the service shall**]** indicate *the* satisfactory completion of the orientation program of the employee.

(3) The responsible department's approval shall be in writing, signed by the appropriate department head whose license number, if applicable, shall be recorded in the record.

(4) In new facilities, the director of nursing and supervisors of **[**the various services,**]** dietary *services*, housekeeping, rehabilitation *services*, and social services**[**,**]** shall be responsible for orienting the new **[**supportive**]** *support* personnel to the **[**facility's**]** *nursing home* policies and procedures and to the physical plant.

(5) There shall be a complete orientation for all the employees in life safety and disaster preparedness.

(6) The number of daily admissions of **[**patients**]** *residents* shall be controlled to allow sufficient time for on-the-job training.

(7) Before the opening of the **[**facility all supportive**]** *nursing home, support* personnel shall have a minimum of 2 days of orientation training.

K.—L. (text unchanged)

M. Except where inappropriate for safety reasons, an employee and any other individual who provides a health care service within or on the premises of the nursing home shall wear a personal identification tag that:

(1) States the name of the individual;

(2) States the profession or other title of the individual; and

(3) Is in a readily visible type font and size.

[.07-1] *.10* Employee Training on Cognitive Impairment and Mental Illness.

A. (text unchanged)

B. The training on cognitive impairment and mental illness shall be designed to meet the specific needs of the **[**facility's**]** *nursing*

home's population as determined by the staff trainer, including the following as appropriate:

(1)—(2) (text unchanged)

(3) Behavioral **[**intervention**]** *interventions* including:

(a)—(d) (text unchanged)

(4)—(7) (text unchanged)

C.—F. (text unchanged)

[.08] .*11* Admission and Discharge.

A. Written Policy. The nursing home shall develop written policies, consistent with this chapter and COMAR 10.07.09, to govern the nursing care, related medical, and other services that the nursing home provides regarding:

(1) Admissions, transfers, and discharges;

(2) Acceptable payment sources; and

(3) Medical Assistance program information.

B. The nursing home shall make its admission and discharge policies available for review by residents and the resident's representative.

[A.**]** *C.* Discrimination Prohibited. A **[**facility**]** *nursing home* licensed under **[**these regulations**]** *this chapter* may not discriminate in admitting or providing care to an individual because of **[**the race, color, national origin, or physical or mental handicap**]** *the individual's:*

(1) Race;

(2) Color;

(3) National origin;

(4) Sexual orientation;

(5) Gender identity;

(6) Physical disability; or

(7) Mental disability **[**of the individual**]**.

[B.**]** *D.* Contract. Before or at admission, a contract shall be executed by the administrator and **[**patient**]** *resident*, guardian, or responsible agency which is consistent with the requirements of Health-General Article, §19-344, Annotated Code of Maryland, "Rights of Individuals".

[C.**]** *E.* Registry. **[**Facilities**]** *A nursing home* shall maintain a permanent **[**patient**]** *resident* registry in which the name of each **[**patient**]** *resident* is entered in chronological order with the date and number of entry.

[D.**]** *F.* Admission Record. A copy of the clinical record, identification, and summary sheet described in Regulation **[**.20B**]** *.32* shall be used as an admission record.

G. Before discharge the nursing home shall:

(1) Verify that the transfer and discharge to an assisted living nursing home is licensed and appropriate to meet the needs of the resident; and

(2) Document the verification in the resident's medical record.

[E.**]** *I.* Notification of Responsible Persons When **[**Patient**]** *Resident* Moves. **[**The administrator or the administrator's designee shall notify the private or public agency or relative responsible for the patient when the patient is transferred from the facility for any reason or at time of death. The attending physician shall also be notified.**]** *When the resident is transferred from the nursing home for any reason or at time of death, the administrator or the administrator's designee shall notify the attending physician and the:*

(1) Private agency;

(2) Public agency; or

(3) Responsible party designated by the resident.

[F.**]** *J.* Restrictions on Admission and Retention of **[**Patients**]** *Residents*. **[**Patients**]** *Residents* may not be admitted or retained if, in the judgment of the attending physician, they are:

(1)—(2) (text unchanged)

[G. Admissions Procedures for Patients With Communicable Diseases. The following procedures are to be used when admitting an individual with a communicable disease into a nursing facility:

(1) A facility may not deny admissions to, or involuntarily discharge, an individual solely because the individual has a communicable disease;

(2) Any facility that intends to accept an individual with a communicable disease shall notify the Department before admitting the individual; and

(3) The Secretary or a designee of the Secretary may prohibit a facility from accepting an individual with a communicable disease if it is determined that admitting the individual with a communicable disease could pose a risk to the health, safety, or welfare of any other resident or individual associated with the facility.**]**

[.08-1] .*12* Resident's Representative.

A. A **[**comprehensive or extended care facility**]** *nursing home* shall recognize the authority of:

(1)—(2) (text unchanged)

(3) An **[**advanced**]** *advance* directive that meets the requirements of Health-General Article, §5-602, Annotated Code of Maryland;

(4)—(7) (text unchanged)

B.—C. (text unchanged)

[.09] .*13* Resident Care Policies.

[A. Written Policies. Comprehensive care facilities and extended care facilities shall develop written policies, consistent with these regulations, to govern the nursing care and related medical or other services they provide covering the following:

(1) Admission, transfer, and discharge policies including categories of patients accepted and not accepted by the facility, or those who are required to transfer to another level of care. The facility's admission policy shall include a statement as to whether or not medical assistance patients will be admitted and if admitted, under what circumstances.**]**

A. A nursing home shall develop written policies consistent with Regulation .11 of this chapter pertaining to:

[(2)**]** *(1)* Physician services**[.]***;*

[(3)**]** *(2)* **[**Patients'**]** *Residents'* rights**[.]***;*

[(4)**]** *(3)* Nursing services**[.]***;*

[(5)**]** *(4)* Dietetic services**[.]***;*

[(6)**]** *(5)* Specialized rehabilitative services**[**—**]** *including* occupational therapy **[**services**]**, physical therapy **[**services**]**, speech pathology and audiology services**[.]***;*

[(7)**]** *(6)* Pharmaceutical services**[.]***;*

[(8)**]** *(7)* Laboratory and radiologic services**[.]***;*

[(9)**]** *(8)* Dental services**[.]***;*

[(10)**]** *(9)* Social services**[.]***;*

[(11)**]** *(10)* **[**Patient**]** *Resident* activities**[.]***;*

[(12)**]** *(11)* Clinical records**[.]***;*

[(13)**]** *(12)* Reports and action required in unusual circumstances**[.]***;*

[(14)**]** *(13)* Utilization review**[.]***;*

[(15)**]** *(14)* Infection control**[.]***;*

[(16)**]** *(15)* Tuberculosis **[**Surveillance. All comprehensive care facilities and extended care facilities shall have written policies and procedures, acceptable to the Department, for tuberculosis surveillance of all residents. See Regulation .21G of this chapter for tuberculosis surveillance requirements.**]** *surveillance;*

[(17)**]** *(16)* Disaster plan**[.]***;*

[(18)**]** *(17)* Housekeeping services, pest control, and laundry**[.]***; and*

[(19)**]** *(18)* **[**Patient**]** *Resident* care management.

B. **[**The patient**]** *Resident Care Policy.*

(1) A nursing home shall develop resident care policies **[**shall be developed**]** with the advice of **[**the**]***:*

(a) The principal physician **[(]** or medical staff or medical director, if applicable **[)]**; and **[**at**]**

(b) At least one registered nurse. **[**Policies shall be reviewed at least annually by a**]**

(2) A group of professional personnel including one or more physicians and one or more registered nurses *shall review the policies at least annually*.

(3) Written policies shall be kept current with the policies used to administer the **[**facility**]** *nursing home*.

(4) For reference purposes, copies of the **[**patient**]** *resident* care policies shall be readily available to all personnel responsible for **[**patient**]** *resident* care.

(5) The nursing home shall make its resident care policies available for review by residents and the resident's representative.

C. (text unchanged)

D. Use of Protective Device or Devices.

(1)—(3) (text unchanged)

(4) A **[**patient**]** *resident* in a protective device or devices shall be observed periodically by personnel, to **[**insure**]** *ensure* that the **[**patient's**]** *resident's* health *and personal care* needs are met.

(5) A **[**patient**]** *resident* who is in a protective device or devices may not be left in the same postural position for more than 2 consecutive hours.

[.10] .*14* Physician Services.

A. Responsibility for the Resident's Care. The attending physician shall:

(1)—(4) (text unchanged)

(5) For a resident who is to be transferred to the care of another **[**health care practitioner**]** *attending physician*, continue to provide all necessary medical care and services pending transfer until another *attending* physician has accepted responsibility for the resident.

B.—F. (text unchanged)

G. Appropriate Care of Residents. The attending physician shall:

(1)—(6) (text unchanged)

(7) Respond promptly to notification of, and assess and manage adequately, reported acute and other significant clinical condition changes in residents; **[**and**]**

(8) Ensure that individuals receiving palliative care have appropriate comfort and supportive care measures*; and*

(9) Properly refer residents to specialty services and providers when the care needs of the resident exceed the scope of the attending physician's knowledge and skill.

H.—I. (text unchanged)

[.11] .*15* Medical Director Qualifications.

A. Medical Director Qualifications. The nursing **[**facility**]** *nursing home* shall:

(1) Designate a medical director who has at least the following qualifications:

(a) (text unchanged)

(b) At least 2 years of experience or specialized training in the medical care of geriatric or chronically ill and impaired residents; *and*

(c) Successful completion of a curriculum in physician management or administration from **[**the American Medical Directors Association or another curriculum approved by the Department or its designee; and**]***:*

(i) AMDA: The Society for Post-Acute and Long-Term Care Medicine; or

(ii) A curriculum approved by the Department or its designee;

[(d) Privileges at a hospital in this state, participant in an HMO network, or credentialed by a credentialing organization approved by the Department.**]**

(2) (text unchanged)

(3) Submit a copy of the medical director's credentials to the Department upon:

(a) The first license renewal of the **[**facility**]** *nursing home* after the effective date of this regulation; and

(b) (text unchanged)

B. (text unchanged)

[.11–1] .*16* Medical Director Responsibilities.

A. General Responsibilities. The medical director is responsible for:

(1) (text unchanged)

(2) Monitoring and evaluating the *health care services and* outcomes **[**of the health care**]**, including clinical and physician services provided to the **[**facility's**]** *nursing home's* residents; and

(3) (text unchanged)

B.—D. (text unchanged)

E. Quality Assurance. The medical director shall actively participate in the **[**facility's**]** *nursing home's* quality improvement process. Participation shall include:

(1) Regular *reports and* attendance at**[**, and reporting to,**]** the **[**facility's**]** *nursing home's* quality improvement committee meetings; and

(2) (text unchanged)

F. Employee Health Oversight. The **[**facility**]** *nursing home*, in consultation with the medical director and other physicians, if necessary, shall establish and maintain surveillance of the health status of employees, including:

(1) Advising on the development and execution of an employee health program, which shall include provisions for determining that employees are free of communicable diseases according to current **[**acceptable**]** *accepted* standards of practice; and

(2) (text unchanged)

G.—I. (text unchanged)

[.11-2] .*17* [Facility's] *Nursing Home's* Responsibilities in Relation to the [Facility's] *Nursing Home's* Medical Director.

A. (text unchanged)

B. When the attending physician and medical director document a resident's medical need for a particular treatment, assistive device, or equipment, *the nursing home shall provide* that treatment, assistive device, or equipment **[**shall be provided by the facility**]** unless the **[**facility**]** *nursing home* documents in the quality assurance committee minutes the reason or reasons why the treatment, assistive device, or equipment should not be provided.

C. When the attending physician and medical director agree that a particular **[**facility-developed**]** *nursing home developed* protocol is required to ensure that quality medical care is delivered to the **[**facility's**]** *nursing home's* residents, that protocol shall be implemented unless the **[**facility**]** *nursing home* documents in the **[**facility's patient**]** *nursing home's resident* care committee minutes the reason or reasons why the protocol should not be implemented.

D. (text unchanged)

.18 Nursing Services.

A. Organization, Policies, and Procedures.

(1) Nursing service personnel shall provide care appropriate to the residents' needs with the organizational plan, authority, functions, and duties clearly defined.

(2) Nurses and support personnel shall be chosen for their training, experience, and ability.

(3) Policies and procedures shall be adopted and made available to all nursing service personnel.

B. Signed Agreement.

(1) A signed copy of the agreement between the nursing home and the director of nursing, showing the license number of the nurse, shall be filed with the Department upon:

(a) Application for an initial nursing home license; and

(b) A change of director of nursing.

(2) The agreement shall specify the duties of the director of nursing.

C. Nursing Care 24 Hours a Day. The administrator shall employ sufficient and satisfactory licensed nursing service personnel and support personnel to:

(1) Be on duty 24 hours a day;

(2) Provide appropriate bedside care; and

(3) Assure that a resident:

(a) Receives treatments, medications, and diet as prescribed;

(b) Receives rehabilitative nursing care as needed;

(c) Receives proper care to prevent pressure ulcers and deformities;

(d) Is kept comfortable, clean, and well-groomed;

(e) Is protected from accident, injury, and infection;

(f) Is encouraged, assisted, and trained in self-care and group activities; and

(g) Receives prompt and appropriate responses to requests for assistance.

D. Assistance by Nursing Service Personnel. Nursing service personnel shall help the resident perform daily routine dental hygiene.

E. Charge Nurse.

(1) At least one licensed nurse shall be:

(a) On duty at all times; and

(b) Be designated by the director of nursing to be in charge of the nursing activities during each tour of duty.

(2) The charge nurse or nurses shall have the ability to recognize significant changes in the condition of residents and to take necessary action.

F. Charge Nurses' Daily Rounds. The charge nurse or nurses shall make daily rounds on all nursing units for which they are responsible, performing such functions as:

(1) Visiting each resident;

(2) Reviewing clinical records, medication orders, resident care plans, and staff assignments; and

(3) To the degree possible, accompanying physicians when visiting residents.

G. Program of Restorative Nursing Care. There shall be an active program of restorative nursing care aimed at assisting each resident to achieve and maintain the individual's highest level of independent function, including activities of daily living. This program shall include:

(1) Ambulation and range of motion;

(2) Maintaining good body alignment and proper positioning of bedfast residents;

(3) Encouraging and assisting residents to change positions at least every 2 hours to stimulate circulation and prevent pressure ulcers and deformities;

(4) Encouraging and assisting residents to keep active and out of bed for reasonable periods of time, within the limitations permitted by physicians' orders;

(5) Encouraging residents to engage in resident-chosen community and independent activities and achieve independence; and

(6) Assisting residents to adjust to their disabilities and ensuring availability and use of their prosthetic and assistive devices.

H. Coordination of Nursing and Dietetic Services. Nursing and dietetic services shall establish an effective policy to ensure that:

(1) Nursing service personnel are aware of the nutritional needs and food and fluid intake of residents;

(2) Nursing service personnel provide special meals and nourishment when required;

(3) Residents' food choices and preferences are honored as much as practical;

(4) Nursing service personnel promptly aid residents when necessary in eating;

(5) The dietetic service is informed of physicians' diet orders and of residents' nutrition-related issues; and

(6) Food and fluid intake of residents is observed, and deviations from normal are recorded and reported to the:

(a) Charge nurse;

(b) Physician; and

(c) Dietetic service.

I. In-Service Education Program.

(1) The director of nursing shall:

(a) Provide a continuing in-service education program for all nursing service personnel;

(b) Provide a thorough job orientation for new personnel; and

(c) Document the content of the continuing in-service education program and include the names and titles of participants.

(2) The director of nursing shall obtain approval from the Department.

J. Responsibility to Report Care that Is Considered Questionable.

(1) If a nurse questions the care provided to any resident or believes that appropriate consultation is needed and has not been obtained, the nurse shall inform the supervisor.

(2) If indicated, the supervisor shall refer the matter to the director of nursing.

(3) If warranted, the director of nursing shall report the matter to the medical director or principal physician.

.19 Nursing Services — Staffing.

A. Supervisory Personnel—Nursing Homes.

(1) Nursing homes shall provide at least the following supervisory personnel:

Residents	*Registered Nurses*
(a) 2—99	*One—full-time*
(b) 100—199	*Two—full-time*
(c) 200—299	*Three—full-time*
(d) 300—399	*Four—full-time*

(2) The director of nursing's time is included in §A(1) of this regulation.

B. Hours of Bedside Care — Nursing Home.

(1) A nursing home shall employ supervisory personnel and a sufficient number of support personnel to provide a minimum of 3 hours of bedside care per occupied bed per day, 7 days per week.

(2) Bedside hours include the care provided by:

(a) Registered nurses;

(b) Licensed practical nurses; and

(c) Support personnel.

(3) Only those hours which the director of nursing spends in bedside care may be counted in the 3-hour minimum requirement.

(4) The director of nursing's time counted in bedside care shall be documented.

C. Staffing in Nursing Home.

(1) A nursing home shall be staffed with at least one registered nurse, 24 hours per day and 7 days per week.

(2) Additional registered nurses, licensed practical nurses, and support personnel shall be employed to meet the needs of all the

residents admitted. The nursing home shall be staffed as referenced in §§A and B of this regulation.

D. Nursing Service Personnel on Duty. The ratio of nursing service personnel on duty providing bedside care to residents may not at any time be less than one to 15.

.20 Nursing Services — Director of Nursing.

A. Director of Nursing. The nursing home shall provide for an organized nursing service, under the direction of a full-time registered nurse.

B. Termination of Services of Director of Nursing.

(1) If the nursing home terminates the services of the director of nursing, the nursing home immediately shall notify the Department of the termination.

(2) The name and license number of the replacement director of nursing shall be supplied to the Department as soon as employment begins.

(3) A copy of the agreement between the nursing home and the replacement shall be sent to the Department.

C. Director of Nursing's Vacancy Exceeding 30 Days. If the position of director of nursing remains vacant for a period exceeding 30 days, the nursing home's license may be revoked unless the administrator and the governing body are able to demonstrate that they have made every effort to obtain a replacement.

D. Relief for Director of Nursing.

(1) When the director of nursing is absent, the individual shall designate an experienced, qualified registered nurse to direct the nursing service.

(2) In a nursing home in which the director of nursing serves as relief for the administrator, the director of nursing shall designate a specific registered nurse who shall be in charge of the nursing service while the director of nursing covers for the administrator.

E. Responsibilities of the Director of Nursing. The responsibilities of the director of nursing shall include:

(1) Assisting in the development and updating of statements of nursing philosophy and objectives to define the type of nursing care the nursing home shall provide;

(2) Preparation of written job descriptions for nursing service personnel;

(3) Planning to meet the total nursing needs of residents to be met and recommending the assignment of a sufficient number of supervisory and support personnel for each tour of duty;

(4) Development and maintenance of nursing service policies and procedures to implement the program of care;

(5) Participation in the coordination of resident services through appropriate staff committee meetings on issues relating to:

(a) Pharmacy;

(b) Infection control;

(c) Resident care policies;

(d) Quality assurance programs; and

(e) Departmental meetings;

(6) Cooperation with administration in planning the orientation program and the staff development program to upgrade the competency of personnel;

(7) Assurance that nursing personnel understand the philosophy and meet the objectives;

(8) Participation in planning and budgeting for nursing services;

(9) Establishment of a procedure to ensure that nursing service personnel, including private duty nurses, have valid and current Maryland licenses;

(10) Execution of resident care policies unless delegated to the principal physician or medical director;

(11) Participation in the selection of prospective admissions to ensure that the nursing home's staff is capable of meeting the needs of all residents admitted;

(12) Coordination of the interdisciplinary resident care management efforts; and

(13) Supervision of certified medicine aides to ensure that the aides act within the limitations and restrictions placed on them.

F. Delegation of Responsibilities. Responsibilities delegated to other staff besides the director of nursing shall have a clear delegation of authority.

G. Daily Rounds — Director of Nursing.

(1) Although daily rounds are primarily the responsibility of the charge nurse or nurses, the director or assistant director of nursing shall periodically make clinical rounds to nursing units, randomly reviewing clinical records, medication orders, resident care plans, and staff assignments and visiting residents.

(2) Upon request, the director or assistant director of nursing may accompany physicians visiting residents.

H. Director of Nursing's Continuing Education. The director of nursing shall assume responsibility for maintaining professional competence of staff through their participation in education programs.

[.13] .*21* Dietetic Services.

A. (text unchanged)

B. Supervision.

(1) In **[**facilities exceeding**]** *a nursing home with more than* 50 beds, overall supervisory responsibilities for the **[**dietetic**]** *food* service *department and food production* shall be assigned to a full-time qualified dietetic service supervisor. It shall be the responsibility of the supervisor to delegate relief duties to **[**a person**]** *an individual* qualified to serve as relief **[**(See Supportive Personnel, Regulation .07, of this chapter.)**]** *as stated in Regulation .14 of this chapter*.

(2) In **[**facilities**]** *a nursing home* with **[**26 — 50**]** *50 or fewer* beds, exceptions may be made by the Department to allow the supervisor to share cooking responsibilities with the full-time cook.

[(3) In facilities with 25 beds or fewer, responsibility may be assigned to the full-time cook.

(4) If a facility can demonstrate that because of the experience and training of its personnel and the physical layout and equipment, less supervisory personnel is required, the Department may modify the above requirements for supervision.**]**

C. Consultation.

(1) If the supervisor is not a *licensed registered* dietitian, the individual shall receive regularly scheduled consultation from a *licensed* registered dietitian or other qualified person. In all instances sufficient consultation shall be provided to fulfill all required responsibilities.

(2)—(3) (text unchanged)

D. Staffing.

(1) A sufficient number of food service personnel shall be employed to **[**carry out**]** *perform* efficiently the functions of the **[**dietetic**]** *food and nutrition* service and meet the dietary needs of the **[**patient**]** *residents*.

(2) Working hours shall be scheduled to ensure that the **[**dietetic**]** *nutritional* needs of the **[**patients**]** *residents* are met.

(3) Nursing, housekeeping, laundry, or other personnel may not be **[**utilized**]** *used* as **[**dietetic**]** *food service* staff. Exceptions **[**may**]**, *such as in a culture change setting, shall* be **[**made only upon**]** *based on* the written approval of the Department. The kitchen may not be used for any purpose other than the preparation of food.

E. Adequacy of Diet.

(1) The food and nutritional needs of **[**patients**]** *residents* shall be met in accordance with physicians' orders.

(2) To the extent medically possible, the **[**current**]** "Recommended Dietary Allowances*"* of the Food and Nutrition Board **[**of the**]**, *Commission on Life Sciences, and* National Research Council**[**, National Academy of Sciences"**]**, adjusted for age, sex, and activity, shall be observed. **[**Agency Note:**]**

(3) The "Diet Manual for Long-Term Care **[**Patients**]** *Residents*", as published by the Department, **[**which**]** *or any other similar reference material that* contains food allowances and guides for regular and therapeutic diets **[**may**]**, *shall* be used.

F. Therapeutic Diets. Therapeutic diets shall be planned, prepared, and served as prescribed by the attending physician:

(1) Therapeutic diets shall be planned by a *licensed* registered dietitian **[**or other qualified person**]**;

(2) Preparation and serving shall be supervised by a qualified dietetic supervisor; *and*

(3) (text unchanged)

G. Frequency and Quality of Meals.

(1) At least three meals or their equivalent shall be **[**served**]** *offered* daily, at regular times, with not more than 14-hour intervals between the substantial evening meal and breakfast.

(2) A substantial evening meal is an offering of three or more menu items at one time, one of which includes a high quality protein such as meat, fish, eggs, or cheese. This meal represents **[**no less than**]** *at least* 20 percent of the day's total nutritional requirements.

(3) To the extent medical orders permit, bedtime nourishments shall be offered routinely to all **[**patients**]** *residents.*

(4) If **[**the**]** *a* four or five meal a day plan is used, the meal pattern to provide this plan shall be approved by the Department.

H. Advance Planning and Posting of Menus.

(1) Residents shall be given the opportunity to participate in planning menus. Menus shall be written at least 1 week in advance.

(2) The current week's basic menu shall be posted in one or more easily accessible places in the **[**dietetic service**]** *food services* department and in the **[**patient area**]** *common areas*.

(3) Menus shall include alternatives of similar nutritive value that give residents the opportunity to choose meals that they prefer. The dietary preferences of a resident shall be ascertained, including preferences arising from a resident's religious, cultural, and ethnic heritage, and efforts shall be made to meet those preferences.

I.—J. (text unchanged)

K. Preparation of Food.

(1) Foods shall be prepared by methods that conserve nutritive value, flavor, and appearance, and shall be served at proper temperatures, in a form to meet individual needs.

(2) Standardized recipes adjusted to appropriate yield shall be followed. Standardized recipes are those recipes which have been tested by the **[**facility**]** *nursing home* or another source **[**which assure consistency in**]** *and that ensure consistent* quality and quantity.

L. Resident Directed Meal Pattern. If a resident-directed meal pattern is provided, the following is required:

(1) Counseling regarding the risks and benefits of a resident-selected diet which is documented within the medical record; and

(2) Approval of the pattern by both the resident's physician and a licensed registered dietitian.

[.14] .*22* Specialized Rehabilitative Services — Occupational Therapy Services, Physical Therapy Services, Speech Pathology and Audiology Services.

A. Rehabilitative Services—Admission Policies. In **[**those facilities**]** *a nursing home* which **[**do**]** *does* not accept **[**patients**]** *residents* in need of specialized rehabilitative services, the minimal acceptable restorative service shall be the restorative nursing care plan designed to maintain function or improve the **[**patient's**]** *resident's* ability to carry out **[**the**]** activities of daily living as set forth in Regulation **[**.12S**]** *.18G*, of this chapter**[**, Program of Restorative Nursing Care**]**.

B. Arrangements for Services.

(1) If a **[**facility's**]** *nursing home's* admission policies include the admission of **[**patients**]** *residents* requiring rehabilitative services, the **[**facility**]** *nursing home* shall provide, or arrange for under written agreement, specialized rehabilitative services by qualified personnel **[(]**, such as *a* physical therapist, speech-*language* pathologist and audiologist, and occupational therapist**[)]**.

(2) Initiation of services to meet the rehabilitative needs of the **[**patient**]** *resident* shall occur within 48 hours **[(]**, excluding Saturday **[**and**]**, Sunday **[)]**, *and State and federal holidays*, of the physician's order for the specialized service.

(3) The **[**patient**]** *resident* may not be accepted for admission if at least one service **[**could not**]** *to meet the rehabilitative needs of the resident cannot* be initiated within the 48-hour period **[(]**, excluding Saturday, Sunday, *and State and federal holidays***[)]**.

C. Policies and Procedures.

(1) Written administrative and **[**patient**]** *resident* care policies and procedures shall be developed for rehabilitative services by appropriate rehabilitation team members and representatives of the medical, administrative, and nursing staff.

(2) Policies shall provide for the coordination of rehabilitative services and the rehabilitative aspects of nursing.

(3) The nursing home shall make its administrative and resident care policies available for review by residents and the resident's representative.

D. (text unchanged)

E. **[**Physicians'**]** *Physician's* Orders.

(1) Specialized rehabilitative services shall be provided only **[**upon**]** *on* written orders of the attending physician.

(2) Orders shall include modalities to be used, frequency, and anticipated goals**[**,**]** and shall be made a part of the **[**patient**]** *resident* care plan.

(3) **[**Unless medically contraindicated, the**]** *The* physician shall **[**discuss**]** *review* with the **[**patient**]** *resident* or **[**his**]** *the* family or **[**sponsor**]** *resident's representative* the goals and the treatment program. The frequency of communications between the physician and the rehabilitation team members shall **[**be governed by the status and**]** *depend on* changes in the **[**patient**]** *resident* and **[**his**]** *the resident's* medical status.

F. Progress Notes.

(1) Within 2 weeks of **[**the**]** referral to specialized rehabilitative services, the rehabilitation team members shall provide **[**to**]** the attending physician *with* a written report of the evaluation, including goals and progress of the **[**patient**]** *resident.*

(2) Progress notes *related to rehabilitative services* shall be written at least every 2 weeks.

G. Reevaluation of **[**Patient's**]** *Resident's* Progress.

(1) The physician and the rehabilitation team members shall reevaluate the **[**patient's**]** *resident's* progress as necessary, but at least every 30 days.

(2) The physician may document on the record that **[**his**]** *the* reevaluation may be less frequent but in no case may **[**his**]** *the* reevaluation exceed 60 days. **[**Appropriate action shall be taken.**]**

H. **[**Patient's**]** *Resident's* Record.

(1) The physician's orders, the initial evaluations, the plan of rehabilitative care, goals, services rendered, evaluations of progress, and other pertinent information shall be **[**recorded**]***:*

(a) Recorded in the **[**patient's**]** *resident's* medical record**[**,**]***;* and **[**shall be dated**]**

(b) Dated and signed by the **[**physician**]***:*

(i) Physician ordering the service*;* and **[**the person or persons**]**

(ii) Those disciplines who provided the service.

(2) The record and progress notes concerning the **[**patient**]** *resident* shall reflect at all times the most recent and current status of the **[**patient**]** *resident*, including current short-term and long-term goals.

I.—J. (text unchanged)

[.14-1] *.23* Special Care Units — General.

A. A **[**facility**]** *nursing home* which holds a current and valid operating license may establish special care units with the approval of the*:*

(1) Office of **[**Licensing and Certification Programs and the Department's Division of Engineering and Maintenance**]** *Health Care Quality; and*

(2) Department's Office of Capital Planning, Budgeting and Engineering Services.

B. (text unchanged)

C. The **[**facility**]** *nursing home* shall obtain Departmental approval of the following pertaining to the special care unit:

(1) (text unchanged)

(2) An organization chart of the special care unit and its **[**inter-relatedness**]** *relationship* to the rest of the nursing **[**facility**]** *home*;

(3)—(4) (text unchanged)

(5) A quality assurance plan which includes:

(a) (text unchanged)

(b) Identification of the **[**most important**]** *predominant* aspects of care provided;

(c)—(i) (text unchanged)

(6) Policies and procedures, including:

(a) (text unchanged)

(b) The administration of **[**medicines unique to the needs of**]** *medications that are relevant to* the special care residents;

(c)—(e) (text unchanged)

(7)—(8) (text unchanged)

(9) An inventory of **[**the**]** *any* specialized equipment to be housed **[**in**]** *on* the unit to provide services in the special care unit.

D.—E. (text unchanged)

F. Staffing. The **[**facility**]** *nursing home* shall ensure that each unit is sufficiently staffed with qualified personnel to provide appropriate treatment and **[**special**]** *meet the* care needs of the residents.

G. (text unchanged)

H. Design.

(1) A special care unit shall meet the general construction requirements of Regulations **[**.06, and .26**]** *.08, .42, and .41* of this chapter, and the requirements in this regulation.

(2) The **[**facility**]** *nursing home* shall ensure that floor space allocated to each bed meets minimum requirements listed in Regulation **[**.28C**]** *.49* of this chapter, and is sufficient to accommodate the special equipment necessary to meet the needs of residents.

I.—J. (text unchanged)

[.14-2] *.24* Special Care Units — Respiratory Care Unit.

A. A respiratory care unit shall meet the:

(1) General requirements established for all special care units as outlined in Regulation **[**.14-1**]** *.23* of this chapter; and

(2) (text unchanged)

B. The **[**facility**]** *nursing home* shall submit to the Department and obtain approval of the following:

(1) All documents required in Regulation **[**.14-1**]** *.23* of this chapter;

(2) Policies and procedures for all aspects of care as outlined in Regulation **[**.14-1C(6)**]** *.23* of this chapter, and the following:

(a) Qualifications, duties, and responsibilities of staff, including the staff who are permitted to perform the following procedures:

(i)—(iii) (text unchanged)

(iv) Therapeutic *chest* percussion and vibration;

(v)—(viii) (text unchanged)

(b)—(c) (text unchanged)

C. Physician Coordinator. If the **[**facility's**]** *nursing home's* medical director does not have special training and experience in diagnosing, treating, and assessing respiratory problems, the **[**facility**]** *nursing home* shall **[**hire**]** *employ or contract with* a **[**physician**]** *Board-certified pulmonologist* who has the special knowledge and experience to provide:

(1)—(2) (text unchanged)

D. Staffing. The **[**facility**]** *nursing home* shall ensure that:

(1) The nurse manager or the director of nursing of vent units has a background in ventilator care or is qualified in ventilator management;

[(1)**]** *(2)* Respiratory care services are provided by a sufficient number of qualified personnel; *and*

[(2)**]** *(3)* Respiratory care personnel provide respiratory care services commensurate with their documented training, experience, and competence**[**; and**]**.

[(3) As appropriate, respiratory care personnel are competent in the following:

(a) The fundamentals of cardiopulmonary physiology and of fluids and electrolytes;

(b) The recognition, interpretation, and recording of signs and symptoms of respiratory dysfunction and medication side effects, particularly those that require notification of a physician;

(c) The initiation and maintenance of cardiopulmonary resuscitation and other related life-support procedures;

(d) The mechanics of ventilation and ventilator function;

(e) The principles of airway maintenance, including endotracheal and tracheostomy care;

(f) The effective and safe use of equipment for administering oxygen and other therapeutic gases and for providing humidification, nebulization, and medication;

(g) Pulmonary function testing and blood gas analysis, when these procedures are performed within the respiratory care unit;

(h) Methods that assist in the removal of secretions from the bronchial tree, such as hydration, breathing and coughing exercises, postural drainage, therapeutic percussion and vibration, and mechanical clearing of the airway through proper suctioning technique;

(i) Procedures and observations to be followed during and after extubation; and

(j) Recognition of and attention to the psychosocial needs of residents and their families.**]**

E. Design.

(1) Emergency Power. The **[**facility**]** *nursing home* unit shall meet all applicable requirements in Regulation **[**.26F**]** *.46* of this chapter for emergency electrical power, including the provision of:

(a)—(b) (text unchanged)

(2) (text unchanged)

(3) Piped Medical Gas Systems.

(a) To service the medical gas systems, a vendor or staff shall be trained and accredited in accordance with NFPA 99 Health Care Facilities Code.

(b) The vendor or staff may provide the following services:

(i) Installation;

(ii) Inspection; or

(iii) Testing.

(c) The nursing home shall ensure that all piped medical gas systems adhere to the following standards:

(i) NFPA 99 Health Care Facilities Code; and

(ii) NFPA 101 Life Safety Code.

F. The **[**facility**]** *nursing home* shall provide pulmonary function testing**[**,**]** and blood gas or pulse analysis capability **[**onsite**]** *on-site* or

through contractual arrangements with providers who meet applicable State and federal laws and regulations.

G. (text unchanged)

.25 Special Care Units — Dementia Care.

A. A dementia care unit shall meet the:

(1) General requirements established for all special care units as outlined in Regulation .24 of this chapter; and

(2) Requirements of this regulation.

B. Dementia Unit Disclosure.

(1) The disclosure shall be made to the Department and to any person seeking placement or receiving care in a Dementia special care unit or program of a nursing home.

(2) The information disclosed shall explain the additional care provided in each of the following areas:

(a) The Dementia special care unit's written statement of its overall philosophy and mission, which reflects the needs of residents with dementia;

(b) The process and criteria for placement, transfer, or discharge from the unit;

(c) The process used for individualized assessment and establishing the resident-centered plan of care and its implementation, including the method by which the plan of care evolves and is responsive to changes in the individual's condition;

(d) Staff training and continuing education practices;

(e) The physical environment and design features appropriate to support the functioning of cognitively impaired adult residents;

(f) The frequency and types of resident activities;

(g) The involvement of families and family support programs; and

(h) The cost of care and any additional fees.

C. Secured units shall meet the established standards applicable to nursing home set forth in NFPA 99 Health Care Facilities Code and NFPA 101 Life Safety Code.

.26 Pharmaceutical Services.

A. Definition. In this regulation, the term "committee" means the pharmaceutical services committee.

B. Duties of the Nursing Home.

(1) The nursing home shall provide appropriate methods and procedures for administering drugs and biologicals to the nursing home's residents.

(2) The nursing home shall provide pharmaceutical services in accordance with accepted professional standards and related federal, State, and local laws.

C. Duties of the Pharmaceutical Services Committee.

(1) A pharmaceutical services committee, or its equivalent, shall develop written policies and procedures for safe and effective drug therapy, distribution, control, and use.

(2) The composition of the committee shall include at least:

(a) The licensed pharmacist;

(b) The director of nursing;

(c) The consultant dietitian-nutritionist;

(d) One physician; and

(e) The administrator.

(3) The committee shall meet at least quarterly to establish policies and procedures.

(4) There shall be an agenda to guide meeting participants.

(5) All members of the committee shall review revisions of policies and procedures before implementing any changes.

(6) The pharmaceutical services committee may not develop policies and procedures that prohibit or restrict a resident from receiving medications from the pharmacy of the resident's choice.

(7) In cases where the cost of any medication obtained from the pharmacy selected by the resident exceeds the cost of the same or equivalent medication available through a pharmacy that the nursing home has contracted with to provide pharmaceutical services, the resident shall be responsible for the additional amount.

(8) The committee may not require the pharmacy to provide drugs by way of a specific drug distribution system such as unit dose or use of a particular packaging system.

(9) The committee shall establish the contents of sealed emergency drug kits.

(10) The committee shall oversee the accuracy and adequacy of pharmaceutical services to the nursing home.

(11) The committee shall make recommendations for improvements to pharmaceutical services.

(12) The committee shall document its actions and recommendations.

D. Labeling.

(1) Medications shall be accurately and plainly labeled. Except for those over-the-counter medications that the Department may list as suitable for purchasing in bulk and dispensing as needed, the labels for all medications shall bear at least:

(a) The resident's full name;

(b) The name of the drug;

(c) Strength;

(d) Original filling date and date refilled, if applicable;

(e) Name of authorized prescriber;

(f) Expiration date of medication (month, year);

(g) Any special handling and storage instructions;

(h) Name and address of dispensing pharmacy;

(i) Prescription number;

(j) Number of tablets or capsules; and

(k) Accessory federal labels.

(2) A nurse may not package, repackage, bottle, or label any medication, in whole or in part, or alter any labeled medication in any way.

E. Storage.

(1) The nursing home shall store medications in a locked medication storage area that:

(a) Is well lighted;

(b) Is located where personnel preparing drugs for administration will not be interrupted;

(c) Is spacious enough to allow separate storage of external and internal medications;

(d) Is kept in a clean, orderly and uncluttered manner; and

(e) Contains a refrigerator to be used for medication storage only.

(2) The nursing home shall keep poisons and medications marked "for external use only" separate from general medications and Schedule II drugs.

F. Schedule II—IV Drugs.

(1) Schedule II drugs shall be kept in separately locked, securely fixed boxes or drawers in the storage area, under two locks. The lock on the door of a medication room shall be counted as one of the two locks.

(2) A nurse and a second staff member who is a nurse or an administrator may destroy controlled dangerous substances in Schedules II—V on the premises of the nursing home.

(3) If a controlled dangerous substance is destroyed on the nursing home premises in accordance with §F(2) of this regulation:

(a) A record of the disposal, in addition to any other required records, shall be maintained in the nursing home; and

(b) A copy of the record of disposal shall be forwarded to the Office of Controlled Substances Administration.

(4) A nursing home, whether or not operating a licensed pharmacy, shall maintain a signed record of a Schedule II count at each change of shift.

(5) A nursing home that administers Schedule II drugs shall maintain a drug record that documents:

(a) The name of the resident;

(b) The date, time, kind, dosage, and method of administration of all Schedule II drugs; and

(c) The name of the authorized prescriber who prescribed the medication.

.27 Pharmaceutical Management.

A. Administration Procedures.

(1) Medications, legend and non-legend, administered to residents shall be ordered in writing by the resident's physician.

(2) Medications shall be administered by:

(a) Appropriately licensed personnel in accordance with laws and regulations governing these acts; or

(b) Certified graduates of a State-approved medicine aide course.

(3) The individual who prepares medications shall give and record them.

(4) Medicine may not be returned to the container. If the resident refuses the drug or if a mistake occurs:

(a) The drug shall be discarded; and

(b) The occurrence shall be documented in the resident's chart.

(5) Before invoking stop order policies, the resident's attending physician shall be contacted for instructions so that continuity of the resident's therapeutic regimen is not interrupted. If the attending physician cannot be reached, the medical director shall be contacted for instructions.

B. Pharmaceutical Services.

(1) The nursing home shall arrange for pharmacies that provide medications for residents in the nursing home. The pharmacy shall agree in writing to maintain at the pharmacy a resident profile record system for each resident in the nursing home for whom prescriptions are dispensed.

(2) If the nursing home does not employ a licensed pharmacist, the nursing home shall arrange by written contract for a pharmacy to provide consultation on administering the pharmacy services in accordance with the policies and procedures established by the pharmaceutical services committee. Pharmaceutical services shall be under the general supervision of a licensed pharmacist who shall:

(a) With the advice of the pharmaceutical services committee, be responsible for developing, coordinating, and supervising pharmaceutical services and provide in-service training at least twice yearly;

(b) Visit the nursing home frequently enough to assure that policies and procedures established by the pharmaceutical services committee are enforced;

(c) Notify the attending physician of any potential drug problems found during the drug regimen review; and

(d) At least quarterly, submit a report to the pharmaceutical services committee on the status of the nursing home's pharmaceutical services and staff adherence to policies and procedures.

C. Resident Designated Pharmacy.

(1) The nursing home shall inform a resident's designated pharmacy about the nursing home's written policies concerning the provision of drugs.

(2) To provide services to the resident, a designated pharmacy shall agree to comply with the nursing home's policies.

(3) If the pharmacy fails to comply with the policies, a representative of the nursing home shall discuss the situation with the pharmacy and the resident, and if the pharmacy subsequently refuses to follow the policies, the resident shall select another pharmacy that agrees to comply.

(4) The pharmacy shall have access to a copy of the written pharmaceutical care policies.

(5) The pharmacy shall be responsible for delivering medications to the nursing home. Members of the resident's family or the responsible party for the resident may not deliver medications to the resident or to the nursing home.

D. Medication Return and Disposal.

(1) The nursing home shall return all prescribed medications, for residents who have been discharged or otherwise departed, to the pharmacy in accordance with the nursing home's policy.

(2) The nursing home shall destroy adulterated, deteriorated, or outdated medications in the following manner:

(a) Disposal shall occur in the presence of two witnesses who are authorized by the nursing home; and

(b) The witnesses shall document the disposal in the resident's chart.

(3) The nursing home shall only release prescribed medications to residents at the time of discharge based on the written authorization of the resident's authorized prescriber.

(4) Each month, the nursing home shall perform a drug regimen review on each resident's records at the nursing home and document the findings in the resident's medical record.

E. Administration of Medications for Leave of Absence of 24 Hours or Less.

(1) A nursing home shall develop policies and procedures to ensure that a resident or, if the resident lacks the capacity, the resident's family or other individual accompanying the resident is informed, both orally and in writing, on how the resident shall safely and correctly take the resident's medications during a short-term leave of absence of 24 hours or less.

(2) In accordance with a nursing home-developed procedure, a licensed nurse shall prepare medications to be sent with a resident during a short-term leave of absence of 24 hours or less.

[.16] .*28* Laboratory and Radiologic Services.

A.—C. (text unchanged)

D. Reports of Findings. The *nursing home shall notify the* attending physician **[**shall be notified**]** promptly of the findings. **[**Signed**]** *The nursing home shall file signed* and dated reports of diagnostic services **[**shall be filed with**]** *in* the **[**patient's**]** *resident's* medical record.

E. Transportation. The **[**facility**]** *nursing home* shall assist the **[**patient**]** *resident*, if necessary, in arranging **[**for**]** transportation to and from the source of service.

F.—G. (text unchanged)

H. Transfusion Services. If the **[**facility does not provide its own facilities but does provide**]** *nursing home only provides* transfusion services **[**alone**]**, it shall meet at least the requirements **[**in Regulation.09F—H**]** *established* under COMAR 10.10.02.

[.17] .*29* Dental Services.

A. Provision for Dental Care. **[**Patients**]** *Residents* shall be assisted to obtain routine and emergency dental care.

B. Advisory Dentist. There shall be an advisory dentist**[**, licensed to practice in the State,**]** who shall:

(1) Recommend oral hygiene policies and practices for the care of the **[**patients**]** *residents* and for arrangements for emergency treatment;

(2) (text unchanged)

(3) Provide direction for in-service training to give the nursing staff an understanding of **[**patients'**]** *residents'* dental problems.

C. Assistance by Nursing Personnel. Nursing personnel shall assist the **[**patient**]** *resident* in carrying out routine dental hygiene.

D. (text unchanged)

E. Transportation. Arrangements shall be made, when necessary, for the **[**patient**]** *resident* to be transported to the dentist's office.

[.18] .*30* Social Work Services.

A. Services Provided. The **[**facility**]** *nursing home* shall provide or make arrangements for services to identify and meet the **[**patient's**]** *resident's* medically related *physical*, social, and **[**emotional**]** *behavioral health* needs.

[B. Designated Staff Responsibility. A member of the facility's staff shall be assigned responsibility for social services. If the designee is not a certified social worker, the facility shall effect an agreement with a qualified social work consultant. The agreement shall provide for sufficient hours of consultation to assure that the staff's services meet the medically related social and emotional needs of the patients.**]**

B. Social Work Staff Responsibility.

(1) Social services responsibilities in the nursing home shall be assigned to a:

(a) Licensed bachelor social worker;

(b) Licensed graduate social worker;

(c) Licensed certified social worker; or

(d) Licensed certified social worker–clinical.

(2) If the social worker is not a licensed certified social worker (LCSW) or a licensed certified social worker-clinical (LCSW-C), the nursing home shall arrange for an LCSW or LCSW-C to provide sufficient hours of supervision.

(3) As of January 1, 2021, a license is required for an employee to provide social services except if:

(a) On the effective date of these regulations, the employee was assigned responsibility for social services; and

(b) The nursing home has an agreement with a qualified social work consultant that provides for sufficient hours of supervision to assure that the employee's services meet the medically related physical, social, and behavioral health needs of the residents.

C. Social History. **[**The written social history**]** *Within 7 days after admission, the social worker* shall **[**be initiated within 7 days after admission. The**]** *initiate a written social* history, *which* shall be as complete as possible and shall include:

(1) Social data about personal and family background to provide understanding of the **[**patient**]** *resident* and how **[**he**]** *the resident* functions; **[**and**]**

(2) Information regarding current personal and family circumstances and attitudes as they relate to **[**patient's**]** *the resident's* illness and care**[**.**]***; and*

(3) Information regarding the resident's and family's plans regarding discharge.

D. Records. Records shall include**[**:

(1) Social history; and

(2) Recommendations made by the social work consultant, if applicable**]** *the information required in §C of this regulation.*

E. Space. **[**Facilities**]** *A nursing home* shall provide:

(1) Space for social work personnel, accessible to **[**patients**]** *residents*, medical, and other staff; *and*

(2) (text unchanged)

[.19] .*31* [Patient] *Resident* Activities.

A. Activities Program. The **[**facility**]** *nursing home* shall provide **[**for a**]**:

(1) A program of structured and unstructured activities**[**,**]***; and*

(2) Activities designed and monitored appropriately to meet the day-to-day needs and interests of each **[**patient, to**]** *resident and* encourage **[**self-care, resumption of normal activities, and maintenance**]***:*

(a) Self-care;

(b) Engagement in resident-selected activities; and

(c) Maintenance of an **[**optional**]** *optimal* level of psychosocial functioning.

B. Staffing. A staff member *who is* qualified by experience or training shall be appointed to be responsible for the activities program. If the designee is not a qualified **[**patient**]** *resident* activities coordinator as defined in Regulation **[**.01Y,**]** *.01* of this chapter, the Department may approve the designee based on the person's education, performance, and experience.

C. (text unchanged)

D. Restrictions on Participation Documented on Chart. The physician shall **[**note on**]** *document in* the **[**patient's**]** *resident's* chart any restrictions applicable to the **[**patient's**]** *resident's* participation in the activities program.

E. Objective. The activities shall be designed to promote the general health**[**,**]** *and* physical, social, and mental well-being of the **[**patients**]** *residents*.

F. Space, Supplies. **[**Adequate**]** *The nursing home shall provide adequate* space and a variety of supplies and equipment **[**shall be provided by the facility**]** to satisfy the appropriate individual activity needs of **[**patients**]** *residents*.

[.20] .*32* Clinical Records.

A. Records for all **[**Patients**]** *Residents*. Records for all **[**patients**]** *residents* shall be maintained in accordance with accepted professional standards and practices.

B. Contents of Record. Contents of record shall **[**be**]** *include*:

(1) Identification and summary sheet or sheets including **[**patient's name, social security number, armed forces status, citizenship, marital status, age, sex, home address, and religion**]***:*

(a) Resident's name;

(b) Social Security number;

(c) Armed forces status;

(d) Citizenship;

(e) Marital status;

(f) Age;

(g) Sex;

(h) Home address; and

(i) Religion;

(2) Names, addresses, and telephone numbers of referral agencies **[(]**, including **[**hospital from which admitted), personal physician, dentist, parents' names or next of kin, or authorized**]***:*

(a) Hospital from which admitted;

(b) Personal physician;

(c) Dentist;

(d) Parents' names or next of kin; and

(e) Resident's representative;

(3) **[**Documented evidence of assessment of the needs**]** *Documentation of the:*

(a) Needs of the **[**patient**]** *resident***[**, of establishment**]***;*

(b) Establishment of an appropriate **[**plan of**]** initial and ongoing treatment **[**, of the care**]** *plan; and*

(c) Care and services provided;

(4) Authentication of hospital diagnoses **[(]**, *based on a* **[**discharge**]***:*

(a) Discharge summary**[**, report**]***;*

(b) Report from *the* **[**patient's**]** *resident's* attending physician**[**, or transfer**]***; or*

(c) Transfer form**[)]**;

(5) Consent forms when required, **[(]**such as **[**consent for administering**]***:*

(a) Administration of investigational drugs**[**, for burial**]***;*

(b) Burial arrangements made in advance**[**, for release**]***;*

(c) Release of medical record information**[**, for handling**]***; and*

(d) Handling of finances**[)]**;

(6) Medical and social history of *the* **[**patient**]** *resident*;

(7)—(12) (text unchanged)

(13) **[**Discipline assessment**]** *Assessments done by various disciplines*; and

(14) (text unchanged)

C. Staffing. An employee of the **[**facility**]** *nursing home* shall be designated as the person responsible for the overall supervision of the medical **[**record**]** *records* service. There shall be sufficient **[**supportive**]** *support* staff to accomplish all medical **[**record**]** *records* functions.

D. Consultation. If the medical records supervisor is not a qualified medical record practitioner, the Department may require that the supervisor receive consultation from a *qualified* person **[**so qualified**]**.

E. Completion of Records and Centralization of Reports.

(1) Current medical records and those of discharged **[**patients**]** *residents* shall be completed promptly.

(2) All clinical information pertaining to a **[**patient's**]** *resident's* stay shall be centralized in the **[**patient's**]** *resident's* medical record.

F. Retention and Preservation of Records.

(1) Medical records shall be retained for a period of **[**not less than**]** *at least* 5 years from the date of discharge or, in the case of a minor, 3 years after the **[**patient**]** *resident* becomes of age or 5 years, whichever is longer.

(2) The nursing home shall maintain and dispose of a client's medical records in accordance with Health-General Article, Title 4, Subtitles 3 and 4, Annotated Code of Maryland.

G. Current Records—Location and Facilities. The **[**facility**]** *nursing home* shall maintain adequate space and equipment, conveniently located, to provide for efficient processing **[**of medical records (**]**, reviewing, indexing, filing, and prompt retrieval**[**)**]** *of medical records.*

H. Closed or Inactive Records. Closed or inactive records shall be filed and stored in a safe place **[**(**]**, free from fire hazards**[**)**]**, which provides for confidentiality and, when necessary, retrieval.

I. Electronic Health Records.

(1) A nursing home that uses electronic health records exclusively or along with a paper based medical record shall comply with this chapter and all applicable State and federal laws, including laws governing privacy and security of records.

(2) Staff and nursing home-approved practitioners shall be trained in the use of electronic health records.

(3) A nursing home that uses electronic health records shall:

(a) Ensure access to residents as specified in COMAR 10.07.09.08C(13) and (14); and

(b) On request, provide the resident with copies of the resident's medical records at a reasonable cost and in the resident's preferred format.

(4) A nursing home shall provide full access to electronic health records in accordance with all applicable laws and regulations to:

(a) Representatives of the Department as set forth in COMAR 10.07.02.07;

(b) An ombudsman as set forth in Human Services Article, §10-905, Annotated Code of Maryland; and

(c) Other legal representatives as set forth in COMAR 10.07.09.08 and authorized by law to obtain access.

(5) A nursing home shall develop a system to ensure that nursing home staff have access to residents' health records in the event of a failure of the nursing home's electronic medical record system.

[.21] .*33* Infection *Prevention and* Control Program.

A. Infection *Prevention and* Control Program. The **[**facility**]** *nursing home* shall establish, *implement, and* maintain**[**, and implement**]** an effective infection *prevention and* control program that:

(1)—(2) (text unchanged)

(3) Maintains a record of infections in the **[**facility,**]** *nursing home* and the corrective actions that were taken related to infections; and

(4) Monitors and evaluates the:

(a) Effectiveness of the infection *prevention and* control program by surveying rates of infection, especially of **[**those residents who have an especially high risk of**]** infection *rates that are significantly higher than usual*; and

(b) Effective implementation of the policies and procedures that are outlined in **[**§F(1)**]** *§E(1)* of this regulation.

B. *Infection Preventionist*.

(1) The **[**facility**]** *nursing home* shall assign at least one **[**individual with education and**]** *infection preventionist that has attended* training in infection surveillance, prevention, and control to **[**be responsible for approving actions to prevent and control infections.**]** *actively manage the nursing home's infection prevention and control program.*

(2) The infection preventionist shall attend or have attended a basic infection prevention and control training course that is approved by the:

(a) Office of Health Care Quality; and

(b) Office of Infectious Disease Epidemiology and Outbreak Response for the Department.

(3) This position shall be staffed at a ratio of 1.0 Full Time Equivalents for every 200 beds.

[C. Effective January 1, 2005, the facility's infection control coordinator shall attend a basic infection control training course that is approved by the Office of Health Care Quality and the Office of Epidemiology and Disease Control Program for the Department.**]**

[D.**]** *C.* The **[**facility**]** *nursing home* shall have mechanisms for communicating the results of infection control activities to employees**[**,**]** and *to* the individual or individuals who are responsible for improving the **[**facility's**]** *nursing home's* performance.

[E.**]** *D.* The **[**facility's**]** *nursing home's* communication mechanism shall ensure that the administrator, director of nursing, and the medical director receive and address reports of infection *prevention and* control findings and recommendations in a timely manner.

[F.**]** *E.* Infection *Prevention and* Control Policies and Procedures.

(1) The infection *prevention and* control program shall establish written policies and procedures to *identify,* investigate, control, and prevent infections in the **[**facility**]** *nursing home*, including policies and procedures to:

(a) Identify **[**facility**]** *health care*-associated infections and communicable diseases in accordance with COMAR 10.06.01;

*(*b) Report occurrences of certain **[**communicable**]** *infectious* diseases and outbreaks of **[**communicable**]** *infectious* diseases to the local health department in *a timely manner in* accordance with COMAR 10.06.01 and Health-General Article, §18-202, Annotated Code of Maryland;

(c) Institute appropriate **[**infection control steps**]** *control measures* when an infection *or outbreak of infections* is suspected or identified in order to control infection and prevent spread to other residents;

(d) Perform surveillance *for health care-associated and community-associated infections* of residents and employees **[**at appropriate intervals**]** *using definitions and methods approved by the infection prevention and control oversight committee* to monitor and investigate causes of infection, **[**facility-associated and community acquired,**]** and the manner in which **[**it was**]** *the infection is* spread*;*

(e) Train employees about infection *prevention and* control, **[**and hygiene**]** including*:*

(i) **[**Hand**]** *Standard precautions and* hand hygiene;

(ii) Respiratory **[**protection**]** *hygiene and cough etiquette*;

(iii) (text unchanged)

[(iv) Needles, sharps, or both;**]**

(iv) Safe handling of needles and sharps and safe injection techniques;

(v) Special medical waste handling and disposal; **[**and**]**

(vi) Appropriate use of antiseptics and disinfectants**[.]** *;*

(vii) Blood borne pathogens, including hepatitis B and C and human immunodeficiency virus;

(viii) Tuberculosis exposure; and

(ix) Proper use and wearing of personal protective equipment, such as gloves, gowns, and eye protection;

(f) Train and **[**monitor**]** *perform compliance monitoring of* employee application of infection *prevention and* control **[**and aseptic techniques; and**]** *activities, such as hand hygiene and personal protective equipment used for isolation precautions;*

(g) Review the infection *prevention and* control program *elements* at least annually and revise as necessary**[.]***; and*

(h) Obtain annual approval of infection prevention and control program activities by the infection prevention and control oversight committee.

(2) The **[**facility**]** *nursing home* shall provide information concerning the **[**communicable**]** *infectious* disease status of any resident being transferred or discharged to any other **[**facility**]** *nursing home*, including a funeral home.

(3) The **[**facility**]** *nursing home* shall obtain information concerning the **[**communicable**]** *infectious* disease status of any resident being transferred or **[**discharged**]** *admitted* to the **[**facility**]** *nursing home from elsewhere*.

[G.**]** *F.* Preventing Spread of Infection.

(1) (text unchanged)

(2) The **[**facility**]** *nursing home* shall take appropriate infection *prevention and* control **[**steps**]** *measures* to prevent the transmission of **[**a communicable**]** *an infectious* disease to residents, employees, and visitors as outlined in the following guidelines:

(a) *2007* Guideline for Isolation Precautions: *Preventing Transmission of Infectious Agents* in **[**Hospitals**]** *Healthcare Settings; and*

(b) (text unchanged)

(3) The **[**facility**]** *nursing home* shall prohibit employees with **[**a communicable**]** *an infectious* disease or with infected skin lesions from *having* direct contact with residents or their food if direct contact could transmit the disease.

(4) The **[**facility**]** *nursing home* shall require employees to perform hand hygiene *before and* after each direct resident contact for which hand hygiene is indicated by accepted professional practice.

(5) (text unchanged)

[.21-1] *.34* Employee Health Program.

A. The **[**facility's**]** *nursing home's* infection *prevention and* control program shall monitor the relevant health status of all employees, as it relates to infection *prevention and* control. **[**The following guidelines shall aid the facility**]** *The nursing home shall refer to the following guidelines* in implementing its employee health program:

(1) (text unchanged)

(2) Immunization of **[**Health-Care Workers**]** *Health Care Personnel*: Recommendations of the Advisory Committee on Immunization Practices (ACIP) and the Hospital Infection Control Practices Advisory Committee (HICPAC); and

(3) (text unchanged)

B. Tuberculosis *Exposure* Control.

(1) The infection control program shall include a risk assessment program, including monitoring for tuberculosis infection for employees that is in accordance with the **[**following guidelines:**]**

[(a)**]** Guidelines for Preventing the Transmission of Mycobacterium **[**Tuberculosis**]** tuberculosis in Health-Care **[**Facilities; and**]** *Settings.*

[(b) Guideline for Infection Control in Health Care Personnel.**]**

(2) The **[**facility**]** *nursing home* shall ensure that **[**all**]** employees **[**who**]** may *not* provide services that require direct access to residents **[**may not provide such services**]** without documented evidence that the employee is free from *communicable* tuberculosis **[**in a communicable form**]**.

[(3) The facility shall monitor the purified protein derivative (PPD) status of employees at any time that symptoms suggestive of tuberculosis develop, and periodically, consistent with the tuberculosis control plan. All employees shall be assessed for risk of tuberculosis following guidelines referenced in §B of this regulation.**]**

(3) A new employee shall be assessed for risk of tuberculosis through:

(a) A two-step tuberculin skin testing at the time of hire following guidelines referenced in the Guidelines for Preventing the Transmission of Mycobacterium tuberculosis in Health-Care Settings; or

(b) An interferon-gamma release assay (IGRA) blood test.

(4) The **[**facility**]** *nursing home* shall maintain written documentation of the following:

(a) Results of tuberculin skin tests, recorded in millimeters of induration with dates of administration, dates of reading, results of test, and the manufacturer and lot number of the purified protein derivative (PPD) solution used; *and*

[(b) Results of chest x-rays required in this regulation; and

(c) Documentation of any**]**

(b) Any previous tuberculin skin tests, chest x-ray, *or blood test results*, chemotherapy, and chemoprophylaxis**[**, which**]** *that* are the basis for **[**the certification**]** *certifying* that the individual is free from tuberculosis in a communicable form.

C. Measles, Mumps, Rubella, and Chickenpox.

[(5)**]** *(1)* The **[**facility**]** *nursing home* shall screen **[**all new employees for immunity to common childhood infections such as mumps, rubella, measles, and chicken pox (varicella), through the use of pre-employment questionnaires and, if appropriate, serologic testing for presence of antibodies of these diseases, to prevent adult exposure of new employees to residents with communicable forms of such disease organisms.**]** *and maintain written documentation of each employee's proof of immunity to common childhood infections including measles, mumps, rubella, and chickenpox (varicella). Proof of immunity to these diseases shall be verified by:*

(a) Documented evidence of administration of vaccine; or

(b) Laboratory evidence of immunity.

(2) The nursing home shall require that employees who are not immune to measles, mumps, rubella, and varicella receive immunization for measles, mumps, rubella, or varicella, unless medically contraindicated or against the employee's religious beliefs. If the employee refuses to be immunized, the nursing home shall document the refusal and the reason for it.

[(6)**]** *D. Hepatitis B.* The **[**facility**]** *nursing home* shall **[**request**]** *require* that all new employees receive immunization for Hepatitis B**[**. The employee may refuse to be immunized if medically contraindicated, against the employee's religious beliefs, or after being fully informed**]**, *unless medically contraindicated, against the employee's religious beliefs, or after being fully informed of the health risks of not being immunized. The nursing home shall inform all new and current employees* of the health risks of not being immunized. If the employee refuses to be immunized, the **[**facility**]** *nursing home* shall document the refusal and the reason for the refusal.

[(7) The facility shall request that each employee receive immunization from influenza virus in accordance with Health-General Article, §18-404, Annotated Code of Maryland. The facility shall make information available to all employees concerning other

conditions in which pneumococcal vaccine may be of benefit for certain other underlying medical conditions. The facility shall document refusals and shall conduct surveillance of nonimmune employees during the recognized influenza season.**]**

[(8)**]** *E. Influenza.*

(1) The **[**facility**]** *nursing home* shall **[**inquire about a history of varicella for each new employee. If the employee's history is unclear, then the facility shall request a serology for varicella. If the serology for varicella is nonreactive, the facility shall request that the employee receive immunization for varicella. If the employee refuses to be immunized, the facility shall document the refusal and the reason for the refusal.**]** *require that all employees receive annual immunization for influenza, unless:*

(a) Medically contraindicated;

(b) Against the employee's religious beliefs; or

(c) After being fully informed of the health risks associated with not receiving a vaccine, the employee refuses the immunization.

(2) The nursing home shall:

(a) Comply with Health-General Article, §18-404, Annotated Code of Maryland, regarding immunizations of employees;

(b) Inform all new and current employees of the health risks of not being immunized;

(c) Document refusals; and

(d) Require that any employee who is not vaccinated with the current influenza vaccine wear a mask when:

(i) Within 6 feet of a resident; and

(ii) During the influenza season as specified by the State's Prevention and Health Promotion Administration, based on influenza activity in Maryland.

F. Pertussis. The nursing home shall:

(1) Require that each new employee receive a one-dose booster immunization for pertussis, unless medically contraindicated or against the employee's religious beliefs;

(2) Inform all new and current employees of the health risks of not being immunized;

(3) Document any refusals of immunization; and

(4) Ensure that the immunization is given in the form of Tdap (tetanus, diphtheria, acellular pertussis) vaccine, in accordance with the guidelines prescribed in Immunization of Health-Care Personnel: Recommendations of the Advisory Committee on Immunization Practices (ACIP) and the Health Care Infection Control Practices Advisory Committee (HICPAC).

[.21-2] *.35* Resident Health Program.

[A. The facility's infection control program shall include monitoring of the health status of all residents to determine if the residents are free from tuberculosis in a communicable form.**]**

A. Immunization.

(1) The nursing home shall offer influenza and pneumococcal immunization to each resident.

(2) The nursing home shall obtain written consent to administer the immunization from:

(a) The resident; or

(b) The legal guardian of the resident.

(3) A resident is not required to receive the influenza and pneumococcal immunization if it is:

(a) Medically contraindicated;

(b) Against the resident's religious beliefs; or

(c) After being fully informed of the health risks associated with not receiving a vaccine, the resident refuses the immunization.

(4) If the resident refuses to be immunized, the nursing home shall document the refusal and the reason for the refusal.

(5) The nursing home shall notify each prospective resident of the immunization requirements and request that the resident agree to be immunized.

(6) The nursing home shall make available to residents educational and informational materials relating to immunization against influenza virus and immunization against pneumococcal disease.

B. Tuberculosis Assessment.

(1) The **[**facility**]** *nursing home* shall assess residents for tuberculosis according to the **[**following guidelines:

(a)**]** Guidelines for Preventing the Transmission of Mycobacterium **[**Tuberculosis**]** *tuberculosis* in Health Care **[**Facilities; and**]** *Settings.*

[(b) Guideline for Infection Control in Health Care Personnel.**]**

(2) **[**All residents**]** *A new resident* shall receive a *two-step* tuberculin skin test within 10 days of **[**initial**]** admission *to the nursing home* unless the resident has had **[**a**]** *:*

(a) A documented negative *tuberculin* skin test within the previous **[**month, a**]** *12 months;*

(b) A previous positive *tuberculin skin* test**[**,**]***;*

(c) A history of preventive therapy**[**, or**]** *treatment;*

(d) A latent infection; or

(e) The treatment of *active* tuberculosis.

[(3) The tuberculin skin test for new admissions may be a two-step skin test that is performed by the facility according to the established infection control policy of the facility. Approved employees shall read the skin test and manage the results of the skin test in accordance with Guidelines for Preventing the Transmission of Mycobacterium Tuberculosis in Health-Care Facilities.**]**

[(4)**]** *(3)* The **[**facility**]** *nursing home* shall continue to monitor residents for signs and symptoms of tuberculosis by performing a yearly symptom review. When a resident has signs and symptoms of tuberculosis, a physician shall **[**within 48 hours**]** *be notified to*:

(a) Evaluate the resident for *possible* tuberculosis in a communicable form;

(b) (text unchanged)

(c) Coordinate management of the resident and the resident's contacts with the *local* health officer.

[(5)**]** *(4)* The **[**facility**]** *nursing home* shall assess and manage a resident with a history of *a* previous positive tuberculin skin test, *a history of latent infection, or a* previous history of active tuberculosis, **[**or positive skin test conversion**]** in accordance with Guidelines for Preventing the Transmission of Mycobacterium **[**Tuberculosis**]** *tuberculosis* in Health-Care **[**Facilities**]** *Settings*.

[.21-3] *.36* Volunteer Health Program.

A. The **[**facility**]** *nursing home* shall urge that volunteers, defined as individuals who spend an average of 8 hours per week or more in the institution **[**patient**]** *resident* care areas and who receive no pay or benefits, **[**accept**]** *receive* annual influenza vaccination and tuberculin *skin* testing as considered necessary by the **[**facility**]** *nursing home*.

B. The **[**facility**]** *nursing home* shall give appropriate health care information to such volunteers to provide maximum protection to residents.

[B.**]** *C.* The **[**facility**]** *nursing home* shall maintain documentation of the discussion between the **[**facility**]** *nursing home* and the volunteer concerning influenza vaccine and tuberculin *skin* testing.

[.21-4] .*37* Infection Control — Standard Precautions.

A. Standard Precautions. All employees shall routinely use appropriate barrier precautions to prevent skin and mucous membrane exposure when contact with blood or the body fluids of any resident is anticipated as outlined in:

(1) *2007* Guideline for Isolation Precautions **[**in Hospitals**]**: *Preventing Transmission of Infectious Agents in Healthcare Settings*; and

(2) (text unchanged)

B. The infection *prevention and* control program shall include the handling of *special* medical waste as defined in COMAR 10.06.06.

C. A nursing home shall maintain, at all times, the capability to physically isolate any resident who may contract a communicable disease from the remaining resident population. To provide for this, a nursing home shall have at least one private bedroom with an attached private bathroom that includes a:

(1) Toilet;

(2) Hand washing sink; and

(3) Bathing device or shower.

[.22] .*38* Reports and Action Required in Unusual Circumstances.

A.—B. (text unchanged)

[C. Locked Doors Prohibited. Patients may not be kept behind locked doors, that is, doors which patients cannot open. If the patient becomes too difficult to manage, the patient shall be transferred to a suitable facility selected by the attending physician. If the physician so orders, patients who have a tendency to wander may be confined to their rooms by screen doors or folding gates.

Agency Note: Supervision should be adequate to prevent patients from intruding into the rooms of other patients.

D. Unusual Occurrences. Any occurrence such as the occurrence of suspected mental disturbance, communicable disease, or symptomatic condition of importance to public health, poisoning, or other serious occurrence which threatens the welfare, safety, or health of any patient shall be reported immediately to the local health department. The administrator of the facility shall be responsible for seeing that appropriate procedures and reporting are carried out. An occurrence of a communicable or suspected communicable disease shall be reported and acted upon in accordance with medical asepsis as described in COMAR 10.06.01 Communicable Diseases and COMAR 10.15.03 Food Service Facilities.

Agency Note: Utilization Review. A utilization review plan should be developed with the advice of the professional personnel responsible for the establishment and enforcement of patient care policies. It is suggested that there be established a multi-discipline audit team to participate in an ongoing system of internal patient care audit.**]**

C. Unusual Occurrences.

(1) The administrator of the nursing home shall immediately report to the local health department and the Department the occurrence of:

(a) Infectious disease;

(b) Poisoning;

(c) Internal emergency or disaster;

(d) External emergency or disaster,

(e) Any symptomatic condition of importance to public health that affects the nursing home; or

(f) Any other serious occurrence that threatens the welfare, safety, or health of any resident.

(2) The administrator of the nursing home shall be responsible for ensuring that appropriate procedures and reporting are carried out for all reportable infections. An occurrence of a confirmed or suspected infection shall be reported and acted on in accordance with COMAR 10.06.01 and COMAR 10.15.03.

[.23] .*39* Transfer Agreement.

A. Written Agreement. A written agreement with at least one acute hospital shall be effected which shall provide for the following actions:

(1) Planning to ensure that all services required for the continuity of **[**patient**]** *resident* care will be made available promptly;

(2) Advance discussion with the **[**patient**]** *resident* regarding the reason for the transfer and any available alternatives;

(3) (text unchanged)

(4) Interchange of medical and other information necessary in the care and treatment of **[**patients**]** *residents* transferred between **[**the**]** facilities, *including notification of the licensed pharmacist of resident transfer*;

[(5) Timely admission to the hospital when the attending physician determines acute hospital care is medically appropriate;**]**

[(6)**]** *(5)* Safe *and* timely transportation and care of the **[**patient**]** *resident* during transfer;

[(7)**]** *(6)* Security and accountability for the **[**patient's**]** *resident's* personal effects;

[(8)**]** *(7)* Prompt readmission to the **[**comprehensive care facility or the extended care facility**]** *nursing home* at the end of the hospital stay **[**(when program fiscal controls permit)**]**;

[(9)**]** *(8)* Annual review of **[**execution of**]** transfer arrangements **[(]**by *a* utilization review committee or other designated group**[)]** to assure that each party is fulfilling the needs of **[**both**]** the **[**patients and**]** *residents*, the providers **[(]**, the hospital, and the **[**comprehensive care facility or the extended care facility)**]** *nursing home*;

[(10)**]** *(9)* If needs are not being met, **[**it is the responsibility of**]** the administrator of the **[**comprehensive care facility or the extended care facility to**]** *nursing home shall* act on recommendations of the reviewing group **[**and**]** to effect compliance;

[(11)**]** *(10)*—**[**(12)**]** *(11)*(text unchanged)

B. (text unchanged)

[C. Exception for Comprehensive Care Facility. If a comprehensive care facility is unable to effect a transfer agreement with a hospital in the community and can document its attempts to secure an agreement, the facility shall be considered to have such an agreement in effect.**]**

[Agency Note: It is recommended that the comprehensive care facility arrange for a similar transfer agreement with an extended care facility.**]**

C. Human remains shall be transported pursuant to COMAR 10.29.21.

[.24] .*40* Emergency and Disaster Plan.

A. Emergency and Disaster Plan.

(1)—(2) (text unchanged)

(3) When the nursing **[**facility**]** *home* relocates residents, the **[**facility**]** *nursing home* shall send a **[**brief**]** medical fact sheet *and any medically related information* with each resident that includes at a minimum the resident's:

(a)—(d) (text unchanged)

(e) Special diets or dietary restrictions; **[**and**]**

(f) Family or legal representative contact information*; and*

(g) Advance directives, living will, or a copy of the resident's Maryland's Medical Orders for Life-Sustaining Treatment (MOLST) form.

(4) The brief medical fact sheet for each resident described in §A(3) of this regulation shall be:

(a)—(b) (text unchanged)

(c) Maintained *in a written, electronic, or printed form* in a central location readily accessible and available to accompany residents in case of an emergency evacuation.

(5)—(10) (text unchanged)

(11) Maryland Health Alert Network.

(a) A nursing home shall register with the Maryland Health Alert Network.

(b) A nursing home shall register at least four representatives, including the administrator and the director of nursing.

(c) Following any changes in the initial registration of the four representatives, a nursing home shall update the information within 5 business days of the change.

(12) The licensee shall:

(a) Identify an emergency and disaster planning liaison for the nursing home; and

(b) Provide the liaison's contact information to the local emergency management organization.

(13) The licensee shall prepare an executive summary of the nursing home's evacuation procedures to provide to a resident, family member, or resident's representative upon request. The summary shall, at a minimum:

(a) List means of potential transportation to be used in the event of evacuation;

(b) List potential alternative facilities or locations to be used in the event of evacuation;

(c) Describe means of communication with family members and resident's representatives;

(d) Describe the role and responsibilities of the resident, family member, or resident's representative in the event of an emergency situation; and

(e) Notify families that the information provided may change depending on the nature or scope of the emergency or disaster.

B. (text unchanged)

C. Orientation and Drills.

(1) The licensee shall:

(a) Orient staff to the emergency and disaster plan and to their individual responsibilities *in relation to the plan* within 24 hours of the commencement of job duties; **[**and**]**

(b) Document completion of the orientation in the staff member's personnel file through the signature of the employee*; and*

(c) Within 24 hours of admission, notify and direct residents to the nursing home's emergency plans and maps, including evacuation procedures.

(2)—(4) (text unchanged)

.41 Physical Plant New and Existing Construction Requirements.

A. Construction of a New Nursing Home.

(1) A new nursing home shall be constructed, equipped, and maintained to protect the health and safety of residents, personnel, and the public.

(2) A nursing home desiring to provide services other than those for which it is already licensed shall obtain prior approval from the Department.

(3) The nursing home shall obtain prior approval from the Department for any part of the premises to be used for tenant occupancy or for unrelated business purposes.

(4) A nursing home shall be constructed in accordance with the provisions of the NFPA 101 Life Safety Code.

B. Construction in an Existing Structure. In existing structures, the Department shall entertain requests for waivers on items that:

(1) Will not endanger the health and safety of residents, visitors, employees, and other individuals using the nursing home; and

(2) If corrected, will result in an unreasonable, substantial financial burden on the nursing home.

C. Conversion of an Existing Structure. When an owner plans to convert an existing structure that has not been licensed as a nursing or care home to a nursing home, the owner shall be required to meet all conditions set forth in this chapter.

D. Preventative Maintenance Program. A nursing home shall have a documented preventative maintenance program. This program shall include:

(1) Periodic service and testing of items as recommended by manufacturers of at least the following:

(a) Building systems;

(b) Building components;

(c) Resident care equipment;

(d) Resident therapy equipment;

(e) Resident bathing and shower equipment;

(f) Furniture and furnishings;

(g) Wheelchairs;

(h) Walkers;

(i) Body lifts;

(j) Scales;

(k) Electronics; and

(l) Electrical switches and outlets;

(2) Ongoing staff monitoring for evidence of malfunction or deterioration; and

(3) A centralized system for reporting and monitoring repairs.

.42 Physical Plant General Requirements.

A. Unless otherwise indicated, all general requirements apply to both new construction and an existing nursing home.

B. A nursing home shall comply with all applicable federal, State, and local governing laws, regulations, standards, ordinances, and codes.

C. A nursing home shall be constructed to comply with the provisions of the NFPA 101 Life Safety Code, as promulgated by the State Fire Prevention Commission, that are applicable to nursing homes.

D. Securely anchored handrails:

(1) Shall be provided on each side of all corridors in resident areas; and

(2) May not be more than 36 inches high as measured from the floor to the top of the handrail.

E. Elevators.

(1) New Construction. Elevators shall meet the requirements for elevators in a long-term care nursing home as set forth in the Guidelines for Design and Construction of Health Care Facilities.

(2) Existing Facilities. An existing nursing home shall meet all local codes and standards for safety and maintenance of institutional elevators.

F. Lighting.

(1) A resident's room shall:

(a) Be lighted by outside windows; and

(b) Have artificial light adequate for reading and other uses as required.

(2) In order to prevent accidents and promote efficiency of service, the nursing home shall ensure that the following areas have sufficient artificial lighting:

(a) Entrances;

(b) Hallways;

(c) Stairways;

(d) Inclines;

(e) Ramps;

(f) Basements;

(g) Attics;

(h) Storerooms;

(i) Kitchens;

(j) Laundries; and

(k) Service units.

G. Minimally Maintained Lighting Levels. The following table lists the minimum lighting requirements in the following given areas:

Area	*Minimum Lighting*
(1) Administrative areas	*30 foot-candles*
(2) Dining areas	*30 foot-candles*
(3) Recreation areas	*100 foot-candles*
(4) Resident's room	*10 foot-candles*
(5) Resident's reading lamps	*30 foot-candles*
(6) Nurses station	*20 foot-candles*
(7) Medicine storage and preparation area	*100 foot-candles*
(8) Stairways	*20 foot-candles*
(9) Corridors	*20 foot-candles*

H. Night Lights.

(1) A nursing home shall have sufficient lighting at night in the following areas:

(a) Hallways;

(b) Stairs; and

(c) Designated toilets of the nursing home for the safety of the resident who gets up during the night.

(2) There shall be at least one night light in each bedroom for residents.

(3) In new construction, the night light shall be switched at the resident room door.

I. Screens.

(1) A nursing home shall ensure that screened doors and windows are installed and maintained in accordance with applicable fire and safety codes and COMAR 10.15.03 Food Service Facilities.

(2) Maintenance and installation may not conflict with other applicable laws, regulations, codes, or ordinances.

(3) A nursing home shall equip all screened doors with self-closing devices, to provide for the normal flow of ingress and egress of traffic.

(4) A nursing home shall screen with wire screen or its equivalent, not less than 16 meshes per linear inch for doors and windows that provide ventilation.

J. Garbage Disposal.

(1) Garbage shall be:

(a) Stored in water-tight containers with tight-fitting covers; and

(b) Emptied at frequent intervals.

(2) Soiled containers shall be thoroughly scoured and aired before using again.

K. Garbage Storage Space. Storage space shall be provided for garbage and trash awaiting pickup.

L. Burning. A nursing home may not burn or incinerate garbage at the nursing home.

M. Special Medical Wastes. The nursing home shall meet the requirements for handling, treatment, and disposal of special medical wastes as provided in COMAR 10.06.06.

N. Smoking.

(1) Resident Smoking Requirements.

(a) A resident who smokes shall be assessed for safe smoking behaviors at admission and on significant changes in condition.

(b) A resident assessed to exhibit unsafe behaviors shall have a care plan to ensure the resident is safe when smoking.

(2) Nursing Home Smoking Requirements.

(a) Smoking areas shall be designated.

(b) Smoking shall be prohibited at the main entrance to all facilities.

(c) All tobacco products shall be extinguished and disposed of in noncombustible containers with self-closing lids in accordance with the provisions of NFPA 101 Life Safety Code.

O. A nursing home shall be protected throughout the entire building by an automatic fire extinguishing system.

.43 Plumbing.

A. Unless otherwise indicated, all general requirements apply to both new construction and an existing nursing home.

B. Plumbing.

(1) Plumbing shall be installed in conformance with all applicable federal, State, and local codes and ordinances.

(2) Plumbing and water supplies shall be protected against backflow within a nursing home.

(3) Prevention of backflow shall be ensured by proper installation of:

(a) Plumbing cross-connections;

(b) Submerged inlets; and

(c) Back siphonage.

C. Sewage. The nursing home shall be serviced by a public sewage disposal system if available.

D. Private Sewage Disposal Approval.

(1) If no approved public sewerage system is available, a private sewage disposal may be accepted, if approved by the Department.

(2) Private sewage disposal systems shall comply with COMAR 26.04.02.

E. Water Supply. A nursing home shall be served by water from a safe public water supply, if available, as determined by the Department.

F. Approval of Private Water Supply.

(1) If a safe public water supply is not available, a private water supply may be used if it is approved by the Department.

(2) Private water systems shall comply with all federal, State, and local requirements.

G. Emergency Procedures. Emergency procedures shall be established and documented that enable the nursing home to provide water in all essential areas in the event of the loss of the normal water supply or if the nursing home would have to shelter in place during an emergency or disaster. These written procedures shall:

(1) Be a part of the nursing home's Emergency and Disaster Plan, in conformance with Regulation .40 of this chapter; and

(2) Describe the nursing home's plan to assure that there is an adequate amount of safe drinking water for all residents and staff for a minimum of 72 hours.

H. Adequacy of Pressure.

(1) The water supply shall be adequate in quantity and delivered under sufficient pressure to satisfactorily serve equipment in the nursing home.

(2) A minimum pressure of 15 psi during demand period is required at top floor equipment.

I. Temperature. The water heating equipment shall supply adequate amounts of heated water according to the following temperature guidelines for:

(1) Resident use, the water temperature shall be between 100°F (38°C) and 120°F (49°C):

(a) Washing;

(b) Bathing; and

(c) Other personal use;

(2) Food preparation use, as referenced in COMAR 10.15.03; and

(3) Laundry use, as referenced in the 2007 Guideline for Isolation Precautions: Preventing Transmission of Infectious Agents in Healthcare Settings.

.44 Physical Plant — Heating and Cooling.

A. Unless otherwise indicated, all general requirements apply to both new construction and an existing nursing home.

B. Temperatures. A nursing home shall maintain a minimum design temperature of 75°F or 24°C for all occupied areas.

C. Heating System. A nursing home shall be equipped with a properly maintained and operational central heating system. The heating system shall be:

(1) Capable of maintaining 75°F or 24°C throughout the residents' section of the building with the outside temperature as prescribed in the Guidelines for Design and Construction of Residential Health, Care, and Support Facilities; and

(2) In compliance with NFPA 101 Life Safety Code, NFPA 99 Health Care Facilities Code, and other applicable codes, and all federal, State, and local codes.

D. Humidity. The humidity shall be controlled according to the guidelines prescribed in the Guidelines for Design and Construction of Residential Health, Care, and Support Facilities.

E. Auxiliary Heat. Appropriate provisions shall be made for emergency auxiliary heat by means of alternate sources of electric power, alternate fuels, or standby equipment.

F. Space Heaters. Space heaters and portable heaters may not be used.

G. Boiler rooms. Boiler rooms shall be provided with sufficient outdoor air to maintain combustion rates of equipment and to limit temperatures in working stations to 97°F or 36°C.

H. Air Conditioning.

(1) A nursing home shall be equipped with a properly maintained air conditioning system.

(2) The air conditioning system shall be in compliance with NFPA 101 Life Safety Code, NFPA 99 Health Care Facilities Code, and all federal, State, and local codes.

(3) In an existing structure, the nursing home shall comply with the regulations and building codes effective at the date of construction.

(4) In new construction or renovation, the nursing home shall comply with the regulations and building codes effective at the date of construction or renovation.

.45 Physical Plant — Ventilation.

A. Unless otherwise indicated, all general requirements apply to both new construction and an existing nursing home.

B. An existing nursing home shall provide for adequate ventilation through windows or mechanical means or a combination of both.

C. A new nursing home shall adhere to the requirements of this chapter.

D. Ventilation System Details.

(1) All air-supply and air-exhaust systems shall be mechanically operated.

(2) The ventilation rates shown in Table 1 under §D(10)of this regulation shall be considered the minimum acceptable rates and may not be construed as precluding the use of higher ventilation rates.

(3) All fans serving exhaust systems shall be located at the discharge end of the system.

(4) Outdoor air intakes shall be located:

(a) As far as practical but not less than 25 feet from:

(i) Exhaust outlets of ventilating systems;

(ii) Combustion equipment stacks;

(iii) Medical-surgical vacuum systems;

(iv) Plumbing vent stacks; or

(v) Areas that may collect vehicular exhaust and other noxious fumes; and

(b) As high as practical, as such the bottom of the outdoor air intake is:

(i) At least 6 feet above ground level; or

(ii) At least 3 feet above roof level.

(5) The ventilation systems shall be designed and balanced to provide the pressure relationships as shown in Table 1 under §D(10) of this regulation.

(6) The bottoms of ventilation openings may not be not less than 3 inches above the floor of any room.

(7) Corridors may not be used to supply air to or exhaust air from any room, except that air from corridors may be used to ventilate bathrooms, toilet rooms, janitors' closets, and small electrical or telephone closets opening directly on corridors.

(8) Filters.

(a) A central ventilation or air conditioning system shall be equipped with filters having efficiencies no less than those specified in Table 2 under §D(11) of this regulation.

(b) The filter bed shall be located upstream of the air conditioning equipment, unless a prefilter is employed.

(c) If a prefilter is employed, the prefilter shall be upstream of the equipment and the main filter bed may be located further downstream.

(d) A filter or filter efficiency shall comply with the standards of the Guidelines for Design and Construction of Residential Health, Care, and Support Facilities.

(e) A filter frame shall be durable and carefully dimensioned and shall have an airtight fit with the enclosing duct work.

(f) A joint between filter segments and the enclosing duct work shall be gasketed or sealed to provide a positive seal against air leakage.

(g) A manometer shall be installed across each filter bed serving central air systems.

(9) Air Ducts.

(a) Air handling duct systems shall meet the requirements applicable to nursing homes cited in NFPA 99 Health Care Facilities Code.

(b) Fire and smoke dampers shall be constructed, located, and installed in accordance with the requirements of NFPA 101 Life Safety Code.

(c) Air ducts that pass through a required smoke barrier shall be provided with a smoke damper at the barrier.

(d) Smoke dampers shall activate by smoke detectors located in the ducts at the smoke barrier, or by the smoke detectors used to close smoke barrier doors.

(e) Smoke dampers shall be controlled to close automatically to prevent flow of smoke-laden air in either direction.

(f) Smoke dampers shall be equipped with automatic remote control reset devices, except that manual reopening will be permitted if smoke dampers are accessible.

(g) All devices shall be interlocked with the fire alarm system.

(10) Table 1. This table refers to the pressure relationships and ventilation of certain areas of a nursing home other than chronic disease hospitals.

Area Designation	*Pressure Relationship To Adjacent Areas*	*Minimum Air Changes of Outdoor Air per Hour Supplied to Room*	*Minimum Total Air Changes per Hour Supplied to Room*	*All Air Exhausted Directly to Outdoors*	*Recirculated Within Room Units*
(a) Resident Room	*E*	*2*	*2*	*Optional*	*Optional*
(b) Resident Area Corridor	*E*	*2*	*4*	*Optional*	*Optional*
(c) Examination and Treatment Room	*E*	*2*	*6*	*Optional*	*Optional*
(d) Physical Therapy	*N*	*2*	*6*	*Optional*	*Optional*
(e) Occupational Therapy	*N*	*2*	*6*	*Optional*	*Optional*
(f) Soiled Workroom or Soiled Holding	*N*	*2*	*10*	*Yes*	*No*
(g) Clean Workroom or Clean Holding	*P*	*2*	*4*	*Optional*	*Optional*
(h) Toilet Room	*N*	*Optional*	*10*	*Yes*	*No*
(i) Bathroom	*N*	*Optional*	*10*	*Yes*	*No*
(j) Janitors' Closet(s)	*N*	*Optional*	*10*	*Yes*	*No*
(k) Sterilizer Equipment Room	*N*	*Optional*	*10*	*Yes*	*No*
(l) Linen and Trash Chute Room	*N*	*Optional*	*10*	*Yes*	*No*
(m) Food Preparation Center	*E*	*2*	*10*	*Yes*	*No*
(n) Warewashing Room	*N*	*Optional*	*10*	*Yes*	*No*
(o) Dietary Day Storage	*E*	*Optional*	*10*	*Yes*	*No*
(p) Laundry, General	*E*	*2*	*10*	*Yes*	*No*
(q) Soiled Linen Sorting and Storage	*N*	*Optional*	*10*	*Yes*	*No*
(r) Clean Linen Storage	*P*	*2*	*2*	*Optional*	*Optional*
Key: P = Positive, N = Negative, E = Equal					

(11) Table 2. This table below refers to the filter efficiencies for central ventilation and air conditioning systems in a nursing home other than chronic disease hospitals.

Area Designation	*Minimum Number of Filter Beds*	*Filter Efficiencies (Percent) Main Filter Bed*
(a) Resident Care, Treatment, Diagnostic, and Related Areas. These areas may be reduced to 35 percent for all-outdoor air systems.	*1*	*80*
(b) Food Preparation Areas and Laundries.	*1*	*80*
(c) Administrative, Bulk Storage and Soiled Holding Areas.	*1*	*25*

(12) Exhaust Hoods. All hoods over cooking surfaces shall comply with the requirements as provided in COMAR 10.15.03.

.46 Physical Plant Emergency Power.

A. Unless otherwise indicated, all general requirements apply to both new construction and an existing nursing home.

B. Emergency Electrical Power.

(1) The nursing home shall provide emergency electrical power.

(2) Emergency power for the purpose of egress lighting and protection shall be as required by NFPA 101 Life Safety Code.

(3) Other emergency lighting shall be as follows:

(a) Nursing station;

(b) Drug distribution station or unit dose storage;

(c) A lighted area for emergency telephone use;

(d) Boiler or mechanical room;

(e) Kitchen;

(f) Generator set location and switch gear location;

(g) Elevator, if operable on emergency power;

(h) Areas where life support equipment is used;

(i) If applicable, lighting for the common area of refuge; and

(j) If applicable, lighting in toilet rooms of the common area of refuge.

(4) Emergency power shall be provided for the:

(a) Nurses' call system;

(b) Duplex receptacles installed 50 feet apart in all corridors in resident areas or appropriately located duplex receptacles in the common area of refuge;

(c) Telephone service with at least one telephone available for incoming and outgoing calls;

(d) Fire pump;

(e) Sewerage pump and sump pump;

(f) Elevator, if required, for evacuation as referenced in NFPA 101 Life Safety Code;

(g) Heating equipment, if applicable, to maintain a minimum temperature of 71°F or 22°C in the common areas of refuge;

(h) Life support equipment;

(i) Nonflammable medical gas systems;

(j) Computer system, if applicable, to enable use of electronic medical records system; and

(k) Refrigerated medication storage.

(5) Common Area or Areas of Refuge.

(a) The nursing home shall provide a common area or areas of refuge in an emergency situation if all resident rooms, day rooms, and toilet rooms are not tied into the emergency generator to provide heat and cooling.

(b) The common area or areas of refuge:

(i) Shall be at least 30 square feet per bed, not including corridors;

(ii) May not include toilet rooms in the 30 square feet per bed; and

(iii) Shall maintain a minimum temperature of 71°F or 22°C and a maximum temperature of 81°F or 27°C.

(c) The nursing home shall provide heated toilet rooms adjacent to the common areas of refuge.

(d) The nursing home shall provide a Department-approved written plan that:

(i) Defines the specified area of refuge;

(ii) Outlines paths of egress from the common areas of refuge; and

(iii) Describes provisions for light, heat, food service, washing, and toileting residents.

(6) Emergency Power Source.

(a) The emergency power source shall be a generating set and prime mover located on the premises with automatic transfer.

(b) The emergency generator shall:

(i) In the event of failure of the normal electrical service, be activated immediately;

(ii) Come to full speed and load acceptance within 10 seconds;

(iii) Have a capacity of 48 hours of operation from fuel stored on-site; and

(iv) Be tested once a month, for at least 30 minutes under normal emergency nursing home connected load, and the test recorded in a permanent log book maintained for that purpose.

[.27] *.47* Nursing Care Unit.

A. (text unchanged)

B. **[**Service Areas Required in New Construction or for New Facilities.**]** *Common Space. The nursing home shall provide a living room for residents' use with a sufficient number of reading lamps, tables, and comfortable chairs or sofas.*

C. Service Areas Required.

(1) Nurses' **[**Station.**]** *Work Area.*

(a) The nurses' **[**station**]** *work area* shall be **[**centrally**]** located **[**in relation to beds served**]** *on the unit* and **[**shall provide**]** *within* easy view of corridors outside of *residents'* rooms.

(b) The Department may specify the location and size of a nurses' **[**station**]** *work area* which serves a nursing care unit exceeding 40 beds.

(2) Nursing Care Unit.

(a) A nursing care unit, regardless of size, including special care units, shall be equipped as described in this regulation.

(b) A nursing care unit **[**also**]** *bathroom* shall include:

[(a)**]** *(i)* A toilet, within the care unit, for the use of personnel**[**, a**]***; and*

(ii) A hand washing sink equipped with **[**4 inch wrist blades,**]** goose-neck spout, **[**and**]** separate soap dispensers, and *disposable paper* towel dispensers.

[(b) Medicine storage cabinet with locks. Schedule II drugs shall be kept in separately locked, securely fixed boxes or drawers in a cabinet, under two locks, keyed differently; medicine storage and preparation area with illumination of 100 footcandles at the work counter; preparation area shall include a small sink set into the counter or with drain boards; biological refrigerator. Spaces housing medicine storage cabinet, medicine preparation area, and biological refrigerator shall be under the direct visual control of the nursing or pharmacy staff.**]**

(c) A nursing care unit's medicine shall be stored in accordance with the following procedures:

(i) Shall be stored in a cabinet with locks;

(ii) Schedule II drugs shall be kept in a separately locked, securely fixed box or drawer in the medicine storage cabinet under two locks, keyed differently;

(iii) The medicine storage and preparation area shall be illuminated with at least 100 foot-candles at the work counter;

(iv) The preparation area shall include a small sink set into the counter or with drain boards and a biological refrigerator; and

(v) The medicine storage cabinet, medicine preparation area, and biological refrigerator shall be under the direct visual control of the nursing or pharmacy staff.

[(c)**]** *(d)*—**[**(e)**]** *(f)* (text unchanged)

[(f)**]** *(g)* **[**Sufficient**]** *A nursing care unit shall have sufficient* space and equipment for medical records **[**which enables**]** *so that* personnel **[**to**]** *can* function **[**in an effective manner**]** *effectively* and

[to**]** maintain *easily accessible* records on all **[**patients so they are easily accessible**]** *residents*.

[(2) Nurses' Station—Existing Facility. Each care unit shall have a nurses' station provided with a medicine storage cabinet and preparation counter or table having adequate lighting overhead. A handsink with hot and cold running water shall be convenient to the nurses' station.**]**

(3) *Medication Storage in Nursing Home.*

(a) **[**Because specific temperatures are often required for the safe storage of drugs, the**]** *The* storage **[**facilities**]** *facility* shall provide for the **[**following**]** conditions *listed in §C(3)(b)—(g) of this regulation* when prescribed **[**:**]**.

[(a)**]** *(b)* Cold—Any temperature **[**not exceeding 8°C (46°F)**]** *at or below 46°F or 8°C.* A refrigerator is a cold place in which the temperature is maintained thermostatically between **[**2°C and 8°C (46° and 59°F)**]** *46°F and 59°F or 8°C and 15°C.* A freezer is a cold place in which the temperature is maintained thermostatically between **[**-20°C and -10°C (-4° and -14°F)**]** *-4°F and -14°F or -20°C and -26°C.*

[(b)**]** *(c)* Cool—Any temperature between **[**8°C and 15°C (46° and 59°F)**]** *46°F and 59°F or 8°C and 15°*. An article for which storage in a cool place is directed may, alternatively, be stored in a refrigerator, unless otherwise specified in the individual monograph.

[(c)**]** *(d)* Room Temperature—The temperature prevailing in a working area. Controlled room temperature is a temperature maintained thermostatically between **[**15°C and 30°C (59° and 86°F)**]** *59°F and 86° F or 15°C and 30°C*.

[(d)**]** *(e)* Warm—Any temperature between **[**30°C and 40°C (86° and 104°F)**]** *86°F and 104°F or 30°C and 40°C*.

[(e)**]** *(f)* Excessive Heat—Any temperature above **[**40°C (104°F)**]** *104°F or 40°C*.

[(f)**]** *(g)* Protection from Freezing. *The container label bears appropriate instructions to protect the product from freezing* **[**When in addition to the risk**]** *when freezing it may subject a product to:*

(i) Loss of strength or potency;

(ii) Risk of breakage of the container**[**, freezing subjects a product to loss of strength or potency,**]***;* or **[**to destructive**]**

(iii) Destructive alteration of the dosage form **[**, the container label bears an appropriate instruction to protect the product from freezing**]**.

[(g)**]** *(h)* Storage under Non-specific Conditions. When no specific storage directions or limitations are provided in the individual monograph, **[**it is to be understood that**]** the storage conditions *shall* include protection from moisture, freezing, and excessive heat.

(4) Space for Storage of Linen **[**New Construction and Existing Facilities**]**. Capacity shall be provided for **[**storage**]** *storing* of at least two complete *linen* changes per bed. Clean linen shall be stored separately from **[**non-clean**]** *unclean* items.

(5) Janitors' Closet—New Construction. **[**Each**]**

(a) A nursing unit shall contain at least one janitors' closet containing a floor receptor or service sink and storage space for housekeeping equipment and supplies.

(b) The janitor's closet shall be equipped for **[**handwashing**]** *hand washing*.

(c) The janitor's closet shall be connected to mechanically operated exhaust ventilation.

(d) The plumbing fixture for the utility or service sink within a janitor's closet must be provided with a back-flow prevention device.

(6) Utility Rooms**[**—New Construction**]**.

(a) There shall be separate clean and soiled utility rooms in each nursing unit*:*

(i) **[**, accessible**]** *Accessible* to the **[**patient**]** *resident* area**[**, no**]***;*

(ii) Each having separate entrances; and

(iii) No more than 120 feet to the most remote **[**patient**]** *resident* bedroom**[**. There shall be a separate entrance into each room**]**.

(b) The clean utility room shall contain:

(i) **[**Wall and base cabinets with stain resistant countertop;

(ii)**]** A small sink **[**set into the counter, or with drainboards; sink shall be**]** equipped with gooseneck spout and wrist blades;

(ii) Soap and individual paper towels in a dispenser;

(iii) Adequate storage and work counter space for storage and assembly of supplies for nursing procedures; *and*

(iv) **[**Provision for storing and transporting clean linen in covered container.**]** Clean linen **[**may also be stored in**]** *stored and transported in covered containers,* closed linen carts, or rooms exclusively provided for this purpose**[**, if approved by the Department**]**.

(c) The soiled utility room shall contain:

(i) (text unchanged)

[(ii) A separate wall-hung hand sink for handwashing, equipped with wrist blades and soap and towel dispensers;**]**

(ii) A small sink equipped with soap and individual paper towels in a dispenser;

(iii) (text unchanged)

(iv) Equipment**[**, approved by the Department,**]** to clean and sanitize bedpans, urinals, and basins; *and*

(v) Equipment for the disposal of liquid and semi-solid wastes and bodily fluids via the nursing home's sanitary sewer connection or on-site sewage disposal system.

[(7) Utility Rooms—Existing Facility. In existing facilities service areas shall be provided for patient care items which are acceptable to the Department.**]**

(7) Culture Change Nursing Home. In a culture change nursing home, service areas shall be provided for resident care needs as approved by the Department. The culture change nursing home shall be required to have service areas that meet the specifications in this chapter for:

(a) Clean storage;

(b) Soiled holding;

(c) Laundry;

(d) Janitorial services; and

(e) Medication storage.

[C. Call System—New Construction. A call system shall be installed and maintained in operating order in all nursing units. Call systems shall be maintained in a manner that will provide visible and audible signal communication between nursing personnel and patients. The minimum requirements are:

(1) A call station or stations providing detachable extension cords to each patient's bed in the patients' rooms. These extension cords shall be readily accessible to patients at all times.

(2) A visible signal in the corridor above the corridor door of each patient's bedroom, visible from all parts of the corridor.

(3) An audible signal and a nurses' call enunciator indicating the room from which the call originates or an alternate system approved in writing by the Department, shall be located at the nurses' station. The sounding of the audible signal shall be continuous or intermittent until answered. The audible signal may not be turned off at the nursing station.

(4) A call system shall be provided in each patient's toilet room, bathroom, and shower stall in locations easily accessible to the patients. The call system shall enable patients in the rehabilitation area to summon rehabilitation staff.

(5) The nurses' call system shall be so designed as to require resetting at the station where the call originates.

D. Call System—Existing Facilities. Existing facilities (those facilities licensed at the time this regulation becomes effective) shall provide some method/means of a patient summoning aid that shall include as minimum a combined visual and audible signal that is audible at the nurses' station and simultaneously activates a light located in the hall, outside of and adjacent to the patient's room. The activating device for those signals shall be located in each patient's room and each and every bathing compartment and toilet room or compartment used by patients. Exceptions may be made in part at the discretion of the Department for an individual facility only when the facility can demonstrate compliance with the intent of this section by showing an effective patient call system to provide quality patient care.**]**

[E.**]** *D.* Drinking Fountains. One public drinking fountain *or comparable equipment as preapproved by the Department* shall be provided **[**one**]** *on* each floor, usable from a wheelchair. *Alternative means to provide drinking water to residents, staff, and the general public may be used as approved by the Department.*

E. Automated External Defibrillator.

(1) A nursing home shall possess a functioning automated external defibrillator (AED).

(2) As of July 1, 2020, a nursing home shall install a functioning AED unit.

.48 Call Systems.

A. Call System.

(1) A nurse call system shall be installed and maintained in operating order in all nursing units.

(2) A call system shall be maintained in a manner that will provide visible and audible signal communication between nursing service personnel and residents.

(3) A call station shall provide readily accessible and detachable extension cords to each resident's bed in the residents' rooms at all times.

(4) A call system shall have a visible signal above the door of each resident's bedroom that shall be visible from all parts of the corridor.

(5) A call system shall provide visual lights at corridor intersections, in multi-corridor nursing units.

(6) A call system shall be provided in each resident's bathroom and bathing area in locations accessible to the residents.

(7) The call system shall enable residents in the rehabilitation area to summon rehabilitation staff.

(8) The nurses' call system shall require resetting at the station where the call originates.

B. Wireless Call Systems.

(1) A call system that uses wireless pagers or other wireless communication devices may be used as an alternative system.

(2) A wireless device shall:

(a) Be issued to all assigned direct care staff; and

(b) Receive signals originating from residents' bedrooms, bathrooms, bathing areas, and therapy areas.

(3) The use of an approved wireless call system shall eliminate the need to install call light indicators outside the residents' bedrooms, bathrooms, bathing areas, and therapy areas.

(4) A computer system with a monitor or other electronic display device may be installed to replace the call system enunciator, as long as it reveals the location where the signal originated and sounds an audible alert tone. Otherwise, a dedicated enunciator connected to the wireless call system will be needed.

(5) An electrically powered call system shall be connected to the emergency power supply.

(6) The sounding of the audible signal shall be continuous or intermittent until answered.

(7) The audible signal may not be turned off at the nursing station.

(8) The audible signal shall be loud enough to be heard at the nurses' station.

.49 Resident Bedroom in Nursing Home.

A. Unless otherwise indicated, all general requirements apply to both new construction and an existing nursing home unless a waiver has been granted by the Office of Health Care Quality in accordance with Regulation .03G of this chapter.

B. Bedroom Accommodations.

(1) Bedroom.

(a) A resident's room shall have direct access to an exit in accordance with the requirements applicable to nursing homes specified in NFPA 101 Life Safety Code.

(b) A room that opens into the kitchen may not be used as a resident bedroom.

(c) A room may not be used as a resident bedroom if it can only be reached by passing through a kitchen.

(d) Residents may not occupy rooms extending below the ground level.

(e) No more than four individuals may occupy a multiple occupancy bedroom.

(f) Residents' beds may not be located near radiators, registers, or sources of draft.

(g) Adequate storage space shall be provided in each bedroom to allow each resident to keep necessary items of clothing, including items that need to be hung. Adequate storage space shall be provided for residents' personal possessions, including the storage of seasonal clothing.

(h) All occupants of any bedroom shall be of the same sex, except in the case of a two-bed room occupied by:

(i) Opposite gender siblings;

(ii) Opposite gender parent and child;

(iii) A married couple; or

(iv) Consenting residents.

(2) Bedroom—New Construction. A nursing home shall provide cubicle curtains and tracks in multiple occupancy bedrooms between beds to insure privacy of residents.

(3) Bedroom—Existing Construction. In an existing nursing home, curtains or screens shall be acceptable.

C. Floor and Window Space.

(1) Floors.

(a) A distance of at least 3 feet shall be maintained between each bed. Beds are to be placed so that all sides of the bed are at least 18 inches from heating units.

(b) The following shall be considered a minimum allowance of floor space:

(i) 100 square feet, single-bed room; and

(ii) 80 square feet, per bed, for multiple-bed rooms.

(c) The following floor areas may not be included in the calculation of floor space:

(i) Toilet rooms and bathing facilities;

(ii) Closets;

(iii) The floor area occupied by wardrobes, bureaus, or lockers, when permanently installed as part of walls or ceilings and as a permanent component of a bedroom;

(iv) HVAC equipment, including any steam, water, or electrical supply or return lines that may run parallel to the floor or interrupt the floor surface;

(v) Support columns, pipe chases, or other structures, whether free-standing or as an integral part of a wall; and

(vi) The arc of any doors that open into the room, excluding closet doors.

(d) The minimum horizontal dimensions of a bedroom are to be 10 feet to:

(i) Facilitate the placement of beds as required in Regulation .44 of this chapter; and

(ii) Maintain a minimum clearance of 3 feet at the foot of the bed.

(e) In an existing nursing home, the usable floor area for rooms having a bedroom shall have a finished ceiling height of 8 feet. For a bedroom that has sloping walls, only 50 percent of the floor area with a ceiling height between 4 feet and 7 feet, 6 inches, shall be credited, provided that at least 50 percent of the total area of the bedroom has a ceiling height of 8 feet.

(2) Windows.

(a) The window area within each bedroom shall be at least 10 square feet per bed. The window opening shall be at least 28 inches so that the total area equals 10 square feet per bed. This is to allow entry of fire fighters, removal of smoke, and emergency evacuation.

(b) The maximum height from the floor to the top of a window sill shall be 44 inches above the finished floor.

(c) A portable window air-conditioning unit may not block window space. The installation of a portable air-conditioning unit shall be approved by the:

(i) Local fire authorities; and

(ii) Department.

(d) If windows cannot be opened for ventilation, a central HVAC system shall be provided and maintained.

(e) If windows can be opened, but the nursing home has concern over the window being opened due to resident safety issues and elopement, the window sash may be restricted by hardware as approved by the Department.

D. Furnishings.

(1) Furnishings.

(a) The nursing home shall provide residents with their own bed. The bed shall be at least 36 inches wide and be substantially constructed. Rollaway type beds, cots, or folding beds may not be used.

(b) Bed.

(i) Each bed provided shall be in good repair, with a clean and comfortable standard size mattress and foundation.

(ii) To avoid injury to the resident, the mattress and foundation shall fit the bed.

(iii) Clean linen and a clean, comfortable pillow shall be provided. Extra pillows shall be available.

(c) Bedroom Furniture. A resident shall be provided with the following furnishings, which shall be convenient to the resident:

(i) Bedside stand with a drawer;

(ii) Towel hanger;

(iii) A comfortable chair;

(iv) A chest of drawers with at least one locking drawer;

(v) Enclosed space for hanging clothing;

(vi) A wall mirror in each room, unless contraindicated by physician's order; and

(vii) A bedside lamp, over-bed lamp, or other directional light source for resident reading and bedside care.

(d) Resident's Personal Furnishings.

(i) A nursing home shall develop policies and procedures to give residents the opportunity to use the resident's own furnishings as detailed in this chapter.

(ii) The nursing home shall make its resident's personal furnishing policies available for review by residents and the resident's representative.

(iii) These policies shall address the condition of the personal furnishings, presence of insects or vermin, and overall safety to ensure that the use of the resident's belongings does not create any safety or health issues.

(iv) Personal furnishings that are allowed shall be appropriate for the resident's use.

(e) Windows shall be provided with shades or draperies adequate to control glare and maintain privacy.

(f) Each living room for residents' use shall be provided with a sufficient number of reading lamps, tables, and comfortable chairs or sofas.

(2) Furnishings—New Construction. A bedroom shall be provided with a hand washing sink with both hot and cold running water unless a toilet or bathroom facility with a sink is connected to the bedroom.

(3) Medication Storage Cabinets.

(a) Medication storage cabinets with locks shall be permitted for the storage of resident medications that do not require refrigeration within a resident bedroom.

(b) Controlled medications to be stored within medication storage cabinets in a resident's room shall be held within a separate compartment that is locked and inside of the larger medication storage cabinet in that room.

.50 Body Holding Room.

A. Body Holding Room—New Construction and Existing Nursing Home.

(1) A body holding room shall be equipped with ventilation by mechanical means at the same rate and specifications as designed for soiled linen sorting and storage areas.

(2) A nursing home shall develop and implement a method for body holding that minimizes the psychological effects on other residents.

B. Body Holding Room—New Construction. A body holding room shall be located to facilitate quiet and unobtrusive ingress and egress of bodies, convenient to the elevator and with an isolated exit.

C. Body Holding Room—Existing Nursing Home. If a body holding room is not provided, a holding area shall be designated that approximates the above conditions.

.51 Resident Bathroom Amenities.

A. Bathing.

(1) There shall be at least one separate room or compartment with a bathtub, shower, or other bathing device, as approved by the Department, for every 15 licensed beds.

(2) The compartment shall be large enough to accommodate:

(a) The resident;

(b) A caregiver; and

(c) A wheelchair, shower chair, or shower bed.

B. Toilets.

(1) For every eight beds, there shall be at least one toilet enclosed in a separate room or stall.

(2) Each floor shall have at least one toilet room large enough to:

(a) Accommodate:

(i) The resident;

(ii) A wheelchair; and

(iii) A caregiver; and

(b) Permit toilet assistance or training.

C. Sinks.

(1) For every four licensed beds, there shall be at least one hand washing sink.

(2) For hand washing purposes, there shall be a towel dispenser and a supply of paper towels and soap dispenser adjacent to each sink.

[.29] .*52* Equipment and Supplies for Bedside Care *and Therapy*.

A. Needs of **[**Patients**]** *Residents*.

(1) There shall be sufficient equipment to meet the needs of the **[**type patients**]** *residents* admitted. **[**It shall be the responsibility of the**]**

(2) The administrator *shall* **[**to**]** obtain specific items required for individual cases where requested by the attending physician or **[**supervisor of care services**]** *medical director*.

(3) The Department may require *that the nursing home have* specific types of equipment based on the needs of the **[**patients**]** *residents.*

(4) **[**All facilities**]** *A nursing home* shall establish and enforce a written preventive maintenance program to ensure that all **[**essential mechanical, electrical, and patient care**]** *resident care and therapy* equipment is maintained in safe operating condition.

B. Use of **[**Hot Water Bottles and, Ice Caps**]** *Hot Packs, Ice Packs, and Other Therapeutic Medical Devices.*

(1) Covers shall be placed on hot **[**water bottles and, ice caps**]** *packs, ice packs and other temperature-related therapeutic medical devices* before they are placed in a bed or on a **[**patient**]** *resident.*

(2) The **[**water**]** temperatures **[**in hot water bottles**]** *in the building, hot packs, and therapeutic equipment* may not exceed 120°F *or 49°C*. **[**Heating pads may not be used instead of hot water bottles.**]**

(3) The use of hot and cold medical devices shall be:

(a) Consistent with manufacturer' guidelines and nursing home policies; and

(b) Maintained and applied by trained staff.

10.07.02.30

[.30] .*53* Rehabilitation Facilities — Space and Equipment.

A. Unless otherwise indicated, all general requirements apply to both new construction and an existing nursing home.

B. General Requirements.

[A.**]** *(1)* Space.

[(1)**]** *(a)* **[**There**]** *A nursing home* shall **[**be**]** *provide* adequate space **[**for the reception, examination, and treatment of patients; storage of**]** *to:*

(i) Receive, examine, and treat residents;

(ii) Store supplies and equipment, including wheelchairs and stretchers; and **[**office**]**

(iii) Provide office space for the *employed* personnel **[**employed;**]** *to work*.

[(2)**]** *(b)* **[**Seventy-five**]** *A nursing home shall allot 75* square feet **[**shall be allotted**]** for treatment area per **[**patient**]** *resident,* based on peak treatment schedules.

[Agency Note: Recommended space: Storage—10 percent of area designated for exercise and rehabilitation; Office—one therapist, 110 square feet; two or more, 85 square feet per therapist.**]**

[(3)**]** *(c)* **[**Space may be planned and arranged**]** *A nursing home shall plan and arrange space* for shared use by physical therapy and occupational therapy staff and **[**patients**]** *residents,* if scheduling permits.

(d) A nursing home may distribute space in the following manner:

(i) Storage space shall comprise at least 10 percent of the area designated for exercise and rehabilitation; and

(ii) Office space shall be at least 110 square feet for one therapist, or 85 square feet per therapist if there are two or more.

[B.**]** *(2)* Equipment.

[(1)**]** *(a)* Equipment shall **[**be of a type that will provide**]** *allow for providing* safe and effective **[**patient**]** *resident* care.

[(2)**]** *(b)* All electrical equipment shall be calibrated according to *the* manufacturers' directions and shall be **[**periodically**]** serviced *periodically* as part of a preventive maintenance program. A sticker bearing the date of the most current inspection shall be affixed on each piece of equipment.

[(3)**]** *(c)* All electrical equipment shall be **[**periodically**]** tested *periodically* for proper grounding, current leakage, and calibration where appropriate.

[(4)**]** *(d)* **[**Operator's**]** *The operator's* instruction **[**booklet**]** *manual* shall be available in a designated location *or accessible electronically* at all times.

[(5)**]** *(e)* All flammables shall be stored in compliance with NFPA **[**30, flammable and combustible liquids code**]** *99 Health Care Facilities*.

[(6)**]** *(f)* **[**Due care**]** *Adequate exhaust ventilation* shall be **[**taken in**]** *provided when* using vaporous materials or pollutants.

[C.**]** *(3)* Toilet Facilities in Rehabilitation Area—New Construction. **[**In new construction, facilities**]**

(a) A nursing home with rehabilitation areas shall provide a **[**lavatory**]** *hand washing sink* and toilet which meet **[**ANSI**]** *Guidelines for Design and Construction of Residential Health, Care, and Support Facilities* standards for *residents who are dependent on the use of a* wheelchair **[**patients**]**. **[**These facilities**]**

(b) The nursing home shall be readily accessible to the **[**rehabilitation patients**]** *residents receiving rehabilitative services.*

(c) Toilets and bathing rooms within a rehabilitation area shall be equipped with a nurse call system.

[.31] .*54* Dayroom and Dining Area.

A. *General Requirements.* Resident Dining, Occupational Therapy, and Activities Program. **[**There**]** *The nursing home* shall **[**be provided**]** *provide* one or more attractively furnished areas of adequate size for resident dining, occupational therapy, and social activities. Activities space *shall be* of adequate size to meet the needs of the residents *and* shall be located on each floor occupied by residents.

B. Dining Area. **[**In all facilities, the**]**

(1) A nursing home shall provide dining **[**area shall be**]** *areas* large enough to accommodate all **[**patients able to eat out of their rooms**]** *residents who eat there at the same time*.

(2) There shall be an allowance of at least 12 square feet per **[**ambulatory patient**]** *resident***[**; this**]**. *This* allowance shall be substantially increased proportionate to *the number of residents who depend on using a* wheelchair **[**cases**]**. **[**There shall be at least 12 square feet per bed for 50 percent of the total licensed beds.**]**

(3) The height of tables provided in dining areas shall accommodate each resident using a wheelchair.

C. Dayroom Area. Dayroom areas shall be provided**[**, adequate**]** *that are:*

(1) Adequate for the **[**patients capable of using them**]** *residents located on each nursing care unit;* and

(2) Located convenient to **[**patients'**]** *the residents'* bedrooms.

D. Multi-purpose Room. **[**If**]**

(1) The nursing home shall provide a multi-purpose room **[**is used**]** for dining, occupational therapy, *physical therapy,* and social activities**[**, there**]**. *There* shall be sufficient space to accommodate all activities without **[**interference**]** *interfering* with each other.

(2) **[**The total areas**]** *The nursing home shall* set aside *areas* for **[**patients'**]** *residents'* dining and recreation **[**areas shall be no less than**]** *that total at least* 30 square feet per *licensed* bed for the first 100 beds **[**and**]**, *plus* 27 square feet per *licensed* bed for all beds in excess of 100.

(3) Areas that meet this requirement may include:

(a) Reception areas;

(b) Lobbies, portion not required for egress per NFPA 101 Life Safety Code, as are applicable to nursing homes;

(c) Hair care;

(d) Salon rooms;

(e) Resident gift shops;
(f) Theater;
(g) Auditorium;
(h) Spiritual worship;
(i) Meditation areas;
(j) Dayrooms;
(k) Dining areas;
(l) Libraries; and
(m) No more than 50 percent of the floor area of all occupational therapy and physical therapy areas, and other areas as approved by the Department.

[.32] .*55* Dietetic Service Area.

A. General Requirements. Unless otherwise indicated, all general requirements apply to both new construction and an existing nursing home.

[A.**]** *B.* Food Service Department. **[**The location of the food service are shall be approved by the Department. A facility which holds full licensure as of the adoption date of these regulations shall be considered as having an appropriately located food service area.**]**

(1) The size and location of the food service area shall comply with COMAR 10.15.03.

(2) A catered or satellite system shall be covered by a contract approved by the Department.

(3) The vendor providing the food shall have a valid food service permit.

[B.**]** *C.* Outside Service Entrance. A convenient outside service entrance shall **[**be planned**]** *exist* to facilitate receiving food supplies and the disposal of waste.

[C.**]** *D.*—**[**D.**]** *E.* (text unchanged)

[E.**]** *F.* Janitor's Closet or Service Area.

(1) **[**New Construction. A janitor's**]** *Janitors Closet—New Construction.* A janitor's closet or service alcove for *the* exclusive use of food service areas shall be provided in, or adjacent to, the dietetic service department. **[**It**]**

(2) The janitor's closet or service alcove shall be **[**equipped**]***:*

(a) Equipped with **[**a**]***:*

(i) A utility sink**[**, storage**]***;*

(ii) Storage shelves**[**,**]***;* and **[**a**]**

(iii) A rack for hanging brooms and mops*; and*

(b) Connected to mechanically operated exhaust ventilation.

[(2) Existing Facility. A utility sink shall be provided within reasonable distance from the food service department for its use, but it may be shared with other activities. Space near the utility sink shall be provided for the storage of brooms, mops, and cleaning materials.**]**

(3) The plumbing fixture for the utility sink within a janitor's closet shall be provided with an approved back-flow prevention device.

[F.**]** *G.* Space.

(1) There shall be sufficient floor space in the food service department to permit all activities to function efficiently without overcrowding**[**:**]** *or increasing the risk for cross-contamination of food or equipment from soiled surfaces.*

[(1) New Construction. New construction providing a conventional type food service program shall have the following minimal space requirements (excluding bulk food-storage areas, dining areas, and separate floor pantries). Modification of the following minimum space will be made in the event that the facility can demonstrate that the use of convenience food, disposables, or equipment, require less space for operation. However, once a facility elects to use these procedures or systems and a modification is granted, the systems may not be changed without prior approval of the Department. The Department in these cases may require additional space to be provided.**]**

(2) Minimum Space Requirements—New Construction.

Home's Licensed Capacity for **[**Patients**]** *Residents*	Minimum Space
(a)—(d) (text unchanged)	

[(2) Renovations of existing kitchens shall be approved by the Department which will consider modification of the minimum space requirement based on space available, costs, and type of service.**]**

(3) Space—Existing Nursing Home.

(a) A nursing home that holds full licensure as of the adoption date of these regulations shall be considered to have an adequate size dietetic service department.

(b) Renovations of **[**existing**]** *all* kitchens shall be approved by the Department, which will consider modification of the minimum space requirement based on space available, costs, and type of service.

[(3)**]** *(4)* Aisle space between working areas shall be at least 3 feet**[**;**]**, *and aisle space for* main traffic shall be at least 5 feet *wide*.

[(4)**]** *(5)* (text unchanged)

[Agency Note: 10 foot ceiling height is recommended.

(5) Existing Facility. A facility which holds full licensure as of the adoption of these regulations shall be considered as having an adequate size dietetic service department.**]**

(6) If the licensed capacity of a **[**facility**]** *nursing home* is increased, or *if* meals are provided to anyone outside of the **[**facility**]** *nursing home* from the food service area of the **[**facility**]** *nursing home*, the **[**facility**]** *nursing home* shall provide *an* additional food service area in accordance with **[**§F(1), (3), and (4) of this regulation**]** *this chapter*. The additional food service area required when meals are provided to anyone outside of the **[**facility**]** *nursing home* is to be calculated by using the total number of individuals to whom meals are provided.

(7) The kitchen space requirement **[**in §F(6) of this regulation**]** *as described in this regulation* does not apply to occasional special functions such as picnics or dinners for residents, volunteers, families, or community groups **[**provided**]** *as long as* the **[**facility**]** *nursing home* certifies to the Department that **[**the provision of**]** *providing* meals for **[**the particular**]** *a* special function will not adversely affect or detract from the timely provision of meals to the *nursing home's* residents **[**of the facility**]**.

[G.**]** *H.* Floor Pantries—New Construction.

(1) **[**In a decentralized**]** *There shall be at least one* food service**[**, the area or areas for**]** floor **[**pantries shall be approved by the Department**]** *pantry per nursing care unit.*

(2) (text unchanged)

[Agency Note: The following equipment is recommended:

(a) Equipment to maintain food at correct temperature;
(b) Toaster;
(c) Hot plate;
(d) Refrigerator;
(e) Ice-making machine or ice-storage container;
(f) Work space for tray preparation;
(g) Equipment for delivery of completed trays;
(h) Three-compartment sink or dishwasher;
(i) Cabinet for dry storage and supplies;
(j) Storage for trays, tableware, flatware, and utensils;
(k) Hand washing sink with soap and towel dispenser or approved drying device.

(3) At least one nourishment pantry convenient to the nursing station shall be provided on each floor in facilities using a centralized food service system. Minimum equipment shall include the following:

(a) Refrigerators;
(b) Cabinets for dry storage and supplies;
(c) Work space;

(d) Sink for purposes other than handwashing;

(e) Handwashing sink with soap and towel dispenser or approved drying device.**]**

(3) The equipment provided in food service floor pantries shall comply with the requirements of the local health department.

(4) A food service floor panty shall include the following:

(a) Refrigerator;

(b) Cabinets for dry storage and supplies;

(c) Work space;

(d) Sink for purposes other than hand washing;

(e) Hand washing sink with soap dispenser and disposable paper towel dispenser; and

(f) Except for trays that are assembled in the main kitchen and then distributed to the nursing care units, equipment to hold hot food if bulk foods are plated and served to the residents on the nursing care unit.

(5) A food service floor panty shall include the following additional equipment:

(a) Toaster;

(b) Ice-making machine or ice-storage container;

(c) Work space for tray preparation;

(d) Equipment to deliver completed trays;

(e) Three-compartment sanitizing sink or dishwasher;

(f) Cabinet for dry storage, supplies, and kitchenware; and

(g) Storage for trays, tableware, flatware, and utensils.

[H.**]** *I.* Equipment for Food Preparation and **[**Distribution. The following requirements shall be met:**]** *Distributions.*

(1) Adequate equipment for preparation, serving, and distribution of food shall be provided**[;]**.

(2) A dumbwaiter, elevator, or ramp shall be provided in a **[**facility**]** *nursing home* of more than one story where more than eight **[**patients**]** *residents* above or below the kitchen level**[,]** receive bedside tray service**[;]**.

(3) Equipment to protect food from dust or contamination and to maintain food at proper temperature shall be provided **[**for transportation of**]** *to transport* food to the **[**patients**]** *residents*.

[I.**]** *J.* Dry Food Storage. **[**The following requirements shall be met:**]**

(1) *Food Storage Space.*

(a) Adequate space shall be provided **[**for the storage of**]** *to store* food supplies**[;]**.

[Agency Note:**]**

(b) The amount of storage space needed **[**is dependent upon**]** *to store food depends on the* frequency of deliveries.

(c) It is recommended that 2 square feet per **[**patient**]** *resident* be provided and that the *dry food storage* area be located within easy access to the receiving area and the kitchen.

(2) The storeroom shall be cool and well-ventilated**[;]**.

(3) (text unchanged)

[Agency Note: Care should be exercised in the rotation of stored food so that old stock is used first.**]**

[J.**]** *K.* Refrigerated Storage.

(1) Adequate refrigerated storage, refrigerators, and frozen food storage cabinets**[,]** shall be provided **[**which are**]** *and* regulated to maintain temperatures prescribed in COMAR 10.15.03 **[**Food Service Facilities**]**.

(2) Food in storage shall be arranged so that new food items are stored behind old food items.

(3) The oldest foods shall be used first, known as the first in, first out method.

L. Mobile Food Carts.

(1) All policies and procedures for the mobile food cart shall be approved by the Department and the nursing home's local health department before implementation.

(2) Policies and procedures shall address, at a minimum the following:

(a) Identify how many staff members will assist with serving food items, pushing the mobile cart, and delivering meals to the residents;

(b) Ensure proper food protection on three sides to protect the food;

(c) Maintain proper temperature control, hot food at a minimum of 135°F and cold food maintained at a maximum of 41°F;

(d) Record of temperatures before serving meals on each individual unit;

(e) Ensure proper food temperatures; and

(f) Hand washing.

(3) The hand washing policy and procedures referenced in §L(2)(f) of this regulation shall include the following:

(a) Use of a hand sanitizer in lieu of proper hand washing is not permitted;

(b) Bare hands may not have direct contact with ready-to-eat food;

(c) Hand washing shall be done before starting meal service on each individual unit;

(d) When and at what location hand washing will be done;

(e) Hand washing may not be done in resident rooms;

(f) Access to a hand washing sink may not require the opening of a door;

(g) The hand washing sink shall be in a central, unobstructed location;

(h) Mobile hand sinks are acceptable as long as a written procedure to meet sanitation requirements is developed;

(i) The hand sink shall be supplied with hot and cold water under pressure;

(j) The unit shall be supplied with adequate waste containers to hold dirty water until dumping is done; and

(k) The written procedure shall include the disposal of the dirty water.

[.33] .*56* Administrative Areas.

A. Unless otherwise indicated, all general requirements apply to both new construction and an existing nursing home.

[A.**]** *B.* **[**New Construction. In new construction,**]** *Administrative Areas—New Construction.*

(1) A nursing home shall provide a separate room or rooms **[**shall be provided**]** for the administrator and *administrative support* staff. Sufficient areas shall be provided to accommodate all necessary office furniture, files, and other equipment**[**, including provision for**]** *and enable* the safe storage of **[**patients'**]** *residents'* valuables.

(2) In new construction, separate locker rooms and a toilet facility shall be provided for male and female employees in each nursing home.

[B.**]** *C. Administrative Areas*—Existing **[**Facilities**]** *Nursing Homes*. **[**In existing facilities,**]**

(1) The nursing home shall provide an administrative area **[**shall be provided which**]** *that* is suitable for conducting business or discussing **[**in privacy problems**]** *problems privately* with the **[**patient's sponsor**]** *resident's representative.*

(2) The nursing home shall provide a sufficient number of lockers that can be locked securely for all employees working at any one time, and provision shall be made for the employees to use the toilet facility at a convenient location.

[C. Lobby Area. In new construction, facility shall provide a lobby area. Public toilets for both sexes shall be located conveniently to this area. Telephone service and drinking fountains which meet ANSI standards also shall be provided.**]**

D. Lobby Area—New Nursing Home. A nursing home shall provide a lobby area that shall have:

(1) Public toilets for both sexes, either separate or unisex, located conveniently to this area;

(2) Access to telephone; and

(3) Drinking fountains or other drinking water dispensers that meet Guidelines for Design and Construction of Residential Health, Care, and Support Facilities.

[D.**]** *E.* (text unchanged)

[E.**]** *F.* Employee Facilities—Existing Facilities. **[**In**]** *An* existing **[**facilities**]** *nursing home shall:*

(1) Have a sufficient number of lockers **[**capable of being**]** *that can be* securely locked **[**shall be provided**]** for all employees working at any one time**[**,**]***;* and **[**provision shall be made**]**

(2) Provide for the *staff* use of toilet facilities at a convenient location.

[.34] .*57* Housekeeping Services, Pest Control, and Laundry.

A. General Requirements. Unless otherwise indicated, all general requirements apply to both new construction and an existing nursing home.

[A.**]** *B.* (text unchanged)

[B.**]** *C.* Cleanliness and Maintenance. **[**The following shall be observed:**]**

(1) The building and all its parts and facilities shall be kept in good repair, neat, and attractive. The safety and comfort of the **[**patients**]** *residents* shall be the **[**first**]** *primary* consideration.

(2) All walls, floors, ceilings, windows, and fixtures shall be kept clean. Interior walls and floors shall be of a **[**character to permit**]** *type to allow* frequent and easy cleaning.

(3) The **[**facility**]** *nursing home* shall be kept free of unnecessary accumulations of personal possessions, boxes, trunks, suitcases, papers, unused furniture, bed clothing, linens, bric-a-brac, and similar items.

(4) Storage areas shall be:

(a) Kept clean and orderly; and

(b) Readily accessible for:

(i) Housekeeping;

(ii) Maintenance; and

(iii) Pest control servicing.

[(4)**]** *(5)* (text unchanged)

[(5)**]** *(6)* Pest Control. The **[**facility**]** *nursing home* shall **[**be**]***:*

(a) Be maintained free of insects and rodents by operation of an active pest-control program, either by use of maintenance personnel or by contract with *a* pest-control company**[**.**]***;*

(b) **[**Care shall be exercised in the usage and storage of toxic**]** *Use and store toxic* and flammable insecticides and rodenticides *with care* **[**.**]***;*

(c) **[**Usage shall conform**]** *Ensure that usage of toxic and flammable insecticides and rodenticides conforms* to the U.S. Environmental Protection Administration and Maryland Department of Agriculture requirements**[**.**]***;*

[Agency Note: Refer to Regulation .26 S of this chapter for window screening requirements.**]**

(d) Be protected to prevent the entry and harborage of rodents and insects;

(e) Install and effectively maintain:

(i) Screen doors that fit tightly when closed;

(ii) Easily adjusted closely fitted window screens;

(iii) Rat-proofing devices; or

(iv) Other approved deterrents; and

(f) Effectively protect all openings to the outside against the entry of insects by:

(i) Closed doors;

(ii) Closed windows; or

(iii) Other means.

[C. Laundries-New Facilities. In laundries in new facilities there shall be a physical separation between the "clean" and "soil" areas. There shall be provision for the laundering of patients' clothing. Hot water temperatures in laundries shall conform to applicable standards of the International Fabric Care Institute for laundry water supply.

D. Laundries-Existing Facilities. In existing facilities where a physical separation is not possible, exceptions as to approved laundry facilities may be made at the discretion of the Department. There shall be provision for the laundering of patients' clothing. Hot water temperatures in laundries shall conform to applicable standards of the International Fabric Care Institute for laundry water supply.**]**

(7) Laundry Services.

(a) A nursing home shall provide laundry service, whether on-site or off-site.

(b) Laundry service shall be provided to meet the residents' needs.

(c) All laundry shall be processed and handled in a manner that prevents the spread of infections. Staff working in laundry shall be given personal protective equipment, including:

(i) Disposable gloves;

(ii) Masks; and

(iii) Body coverings.

(d) All laundry shall be processed through the use of sufficiently hot water, chemical agents, or a combination of the both, to remove or destroy infectious biological materials.

(e) Clean and Soiled Areas.

(i) There shall be a physical separation between the clean and soiled areas.

(ii) The soiled area shall allow for sorting and washing soiled laundry.

(iii) The clean area shall allow for drying and folding of clean laundry.

(iv) All soiled areas within a laundry shall be connected to mechanically operated exhaust ventilation.

(f) The system provided in laundries may not allow the spread of airborne contaminants to other parts of the nursing home that are occupied by residents, staff not working in the laundry, and the general public.

(g) The plumbing fixtures for all water supply connections to washing machines and the plumbing fixtures for all utility sinks shall have an integrated atmospheric vacuum breaker or other approved back-flow prevention devices.

[.35] .*58* Resident Care Management System.

A. (text unchanged)

B. The resident care management system shall **[**be comprised**]** *consist* of three **[**interrelated**]** *related* components:

(1)—(3) (text unchanged)

[.36] .*59* Resident Status Assessment.

[A. Disciplines shall record all assessments on a form approved by the Department.

B. State Operations Manual for Provider Certification, Appendix R—Resident Assessment Instrument for Long-Term Care Facilities, Transmittal No. 272, April 1995 and Transmittal No. 22, December 2000, U.S. Department of Health and Human Services, Center for Medicare and Medicaid Services, is incorporated by reference.**]**

[C.**]** *A.* A **[**facility**]** *nursing home* shall use the following forms and procedures for resident assessment as described in the **[**State Operations Manual for Provider Certification**]** *CMS Manual System, Pub. 100-07 State Operations Provider Certification and in the CMS Long-term Care Facility Resident Assessment Instrument 3.0 User's Manual*:

(1) *The* Minimum Data Set (MDS) version as determined by the U.S. Department of Health and Human Services, Centers for

Medicare and Medicaid Services, in Transmittal No. 22, referenced in §B of this regulation.

(2) **[**Resident**]** *MDS Care Area* Assessment **[**Protocol Summary**]** *process*; *and*

[(3) MDS Quarterly Assessment Form;

(4) Maryland Monthly Assessment; and**]**

[(5)**]** *(3)* (text unchanged)

[D.**]** *B.* The **[**facility**]** *nursing home* shall complete all assessments in accordance with the provisions of 42 CFR **[**§**]**§483.20 **[**and 413.343**]**, *as amended*.

[E.**]** *C.* **[**All facilities**]** *A nursing home* certified for participation in Medicare or Medicaid shall complete and electronically submit the assessment to the **[**Department not later than 31 days after completion of the assessment**]** *Quality Improvement and Evaluation System (QIES) Assessment Submission and Processing (ASAP) system. The assessment shall:*

(1) Use a standard record layout format;

(2) Use a data dictionary as identified by the automated data processing requirements; and

(3) Pass standardized edits as defined by CMS and the State.

D. A federally certified nursing home shall:

(1) Encode assessment data as specified in the CMS Long-term Care Facility Resident Assessment Instrument 3.0 User's Manual; and

(2) Transmit assessment data as specified in the CMS Long-term Care Facility Resident Assessment Instrument 3.0 User's Manual except as excluded in §E of this regulation.

[F.**]** *E.* A **[**facility**]** *nursing home licensed* as a **[**comprehensive or extended care facility**]** *nursing home* but not certified for participation in the Medicare or Medicaid Program shall comply with the **[**State Operations Manual for Provider Certification**]** *CMS Manual System, Pub. 100-07 State Operations Provider Certification, and with RAI instructions in the CMS Long-term Care Facility Resident Assessment Instrument 3.0 User's Manual*, except that data may not be **[**electronically**]** submitted *electronically* to the Department.

[.37] *.60* Care Planning.

A. An interdisciplinary team shall complete *or revise as necessary* a **[**resident specific**]** *resident-specific* care plan for each resident within 7 calendar days following completion of **[**all**]** assessments, *including:*

(1) Admission assessment;

(2) Annual assessment;

(3) Quarterly assessment; and

(4) Significant change in the resident's condition.

[B. A care plan under this regulation shall be based upon assessments conducted at the following times:

(1) Admission;

(2) Annual;

(3) Quarterly; and

(4) Significant change in the resident's condition.**]**

[C.**]** *B.* **[**A facility shall give a**]** *Care Plan Meeting. The nursing home shall, with the resident's consent:*

(1) Give an interested and appropriate family member or resident's representative 7 calendar days advance notice, in writing, of the location, date, and time of **[**the**]** *a* care planning conference for a resident **[**for whom a family member or representative is interested.**]***;*

(2) Strive to accommodate the schedules of invited family members and resident's representatives when scheduling care plan meetings; and

(3) **[**The notification shall include**]** *Include* an invitation for the family member or resident's representative to attend the conference.

[D.**]** *C.* The **[**facility**]** *nursing home* shall hold the care planning conference not later than 7 calendar days after **[**completion of**]** *completing* the assessment, but may hold the conference **[**earlier**]** *sooner* if agreed to by the resident, a family member, or a resident's representative.

[E.**]** *D.* Organization of Care Plan.

(1) **[**Problems**]** *Resident's problems* and needs shall be identified, based upon the interdisciplinary assessment. The care plan shall address all of the resident's special care requirements necessary to improve or maintain the resident's status. The interdisciplinary team shall incorporate resident input into the care plan.

(2) The team shall establish goals for each problem or need identified, *or a combination thereof.* The **[**goal**]** *goals* shall be realistic, practical, and tailored to the resident's needs. Goal **[**outcome**]** *outcomes* shall be measurable in time or degree, or both.

(3) Approaches to accomplishing each goal shall be established. Approaches shall **[**communicate**]** *indicate* the work to be done, **[**by whom it is to be done**]** *who is to do it*, and how frequently it is to be **[**performed**]** *done*.

[F.**]** *E.*—**[**G.**]** *F.* (text unchanged)

[.38] *.61* [Special] Skin Record.

A. (text unchanged)

B. The staff shall document **[**progression**]** *progress* of the condition or conditions weekly until the condition or conditions have healed.

C. (text unchanged)

[.39] *.62* Geriatric Nursing Assistant *Training* Program.

A. **[**Facility**]** *Nursing Home* Responsibilities.

(1) **[**Each facility**]** *A nursing home* shall conduct or arrange a **[**nurses' aide**]** *geriatric nursing assistant* training program for unlicensed personnel assigned *to* direct **[**patient**]** *resident* care duties. **[**This requirement does not extend to physical or occupational therapy assistants or to other employees performing delegated, non-nursing functions. The facility may use an outside program if it has been reviewed and approved by the Department.**]** *The Maryland Board of Nursing shall approve the geriatric nursing assistant training program curriculum.*

[(2) Each facility shall submit a written proposal to the Department for satisfying the developmental training program requirement.**]**

(2) A nursing home may not employ an individual as a geriatric nursing assistant until the individual has successfully completed a competency evaluation approved by the Maryland Board of Nursing.

(3) A **[**nurse aide**]** *geriatric nursing assistant* is deemed to satisfy the requirements of this chapter if that individual has successfully completed a training program approved by the State before July 1, 1990, or has been "grandfathered" under previous regulations.

(4) Other persons hired as *geriatric nursing assistants* **[**nurse aides after July 1, 1990**]** shall complete an approved *geriatric nursing assistant training* program within 120 days of employment.

(5) The **[**facility**]** *nursing home* shall **[**record**]***:*

(a) Record the satisfactory completion of the program in each employee's personnel record**[**. A**]***; and*

(b) Give the employee a certificate **[**evidencing**]** *signed by the program's teacher or trainer as evidence of* completion of the program **[**shall be issued to the employee. The signature of the program's teacher or trainer shall be required for authentication**]**.

B. Course Structure.

(1) **[**Effective with employees hired on or after July 1, 1990, the**]** *The geriatric nursing assistant* training program **[**course**]** shall consist of 75 hours or more, and include at least 37.5 hours of classroom instruction and **[**not less than**]** *at least* 37.5 hours of supervised clinical experience in long-term care.

(2) The course content shall adhere to the **[**Geriatric Nursing Assistant Program**]** *geriatric nursing assistant training program* curriculum *approved by the Maryland Board of Nursing* **[**in Regulation .40 of this chapter**]**.

[(3) The course instructor shall have overall supervisory responsibility for the operation of the program, and shall:

(a) Be a registered nurse licensed in Maryland;

(b) Have at least 2 years of nursing experience, at least 1 year of which shall have been in caring for the elderly or chronically ill in the past 5 years; and

(c) Have attended a program of instruction in training methodologies approved by the Department.

(4) Supplementary instructors shall be drawn from qualified resource personnel such as registered nurses, licensed practical/vocational nurses, pharmacists, dieticians, social workers, sanitarians, fire safety experts, nursing home administrators, gerontologists, psychologists, physicians, physical and occupational therapists, activities specialists, speech/language/hearing therapists, and residents' rights experts, as well as persons with relevant experience, such as residents or experienced aides.

(5) Adequate numbers of instructors are required to ensure that each trainee is provided effective assistance and supervision which does not endanger the safety of residents.

(6) Each training program shall have behaviorally stated objectives for each unit of instruction, stating measurable performance criteria.

(7) Each trainee shall be clearly identified as a trainee during all skills training portions of the training.

(8) During training, a trainee may provide only that care for which the trainee has demonstrated competency to the satisfaction of the appropriate program instructor.

(9) An orientation program shall be provided to trainees for a nursing facility in which training is to occur. This program shall consist of:

(a) An explanation of organizational structure, policies, and procedures;

(b) Discussion of the philosophy of care;

(c) Description of the resident population; and

(d) Employee rules.

(10) The orientation may not be included in the required 75 hours of the training course.

(11) A training program shall provide at least 16 hours of training prior to a trainee's direct assignment to resident care. This instruction shall include the following topics:

(a) Infection control;

(b) Safety and emergency procedures;

(c) Promoting residents' independence;

(d) Respecting residents' rights; and

(e) Communication and interpersonal skills.**]**

[.41] .*63* Paid Feeding Assistants.

A.—B. (text unchanged)

C. A **[**facility**]** *nursing home* that uses a paid feeding assistant shall ensure that the paid feeding assistant feeds only residents who do not have complicated feeding conditions including, but not limited to:

(1)—(2) (text unchanged)

(3) Recurrent lung **[**aspirations**]** *aspiration*; or

(4) (text unchanged)

D. Protocol. The **[**facility**]** *nursing home* shall develop a protocol for selecting residents who are appropriate for feeding by a paid feeding assistant. The **[**facility**]** *nursing home* shall select **[**a resident**]** *eligible* residents based on the:

(1)—(3) (text unchanged)

E. State-Approved Training. A State-approved training course for paid feeding assistants shall consist of at least 8 hours of training that includes:

(1)—(8) (text unchanged)

(9) Successful completion of a two-part test that includes a:

(a) (text unchanged)

(b) Demonstration of proper feeding skills performed on a resident **[**under observation**]** *while being observed*.

F.—G. (text unchanged)

[.45] .*64* Quality Assurance Program.

A. **[**By January 1, 2001, each facility**]** *A nursing home* shall establish an effective quality assurance program that includes components described in this regulation and Regulation **[**.46**]** .*65* of this chapter.

B. (text unchanged)

C. The nursing **[**facility**]** *nursing home* shall establish a quality assurance committee that includes at least:

(1) **[**A**]** *The nursing home* director of nursing;

(2) **[**An**]** *The nursing home* administrator;

(3) (text unchanged)

(4) **[**A**]** *The nursing home* medical director;

(5) A **[**dietitian**]** *dietitian-nutritionist*; and

(6) A geriatric nursing assistant **[**of**]** *at* the **[**facility**]** *nursing home*.

D. The Quality Assurance Committee. The quality assurance committee shall:

(1) Designate **[**a chairperson to manage**]** *an individual to oversee* committee activities;

(2) Meet monthly to **[**accomplish**]** *carry out* quality assurance activities;

(3) **[**Assist in developing**]** *Help develop* and approve the **[**facility's**]** *nursing home's* quality assurance plan;

(4) Submit the quality assurance plan to the Department's Office of Health Care Quality at the time of *initial application for* licensure or at the time of licensure renewal;

(5) Submit any **[**change in**]** *changes to* the quality assurance plan to the Office of Health Care Quality within 30 days of the **[**change**]** *changes*;

(6)—(7) (text unchanged)

E. (text unchanged)

F. Quality Assurance Committee—Non-members. Anyone not on the committee shall be informed of how to present and submit concerns to:

(1) The committee;

(2) A member of the resident council; or

(3) A member of the family council if one exists.

[.46] .*65* Quality Assurance Plan.

A. The **[**facility's**]** *nursing home's* quality assurance committee shall develop and implement a quality assurance plan that includes procedures for:

(1)—(2) (text unchanged)

(3) **[**Patient**]** *Resident* complaints;

(4)—(5) (text unchanged)

B. Concurrent Review. The quality assurance plan shall include:

(1)—(2) (text unchanged)

(3) Procedures to take action when there is a change in the resident's condition, *including:*

(a) Communicating changes to the director of nursing or the resident's attending physician; and

(b) Changing the resident's plan of care as necessary; and

(4) Procedure for **[**referral of**]** *referring* data to the quality assurance committee, when appropriate.

C. Ongoing Monitoring. The quality assurance plan shall include:

(1) A description of the measurable criteria for ongoing monitoring of all aspects of resident care including:

(a) (text unchanged)

(b) Prevention of **[**decubitus**]** *pressure* ulcers, dehydration, and malnutrition;

(c)—(f) (text unchanged)

(2) The methodology for **[**collection of**]** *collecting* data;

(3) The methodology for **[**evaluation**]** *evaluating* and **[**analysis of**]** *analyzing* data to determine trends and patterns;

(4)—(7) (text unchanged)

D. Patient Complaints. The quality assurance plan shall include:

(1) A description of a complaint process that effectively addresses resident **[**or**]** *and* family concerns including:

(a) The designated person or persons and their phone numbers to receive complaints **[**or**]** *and* concerns;

(b) (text unchanged)

(c) The time frames for investigating complaints **[**dependent upon**]**, *depending on* the nature or seriousness of the complaint;

(2)—(3) (text unchanged)

E. Accidents and Injuries. The quality assurance plan shall include:

(1)—(2) (text unchanged)

(3) A policy statement that **[**includes a provision that reporting**]** *ensures that* incidents can be **[**done**]** *reported* without fear of reprisal;

(4) A description of how internal investigations of accidents and injuries will be handled including:

(a) (text unchanged)

(b) Interview of the resident, staff, and **[**witness**]** *any witnesses*;

(c)—(d) (text unchanged)

(5) A description of the process for notifying *a* family or guardian about the incident;

(6) A description of a process for the ongoing evaluation of *patterns and trends in* accidents and injuries **[**to determine patterns and trends**]**; and

(7) (text unchanged)

F. (text unchanged)

[.48] .*67* Posting of Staffing.

A. A nursing home shall post *a notice* on each floor or unit of the nursing home, for each shift, a notice that **[**explains**]** *gives* the ratio of licensed and unlicensed staff to residents.

B. The posting on each floor shall include:

(1) Names of the staff members on duty and the room numbers of the residents **[**that**]** *to whom* each is assigned;

(2) Name of the charge nurse or person *who is* in charge of the unit; **[**and**]**

(3) If the person in charge is not a registered nurse, the name of the registered nurse responsible for the unit; and

[(3)**]** *(4)* (text unchanged)

C. (text unchanged)

D. A record of the posting shall be retained for 1 year.

[.49] .*68* Sanctions.

A. If a deficiency exists, the Department, in addition to the sanctions set forth in this regulation and Regulations **[**.50—58**]** *.69—.77* of this chapter, may:

(1)—(5) (text unchanged)

B. State Monitor.

(1) The duties of the State monitor shall be specified in a written agreement between the Department and the State monitor and shall include but are not limited to:

(a)—(b) (text unchanged)

(c) Issuing written reports to the Department and the nursing **[**facility**]** *nursing home*, detailing the findings of the on-site inspections and the status of **[**recommended actions that**]** *requirements and recommendations for* the **[**facility shall complete**]** *nursing home* to achieve compliance.

(2)—(4) (text unchanged)

C. (text unchanged)

D. A licensee **[**aggrieved by**]** *that disagrees with* the imposition of a sanction under §A(1) or (5) of this regulation may appeal the Secretary's action by filing a request for a hearing in accordance with Regulation **[**.59**]** *.78* of this chapter. A licensee **[**aggrieved by**]** *that disagrees with* the imposition of a sanction under §A(2) of this regulation may appeal the Secretary's action in accordance with Health-General Article, §§19-364 and 19-367, Annotated Code of Maryland.

[.56] .*75* Criminal Penalties.

A. A person maintaining or operating a nursing **[**facility**]** *home* without a license is guilty of a misdemeanor, and, on conviction, is liable for a fine of not more than $1,000 for the first offense and not more than $10,000 for each subsequent conviction *in accordance with Health-General Article, §19-358, Annotated Code of Maryland*.

B. Each day that the nursing **[**facility**]** *home* continues to operate without a license after the first conviction is a subsequent offense and may subject the operator to further criminal prosecution.

[B.**]** *C.* A person maintaining and operating a nursing **[**facility**]** *home* that is in violation of this chapter is guilty of a misdemeanor, and, on conviction, shall be fined not more than $1,000 *under the authority of Health-General Article, §19-359, Annotated Code of Maryland*.

D. Each day that the nursing **[**facility**]** *home* operates after the first conviction, without correction of the cited violation, is considered a subsequent offense and may subject the operator to further prosecution.

ROBERT R. NEALL
Secretary of Health

Title 13A
STATE BOARD OF EDUCATION

Subtitle 15 FAMILY CHILD CARE

Notice of Proposed Action

[19-055-P]

The Maryland State Board of Education proposes to:

(1) Amend Regulation **.02** under **COMAR 13A.15.01 Scope and Definitions**;

(2) Amend Regulations **.01—.03**, **.07**, and **.08** under **COMAR 13A.15.02 Registration Application and Maintenance**;

(3) Amend Regulations **.02—.05** under **COMAR 13A.15.03 Management and Administration**;

(4) Amend Regulations **.03** and **.04** under **COMAR 13A.15.04 Operational Requirements**;

(5) Amend Regulations **.02**, **.05**, and **.06** under **COMAR 13A.15.05 Home Environment and Equipment**;

(6) Amend Regulations **.02—.05** under **COMAR 13A.15.06 Provider Requirements**;

(7) Amend Regulation **.04** under **COMAR 13A.15.07 Child Protection**;

(8) Amend Regulation **.01**, repeal existing Regulation **.03**, and recodify existing Regulations **.04** and **.05** to be Regulations **.03** and **.04** under **COMAR 13A.15.08 Child Supervision**;

(9) Amend Regulations **.01**, **.04**, and **.06** under **COMAR 13A.15.10 Child Safety**;

(10) Amend Regulations **.03**, **.04**, and **.06** under **COMAR 13A.15.11 Health**;

(11) Amend Regulation **.01** under **COMAR 13A.15.12 Nutrition**;

(12) Amend Regulations **.02** and **.05—.09** under **COMAR 13A.15.13 Inspections, Complaints, and Enforcement**;

(13) Amend Regulations **.01**, **.03**, and **.04** under **COMAR 13A.15.14 Administrative Hearings**; and

(14) Amend Regulations **.03** and **.04** under **COMAR 13A.15.15 Public Access to Licensing Records**.

This action was considered by the Maryland State Board of Education at its May 22, 2018, meeting.

Statement of Purpose

The purpose of this action is to clarify certain requirements pertaining to the registration and operation of family child care homes and establish requirements for criminal background checks, swimming pool security, length of time for taking the basic health and safety training, and medical information being provided.

Comparison to Federal Standards

There is a corresponding federal standard to this proposed action, but the proposed action is not more restrictive or stringent.

Estimate of Economic Impact

I. Summary of Economic Impact. The purpose of the proposed amendments is to implement the requirements of the Child Care and Development Block Grant Act, as amended (42 U.S.C. 9858 et seq.), along with Section 418 of the Social Security Act (42 U.S.C. 618). Consistent throughout all four subtitles of regulations, the proposed amendments include statutory requirements of the Child Care and Development Fund reauthorization, modifications to provide clarity and more consistency between all subtitles, and corrections to the previous publication. The State will reimburse the cost to child care providers for the cost of fingerprinting to meet the new requirement. http://earlychildhood.marylandpublicschools.org/fingerprinting

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	(E+)	Approximately $1.0 million
B. On other State agencies:	(R+)	Approximately $11,000
C. On local governments:	NONE	
	Benefit (+) Cost (-)	Magnitude
D. On regulated industries or trade groups:		
(1) Centers and homes up-front cost of fingerprinting	(+)	Approximately $1.0 million
(2) Medical information	(+)	Approximately $1.7 million
(3) Swimming pool security	(+)	Approximately $1.0 million
E. On other industries or trade groups:	NONE	
F. Direct and indirect effects on public:	NONE	

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

A. Background Clearances: In the State has processed fingerprint reimbursement requests for 1927 providers (65% of the 2965 payment are in Family Child Care Homes) as of January 31, 2019, for a total of $984,128 in obligations. The count for reimbursement to child care centers does not include all of the staff printed for each location—only the center itself. The cost to date for reimbursement of fingerprinting costs for FY18 is $335,981 and FY 2019 is $648,147 (July 1, 2018 through January 31, 2019). It is estimated that the total cost for FY 2019 will be $700,000. Therefore, the total estimated cost to the State is $1,036,000 over FY 2018 and FY 2019. The State is providing a one-time reimbursement for fingerprinting costs to child care providers.

B. Maryland Department of Public Safety and Correctional Services (DPSCS) Criminal Justice Information System is allowed to keep $2 from the FBI background check. The State estimates there are approximately 5,368 providers going through the fingerprinting process. Therefore, estimated revenue to the DPSCS is estimated to be $10,736 over FY 18 and FY 19

D(1). Background Clearances: Child Care Centers and staff, and family child care homes and staff will incur up-front costs for meeting fingerprinting requirements. Cost for fingerprinting ranges from $35 to $75 per person. The State reimburses the cost of fingerprinting for providers meeting the new requirement. If the provider/center does not request reimbursement from the State, they would incur the cost of the fingerprinting.

D(2). Medical information for child care providers and staff of child care centers: The current number of statewide personnel in Child Care Centers, Letter of Compliance facilities, and Large Family Child Care Homes is 43,000 staff. There are 10,700 substitutes in Family Child Care who would be affected by the requirement to have medicals every two years. This is approximately 53,700 people needing bi-annual medicals, assuming they all remain employed for the two year period. Many will transfer to other sites but will remain employed in Maryland child care. The estimated cost of each medical is between $75 and $125, depending on health insurance, co-pays, etc. Using these estimates, approx. 34,905 people (65% of the 53,700 people are in Large Family Care Home) there will be people spending $100 for a medical every 2 years, which would be an approximate cost of $1,745,250 per year.

D(3). Swimming Pool Security: According to a January 2018 survey of regional child care licensing offices, there are approximately 750 child care facilities with swimming pools. It is estimated that half of these pools already meet fencing requirements and would not incur additional costs. Each fence would cost an estimated $3,000 to $5,000 depending on the size of the pool and the outdoor space. Using these estimates, 244 pool (65% of the 375 are in Large Family Care Home) owners would spend an average of $4,000 per fence for a total of $975,000 to bring all facilities into compliance. This is a one-time-only cost. All new applicants would need to meet this requirement prior to becoming licensed.

Economic Impact on Small Businesses

The proposed action has a meaningful economic impact on small business. An analysis of this economic impact follows.

Intended Beneficiaries

Background Clearances/Fingerprinting: To comply with the Child Care and Development Block Grant (CCDBG) Act referenced in Part A, the State is providing reimbursement to child care centers and family child care homes for the cost of staff fingerprinting. While these facilities/staff will incur the up-front cost for fingerprinting, the State will reimburse that cost, thereby alleviating the economic impact to child care facilities who request reimbursement.

Health and Safety Training: To comply with the CCDBG Act referenced in Part A, the State utilized the Maryland State Department of Education's Learning Management System to develop and deliver the online Health and Safety training at no cost to child care providers. The State did not incur any direct costs for the development of the training. For those providers who choose not to take the free online training, or who fail both online attempts, the training can be obtained in a face to face setting for an average cost of $35. This cost is reimbursable to providers who hold a Maryland Child Care Credential at Level 2 or higher. Child care providers can obtain the training in Spanish from Penn State Better Kid Care for $5. This training is also eligible for reimbursement through the Maryland Credentialing Program.

Intended Beneficiaries: Households

Families with children enrolled in a regulated child care facility will benefit because their children will receive care and education services from staff and administration who have met higher standards for criminal background checks, health and safety training, updated staff medical information, and whose facilities will meet requirements for protecting children from swimming pool dangers.

Intended Beneficiaries: Businesses

The amendments are not expected to have an impact on any businesses beyond the child care businesses that comply with the new requirements.

Other Direct or Indirect Impacts: Adverse

Background clearances: Facilities who incur the cost of fingerprinting ($35—$75 per person) and choose not to request reimbursement will not benefit from the alleviation of those costs by the State.

Medical information for child care providers and staff of child care centers: Individuals working in family child care or child care centers will incur the cost of medicals every two years. The estimated cost of each medical is between $75 and $125, depending on health insurance, co-pays, and other variables.

Swimming Pool Security: An estimated 375 pool owners who are licensed child care programs would spend an average of $4,000 per facility, as a one-time cost, to come into compliance with swimming pool security requirements. New applicants for child care licensure/registration would need to meet this requirement prior to becoming licensed. This additional cost may encourage some child care providers to raise the fees they charge to families.

Other Direct or Indirect Impacts: Positive

Improving the quality of child care and early education in Maryland is expected to enhance the overall reputation of Maryland's early care and education industry, and this may help attract businesses to Maryland. Higher-quality child care and early education services for children may result in those children more effectively developing the skills they will need to succeed in school and in life and may positively affect the State workforce in the years to come. Maryland's compliance with the federal CCDBG Act ensures that federal funding continues, which in turn, supports working families in Maryland through the Child Care Subsidy program and other quality initiatives to improve long term benefits to children.

Long-Term Impacts

No long-term effects on Maryland small businesses are anticipated which may differ from, compound, mitigate, or offset the initial effects described above.

Estimates of Economic Impact

(1) Cost of providing goods and services:

Some child care providers who incur costs related to the amendments may charge higher fees to families for their services. Because child care fees are determined independently by each provider, the overall change, if any, in those expenses cannot be determined.

(2) Effect on the work force:

Families in Maryland's work force with young children and school-age children using child care services will have the ability to choose from regulated facilities that are meeting higher standards for: criminal background checks, health and safety training, staff medicals, and, if applicable, fencing requirements for swimming pools. Access to this information may enable families to make informed decisions when choosing a program for their children; and may be seen as a benefit for business growth in Maryland.

(3) Capital investment, taxation, competition, and economic development:

These proposals are not expected to have any direct effect on capital investment, taxation, competition, or economic development. However, as noted above, they may help provide a more attractive environment for business growth.

(4) Consumer choice:

Consumer choice is expected to be affected positively by making higher quality child care services available to families seeking those services.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Jennifer A. Nizer, Director, Office of Child Care, Division of Early Childhood, Maryland State Department of Education, 200 West Baltimore Street, Baltimore, MD 21201, or call 410-767-7806 (TTY 410-333-6442), or email to jennifer.nizer@maryland.gov, or fax to 410-333-6226. Comments will be accepted through March 18, 2019. A public hearing has not been scheduled.

Open Meeting

Final action on the proposal will be considered by the State Board of Education during a public meeting to be held on April 23, 2019, at 9 a.m., at 200 West Baltimore Street, Baltimore, MD 21201.

13A.15.01 Scope and Definitions

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-557.1 and 5-560;**]** *General Provisions Article, §4-333; Human Services Article, §1-202;* **[**State Government Article, §10-617; Article 88A, §6(b);**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Definitions.

A. (text unchanged)

B. Terms Defined.

(1)—(12) (text unchanged)

(13) Employee.

(a) "Employee" means an individual who **[**for compensation**]** is employed to work in a family child care home and who:

(i)—(ii) (text unchanged)

(b) "Employee" includes a **[**paid**]** substitute.

(c) (text unchanged)

(d) For the purpose of applying the criminal background check requirements and the child and adult abuse and neglect record review requirements set forth in this subtitle, "employee" includes an individual who:

[(i) Is compensated by the provider or a resident to perform a service at the family child care home;**]**

(i) Meets the definition of an employee as set forth in this subsection; and

[(ii) Has access to children in care; and**]**

[(iii)**]** *(ii)* Does not clearly meet, or is not excluded from, the definition of independent contractor as set forth in §B(19) of this regulation.

(14) "Family child care" has the same meaning as family **[**day**]** *child* care as defined in **[**Family Law Article, §5-501(e)**]** *Education Article, §9.5-301(d),* Annotated Code of Maryland, and means the care given to a child younger than 13 years old or to a developmentally disabled person younger than 21 years old in place of parental care for less than 24 hours a day, in a residence other than the child's residence, for which the provider is paid in cash or in kind.

(15)—(17) (text unchanged)

(18) "Identified as responsible for child abuse or neglect" means being determined by a local department *of social services or other state agency* to be responsible for indicated child abuse or neglect, or awaiting the local department's appeal hearing after the determination.

(19)—(19-1) (text unchanged)

(20) "Injurious treatment" means:

(a) **[**Deliberate infliction in any manner of any type of physical pain,**]** *Physical discipline*, including *but not limited to* spanking, hitting, shaking, or any other means of physical discipline, or enforcement of acts which result in physical pain;

(b) (text unchanged)

(c) Subjecting a child to verbal abuse intended to cause mental distress, such as shouting, cursing, shaming, *threatening*, or ridiculing; and

(d) (text unchanged)

(21)—(25) (text unchanged)

(26) Potentially Hazardous Food.

(a) "Potentially hazardous food" means any food that consists in whole or in part of milk or milk products, eggs, meat, poultry, fish, shellfish, edible crustacea, or other ingredients, including synthetic ingredients capable of supporting rapid and progressive growth of infectious, toxigenic microorganisms.

(b) "Potentially hazardous food" does not include clean, whole, uncracked, odor-free shell eggs.

[(26)**]** *(27)*—**[**(27)**]** *(28)* (text unchanged)

(29) Reasonable Accommodations.

(a) "Reasonable accommodations" means changes made to a child care facility's program or policies to allow a child with a disability equal access to the benefits of the child care facility and program.

(b) "Reasonable accommodations" does not include providing accommodations that would significantly:

(i) Change the nature of the program; or

(ii) Impose a monetary burden on the provider.

[(28)**]** *(30)*—**[**(35)**]** *(37)* (text unchanged)

13A.15.02 Registration Application and Maintenance

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-551, 5-557.1, and 5-560;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Registration—General Requirements.

A.—E. (text unchanged)

F. Except as provided under §G of this regulation, a residence approved for use under a family child care registration may not also be used to operate a:

(1) (text unchanged)

(2) Child care program that is subject to the requirements of COMAR 13A.16 **[**or**]**, 13A.17*, or 13A.18*.

G—H. (text unchanged)

.02 Initial Registration.

A. (text unchanged)

B. **[**An**]** *Except as set forth at §C of this regulation, an* applicant for an initial registration shall:

(1)—(2) (text unchanged)

(3) Submit a medical evaluation for the applicant and each resident in the home that:

(a) (text unchanged)

(b) Was conducted by a practicing physician, certified nurse practitioner, or registered physician's assistant; **[**and**]**

(c) Includes verification that the individual:

(i) Is free of communicable tuberculosis, if indicated; and

(ii) If the applicant, is capable of performing the duties of the position; and

[(c)**]** *(d)* Is signed or verified by the individual who conducted the evaluation;

(4) (text unchanged)

(5) Ensure that an application for a federal and State criminal background check is made at a designated office in the State by each:

(a) (text unchanged)

(b) Individual **[**paid**]** to serve as the provider's substitute; and

(c) **[**Paid employee**]** *Employee or volunteer* of the family child care home who is **[**14**]** *18* years old or older;

(6)—(7) (text unchanged)

(8) Submit documentation that the applicable training requirements specified in COMAR 13A.15.06.02 have been met; **[**and**]**

(9) Submit documentation showing that the home has met all applicable lead-safe environment requirements set forth in COMAR 13A.15.05.02**[.]***; and*

(10) If the family child care home is located in an apartment or at another property that is rented or leased by the applicant, submit written authorization from the lessor, owner, or landlord permitting child care to be provided at that location.

C. Non-Maryland State Criminal Background Check. If an individual subject to the requirements of §B(4) or (5)(b) and (c) of this regulation currently resides or has resided in a state other than Maryland within 5 years before the date of application for registration, the individual shall:

(1) Apply for a state criminal background check to be performed by a duly authorized entity within that state; and

(2) Request the non-Maryland state entity performing the criminal background check to transmit the result of that background check directly to the Agency.

[C.**]** *D.* (text unchanged)

.03 Continuing Registration.

A. Application for Continuing Registration. To obtain a continuing registration, a provider shall submit to the office before expiration of the initial registration:

(1)—(3) (text unchanged)

(4) A completed and notarized release of information form that permits the office to examine records of abuse and neglect of children and adults for:

(a)—(d) (text unchanged)

(e) If required by the office, any other individual with regular access to the child care area during the approved hours of operation, *including volunteers*.

(5) Documentation that the family child care home has passed the most recent fire inspection required by the local fire authority having jurisdiction; **[**and**]**

(6) Written authorization from the lessor, owner, or landlord permitting the provider to continue providing child care in the home; and

[(6)**]** *(7)* Any other documentation required by law or regulation.

B. Maintenance of Continuing Registration.

(1) (text unchanged)

(2) By the end of each 24-month period after the date of issuance of a continuing registration, the provider shall submit to the office the items specified in §A(3)—**[**(6)**]** *(7)* of this regulation.

.07 Denial of a Registration Application.

A. The office may deny a certificate of registration if:

(1) (text unchanged)

(2) An evaluation of the application *or documents required* by the office reveals that the applicant, r*egardless of intent,* reported false information;

(3)—(6) (text unchanged)

(7) An evaluation of the medical report or other information about the applicant, *a coprovider*, or a resident indicates that the:

(a) Physical or mental health of the applicant, *coprovider*, or resident may pose a risk to children; **[**or**]**

(b) Applicant *or coprovider* is unable to care for children; *or*

(c) Applicant, regardless of intent, submitted false or altered medical documentation for the applicant, resident, coprovider, or additional adult for consideration by the office;

(8) In addition to the requirements set forth at §B of this regulation, an evaluation of the criminal record of the applicant, a **[**paid**]** *coprovider, an* additional adult, a **[**paid**]** substitute, *a volunteer*, or a resident in the home reveals that the individual has a criminal conviction, probation before judgment *disposition*, or not criminally responsible disposition, or is awaiting a hearing for a criminal charge that indicates other behavior harmful to children;

(9) An evaluation of the information provided in records of abuse and neglect of children and adults reveals that the applicant, *a coprovider*, an additional adult, a substitute, *a volunteer*, or a resident is identified as responsible for abuse or neglect of children or adults, or is currently under investigation for alleged acts of abuse or neglect of children or adults;

(10)—(11) (text unchanged)

B. The office shall deny a certificate of registration **[**to**]** *if* an applicant *or resident* **[**who**]** has received a conviction, a probation before judgment disposition, a not criminally responsible disposition, or a pending charge for the commission or attempted commission of:

(1)—(2) (text unchanged)

(3) A violent crime classified as a felony, *including physical assault or battery*;

(4)—(11) (text unchanged)

C. The office shall deny a certificate of registration if an applicant or resident has received a felony conviction for:

(1) Murder;

(2) Spousal abuse; or

(3) Arson.

D. The office shall deny a certificate of registration upon notification that the applicant is in noncompliance with Child Support Enforcement requirements pursuant to Family Article Law, §10-119.3, Annotated Code of Maryland.

[C.**]** *E.* (text unchanged)

[D.**]** *F.* If an evaluation of criminal records or records of abuse and neglect of children or adults reveals that a *coprovider,* substitute, *volunteer*, or **[**an**]** additional adult designated by the applicant may pose a risk to children in care, the office, instead of denying the registration certificate, may require the provider to designate another *coprovider,* substitute, *volunteer*, or additional adult.

[E.**]** *G.* Denial Before Complete Application.

(1) The office may deny an application for registration at any point during the application process if, following evaluation of information received to that point, the office determines that a basis for denial exists as set forth in §A **[**or**]**, B, *C, or D* of this regulation.

(2) (text unchanged)

.08 Voluntary Surrender of Registration.

A. A provider may voluntarily surrender a family child care registration at any time by notifying the office *in writing.*

B. (text unchanged)

13A.15.03 Management and Administration

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-551, 5-557.1, and 5-560;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Admission to Care.

A. (text unchanged)

B. If a child is younger than 6 years old at the time of admission to the home, the provider may not allow the child to remain in care at the home if the parent does not, within 30 days after the child's admission, submit evidence to the provider on a form supplied or approved by the office that the child has received an appropriate lead screening *or test* in accordance with applicable State or local requirements.

C. (text unchanged)

D. Temporary Admission.

(1) (text unchanged)

(2) For a child to be temporarily admitted or retained in care, the parent or guardian shall present evidence of the child's appointment with a health care provider or local health department to:

(a) Receive a medical evaluation to include, if applicable, a lead screening *or test*;

(b)—(d) (text unchanged)

(3)—(4) (text unchanged)

.03 Program Records.

The provider shall:

A.—B. (text unchanged)

C. Maintain a record of each day on which a substitute provides care **[**for more than 2 hours**]**;

D. If applicable, maintain a record of each volunteer in the family child care program that includes:

(1) (text unchanged)

(2) If **[**the**]** *a* volunteer is present at the home **[**more than once per week**]**:

(a) (text unchanged)

(b) **[**A**]** *If present more than once per week, a* medical evaluation of the volunteer that was completed within 12 months before the start of the volunteer's duties;

E. Document that, on or before the date of a child's admission to care, the child's parent was given, or was advised how to obtain, information that is supplied by the office concerning:

(1) (text unchanged)

(2) How to file a complaint with the office against a child care provider**[**.**]***;*

F. Record the date and time of each fire evacuation drill and emergency and disaster drill required by this subtitle; **[**and**]**

G. Document that the health and safety training, specified at COMAR 13A.15.06.02A(4) and B(1), was completed by the end of each 12-month period, measured from the date of initial registration; and

[G.**]** *H.* (text unchanged)

.04 Child Records.

A. (text unchanged)

[A-1.**]** *B.* (text unchanged)

[B.**]** *C.* During the period of a child's enrollment and for 2 years after the child's disenrollment, a provider shall maintain a file for each child that includes records of:

(1) (text unchanged);

(2) The child's health assessment, immunizations, and allergies, if any, to include:

(a) **[**If the child is younger than 6 years old, evidence that the child has received an appropriate lead screening as**]** *As* required by State or local law, *evidence that the child has received***[**; and**]***:*

(i) An appropriate lead screening, if the child is younger than 6 years old and was born before January 1, 2015; or

(ii) A lead test when the child is 12 months old and again when the child is 24 months old, regardless of where the child resides, if the child was born on or after January 1, 2015; and

(b) (text unchanged)

(3)—(6) (text unchanged)

[C.**]** *D.* A medical evaluation and, if applicable, documentation of an appropriate lead screening *or test* that are transferred directly from another registered family child care home, a licensed child care center, or a public or nonpublic school in Maryland may be accepted as meeting the requirements of **[**§B(2)**]** *§C(2)* of this regulation.

.05 Notifications.

The provider or substitute shall:

A.—C. (text unchanged)

D. Within 5 working days after an existing resident becomes 18 years old, or after there is a new resident in the home who is 18 years old or older:

(1) Submit to the office a signed and notarized release form giving the office permission to examine records of abuse and neglect of children and adults for information about the resident *pursuant to COMAR 13A.15.02.02B(6);* and

(2) Ensure that the resident applies for a federal and State criminal background check *pursuant to COMAR 13A.15.02.02B(5) and C*; and

E.—G. (text unchanged)

13A.15.04 Operational Requirements

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-557.1 and 5-560;**]** *General Provisions Article, §4-333; Human Services Article, §1-202;* **[**State Government Article, §10-617; Article 88A, §6(b);**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.03 Child Capacity.

A.—D. (text unchanged)

E. The office:

(1) (text unchanged)

(2) May count as a child in care a child who is visiting the home if the child **[**:**]** *is younger than 8 years old and unaccompanied by an adult.*

[(a) Is younger than 8 years old and unaccompanied by an adult; or

(b) Cannot be sent home immediately.**]**

.04 Restriction of Operations.

A. (text unchanged)

B. The office may base a restriction or reduction under §A of this regulation on any of the following factors:

(1)—(5) (text unchanged)

(6) Failure by a provider approved for a capacity of up to four children younger than 2 years old to meet the infant-toddler training requirement specified at COMAR **[**13A.15.06.02G**]** *13A.15.06.02E*; or

(7) (text unchanged)

C. A provider may appeal a restriction or reduction pursuant to §A of this regulation by filing a request for hearing:

(1) (text unchanged)

(2) In the case of an emergency reduction in capacity, **[**within 72 hours of**]** *not later than 30 calendar days after the* notification by the office of its decision to immediately reduce the number of children in care.

13A.15.05 Home Environment and Equipment

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-551, 5-557.1, and 5-560;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Lead-Safe Environment.

A. (text unchanged)

B. If the home is a residential rental property constructed before **[**1950**]** *1978*, which is an affected property as defined in Environment Article, §6-801(b), Annotated Code of Maryland, the provider shall submit a copy of the current lead risk reduction or lead-free certificate.

C.—D. (text unchanged)

.05 Outdoor Activity Area.

A.—B. (text unchanged)

C. Any pool on the premises of the facility shall be made inaccessible to children in care and have security features, including but not limited to having a:

(1) Fence that surrounds the pool;

(2) Self-closing and self-latching mechanism on the gate, door, or access to the pool;

(3) Lock that is operable and secured; and

(4) Sensor or alarm in the pool and on the access door.

.06 Rest Furnishings.

A.—G. (text unchanged)

H. A child under 12 months who falls asleep in a furnishing other than a crib shall be immediately moved to an approved sleeping arrangement specified at §C(1) of this regulation.

13A.15.06 Provider Requirements

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-551, 5-557.1, and 5-560;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Training Requirements.

A. Preservice Training. An individual who applies for an initial registration shall:

(1) Hold a current certificate indicating successful completion of training in approved:

(a) (text unchanged)

(b) Cardiopulmonary resuscitation (CPR) through the American Heart Association, or a program with equivalent standards, appropriate for each age group approved for care in the home;

[(c) If requesting approval to provide care for children younger than 24 months old, present evidence of having successfully completed, within 5 years before the date of the request, approved training in Sudden Infant Death Syndrome; and**]**

(2) Provide documentation of having successfully completed:

(a) (text unchanged)

(b) The 90 clock hour course, or its approved equivalent, that satisfies the preservice training requirement for a child care teacher or child care center director under COMAR 13A.16.06.05B(4), **[**.09A(1)(b), or .10B(1)(a)**]** *COMAR 13A.16.06.09A(3), or COMAR 13A.16.06.10B(1)(a)*, as applicable;

(c)—(g) (text unchanged)

(3) Complete approved training on emergency and disaster planning; **[**and**]**

(4) Effective January 1, 2020, complete approved basic health and safety training; and

[(4)**]** *(5)* **[**If applying on or after January 1, 2016, complete**]** *Complete:*

(a)—(c) (text unchanged)

B. Continued Training. A provider shall successfully complete:

(1) During each 12-month period of registration, the approved health and safety training information supplied by the office;

[(1)**]** *(2)*—**[**(2)**]** *(3)* (text unchanged)

[C. Emergency and Disaster Planning Training.

(1) The office shall not approve an initial registration application unless the applicant has completed approved training on emergency and disaster planning.

(2)To maintain an initial registration or a continuing registration approved before July 1, 2010, a provider shall complete approved training on emergency and disaster planning as directed by the office, if the provider has not already completed that training.**]**

[D.**]** *C.*—**[**E.**]** *D.* (text unchanged)

[F. Sudden Infant Death Syndrome (SIDS) Training.

(1) The office may not approve a request by an applicant or a provider to provide care for children younger than 24 months old unless the applicant or provider has met the requirements of §A(1)(c) of this regulation.

(2) SIDS training may not be used to satisfy the continued training requirements set forth in §B of this regulation.**]**

[G.**]** *E.* Infant-Toddler Training.

(1) **[**Effective July 1, 2010, the**]** *The* office **[**shall**]** *may* not approve a request by an applicant or a provider for an infant-toddler capacity of more than two children younger than 2 years old unless the individual has completed 3 semester hours or 45 clock hours of approved training, or the equivalent, related **[**exclusively**]** to the care of children younger than 2 years old.

(2) **[**A provider approved before July 1, 2010, for an infant-toddler capacity of more than two children younger than 2 years old shall complete, by December 31, 2010, 3 semester hours or 45 clock hours of approved training, or the equivalent, related exclusively to the care of children younger than 2 years old in order to maintain that approval.**]** *Sudden Infant Death Syndrome (SIDS) Training.*

(a) The office may not approve a request by an applicant or a provider to provide care for a child younger than 24 months old unless the applicant or provider presents evidence of having successfully completed, within 5 years before the date of the request, approved SIDS training.

(b) SIDS training may not be used to satisfy the continued training requirements set forth in §B of this regulation.

[H.**]** *F.* **[**Medication Administration Training. Effective January 1, 2016:**]**

[(1)**]** The office may not approve an application for an initial registration or a continuing registration unless the applicant has completed **[**medication administration training approved by the office; and**]***:*

(1) Approved training in:

(a) Supporting breastfeeding practices; and

(b) Medication administration; and

(2) 3 clock hours of approved training in complying with the Americans with Disabilities Act.

[(2)**]** *G.* A currently registered provider shall have completed **[**medication administration**]** *approved* training **[**approved by the office.**]** *as specified in §F of this regulation*.

.03 Provider Substitute.

A. The provider shall designate at least one substitute who is available on short notice to care for the children *at the provider's registered family child care home.*

B. Approval by Office.

(1)—(2) (text unchanged)

(3) The Office shall notify the provider of its decision to approve or disapprove a substitute within 30 days of the request being submitted.

C. (text unchanged)

D. A substitute shall:

(1) (text unchanged)

(2) Be familiar with *the requirements of* this subtitle;

(3) Complete, sign, and submit to the office the required forms for substitutes, **[**which include permission to examine records of abuse and neglect of children and adults;**]** *including:*

(a) A medical evaluation completed within the past 12 months; and

(b) Permission to examine records of abuse and neglect of children and adults;

(4) **[**If paid, apply**]** *Apply* for a federal and State criminal background check at a designated law enforcement office in the State; **[**and**]**

(5) If residing or having resided in a state other than Maryland within 5 years before being hired as a substitute, apply for:

(a) A state criminal background check to be performed by a duly authorized entity within that state; and

(b) Request the non-Maryland state entity performing the criminal background check to transmit the result of that background check directly to the Agency; and

[(5)**]** *(6)* (text unchanged)

E.— F. (text unchanged)

.04 Additional Adult.

A. Except as set forth in §B of this regulation, before an individual may be used as an additional adult, the provider shall ensure that the individual:

(1)—(3) (text unchanged)

(4) **[**If the individual will be paid, applies**]** *Applies* for a federal and State criminal background check at a designated office in the State;

(5) If residing or having resided in a state other than Maryland within 5 years before being hired as an additional adult:

(a) Applies for a state criminal background check to be performed by a duly authorized entity within that state; and

(b) Requests the non-Maryland state entity performing the criminal background check to transmit the result of that background check directly to the Agency;

[(5)**]** *(6)*—**[**(6)**]** *(7)* (text unchanged)

B. (text unchanged)

.05 Volunteers.

A. Before permitting an individual to begin volunteer duties at the family child care home, the provider shall:

(1) Ensure that the individual presents no risk to the health, safety, or welfare of children; **[**and**]**

(2) Conduct a child health and safety orientation for the individual that meets the requirements set forth in Regulation .03E of this chapter**[**.**]***;*

(3) Ensure that the individual has applied for a federal and State criminal background check at a designated office in the State; and

(4) Ensure that the individual, if residing or having resided in a state other than Maryland within 5 years before being hired as an additional adult:

(a) Applies for a state criminal background check to be performed by a duly authorized entity within that state; and

(b) Requests the non-Maryland state entity performing the criminal background check to transmit the result of that background check directly to the Agency.

B.—C. (text unchanged)

13A.15.07 Child Protection

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-557.1, and 5-560;**]** *General Provisions Article, §4-333; Human Services Article, §1-202;* **[**State Government Article, §10-617; Article 88A, §6(b);**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.04 Child Discipline.

A. (text unchanged)

B. The provider or substitute may not:

(1) (text unchanged)

(2) Punish a child for refusing to eat or drink; **[**or**]**

(3) Withhold food or beverages as punishment**[**.**]***; or*

(4) Spank, hit, shake, or use any other means of physical discipline.

13A.15.08 Child Supervision

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-551, 5-557.1, and 5-560;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 General Supervision.

A. (text unchanged)

B. Except as provided in Regulation .02C and D of this chapter, when a child is in attendance, the individual responsible for supervising the child shall at all times:

(1)—(4) (text unchanged)

(5) Provide supervision that is appropriate to the individual age, needs, capabilities, activities, and location of the child and may include, but not be limited to:

(a) Making reasonable accommodations for a child with **[**special needs in accordance with applicable federal and State laws**]** *a disability*; and

(b) If applicable, allowing an adult who provides specialized services to a child in care **[**having special needs**]** to provide those services at the home in accordance with the child's individualized education plan, individualized family services plan, or written behavioral plan.

C. (text unchanged)

D. If the home has more than one residential level that is approved for child care:

(1) The provider or substitute shall ensure that, when awake, active, and indoors at the home, each child younger than 6 years old remains on the same level of the home as the provider or substitute; and

(2) A child 6 years old or older may be on a different level of the home from the provider or substitute if:

(a) The child's status is checked by the provider or substitute often enough to ensure the child's health, safety, and welfare, but at least every 15 minutes;

(b) The provider has informed the child's parent that the child is permitted to be on a different level of the home; and

(c) The different home level is approved by the office for child care use and meets the applicable fire code requirements.

[D.**]** *E.* Supervision of Resting Children.

(1) If a resting or napping child is younger than 2 years old, the provider or substitute shall:

(a) Remain on the same level as the child;

[(a)**]** *(b)*—**[**(b)**]** *(c)* (text unchanged)

(2) If a resting or napping child is 2 years old or older, the child:

(a) (text unchanged)

(b) Shall be observed by the provider or substitute to ensure the child's safety and comfort at intervals **[**appropriate to the child's age and individual need**]** *of at least every 15 minutes*.

[(3) If a resting or napping child is in a different room from the provider or substitute and that room can be closed off from the rest of the home by a door, screen, or similar furnishing, the provider or substitute shall ensure that the door, screen, or similar furnishing remains open so that the view into the room is unobstructed.**]**

[E.**]** *F.* The provider may use a video and sound monitoring system to meet the sound and sight requirement in **[**§D(1)(a)**]** *§E(1)(b)* of this regulation.

[F.**]** *G.* (text unchanged)

13A.15.10 Child Safety

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-551, 5-557.1, and 5-560;**]** *General Provisions Article, §4-333; Human Services Article, §1-202;* **[**State Government Article, §10-617; Article 88A, §6(b);**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Emergency Safety.

The provider or substitute shall:

A.—C. (text unchanged)

D. Train each substitute and, if applicable, the additional adult on the contents of the written emergency and disaster plan required at **[**§B**]** *§A* of this regulation;

E. (text unchanged)

F. During an emergency evacuation or practice, take attendance records *and emergency cards* out of the home and verify the presence of each child currently in attendance;

G.—H. (text unchanged)

.04 Water Safety.

A. (text unchanged)

B. An above-ground swimming pool:

(1) May not be used for swimming activities; and

(2) Shall be made inaccessible to children in care.

[B.**]** *C.* A child in care may not use a pool, such as a fill-and-drain molded plastic or inflatable pool **[**that does not have an operable circulation system approved by the local health department**]**.

.06 Rest Time Safety.

A. (text unchanged)

B. Unless the need for a positioning device that restricts a child's movement while the child is resting is specified in writing by the child's physician, an object or device, including, but not limited to, a strap, wedge, **[**or**]** roll, *or swaddling*, that restricts movement may not be used with a child in a crib, portable crib, playpen, cot, bed, mat, or other rest furnishing.

13A.15.11 Health

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-551, 5-557.1, and 5-560;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.03 Infectious and Communicable Diseases.

A provider or substitute may not knowingly care for a child who has a serious transmissible infection or communicable disease during the period of exclusion for that infection or disease shown **[**on a list provided by the office**]** *in the Communicable Disease Summary, as published by the Maryland Department of Health.*

.04 Medication Administration and Storage.

A.—F. (text unchanged)

G. Effective January 1, 2016, medication may be administered to a child in care only by an individual who has completed approved medication *administration* training, unless:

(1)—(2) (text unchanged)

.06 Consumption of Alcohol and Drugs.

A provider, substitute, *volunteer*, or additional adult may not consume an alcoholic beverage or an illegal or nonprescribed controlled dangerous substance while:

A.—B. (text unchanged)

13A.15.12 Nutrition

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-551, 5-557.1, and 5-560;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Nutrition and Food Served.

A. (text unchanged)

B. **[**For children in care**]** *Unless provided by the child's parent*, the provider shall furnish:

(1)—(2) (text unchanged)

C.—G. (text unchanged)

13A.15.13 Inspections, Complaints, and Enforcement

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-515, 5-550, 5-551, 5-554, 5-557, 5-557.1, and 5-560;**]** Human Services Article, §1-202; *General Provisions Article, §4-333;* **[**State Government Article, §10-617; Article 88A, §6(b);**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Complaints.

The office shall investigate:

A. (text unchanged)

B. Complaints of *providing or advertising* unregistered family child care.

.05 Nonemergency Suspension.

A. (text unchanged)

B. The office shall suspend the certificate of registration upon notification that the provider is in noncompliance with Child Support Enforcement requirements pursuant to Family Law Article, §10-119.3, Annotated Code of Maryland.

[B.**]** *C.*—**[**D.**]** *E.* (text unchanged)

.06 Emergency Suspension.

A. (text unchanged)

B. The office shall hand deliver a written notice to the provider informing the provider of the emergency suspension, giving the reasons for the action, and notifying the provider of the right to request, within 30 days of the delivery of the notice, a hearing before the **[**Superintendent's designee**]** *Office of Administrative Hearings.*

C. If unable to hand deliver a written notice to the provider, the Office may send the notice by regular and certified mail to the provider's address.

[C.**]** *D.* (text unchanged)

[D.**]** *E.* If a hearing is requested by the provider, the **[**Superintendent's designee**]** *Office of Administrative Hearings* shall hold a hearing within 7 calendar days of the date of the request.

[E.**]** *F.* Within 7 calendar days of the hearing, a decision concerning the emergency suspension shall be made by the **[**Superintendent's designee**]** *Office of Administrative Hearings.*

[F.**]** *G.*—**[**G.**]** *H.* (text unchanged)

.07 Revocation.

A. The office may revoke a certificate of registration if the:

(1) (text unchanged)

(2) Provider, *regardless of intent,* misrepresented or offered false information on the application or on any form or report required by the office;

(3)—(7) (text unchanged)

(8) Provider, an additional adult, a substitute, *a volunteer,* or a resident is identified as responsible for abuse or neglect of children or adults;

(9) Provider, an additional adult, a substitute, *a volunteer,* or a resident has a criminal conviction, *a* probation before judgment *disposition,* or a not criminally responsible disposition, or is awaiting a hearing on a charge for a crime that:

(a) Is listed at COMAR **[**13A.15.02.07B(1)—(11)**]** *13A.15.02.07B or C*; or

(b) (text unchanged)

(10)—(13) (text unchanged)

(14) **[**The family**]** *Family* child care home is no longer the primary residence of the provider.

B. If the office decides to revoke a certificate of registration, the office shall notify the provider in writing at least 20 calendar days in advance of the revocation, stating:

(1)—(4) (text unchanged)

(5) That the provider is entitled to a hearing if requested in writing within 20 calendar days of the **[**delivery**]** *date* of the notice;

(6)—(8) (text unchanged)

C. (text unchanged)

.08 Penalties.

A. An individual found to be operating a family child care home**[**, or advertising a family child care service,**]** without a valid family child care registration is guilty of a misdemeanor and on conviction is subject to a fine not exceeding:

(1)—(2) (text unchanged)

B. (text unchanged)

.09 Civil Citations.

A. The office may issue a civil citation imposing a civil penalty to an individual who provides *or advertises* unregistered family child care in violation of the requirements of this subtitle.

B.—D. (text unchanged)

13A.15.14 Administrative Hearings

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article §§5-515—5-517 and 5-554;**]** *General Provisions Article, §4-333; Human Services Article, §1-202;* **[**State Government Article, §10-204;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.); Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)

.01 Scope.

A. This chapter applies to hearings concerning actions taken by the Office of Child Care which adversely impact **[**on**]** family child care registrations, such as registration denials, revocations, *and* suspensions, reductions in capacity, **[**or**]** limitations on the ages or numbers of children who may be admitted to a family child care home, *and the imposition of civil penalties for providing or advertising unregistered family child care services without a valid family child care certificate of registration.*

B. (text unchanged)

.03 Hearing Requests.

A. A hearing shall be held when **[**an applicant or provider requests a hearing to contest**]**:

(1) An applicant or provider requests a hearing to contest:

[(1)**]** *(a)*—**[**(2)**]** *(b)* (text unchanged)

[(3)**]** *(c)* Any other action that adversely impacts on registration, including, but not limited to:

[(a)**]** *(i)*—**[**(b)**]** *(ii)* (text unchanged)

[(c)**]** *(iii)* A limitation on the ages or numbers of children who may be admitted to the family child care home**[**.**]***; or*

(2) An individual requests a hearing to contest the imposition of civil penalties for providing unregistered child care or advertising family child care services without a valid family child care certificate of registration.

B. Non-emergency Action Hearing Requests.

(1) All non-emergency action hearing requests shall be forwarded in writing to the Office and shall state the name and address of the provider *or the individual contesting the imposition of a civil penalty*, and the effective date and nature of the action appealed from.

(2)—(5) (text unchanged)

C. (text unchanged)

.04 Preliminary Conference.

A. **[**The Office shall hold a preliminary conference, on request of an appellant, before a hearing on an action**]** *A preliminary conference may be held before a hearing on an action if an appellant requests the conference.*

B.—D. (text unchanged)

13A.15.15 Public Access to Licensing Records

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-557.1 and 5-560;**]** *General Provisions Article, §4-333; Human Services Article, §1-202;* **[**State Government Article, §10-617; Article 88A, §6(b);**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.03 Request for Information from Licensing Records.

A. (text unchanged)

B. The written request shall:

(1) Contain the applicant's name, address, and telephone number; *and*

[(2) Be signed by the applicant; and**]**

[(3)**]** *(2)* (text unchanged)

[C. A request may be made in any form or format if it does not involve:

(1) Physical inspection of licensing records; or

(2) Preparation of a written or electronic:

(a) Copy of licensing records; or

(b) Report of information from licensing records.**]**

[D.**]** *C.* (text unchanged)

.04 Compelling Public Purpose.

A compelling public purpose shall exist for the custodian of record to permit inspection of licensing records other than the records specified under **[**State Government Article, §10-617(h)(2)**]** *General Provisions Article, §4-333(b),* Annotated Code of Maryland.

KAREN B. SALMON, Ph.D.
State Superintendent of Schools

Subtitle 16 CHILD CARE CENTERS

Notice of Proposed Action

[19-054-P]

The Maryland State Board of Education proposes to:

(1) Amend Regulations **.01** and **.02** under **COMAR 13A.16.01 Scope and Definitions**;

(2) Amend Regulations **.01—.04** and **.06** under **COMAR 13A.16.02 License Application and Maintenance**;

(3) Amend Regulations **.01—.06** and adopt new Regulation **.09** under **COMAR 13A.16.03 Management and Administration**;

(4) Amend Regulations **.05**, **.12**, and **.13** under **COMAR 13A.16.05 Physical Plant and Equipment**;

(5) Amend Regulations **.03—.06** and **.09—.13** under **COMAR 13A.16.06 Staff Requirements**;

(6) Amend Regulations **.02**, **.03**, and **.06** under **COMAR 13A.16.07 Child Protection**;

(7) Amend Regulations **.01**, **.03**, and **.06** under **COMAR 13A.16.08 Child Supervision**;

(8) Amend Regulation **.04** under **COMAR 13A.16.09 Program Requirements**;

(9) Amend Regulations **.02** and **.05** under **COMAR 13A.16.10 Safety**;

(10) Amend Regulations **.02—.04** and **.06** under **COMAR 13A.16.11 Health**;

(11) Amend Regulation **.01** under **COMAR 13A.16.12 Nutrition**;

(12) Amend Regulation **.02** under **COMAR 13A.16.13 Centers for Children with Acute Illness**;

(13) Amend Regulation **.01** under **COMAR 13A.16.14 Adolescent Centers**;

(14) Amend Regulation **.03** under **COMAR 13A.16.15 Drop-In Centers**;

(15) Amend Regulations **.02—.04** under **COMAR 13A.16.16 Educational Programs in Nonpublic Nursery Schools**;

(16) Amend Regulation **.01**, adopt new Regulation **.03**, recodify existing Regulation **.03** to be Regulation **.04**, and amend and recodify existing Regulations **.04—.07** to be Regulations **.05—.08** under **COMAR 13A.16.17 Inspections, Complaints, and Enforcement**;

(17) Amend Regulations **.01—.05** under **COMAR 13A.16.18 Administrative Hearings**; and

(18) Amend Regulation **.03** and **.04** under **COMAR 13A.16.19 Public Access to Licensing Records**.

This action was considered by the Maryland State Board of Education at its May 22, 2018 meeting.

Statement of Purpose

The purpose of this action is to clarify certain requirements pertaining to the registration and operation of child care centers and establish requirements for criminal background checks, swimming pool security, length of time for taking the basic health and safety training, and medical information being provided.

Comparison to Federal Standards

There is a corresponding federal standard to this proposed action, but the proposed action is not more restrictive or stringent.

Estimate of Economic Impact

I. Summary of Economic Impact. The purpose of the proposed amendments is to implement the requirements of the Child Care and Development Block Grant Act, as amended (42 U.S.C. 9858 et seq.), along with Section 418 of the Social Security Act (42 U.S.C. 618). Consistent throughout all four subtitles of regulations, the proposed amendments include statutory requirements of the Child Care and Development Fund reauthorization, modifications to provide clarity and more consistency between all subtitles, and corrections to the previous publication. The State will reimburse the cost to child care providers for the cost of fingerprinting to meet the new requirement. http://earlychildhood.marylandpublicschools.org/fingerprinting

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	(E+)	Approximately $480,100
B. On other State agencies:	(R+)	Approximately $4,980
C. On local governments:	NONE	
	Benefit (+) Cost (-)	Magnitude
D. On regulated industries or trade groups:		
(1) Centers and homes up-front cost of fingerprinting	(+)	Approximately $480,100

(2) Medical information	(+)	Approximately $805,500
(3) Swimming pool security	(+)	Approximately $450,000
E. On other industries or trade groups:	NONE	
F. Direct and indirect effects on public:	NONE	

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

A. Background Clearances: In the State has processed fingerprint reimbursement requests for 890 providers (30% of the 2965 payment are in Child Care Center) as of January 31, 2019, for a total of $454,213 in obligations. The count for reimbursement to child care centers does not include all of the staff printed for each location—only the center itself. The cost to date for reimbursement of fingerprinting costs for FY18 is $155,068 and FY 2019 is $299,145 (July 1, 2018 through January 31, 2019). It is estimated that the total cost for FY 2019 will be $325,000. Therefore, the total estimated cost to the State is $480,100 over FY 2018 and FY 2019. The State is providing a one-time reimbursement for fingerprinting costs to child care providers

B. Maryland Department of Public Safety and Correctional Services (DPSCS) Criminal Justice Information System is allowed to keep $2 from the FBI background check. The State estimates there are approximately 2490 providers going through the fingerprinting process. Therefore, estimated revenue to the DPSCS is estimated to be $4,980 over FY 18 and FY 19.

D(1). Background Clearances: Child Care Centers and staff, and family child care homes and staff will incur up-front costs for meeting fingerprinting requirements. Cost for fingerprinting ranges from $35 to $75 per person. The State reimburses the cost of fingerprinting for providers meeting the new requirement. If the provider/center does not request reimbursement from the State, they would incur the cost of the fingerprinting.

D(2). Medical information for child care providers and staff of child care centers: The current number of statewide personnel in Child Care Centers, Letter of Compliance facilities, and Large Family Child Care Homes is 43,000 staff. There are 10,700 substitutes in Family Child Care who would be affected by the requirement to have medicals every 2 years. This is approximately 53,700 people needing bi-annual medicals, assuming they all remain employed for the 2-year period. Many will transfer to other sites but will remain employed in Maryland child care. The estimated cost of each medical is between $75 and $125, depending on health insurance, co-pays, etc. Using these estimates, approx. 16,110 people (30% of the 53,700 people are in Child Care Center) there will be people spending $100 for a medical every 2 years, which would be an approximate cost of $805,500 per year

D(3). Swimming Pool Security: According to a January 2018 survey of regional child care licensing offices, there are approximately 750 child care facilities with swimming pools. It is estimated that half of these pools already meet fencing requirements and would not incur additional costs. Each fence would cost an estimated $3,000 to $5,000 depending on the size of the pool and the outdoor space. . Using these estimates, 112 pool (30% of the 375 are in Child Care Center) owners would spend an average of $4,000 per fence for a total of $448,000 to bring all facilities into compliance This is a one-time-only cost. This is a one-time-only cost. All new applicants would need to meet this requirement prior to becoming licensed.

Economic Impact on Small Businesses

The proposed action has a meaningful economic impact on small business. An analysis of this economic impact follows.

Intended Beneficiaries

Background Clearances/Fingerprinting: to comply with the Child Care and Development Block Grant (CCDBG) Act referenced in Part A, the State is providing reimbursement to child care centers and family child care homes for the cost of staff fingerprinting. While these facilities/staff will incur the up-front cost for fingerprinting, the State will reimburse that cost, thereby alleviating the economic impact to child care facilities who request reimbursement.

Health and Safety Training: to comply with the CCDBG Act referenced in Part A, the State utilized the Maryland State Department of Education's Learning Management System to develop and deliver the online Health and Safety training at no cost to child care providers. The State did not incur any direct costs for the development of the training. For those providers who choose not to take the free online training, or who fail both online attempts, the training can be obtained in a face to face setting for an average cost of $35. This cost is reimbursable to providers who hold a Maryland Child Care Credential at Level 2 or higher. Child care providers can obtain the training in Spanish from Penn State Better Kid Care for $5. This training is also eligible for reimbursement through the Maryland Credentialing Program.

Intended Beneficiaries: Households

Families with children enrolled in a regulated child care facility will benefit because their children will receive care and education services from staff and administration who have met higher standards for criminal background checks, health and safety training, updated staff medical information, and whose facilities will meet requirements for protecting children from swimming pool dangers.

Intended Beneficiaries: Businesses

The amendments are not expected to have an impact on any businesses beyond the child care businesses that comply with the new requirements.

Other Direct or Indirect Impacts: Adverse

Background clearances: Facilities who incur the cost of fingerprinting ($35—$75 per person) and choose not to request reimbursement will not benefit from the alleviation of those costs by the State.

Medical information for child care providers and staff of child care centers: Individuals working in family child care or child care centers will incur the cost of medicals every 2 years. The estimated cost of each medical is between $75 and $125, depending on health insurance, co-pays, and other variables.

Swimming Pool Security: An estimated 375 pool owners who are licensed child care programs would spend an average of $4,000 per facility, as a one-time cost, to come into compliance with swimming pool security requirements. New applicants for child care licensure/registration would need to meet this requirement prior to becoming licensed. This additional cost may encourage some child care providers to raise the fees they charge to families.

Other Direct or Indirect Impacts: Positive

Improving the quality of child care and early education in Maryland is expected to enhance the overall reputation of Maryland's early care and education industry, and this may help attract businesses to Maryland. Higher-quality child care and early education services for children may result in those children more effectively developing the skills they will need to succeed in school and in life and may positively affect the State workforce in the years

to come. Maryland's compliance with the federal CCDBG Act ensures that federal funding continues, which in turn, supports working families in Maryland through the Child Care Subsidy program and other quality initiatives to improve long term benefits to children.

Long-Term Impacts

No long-term effects on Maryland small businesses are anticipated which may differ from, compound, mitigate, or offset the initial effects described above.

Estimates of Economic Impact

(1) Cost of providing goods and services:

Some child care providers who incur costs related to the amendments may charge higher fees to families for their services. Because child care fees are determined independently by each provider, the overall change, if any, in those expenses cannot be determined.

(2) Effect on the work force:

Families in Maryland's work force with young children and school-age children using child care services will have the ability to choose from regulated facilities that are meeting higher standards for: criminal background checks, health and safety training, staff medicals, and, if applicable, fencing requirements for swimming pools. Access to this information may enable families to make informed decisions when choosing a program for their children; and may be seen as a benefit for business growth in Maryland.

(3) Capital investment, taxation, competition, and economic development:

These proposals are not expected to have any direct effect on capital investment, taxation, competition, or economic development. However, as noted above, they may help provide a more attractive environment for business growth.

(4) Consumer choice:

Consumer choice is expected to be affected positively by making higher quality child care services available to families seeking those services.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Jennifer A. Nizer, Director, Office of Child Care, Division of Early Childhood, Maryland State Department of Education, 200 West Baltimore Street, Baltimore, MD 21201, or call 410-767-7806 (TTY 410-333-6442), or email to jennifer.nizer@maryland.gov, or fax to 410-333-6226. Comments will be accepted through March 18, 2019. A public hearing has not been scheduled.

Open Meeting

Final action on the proposal will be considered by the State Board of Education during a public meeting to be held on April 23, 2019, at 9 a.m., at 200 West Baltimore Street, Baltimore, MD 21201.

13A.16.01 Scope and Definitions

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-502, 5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Scope.

A. (text unchanged)

B. Exemptions. This subtitle does not apply to:

(1)—(2) (text unchanged)

(3) A youth camp, as defined by Health-General Article, **[**§14-401(j)**]** *§14-401(o)*, Annotated Code of Maryland;

(4)—(11) (text unchanged)

.02 Definitions.

A. (text unchanged)

B. Terms Defined.

(1)—(3) (text unchanged)

(4) "Adolescent center" means a child care center that offers programs exclusively to children in middle school **[**and junior high school**]**.

(5)—(10) (text unchanged)

(11) Assistant Child Care Teacher.

(a) (text unchanged)

(b) "Assistant child care teacher" includes a staff member known before **[**December 17, 2008**]** *July 1, 2008*, as an assistant group leader.

(12)—(15) (text unchanged)

(16) Child Care Teacher.

(a) (text unchanged)

(b) "Child care teacher" includes a staff member known before **[**December 17, 2007**]** *July 1, 2008*, as:

(i)—(ii) (text unchanged)

(17)—(24) (text unchanged)

(25) Employee.

(a) "Employee" means an individual:

(i) Who **[**for compensation**]** is employed by the center operator to work at or for the center; and

(ii) (text unchanged)

(b) (text unchanged)

(c) For the purpose of applying the criminal background check requirements and the child and adult abuse and neglect record review requirements set forth in this subtitle "employee" includes any individual who:

(i) **[**Is compensated by the operator to perform a service at the center;**]** *Meets the definition of an employee as set forth in §B(25) of this regulation*; *and*

[(ii) Has access to children in care; and**]**

[(iii)**]** *(ii)* Does not clearly meet, or is not excluded from, the definition of independent contractor set forth in **[**§B(29)**]** *§B(30)* of this regulation.

(26) "Family child care" means the care given to a child younger than 13 years old or to a developmentally disabled person younger than 21 years old, in place of parental care for less than 24 hours a day, in a residence other than the child's residence and for which the provider is paid, in accordance with **[**Family Law Article, §§5-550—5-557.1**]** *Education Article, §9.5-301(d)*, Annotated Code of Maryland.

(27)—(28) (text unchanged)

(29) "Identified as responsible for child abuse or neglect" means being determined by a local department *of social services or other state agency* to be responsible for indicated child abuse or neglect, or awaiting the local department's appeal hearing after the determination.

(30)—(32) (text unchanged)

(33) "Injurious treatment" means:

(a) **[**Deliberate infliction in any manner of any type of physical pain**]** *Physical discipline*, including but not limited to spanking, hitting, shaking, or any other means of physical discipline, or enforcement of acts which result in physical pain;

(b) (text unchanged)

(c) Subjecting a child to verbal abuse intended to cause mental distress, such as shouting, cursing, shaming, *threatening*, or ridiculing; and

(d) (text unchanged)

(34)—(42) (text unchanged)

(43) "Operated by a tax-exempt religious organization" means that the operator *is a church or bona fide house of worship or* has submitted a copy of the determination letter from the Internal Revenue Service which recognizes the organization as **[**a bona fide church organization**]** exempt from taxation under the Internal Revenue Code of 1954, 26 U.S.C. §501(c)(3).

(44)—(49) (text unchanged)

(50) Reasonable Accommodations.

(a) "Reasonable accommodations" means changes made to a child care facility's program or policies to allow a child with a disability equal access to the benefits of the child care facility and program.

(b) "Reasonable accommodations" does not include providing accommodations that would significantly:

(i) Change the nature of the program; or

(ii) Impose a monetary burden on the provider.

[(50)**]** *(51)*—**[**(60)**]** *(61)* (text unchanged)

13A.16.02 License Application and Maintenance

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 License—General Requirements.

A.—B. (text unchanged)

C. Approved Montessori School.

(1) (text unchanged)

(2) The following regulations under this subtitle do not apply to an approved Montessori school:

(a) COMAR **[**13A.16.02.03(4)**]** *13A.16.02.03C(4)* concerning an annual fire inspection, if the school has documentation verifying compliance with fire safety regulations applicable to a nonpublic nursery school pursuant to COMAR 13A.09.09.11A;

(b) COMAR **[**13A.16.06.05.B(4)**]** *13A.16.06.05B(4)* concerning the preservice training requirement for directors;

(c) COMAR **[**13A.16.06.09.A(1)(b)**]** *13A.16.06.09A(5)* concerning qualification requirements for a child care teacher in a preschool center;

(d) COMAR **[**13A.16.06.09.B(1)(a)**]** *13A.16.06.09C(1)* concerning the core of knowledge completion requirement for continued training;

(e) COMAR **[**13A.16.06.10.B(1)(a)**]** *13A.16.06.10B(1)(a)* concerning the requirement for preservice training; and

(f) (text unchanged)

D.—H. (text unchanged)

I. The operator shall not allow an employee, staff member, substitute, or volunteer to:

(1) Be assigned to a group of children or have access to a child in care until the individual has successfully passed the child abuse and neglect clearance and a federal or State criminal background check; or

(2) Be alone with a child or group of children until all checks have been successfully passed.

.02 Initial License.

A. An individual or organization not currently licensed and wanting to operate a child care center shall:

(1)—(3) (text unchanged)

(4) Ensure that an application for a federal and Maryland State criminal background check is submitted for:

(a)—(b) (text unchanged)

(c) Each employee, including **[**paid**]** substitutes *and volunteers*; and

(d) Each individual **[**14**]** *18* years old or older living on the child care center premises.

B. Before the proposed opening date, the applicant shall submit the following items to the office, if not submitted at the time the written application form was submitted:

(1) Signed and notarized permission to examine records of abuse and neglect of children and adults for information about:

(a) (text unchanged)

(b) Each employee, *including substitutes and volunteers*;

(c)—(e) (text unchanged)

(2)—(12) (text unchanged)

C. Non-Maryland State Criminal Background Check. If an individual subject to the requirements of §A(4) of this regulation currently resides or has resided in a state other than Maryland within 5 years before the date of application for registration, the individual shall:

(1) Apply for a state criminal background check to be performed by a duly authorized entity within that state; and

(2) Request the non-Maryland state entity performing the criminal background check to transmit the result of that background check directly to the Agency.

.03 Continuing License.

A.—B. (text unchanged)

C. Maintaining a Continuing License.

(1) (text unchanged)

(2) By the end of each 12-month period after the date of issuance of a continuing license, the operator shall provide to the office documentation of compliance with applicable continued training requirements set forth at COMAR **[**13A.16.06**]** *13A.16.06.05—.12*.

(3)—(4) (text unchanged)

.04 Provisional and Conditional Status.

A. (text unchanged)

B. Conditional Status.

(1)—(2) (text unchanged)

(3) Immediately upon receipt of the revised license, the operator shall:

(a) (text unchanged)

(b) Display the revised license as required by Regulation **[**.01D**]** *.01E* of this chapter.

(4)—(5) (text unchanged)

.06 Denial of License.

A. An office may deny an application for an initial license or a continuing license if:

(1) (text unchanged)

(2) An evaluation of the application form, *medical documents, or any documents required* by the office reveals that the applicant, *regardless of intent*, reported false information;

(3)—(7) (text unchanged)

B.—C. (text unchanged)

13A.16.03 Management and Administration

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Multi-Site Centers.

A child care center may have more than one location and may be treated as one center for purposes of this **[**chapter**]** *subtitle* only if:

A.—B. (text unchanged)

.02 Admission to Care.

A.—D. (text unchanged)

E. If a child is younger than 6 years old at the time of admission, the operator may not allow the child to remain in care if the parent does not, within 30 days after the child's admission, submit evidence to the operator on a form supplied or approved by the Office that the child has received an appropriate lead screening *or test* in accordance with applicable State or local requirements.

F. Temporary Admission to Care.

(1) (text unchanged)

(2) For a child to be temporarily admitted or retained in care, the parent shall present evidence of the child's appointment with a health care provider or local health department to:

(a) Receive a medical evaluation to include, if applicable, a lead screening *or test*;

(b)—(d) (text unchanged)

(3)—(4) (text unchanged)

.03 Program Records.

The operator shall:

A. (text unchanged)

B. Maintain:

(1)—(2) (text unchanged)

(3) Records of food actually served by the center for the most recent 4 weeks as required by COMAR **[**13A.16.12.01G**]** *13A.16.12.01E*;

(4)—(5) (text unchanged)

C.—D. (text unchanged)

.04 Child Records.

A.—D. (text unchanged)

E. **[**If the child is younger than 6 years old, there shall be documentation that the child has received an appropriate lead screening as required by State or local law, unless the child is a school-age child who attends a school-age program located in the child's school.**]** *The operator shall maintain documentation that, as required by State or local law, each child admitted to, or continuing in, care has received:*

(1) An appropriate lead screening, if the child is younger than 6 years old and was born before January 1, 2015; or

(2) A lead test when the child is 12 months old and again when the child is 24 months old, regardless of where the child resides, if the child was born on or after January 1, 2015.

F. A medical evaluation and, if applicable, documentation of an appropriate lead screening *or test* that are transferred directly from a registered family child care home, another licensed child care center, or a public or nonpublic school in Maryland may be accepted as meeting the requirements of §§D(3) and E of this regulation.

G. Unless a school-age child attends a school-age program located in the child's school, the operator shall obtain, and maintain at the center, an immunization record showing that:

(1) The child has had immunizations appropriate for the child's age which meet the immunization guidelines set by the Maryland Department of Health **[**and Mental Hygiene**]**;

(2)—(4) (text unchanged)

H.—K. (text unchanged)

.05 Staff Records.

The operator shall:

A.—B. (text unchanged)

C. During an individual's employment at the center and for 2 years after the date of the individual's last employment there, maintain a record for each individual that includes:

(1) The individual's:

(a) Training*, including initial and yearly basic health and safety training*, if required under this **[**chapter**]** *subtitle*;

(b) Experience, if required under this **[**chapter**]** *subtitle*; and

(c) (text unchanged)

(2)—(5) (text unchanged)

D.—E. (text unchanged)

.06 Notifications.

The operator shall:

A. Within 5 working days of its occurrence, provide written notification to the office about the:

(1) Addition of a new employee or staff member that includes:

(a) (text unchanged)

(b) Information about the individual's work assignment; **[**and**]**

(c) Proof of compliance with the laws and regulations pertaining to criminal background checks; and

[(c)**]** *(d)* (text unchanged)

(2) Ending of employment, for whatever reason, of an individual that includes the:

(a) (text unchanged)

(b) Date of the individual's last day of employment**[**.**]***;*

B. Within 15 working days of adding the new employee or staff member, provide to the office**[**:**]**

[(1) If applicable,**]** documentation that *the* individual meets the requirements of this chapter for the assignment unless documentation already is on file in the office; **[**and**]**

[(2) If the individual is paid by the center operator, proof of compliance with the laws and regulations pertaining to criminal background checks;**]**

C.—D. (text unchanged)

E. Immediately notify the office of:

(1) An employee *or individual living on the child care premises* who is under investigation for:

(a)—(b) (text unchanged)

(2) (text unchanged)

F. Within 5 working days after there is a new **[**resident**]** *individual living* on the *child care* premises who is 18 years old or older:

(1) Submit to the office a signed and notarized release form giving the office permission to examine records of abuse and neglect of children and adults for information about **[**the resident**]** *an individual living on the child care premises*; and

(2) Direct the **[**resident**]** *individual living on the child care premises* to apply for a federal and State criminal background check; and

G. (text unchanged)

.09 Advertisement.

A. An operator may not advertise child care services unless the center holds a current license issued by the office.

B. An advertisement of the center shall:

(1) Specify that the center is licensed; and

(2) Include the license number issued to the center by the office.

13A.16.05 Physical Plant and Equipment

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.05 Lead-Safe Environment.

A. A center operator may not use paint with lead content on any:

(1)—(2) (text unchanged)

B. If the child care center is a residential rental property constructed before **[**1950**]** *1978*, which is an affected property as defined by Environment Article, §6-801(b), Annotated Code of Maryland, the operator shall submit a copy of the current lead risk reduction or lead free certificate.

C.—D. (text unchanged)

.12 Outdoor Activity Area.

A.—E. (text unchanged)

F. Any pool on the premises of the facility shall be made inaccessible to children in care and have security features, including but not limited to having a:

(1) Fence that surrounds the pool;

(2) Self-closing and self-latching mechanism on the gate, door, or access to the pool;

(3) Lock that is operable and secured; and

(4) Sensor or alarm in the pool and on the access door.

.13 Swimming Facilities.

A. (text unchanged)

B. An above-ground swimming pool **[**may not be used for swimming activities.**]***:*

(1) May not be used for swimming activities; and

(2) Shall be made inaccessible to children in care.

C. A child in care may not use a pool, such as a fill-and-drain molded plastic or inflatable pool.

13A.16.06 Staff Requirements

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.03 Suitability for Employment.

A. A child care center operator **[**may**]** *shall* not employ an individual who**[**, as reported on or after October 1, 2005,**]** has received a conviction, a probation before judgment disposition, a not criminally responsible disposition, or a pending charge for the commission or attempted commission of:

(1)—(2) (text unchanged)

(3) A violent crime classified as a felony, *including physical assault or battery*;

(4)—(9) (text unchanged)

(10) Possession with intent to manufacture, distribute, or dispense a controlled dangerous substance; **[**or**]**

(11) Reckless endangerment**[**.**]***; or*

(12) The felony of:

(a) Murder;

(b) Spousal abuse; or

(c) Arson.

B. If**[**, as reported on or after October 1, 2005,**]** an individual has been identified as responsible for child abuse or neglect or received a conviction, a probation before judgment disposition, a not criminally responsible disposition, or a pending charge for the commission or attempted commission of a crime or offense that is not included in §A of this regulation, the office:

(1)—(2) (text unchanged)

C.—F. (text unchanged)

.04 Staff Health.

A. Medical Evaluation.

(1) An operator shall obtain a medical evaluation**[**, including a tuberculosis screen, if indicated**]**, *conducted by a practicing physician, certified nurse practitioner, or registered physician's assistant,* on a form supplied or approved by the office, that has been completed within 6 months before the individual begins work in the center, from each prospective:

(a)—(b) (text unchanged)

(2) The medical evaluation shall be signed by the individual who conducted the evaluation and include verification that the staff member:

(a) Is free of communicable tuberculosis, if indicated; and

(b) Has the capability to perform the duties of the staff member's position.

[(2)**]** *(3)* The medical evaluation may transfer directly from one center to another **[**when there has been no gap in employment longer than 3 months**]** *if the evaluation was completed within 24 months before the transfer.*

(4) The medical evaluation shall be updated every 2 years, measured from the individual's date of hire.

B. Exclusion from Work. Except with the approval of the office and the health officer, an operator may not permit an individual with a serious transmissible infection or communicable disease listed **[**on a chart supplied by the office**]** *in the Communicable Diseases Summary, as published by the Maryland Department of Health,* to work at **[**a**]** *the child care* center during the period of exclusion from child care recommended **[**on the chart for that infection or disease**]** *by the Summary.*

.05 Directors of All Child Care Centers—General Requirements.

A. (text unchanged)

B. To qualify as a director of a center, an individual shall:

(1)—(2) (text unchanged)

(3) Have successfully completed:

(a)—(b) (text unchanged)

(c) **[**Effective January 1, 2016,**]** 3 clock hours of approved training in complying with the Americans with Disabilities Act;

(4) Have successfully completed 6 semester hours or 90 clock hours, or their equivalent, of approved preservice training, or hold the Child Development Associate National Credential that is issued by the Council for Professional Recognition; **[**and**]**

(5) Effective January 1, 2020, have completed approved basic health and safety training; and

[(5)**]** *(6)* (text unchanged)

C. A director shall:

(1) According to the individual's professional development plan, complete approved continued training, at the rate of at least 12 clock hours per full year of employment as a director, that consists of a:

(a) (text unchanged)

(b) Maximum of 6 clock hours of elective training; **[**and**]**

(2) Document completion of the continued training on the professional development plan**[.]***; and*

(3) Document that the health and safety training, as required by the office, was updated by the end of each 12-month period, measured from the date of employment in the position.

.06 Directors of Preschool Centers—Specific Requirements.

A. In a preschool center with infants or toddlers in care, a director, in addition to meeting the requirements of §§B—**[**D**]** *F* of this regulation, as applicable, shall have:

(1) 3 semester hours of approved training, or the equivalent, related **[**exclusively**]** to the care of infants and toddlers; and

(2) **[**Effective January 1, 2016, approved**]** *Approved* training in supporting breastfeeding practices.

B.—F. (text unchanged)

.09 Child Care Teachers in Preschool Centers.

A. To qualify *or continue to qualify* as a child care teacher in a preschool center, an individual shall **[**be 19 years old or older, and meet one of the following criteria**]**:

[(1) The individual holds or has successfully completed:

(a) A high school diploma, a certificate of high school equivalence, or courses for credit from an accredited college or university;

(b) 6 semester hours or 90 clock hours or their equivalent of approved pre-service training, or hold the Child Development Associate Credential issued by the Child Development Associate National Credentialing Program;

(c) 9 clock hours of approved preservice training in communicating with staff, parents, and the public, or at least one academic college course for credit;

(d) Effective January 1, 2016, 3 clock hours of approved training in complying with the Americans with Disabilities Act; and

(e) At least one of the following:

(i) 1 year of experience working under supervision primarily with preschoolers in a licensed child care center, nursery school, church-operated school, or similar setting, or as a registered family child care provider caring for preschoolers; or

(ii) 1 year of college, or a combination of experience and college that together are equivalent to 1 year;

(2) The individual holds an associate's or higher degree with approved courses in early childhood education;

(3) The individual qualified before July 1, 2008, as a child care teacher in a preschool center and has been continuously employed since that time at the same or another preschool center; or

(4) The individual:

(a) Has been approved as a teacher by the Department for early childhood in nursery school through third grade; or

(b) Is certified by the Department or by any other state for early childhood in nursery school through third grade.**]**

(1) Be 19 years old or older;

(2) Have a high school diploma, a certificate of high school equivalence, or courses for credit from an accredited college or university;

(3) Have successfully completed 6 semester hours or 90 clock hours or their equivalent of approved preservice training, or hold the Child Development Associate Credential issued by the Child Development Associate National Credentialing Program;

(4) Have completed 3 clock hours of approved training in complying with the Americans with Disabilities Act;

(5) Effective January 1, 2020, have completed approved basic health and safety training;

(6) Have 9 clock hours of approved preservice training in communicating with staff, parents, and the public, or at least one academic college course for credit; and

(7) Have at least:

(a) 1 year of experience working under supervision primarily with preschoolers in a licensed child care center, nursery school, church-operated school, or similar setting, or as a registered family child care provider caring for preschoolers; or

(b) 1 year of college, or a combination of experience and college that together are equivalent to 1 year and meet one of the criteria set forth at §A(6) of this regulation.

B. An individual meets the requirements of §A(3) of this regulation if the individual:

(1) Holds an associate's or higher degree with approved courses in early childhood education;

(2) Has been qualified before July 1, 2008, as a child care teacher in a preschool center and has been continuously employed since that time at the same or another preschool center;

(3) Has been approved as a teacher by the Department for early childhood in nursery school through third grade; or

(4) Is certified by the Department or by any other state for early childhood in nursery school through third grade.

[B.**]** *C.* A child care teacher in a preschool center shall:

(1) According to the individual's professional development plan, complete approved continued training, at the rate of at least 12 clock hours per full year of employment as a child care teacher, that consists of a:

(a) (text unchanged)

(b) Maximum of 6 clock hours of elective training; **[**and**]**

(2) Document completion of the continued training on the professional development plan**[.]***; and*

(3) Document that the health and safety training, as required by the office, was updated by the end of each 12-month period, measured from the date of employment in the position.

[C.**]** *D.* A child care teacher wishing to supervise a group of infants or toddlers shall:

(1) Unless qualified by the office before July 1, 2008, to supervise a group of infants or toddlers:

(a) Meet the requirements of §A of this regulation and have completed 3 semester hours of approved training, or the equivalent, related **[**exclusively**]** to the care of infants and toddlers; or

(b) Meet the requirements of **[**§A(1)(a), (c), and (d)**]** *§A(1), (2), and (4)—(7)* of this regulation and have completed 6 semester hours of approved training, or the equivalent, related exclusively to the care of infants and toddlers; and

(2) **[**Effective January 1, 2016, have**]** *Have* completed approved training in supporting breastfeeding practices.

.10 Child Care Teachers in School Age Centers.

A. To qualify as a child care teacher in a school age center, an individual shall:

(1) (text unchanged);

(2) Hold a high school diploma or a certificate of high school equivalence or have successfully completed courses for credit from an accredited college or university; **[**and**]**

(3) Have completed 3 clock hours of approved training in Americans with Disabilities Act compliance;

(4) Effective January 1, 2020, have completed approved basic health and safety training; and

[(3)**]** *(5)* Meet **[**the**]** one of the criteria set forth in §B of this regulation.

B. The individual shall meet one of the following:

(1) The individual has successfully completed:

(a) (text unchanged)

(b) 9 clock hours of approved preservice training in communicating with staff, parents, and the public, or at least one academic college course for credit; *and*

[(c) Effective January 1, 2016, 3 clock hours of training in ADA compliance; and**]**

[(d)**]** *(c)* (text unchanged)

(2)—(4) (text unchanged)

C. A child care teacher in a school age center shall:

(1) According to the individual's professional development plan, complete approved continued training, at the rate of at least 12 clock hours per full year of employment as a child care teacher, that consists of a:

(a) (text unchanged)

(b) Maximum of 6 clock hours of elective training; **[**and**]**

(2) Document completion of the continued training on the professional development plan**[.]***; and*

(3) Document that the health and safety training, as required by the office, was updated by the end of each 12-month period, measured from the date of employment in the position.

.11 Assistant Child Care Teacher.

A. To qualify as an assistant child care teacher in a school age center, an individual shall:

(1)—(2) (text unchanged)

(3) Have completed 9 clock hours of approved preservice training in communicating with staff, parents, and the public, or have completed at least one academic college course for credit; **[**and**]**

(4) Effective January 1, 2020, have completed approved basic health and safety training; and

[(4)**]** *(5)* (text unchanged)

B. (text unchanged)

C. An assistant child care teacher in a school age center shall:

(1) According to the individual's professional development plan, complete approved continued training, at the rate of at least 6 clock hours per full year of employment as an assistant child care teacher, that consists of a:

(a) (text unchanged)

(b) Maximum of 3 clock hours of elective training; **[**and**]**

(2) Document completion of the continued training on the professional development plan**[.]***; and*

(3) Document that the health and safety training, as required by the office, was updated by the end of each 12-month period, measured from the date of employment in the position.

D.—E. (text unchanged)

.12 Aides.

A. An aide shall:

(1) (text unchanged)

(2) Work under the direct supervision of the staff person in charge of the group of children to whom the aide is assigned; *and*

(3) Effective January 1, 2020, have completed approved basic health and safety training.

B. An aide in a child care center shall:

[(3)**]** *(1)* According to the individual's professional development plan, complete approved continued training, at the rate of at least 6 clock hours per full year of employment as a child care aide, that consists of a:

(a) (text unchanged)

(b) Maximum of 3 clock hours of elective training; **[**and**]**

[(4)**]** *(2)* Document completion of the continued training on the professional development plan**[.]***; and*

(3) Document that the health and safety training, as required by the office, was updated by the end of each 12-month period, measured from the date of employment in the position.

[B.**]** *C.* (text unchanged)

.13 Substitutes.

A.—E. (text unchanged)

F. Approval by Office.

(1) An individual designated as a substitute may not be used in that capacity unless the office has approved the individual.

(2) If information received by the office indicates that an individual designated as a substitute may present a risk to the health, safety, or welfare of children in care, the office may disapprove the use of that substitute.

(3) The office shall notify the operator of its decision to approve or disapprove a substitute within 30 days of the request being submitted.

13A.16.07 Child Protection

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Abuse/Neglect Reporting.

A. An operator, **[**or**]** employee, *substitute, or volunteer* who has reason to believe that a child has been:

(1)—(2) (text unchanged)

B.—C. (text unchanged)

D. An operator may not require an employee, *substitute, or volunteer* to report through the operator or director, rather than directly to the local department or a law enforcement agency, when the employee has reason to believe that a child has been abused or neglected.

.03 Child Discipline.

A. (text unchanged)

B. The operator, *employee, substitute, or volunteer* may not:

(1) (text unchanged)

(2) Punish a child for refusing to eat or drink; **[**or**]**

(3) Withhold food or beverages as punishment**[.]***; or*

(4) Spank, hit, shake, or use any other means of physical discipline.

C. The operator shall:

(1)—(2) (text unchanged)

(3) Ensure that the child discipline policy is followed by each employee, *substitute,* volunteer, and other individual connected with the center.

.06 Child Security.

A.—B. (text unchanged)

C. Unless an employee or staff member has successfully passed federal and State criminal background checks and**[**, if hired on or after October 1, 2005,**]** a review of child *and adult* abuse and neglect records, the individual may not be alone with an unrelated child in care.

D. An employee or staff member who has successfully passed federal and State criminal background checks and**[**, if hired on or after October 1, 2005,**]** a review of child *and adult* abuse and neglect records shall:

(1)—(2) (text unchanged)

E. (text unchanged)

13A.16.08 Child Supervision

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Individualized Attention and Care.

An operator shall ensure that:

A. Each child receives:

(1) Attention to the child's individual needs, including but not limited to:

(a) Making reasonable accommodations for a child with **[**special needs in accordance with applicable federal and State laws**]** *a disability*; and

(b) Allowing an adult who provides specialized services to a child **[**with special needs access**]** *in care* to provide those services on the facility premises as specified in the child's individualized education plan, individualized family service plan, or written behavioral plan; and

(2) (text unchanged)

B.—E. (text unchanged)

.03 Group Size and Staffing.

A. Assignment of Staff. One or more child care teachers shall be assigned to each group of children as needed to meet the requirements for group size and staffing set forth at §§C—**[**G**]** *E* of this regulation.

B. (text unchanged)

C. Same-Age Groups. **[**In a group of children of the same age, the following staff/child ratio and maximum group size requirements apply:

Child Ages	Staff/Child Ratio	Maximum Group Size
2 years old	1 to 6	12
3 or 4 years old	1 to 10	20
5 years old and older	1 to 15	30**]**

(1) In a group of children in which each child is younger than 2 years old, the following staff/child ratio and maximum group size requirements apply:

Child Ages	*Staff/Child Ratio*	*Maximum Group Size*
Infants	*1 to 3*	*6*
Toddlers	*1 to 3*	*9*
Infants and toddlers, with 1 or 2 infants in the group	*1 to 3*	*9*
Infants and toddlers, with 3 or more infants in the group	*1 to 3*	*6*

(2) In a group of children of the same age who are 2 years old or older, the following staff/child ratio and maximum group size requirements apply:

Child Ages	*Staff/Child Ratio*	*Maximum Group Size*
2 years old	*1 to 6*	*12*
3 or 4 years old	*1 to 10*	*20*
5 years old and older	*1 to 15*	*30*

D. (text unchanged)

E. Group Size and Staffing in Approved Educational Programs.

(1) (text unchanged)

(2) A nursery school may not exceed a staff/child ratio or group size requirement set forth at **[**§G(1)**]** *§E(1)* of this regulation, except that a Montessori school that has been approved by the Department may exceed a staff/child ratio or group size requirement by no more than 1/3.

(3) (text unchanged)

.06 Supervision During Transportation.

When child transportation is conducted to or from:

A. The center by the center operator, there shall be at least one adult, *who has successfully passed federal and State criminal background checks and a review of child and adult abuse and neglect records pursuant to COMAR 13A.16.07.06D,* other than the driver present in the vehicle if:

(1)—(2) (text unchanged)

B. (text unchanged)

13A.16.09 Program Requirements

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.04 Rest Furnishings.

A.—F. (text unchanged)

G. A child under 12 months who falls asleep in a furnishing other than a crib shall be moved immediately to an approved sleeping arrangement specified at §A of this regulation.

13A.16.10 Safety

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 First Aid and CPR.

A.—B. (text unchanged)

C. Whenever a child in care is being transported under center auspices to or from the center, there shall be at least one adult present in the vehicle who is currently certified in approved CPR and first aid. This requirement may be met by the driver of the vehicle *if the driver is an employee of the center*.

D.—E. (text unchanged)

.05 Rest Time Safety.

A. (text unchanged)

B. Unless the need for a positioning device is specified in writing by a child's physician, a restricting device of any type, *including swaddling,* may not be applied to a resting child.

13A.16.11 Health

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Infectious and Communicable Diseases.

A. (text unchanged)

B. Except in centers for children with acute illness, an operator may not knowingly admit to care or retain in care a child with a transmissible infection or a communicable disease during the period of exclusion recommended for that infection or disease as shown **[**on a chart provided by the office**]** *in the Communicable Disease Summary, as published by the Maryland Department of Health*, unless the health officer grants approval for the child to attend child care during that period.

.03 Preventing Spread of Disease.

A. (text unchanged)

B. Hands shall be washed according to the posted approved procedure by a center employee, *substitute*, volunteer, or child in care at least:

(1)—(3) (text unchanged)

C. (text unchanged)

.04 Medication Administration and Storage.

A.—E. (text unchanged)

F. **[**Effective July 1, 2011:**]** Medication Administration Training.

(1) (text unchanged)

(2) Medication may be administered to a child in care only by an employee who has completed approved medication *administration* training.

G.—H. (text unchanged)

.06 Alcohol and Drugs.

An operator may not allow the consumption of alcoholic beverages or use of illegal or nonprescribed controlled dangerous substances:

A. (text unchanged)

B. By an employee, *a substitute*, or a volunteer during an off-site program activity.

13A.16.12 Nutrition

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Food Service.

A. Food and Beverages.

(1) (text unchanged)

(2) For children in care, *unless provided by the child's parent*, the operator shall furnish:

(a)—(b) (text unchanged)

(3)—(6) (text unchanged)

B.—E. (text unchanged)

13A.16.13 Centers for Children with Acute Illness

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Applicability of Subtitle.

An applicant for a center offering care under this chapter shall meet the requirements of this subtitle with the exception of:

A.—D. (text unchanged)

E. COMAR **[**13A.16.10.01A(2)**]** *13A.16.10.01A(3)(c)* concerning emergency evacuation and disaster drills for children; and

F. (text unchanged)

13A.16.14 Adolescent Centers

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Requirements for Approval.

An applicant for a center offering care to children attending a middle school **[**or a junior high school**]** shall:

A.—B. (text unchanged)

13A.16.15 Drop-In Centers

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.03 Applicability of Subtitle.

An applicant for a drop-in center license shall meet the requirements of this subtitle with the exception of:

A.—D. (text unchanged)

E. COMAR **[**13A.16.10.01A(2)**]** *13A.16.10.01A(3)(c)* concerning emergency evacuation and disaster drills for children; and

F. (text unchanged)

13A.16.16 Educational Programs in Nonpublic Nursery Schools

Authority: Education Article, **[**§§2-206 and 2-303**]** *§§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418*; **[**Family Law Article, §§5-570, 5-573, and 5-577;**]** *General Provisions Article, §4-333; Human Services Article, §1-202;* Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.); Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)

.02 Definitions.

A. (text unchanged)

B. Terms Defined.

(1)—(16) (text unchanged)

(17) "Teacher" means an individual who:

(a) (text unchanged)

(b) Meets the requirements of Regulation **[**.06B**]** *.06C* of this chapter.

.03 Approval to Operate an Educational Program — General Requirements.

A. (text unchanged)

B. A bona fide church organization may be approved to operate an educational program without holding a child care center license or a letter of compliance *if child care is not a component of the program.*

C.—H. (text unchanged)

.04 Approval to Operate an Educational Program — Specific Requirements.

A.—D. (text unchanged)

E. An operator may not seek approval of a change in the terms of the approval under any one or combination of the following circumstances:

(1)—(2) (text unchanged)

(3) The office is implementing a sanction or an enforcement action against the child care center license, the letter of compliance, or other approval document, as applicable, pursuant to COMAR **[**13A.15**]** *13A.16, COMAR 13A.17,* or COMAR **[**13A.16**]** *13A.18*; or

(4) (text unchanged)

F.—H. (text unchanged)

13A.16.17 Inspections, Complaints, and Enforcement

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Complaints.

[The office shall investigate both written and oral complaints that relate to a violation of a regulation, including anonymous complaints, and prepare a written report of the findings.**]**

The office shall investigate:

A. Both written and oral complaints that relate to a potential violation of a regulation under this subtitle, including anonymous complaints; and

B. Complaints of providing or advertising unlicensed child care.

.03 Warnings.

If an investigation of a complaint or an inspection of a child care center indicates a violation of this subtitle that does not present an immediate threat to the health, safety, and welfare of a child in care, the office may issue a warning in writing, on an inspection report or by separate letter, that states:

A. The violation found, citing the regulation;

B. The time period for correcting the violation; and

C. That failure to correct the violation may result in sanctions being imposed or in suspension or revocation of the license.

[.04] *.05* Suspension.

A. (text unchanged)

B. The office shall notify the operator in writing of the license suspension by certified mail 20 calendar days in advance, and the notice shall specify:

(1)—(6) (text unchanged)

(7) That, if the suspension is upheld by the **[**Superintendent**]** *Office of Administrative Hearings* following the hearing, the operator shall cease providing child care until the office determines that the health, safety, or welfare of a child in the center no longer is threatened;

(8)—(9) (text unchanged)

C.—D. (text unchanged)

[.05] *.06* Emergency Suspension.

A. (text unchanged)

B. The office shall hand deliver written notice of the emergency suspension to the operator stating:

(1)—(2) (text unchanged)

(3) That the operator is entitled to a hearing before the **[**Superintendent**]** *Office of Administrative Hearings* within 7 calendar days of the operator's request for a hearing;

(4) That the **[**Superintendent**]** *Office of Administrative Hearings* shall issue a decision concerning the emergency suspension within 7 calendar days of the hearing;

(5)—(7) (text unchanged)

C. If unable to hand deliver a written notice to the operator, the Office may send notice by regular and certified mail to the operator's address.

[C.**]** *D.* (text unchanged)

[.06] *.07* Revocation.

A. The office may revoke a license if:

(1) (text unchanged)

(2) An operator, *regardless of intent,* misrepresented or offered false information on the application or on any form or report required by the office;

(3) (text unchanged)

(4) The operator fails to comply with the:

(a) Prohibitions on the use of an individual as an employee, *a substitute,* or a volunteer as set forth in COMAR 13A.16.06.03A and B **[**and**]**, *COMAR 13A.16.06.13F, or COMAR 13A.16.06.15B*; or

(b) (text unchanged)

(5) (text unchanged)

(6) Violations required to be corrected during a period of suspension have not been corrected and the period has ended; **[**or**]**

(7) The license is a continuing license that was placed on conditional status, and the:

(a) (text unchanged)

(b) Operator has failed to meet the requirements for reinstatement of the continuing license**[**.**]***; or*

(8) Evaluation of information provided to, or acquired by, the office indicates that the operator is unable to provide for the welfare of children.

B. If the office decides to revoke a license, the office shall notify the operator in writing 20 calendar days before the effective date of the revocation, stating:

(1)—(6) (text unchanged)

(7) That, if the revocation is upheld by the **[**Superintendent**]** *Office of Administrative Hearings* following the hearing, the operator shall cease providing child care; and

(8) (text unchanged)

C. (text unchanged)

[.07] *.08* Penalties.

A. (text unchanged)

B. Civil Penalty.

(1) A person who maintains and operates a child care center *or advertises child care services* without a license, or who violates any regulation in this subtitle, is subject to a civil penalty imposed in a civil action of not more than $1,000 for each violation.

(2)—(3) (text unchanged)

C. An individual against whom a civil penalty has been imposed under this regulation shall pay the full amount of the penalty promptly to the Department, as instructed by the civil citation or as otherwise directed by the office.

D. Appeals.

(1) An individual may appeal the imposition of a civil penalty under this regulation by filing an appeal with the office as instructed by the civil citation or as otherwise directed by the office.

(2) Appeals are conducted in accordance with the provisions of COMAR 13A.16.18.

13A.16.18 Administrative Hearings

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-573 and 5-580;**]** *General Provisions Article, §4-333; Human Services Article, §1-202;* **[**State Government Article, §10-204;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.); Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)

.01 Scope.

A. This chapter applies to hearings concerning actions taken by the Office of Child Care which adversely impact child care center licenses and letters of compliance. These actions include denials, suspensions, or revocations of licenses or letters of compliance, reductions in capacity, **[**or**]** limitations on the ages or numbers of children who may be admitted to the child care center, *the imposition of civil penalties for providing or advertising unlicensed child care services without a valid child care license,* and employment exclusions pursuant to COMAR 13A.16.06.03A or B.

B. (text unchanged)

.02 Definitions.

A. (text unchanged)

B. Terms Defined.

(1)—(9) (text unchanged)

[(10) "Letter of compliance" means a letter issued by the Department to a religious organization which meets the requirements of Family Law Article, §5-573, Annotated Code of Maryland.**]**

[(11)**]** *(10)*—**[**(16)**]** *(15)* (text unchanged)

.03 Hearing Requests.

A. A hearing shall be held when **[**an applicant, licensee, or holder of a letter of compliance requests a hearing to contest**]**:

(1) An applicant or licensee requests a hearing to contest:

[(1)**]** *(a)* The denial of an application for a license **[**or letter of compliance**]**;

[(2)**]** *(b)* A revocation or suspension of a license **[**or letter of compliance**]**; or

[(3)**]** *(c)* Any other action that adversely impacts on the licensee **[**or holder of the letter of compliance**]**, including, but not limited to:

[(a)**]** *(i)*—**[**(b)**]** *(ii)* (text unchanged)

[(c)**]** *(iii)* A limitation on the ages or numbers of children who may be admitted to the child care center**[**.**]***;*

(2) An individual requests a hearing to contest the imposition of civil penalties for providing unlicensed child care or advertising child care services without a valid license; or

(3) An individual requests a hearing to contest the prohibition of employment at a child care center.

B. Nonemergency Action Hearing Requests.

(1) All nonemergency action hearing requests shall be forwarded in writing to the Office and shall state the name and address of the licensee or **[**holder of the letter of compliance**]** *the individual contesting the imposition of a civil penalty*, and the effective date and nature of the action appealed from.

(2)—(5) (text unchanged)

C. (text unchanged)

.04 Preliminary Conference.

A. **[**The Office shall hold a preliminary conference, on request of an appellant, before a hearing on an action.**]** *A preliminary conference may be held before a hearing on an action if an appellant requests the conference.*

B.—D. (text unchanged)

.05 Denial or Dismissal of a Hearing Request.

A. The Office of Administrative Hearings may deny a request for a hearing if:

(1) The issue appealed is not one which adversely affects the licensee **[**or holder of the letter of compliance**]**; or

(2) (text unchanged)

B. (text unchanged)

13A.16.19 Public Access to Licensing Records

Authority: *Education Article, §§9.5-401, 9.5-404—9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.03 Request for Information from Licensing Records.

A. (text unchanged)

B. The written request shall:

(1) Contain the applicant's name, address, and telephone number; *and*

[(2) Be signed by the applicant; and**]**

[(3)**]** *(2)* (text unchanged)

[C. A request may be made in any form or format if it does not involve:

(1) Physical inspection of licensing records; or

(2) Preparation of a written or electronic:

(a) Copy of licensing records; or

(b) Report of information from licensing records.**]**

[D.**]** *C.* (text unchanged)

.04 Compelling Public Purpose.

A compelling public purpose shall exist for the custodian of record to permit inspection of licensing records other than the records specified under **[**State Government Article, §10-617(h)(2)**]** *General Provisions Article, §4-333(b),* Annotated Code of Maryland.

KAREN B. SALMON, Ph.D.
State Superintendent of Schools

Subtitle 17 CHILD CARE—LETTERS OF COMPLIANCE

Notice of Proposed Action

[19-053-P]

The Maryland State Board of Education proposes to:

(1) Amend Regulation **.02** under **COMAR 13A.17.01 Scope and Definitions**;

(2) Amend Regulations **.01**, **.02**, **.05**, and **.06** under **COMAR 13A.17.02 Letter of Compliance Application and Maintenance**;

(3) Amend Regulations **.02—.06** and adopt new Regulation **.09** under **COMAR 13A.17.03 Management and Administration**;

(4) Amend Regulations **.05**, **.12**, and **.13** under **COMAR 13A.17.05 Physical Plant and Equipment**;

(5) Amend Regulations **.02—.05** under **COMAR 13A.17.06 Staff Requirements**;

(6) Amend Regulations **.02**, **.03**, and **.06** under **COMAR 13A.17.07 Child Protection**;

(7) Amend Regulation **.06** and adopt new Regulation **.08** under **COMAR 13A.17.08 Child Supervision**;

(8) Amend Regulations **.01** and **.02** under **COMAR 13A.17.10 Safety**;

(9) Amend Regulations **.02—.04** and **.06** under **COMAR 13A.17.11 Health**;

(10) Amend Regulation **.01** under **COMAR 13A.17.12 Nutrition**;

(11) Amend Regulation **.01** under **COMAR 13A.17.13 Adolescent Facilities**;

(12) Amend Regulations **.02** and **.03** under **COMAR 13A.17.14 Educational Programs in Nonpublic Nursery Schools**;

(13) Amend Regulation **.01**, adopt new Regulation **.03**, recodify existing Regulation **.03** to be Regulation **.04**, and amend and recodify existing Regulations **.04—.07** to be Regulations **.05—.08** under **COMAR 13A.17.15 Inspections, Complaints, and Enforcement**;

(14) Amend Regulations **.01—.05** under **COMAR 13A.17.16 Administrative Hearings**; and

(15) Amend Regulations **.03** and **.04** under **COMAR 13A.17.17 Public Access to Licensing Records**.

This action was considered by the Maryland State Board of Education at its May 22, 2018, meeting.

Statement of Purpose

The purpose of this action is to clarify certain requirements pertaining to the operation of child care programs operated by tax exempt religious organizations and establish requirements for criminal background checks, swimming pool security, length of time for taking the basic health and safety training, and medical information being provided.

Comparison to Federal Standards

There is a corresponding federal standard to this proposed action, but the proposed action is not more restrictive or stringent.

Estimate of Economic Impact

I. Summary of Economic Impact. The purpose of the proposed amendments is to implement the requirements of the Child Care and Development Block Grant Act, as amended (42 U.S.C. 9858 et seq.), along with Section 418 of the Social Security Act (42 U.S.C. 618). Consistent throughout all four subtitles of regulations, the proposed amendments include statutory requirements of the Child Care and Development Fund reauthorization, modifications to provide clarity and more consistency between all subtitles, and corrections to the previous publication. The State will reimburse the cost to child care providers for the cost of fingerprinting to meet the new requirement. http://earlychildhood.marylandpublicschools.org/fingerprinting

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	(E+)	Approximately $46,500
B. On other State agencies:	NONE	
	Benefit (+) Cost (-)	Magnitude
D. On regulated industries or trade groups:		
(1) Centers and homes up-front cost of fingerprinting	(+)	Approximately $46,500
(2) Medical information	(+)	Approximately $80,550
(3) Swimming pool security	(+)	Approximately $45,000
E. On other industries or trade groups:	NONE	
F. Direct and indirect effects on public:	NONE	

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

A. Background Clearances: In the State has processed fingerprint reimbursement requests for 89 providers (3% of the 2965 payment are Child Care with Letter of compliance) as of January 31, 2019, for a total of $45,421 in obligations. The count for reimbursement to child care centers does not include all of the staff printed for each location—only the center itself. The cost to date for reimbursement of fingerprinting costs for FY18 is $15,507 and FY 2019 is $29,914 (July 1, 2018 through January 31, 2019). It is estimated that the total cost for FY 2019 will be $31,000. Therefore, the total estimated cost to the State is $46,500 over FY 2018 and FY 2019. The State is providing a one-time reimbursement for fingerprinting costs to child care providers.

B. Maryland Department of Public Safety and Correctional Services (DPSCS) Criminal Justice Information System is allowed to keep $2 from the FBI background check. The State estimates there are approximately 217 providers going through the fingerprinting process. Therefore, estimated revenue to the DPSCS is estimated to be $434 over FY 18 and FY 19.

D(1). Background Clearances: Child Care Centers and staff, and family child care homes and staff will incur up-front costs for meeting fingerprinting requirements. Cost for fingerprinting ranges from $35 to $75 per person. The State reimburses the cost of fingerprinting for providers meeting the new requirement. If the provider/center does not request reimbursement from the State, they would incur the cost of the fingerprinting.

D(2). Medical information for child care providers and staff of child care centers: The current number of statewide personnel in Child Care Centers, Letter of Compliance facilities, and Large Family Child Care Homes is 43,000 staff. There are 10,700 substitutes in Family Child Care who would be affected by the

requirement to have medicals every 2 years. This is approximately 53,700 people needing bi-annual medicals, assuming they all remain employed for the 2-year period. Many will transfer to other sites but will remain employed in Maryland child care. The estimated cost of each medical is between $75 and $125, depending on health insurance, co-pays, etc. Using these estimates, approx. 1,611 people (3% of the 53,700 people are in Child Care with Letter of Compliance) there will be people spending $100 for a medical every 2 years, which would be an approximate cost of $80,550 per year..

D(3). Swimming Pool Security: According to a January 2018 survey of regional child care licensing offices, there are approximately 750 child care facilities with swimming pools. It is estimated that half of these pools already meet fencing requirements and would not incur additional costs. Each fence would cost an estimated $3,000 to $5,000 depending on the size of the pool and the outdoor space. Using these estimates, 11 pool (3% of the 375 are in Child Care with Letter of Compliance) owners would spend an average of $4,000 per fence for a total of $45,000 to bring all facilities into compliance This is a one-time-only cost. All new applicants would need to meet this requirement prior to becoming licensed.

Economic Impact on Small Businesses

The proposed action has a meaningful economic impact on small business. An analysis of this economic impact follows.

Intended Beneficiaries

Background Clearances/Fingerprinting: to comply with the Child Care and Development Block Grant (CCDBG) Act referenced in Part A, the State is providing reimbursement to child care centers and family child care homes for the cost of staff fingerprinting. While these facilities/staff will incur the up-front cost for fingerprinting, the State will reimburse that cost, thereby alleviating the economic impact to child care facilities who request reimbursement.

Health and Safety Training: to comply with the CCDBG Act referenced in Part A, the State utilized the Maryland State Department of Education's Learning Management System to develop and deliver the online Health and Safety training at no cost to child care providers. The State did not incur any direct costs for the development of the training. For those providers who choose not to take the free online training, or who fail both online attempts, the training can be obtained in a face to face setting for an average cost of $35. This cost is reimbursable to providers who hold a Maryland Child Care Credential at Level 2 or higher. Child care providers can obtain the training in Spanish from Penn State Better Kid Care for $5. This training is also eligible for reimbursement through the Maryland Credentialing Program.

Intended Beneficiaries: Households

Families with children enrolled in a regulated child care facility will benefit because their children will receive care and education services from staff and administration who have met higher standards for criminal background checks, health and safety training, updated staff medical information, and whose facilities will meet requirements for protecting children from swimming pool dangers.

Intended Beneficiaries: Businesses

The amendments are not expected to have an impact on any businesses beyond the child care businesses that comply with the new requirements.

Other Direct or Indirect Impacts: Adverse

Background clearances: Facilities who incur the cost of fingerprinting ($35—$75 per person) and choose not to request reimbursement will not benefit from the alleviation of those costs by the State.

Medical information for child care providers and staff of child care centers: Individuals working in family child care or child care centers will incur the cost of medicals every 2 years. The estimated cost of each medical is between $75 and $125, depending on health insurance, co-pays, and other variables.

Swimming Pool Security: An estimated 375 pool owners who are licensed child care programs would spend an average of $4,000 per facility, as a one-time cost, to come into compliance with swimming pool security requirements. New applicants for child care licensure/registration would need to meet this requirement prior to becoming licensed. This additional cost may encourage some child care providers to raise the fees they charge to families.

Other Direct or Indirect Impacts: Positive

Improving the quality of child care and early education in Maryland is expected to enhance the overall reputation of Maryland's early care and education industry, and this may help attract businesses to Maryland. Higher-quality child care and early education services for children may result in those children more effectively developing the skills they will need to succeed in school and in life and may positively affect the State workforce in the years to come. Maryland's compliance with the federal CCDBG Act ensures that federal funding continues, which in turn, supports working families in Maryland through the Child Care Subsidy program and other quality initiatives to improve long term benefits to children.

Long-Term Impacts

No long-term effects on Maryland small businesses are anticipated which may differ from, compound, mitigate, or offset the initial effects described above.

Estimates of Economic Impact

(1) Cost of providing goods and services:

Some child care providers who incur costs related to the amendments may charge higher fees to families for their services. Because child care fees are determined independently by each provider, the overall change, if any, in those expenses cannot be determined.

(2) Effect on the work force:

Families in Maryland's work force with young children and school-age children using child care services will have the ability to choose from regulated facilities that are meeting higher standards for: criminal background checks, health and safety training, staff medicals, and, if applicable, fencing requirements for swimming pools. Access to this information may enable families to make informed decisions when choosing a program for their children; and may be seen as a benefit for business growth in Maryland.

(3) Capital investment, taxation, competition, and economic development:

These proposals are not expected to have any direct effect on capital investment, taxation, competition, or economic development. However, as noted above, they may help provide a more attractive environment for business growth.

(4) Consumer choice:

Consumer choice is expected to be affected positively by making higher quality child care services available to families seeking those services.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Jennifer A. Nizer, Director, Office of Child Care, Division of Early Childhood, Maryland State Department of Education, 200 West Baltimore Street, Baltimore, MD 21201, or call 410-767-7806 (TTY 410-333-6442), or email to jennifer.nizer@maryland.gov, or fax to 410-333-8963. Comments will be accepted through March 18, 2019. A public hearing has not been scheduled.

Open Meeting

Final action on the proposal will be considered by the State Board of Education during a public meeting to be held on April 23, 2019, at 9 a.m., at 200 West Baltimore Street, Baltimore, MD 21201.

13A.17.01 Scope and Definitions

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-502, 5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Definitions.

A. (text unchanged)

B. Terms Defined.

(1)—(2) (text unchanged)

(3) "Adolescent facility" means a child care facility that offers programs exclusively to children in middle school **[**and junior high school**]**.

(4)—(6) (text unchanged)

(7) "Capacity" means the total number of children, specified by the letter of compliance **[**of the facility**]**, who may be in care at any one time.

(8)—(16) (text unchanged)

(17) Employee.

(a) "Employee" means an individual:

(i) Who **[**for compensation**]** is employed by the facility operator to work at or for the facility; and

(ii) (text unchanged)

(b) (text unchanged)

(c) For the purpose of applying the criminal background check requirements and the child and adult abuse and neglect record review requirements set forth in this subtitle, "employee" includes any individual who:

(i) **[**Is compensated by the operator to perform a service at the facility;**]** *Meets the definition of an employee as set forth in §B(17) of this regulation; and*

[(ii) Has access to children in care; and**]**

[(iii)**]** *(ii)* (text unchanged)

(18)—(19) (text unchanged)

(20) "Identified as responsible for child abuse or neglect" means being determined by a local department *of social services or other state agency* to be responsible for indicated child abuse or neglect, or awaiting the local department's appeal hearing after the determination.

(21) (text unchanged)

(22) "Injurious treatment" means:

(a) **[**Deliberate infliction in any manner of any type of physical pain**]** *Physical discipline*, including but not limited to spanking, hitting, shaking, or any other means of physical discipline, or enforcement of acts which result in physical pain;

(b) (text unchanged)

(c) Subjecting a child to verbal abuse intended to cause mental distress, such as shouting, cursing, shaming, *threatening*, or ridiculing; and

(d) (text unchanged)

(23)—(24) (text unchanged)

(25) "Letter of compliance" means a letter issued by the Department to a tax-exempt religious organization that meets the requirements under **[**Family Law Article, §5-574**]** *Education Article, §§9.5-401—9.5-420*, Annotated Code of Maryland.

(26)—(30) (text unchanged)

(31) "Operated by a tax-exempt religious organization" means that a letter holder *is a church or bona fide house of worship or* has submitted a copy of the determination letter from the Internal Revenue Service that recognizes the organization as **[**a bona fide church organization,**]** exempt from taxation under the Internal Revenue Code of 1954, 26 U.S.C. §501(c)(3).

(32)—(36) (text unchanged)

(37) Reasonable Accommodations.

(a)"Reasonable accommodations" means changes made to a child care facility's program or policies to allow a child with a disability equal access to the benefits of the child care facility and program.

(b)"Reasonable accommodations" does not include providing accommodations that would significantly:

(i) Change the nature of the program; or

(ii) Impose a monetary burden on the provider.

[(37)**]** *(38)*—**[**(46)**]** *(47)* (text unchanged)

13A.17.02 Letter of Compliance Application and Maintenance

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Letter of Compliance — General Requirements.

A.—B. (text unchanged)

C. The operator shall not allow an employee, staff member, substitute, or volunteer to:

(1) Be assigned to a group of children or have access to a child in care until the individual has successfully passed the child abuse and neglect clearance and a federal or State criminal background check; or

(2) Be alone with a child or group of children until all checks have been successfully passed.

.02 Initial Letter of Compliance.

A. Application Requirements. An individual or organization that does not currently hold a letter of compliance and wishes to operate a nursery school or child care program under this subtitle shall:

(1)—(2) (text unchanged)

(3) Ensure that an application for a federal and State criminal background check is submitted for:

(a)—(b) (text unchanged)

(c) Each employee, including **[**paid**]** substitutes *and volunteers*; and

(d) Each individual **[**14**]** *18* years old or older living on the child care facility premises.

B. Before the proposed opening date, the applicant shall submit the following items to the office, if not submitted at the time the written application form was submitted:

(1) Signed and notarized permission to examine records of abuse and neglect of children and adults for information about:

(a) (text unchanged)

(b) Each employee, *including substitutes and volunteers*;

(c)—(e) (text unchanged)

(2)—(12) (text unchanged)

C. Non-Maryland State Criminal Background Check. If an individual subject to the requirements of §A(3) of this regulation currently resides or has resided in a state other than Maryland within 5 years before the date of application for registration, the individual shall:

(1) Apply for a state criminal background check to be performed by a duly authorized entity within that state; and

(2) Request the non-Maryland state entity performing the criminal background check to transmit the result of that background check directly to the Agency.

.05 Response of the Office to Application.

A. (text unchanged)

B. Except as specified at §C of this regulation, the office shall, within 30 days after completing the procedures in §A of this regulation, promptly:

(1) (text unchanged)

(2) For a continuing **[**license**]** *letter of compliance* application, issue or deny a continuing **[**license**]** *letter of compliance*.

C. (text unchanged)

.06 Denial of Letter of Compliance.

A. An office may deny an application for an initial letter of compliance or a continuing letter of compliance if:

(1) (text unchanged)

(2) An evaluation of the application form, *medical documents, or any documents required* by the office reveals that the applicant, *regardless of intent*, reported false information;

(3)—(7) (text unchanged)

B.—C. (text unchanged)

13A.17.03 Management and Administration

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Admission to Care.

A.—C. (text unchanged)

D. If a child is younger than 6 years old at the time of admission, the operator may not allow the child to remain in care if the parent does not, within 30 days after the child's admission, submit evidence to the operator on a form supplied or approved by the office that the child has received an appropriate lead screening *or test* in accordance with applicable State or local requirements.

E. Temporary Admission to Care.

(1) (text unchanged)

(2) For a child to be temporarily admitted or retained in care, the parent shall present evidence of the child's appointment with a health care provider or local health department to:

(a) Receive a medical evaluation to include, if applicable, a lead screening *or test*;

(b)—(d) (text unchanged)

(3)—(4) (text unchanged)

.03 Program Records.

The operator shall:

A. (text unchanged)

B. Maintain:

(1)—(2) (text unchanged)

(3) Records of food actually served by the facility for the most recent 4 weeks as required by COMAR **[**13A.17.12.01G**]** *13A.17.12.01E*;

(4) (text unchanged)

(5) A current copy of **[**Family Law Article, §5-570**]** *Education Article, §§9.5-401—9.5-420* et seq., Annotated Code of Maryland, and this subtitle on the premises and make them available to parents upon request.

.04 Child Records.

A.—D. (text unchanged)

E. **[**If the child is younger than 6 years old, there shall be documentation that the child has received an appropriate lead screening as required by State or local law.**]** *The operator shall maintain documentation that, as required by State or local law, each child admitted to, or continuing in, care has received:*

(a) An appropriate lead screening, if the child is younger than 6 years old and was born before January 1, 2015; or

(b) A lead test when the child is 12 months old and again when the child is 24 months old, regardless of where the child resides, if the child was born on or after January 1, 2015.

F. A medical evaluation and, if applicable, documentation of an appropriate lead screening *or test* that are transferred directly, without a gap in time longer than 3 months, from a registered family day care home, a licensed child care center, another facility operating under a letter of compliance, or a public or nonpublic school in Maryland may be accepted as meeting the requirements of §§D(3) and E of this regulation.

G.—H. (text unchanged)

I. The operator shall record or maintain on file:

(1) (text unchanged)

(2) Each injury or accident required by Regulation **[**.06B and C**]** *.06D and E* of this chapter to be reported;

(3)—(6) (text unchanged)

J. (text unchanged)

.05 Staff Records.

The operator shall:

A. Maintain **[**for review**]** *and, upon request* by the office, *submit* a current and complete:

(1)—(2) (text unchanged)

B. During an individual's employment at the facility and for 2 years after the date of the individual's last employment there, maintain a record for each individual that includes:

(1) Training, including basic health and safety training and yearly updates, if required under this subtitle;

[(1)**]** *(2)*—**[**(4)**]** *(5)* (text unchanged)

C. —D. (text unchanged)

.06 Notifications.

The operator shall:

A. Within 5 business days of its occurrence, provide written notification to the office about the:

(1) Addition of a new employee or staff member that includes:

(a) (text unchanged)

(b) Information about the individual's work assignment; **[**and**]**

(c) Proof of compliance with the laws and regulations pertaining to criminal background checks; and

[(c)**]** *(d)* (text unchanged)

(2) (text unchanged)

B. Within 15 working days of adding the new employee or staff member, provide to the office, if applicable, documentation that the individual meets the requirements of this chapter for the assignment, unless documentation already is on file in the office;

[B.**]** *C.* Have on file in the nursery school or child care program the following information about each employee or staff member:

(1)—(2) (text unchanged)

(3) **[**If the individual is paid, proof**]** *Proof* of compliance with laws and regulations pertaining to criminal background checks;

[C.**]** *D.*—**[**D**]** *E.* (text unchanged)

[E.**]** *F.* Immediately notify the office of:

(1) An employee *or an individual on the child care facility premises* who is under investigation for:

(a)—(b) (text unchanged)

(2) (text unchanged)

[F.**]** *G.* Within 5 working days after there is a new **[**resident on the**]** *individual living on the child care facility* premises who is 18 years old or older:

(1) Submit to the office a signed and notarized release form giving the office permission to examine records of abuse and neglect of children and adults for information about the **[**resident**]** *individual living on the child care facility premises*; and

(2) Direct the **[**resident**]** *individual living on the child care facility premises* to apply for a federal and State criminal background check *pursuant to COMAR 13A.17.02.02A(3) and C*; and

[G.**]** *H.* (text unchanged)

.09 Advertisement.

A. An operator may not advertise child care services unless the facility holds a current letter of compliance issued by the office.

B. An advertisement of the facility shall:

(1) Specify that the facility holds a letter of compliance; and

(2) Include the letter of compliance number issued to the facility by the office.

13A.17.05 Physical Plant and Equipment

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.05 Lead-Safe Environment.

A. (text unchanged)

B. If the child care facility is a **[**pre-1950**]** *pre-1978* residential rental property, which is an affected property as defined by the Environment Article, §6-801(b), Annotated Code of Maryland, the operator shall submit a copy of the current lead risk reduction or lead free certificate.

C.—D. (text unchanged)

.12 Outdoor Activity Area.

A.—E. (text unchanged)

F. Any pool on the premises of the facility shall be made inaccessible to children in care and have security features, including but not limited to having a:

(1) Fence that surrounds the pool;

(2) Self-closing and self-latching mechanism on the gate, door, or access to the pool;

(3) Lock that is operable and secured; and

(4) Sensor or alarm in the pool and on the access door.

.13 Swimming Facilities.

A. (text unchanged)

B. An above-ground swimming pool **[**may not be used for swimming activities.**]***:*

(1) May not be used for swimming activities; and

(2) Shall be made inaccessible to children in care.

C. A child in care may not use a pool, such as a fill-and-drain molded plastic or inflatable pool.

13A.17.06 Staff Requirements

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Staff Orientation *and Training*.

On or before assignment, an operator shall document that each employee and staff member has been informed in writing about all areas pertinent to the health and safety of the children, including:

A.—I. (text unchanged)

J. The content of the most current regulations in this subtitle; **[**and**]**

K. The community resources available to the family of a child who may have special needs*; and*

L. Effective January 1, 2020, complete basic health and safety training.

.03 Suitability for Employment.

A. A child care facility operator **[**may**]** *shall* not employ an individual who**[**, as reported on or after October 1, 2005,**]** has received a conviction, a probation before judgment disposition, a not criminally responsible disposition, or a pending charge for the commission or attempted commission of:

(1)—(2) (text unchanged)

(3) A violent crime classified as a felony, *including physical assault or battery*;

(4)—(9) (text unchanged)

(10) Possession with intent to manufacture, distribute, or dispense a controlled dangerous substance; **[**or**]**

(11) Reckless endangerment**[**.**]***; or*

(12) The felony of:

(a) Murder;

(b) Spousal abuse; or

(c) Arson.

B. If **[**, as reported on or after October 1, 2005,**]** an individual has been identified as responsible for child abuse or neglect or received a conviction, a probation before judgment disposition, a not criminally responsible disposition, or a pending charge for the commission or attempted commission of a crime or offense that is not included in the list set forth at §A of this regulation, the office:

(1)—(2) (text unchanged)

C.—E. (text unchanged)

.04 Staff Health.

A. Medical Evaluation.

(1) An operator shall obtain a medical evaluation**[**, including a tuberculosis screen, if indicated**]**, *conducted by a practicing physician, certified nurse practitioner, or registered physician's assistant,* on a form supplied or approved by the office, that has been completed within 6 months before the individual begins work in the center, from each prospective:

(a) (text unchanged)

(b) Except for a health care professional serving as a consultant pursuant to Regulation **[**.14C**]** *.06C* of this chapter, support staff who will be present at the center while children are in care.

(2) The medical evaluation shall be signed by the individual who conducted the evaluation and include verification that the staff member:

(a) Is free of communicable tuberculosis, if indicated; and

(b) Has the capability to perform the duties of the staff member's position.

[(2)**]** *(3)* The medical evaluation may transfer directly from one nursery school or child care program to another when **[**there has been no gap in employment longer than 3 months**]** *the evaluation was completed within the previous 24 months of the transfer.*

(4) The medical evaluation shall be updated every 2 years based on the individual's initial date of hire.

B. Exclusion from Work. Except with the approval of the office and the health officer, an operator may not permit an individual with a serious transmissible infection or communicable disease listed **[**on a chart supplied by the office**]** *in the Communicable Diseases Summary, as published by the Maryland Department of Health,* to work at a nursery school or child care program during the period of exclusion from child care recommended **[**on the chart for that infection or disease**]** *by the Summary*.

.05 Substitutes.

A.—B. (text unchanged)

C. Approval by Office.

(1) An individual designated as a substitute may not be used in that capacity unless the office has approved the individual.

(2) If information received by the office indicates that an individual designated as a substitute may present a risk to the health, safety, or welfare of children in care, the office may disapprove the use of that substitute.

(3) The office shall notify the operator of its decision to approve or disapprove a substitute within 30 days of the request being submitted.

13A.17.07 Child Protection

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Abuse/Neglect Reporting.

A. An operator **[**or**]**, staff member, *employee, substitute, or volunteer* who has reason to believe that a child has been:

(1)—(2) (text unchanged)

B.—C. (text unchanged)

D. An operator may not require a staff member, *employee, substitute, or volunteer* to report through the operator or director, rather than directly to the local department or a law enforcement agency, when the staff member has reason to believe that a child has been abused or neglected.

.03 Child Discipline.

A. (text unchanged)

B. The operator, *staff member, employee, substitute, or volunteer* may not:

(1) (text unchanged)

(2) Punish a child for refusing to eat or drink; **[**or**]**

(3) Withhold food or beverages as punishment**[**.**]***; or*

(4) Spank, hit, shake, or use any other means of physical discipline.

C. The operator shall:

(1)—(2) (text unchanged)

(3) Ensure that the child discipline policy is followed by each employee, *substitute,* volunteer, and other individual connected with the facility.

.06 Child Security.

A. (text unchanged)

B. Unless an employee or staff member has successfully passed federal and State criminal background checks and**[**, if hired on or after October 1, 2005,**]** a review of child and adult abuse and neglect records, the individual may not be alone with an unrelated child in care.

C. A facility employee or staff member who has successfully passed federal and State criminal background checks and**[**, if hired on or after October 1, 2005,**]** a review of child and adult abuse and neglect records shall:

(1)—(2) (text unchanged)

13A.17.08 Child Supervision

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.06 Supervision During Transportation.

When child transportation is conducted to or from:

A. The child care facility by the facility operator, there shall be at least one adult, *who has successfully passed federal and State criminal background checks and a review of child and adult abuse and neglect records pursuant to COMAR 13A.17.07.06B,* other than *the* driver present in the vehicle if:

(1)—(2) (text unchanged)

B. (text unchanged)

.08 Rest Time Supervision.

During a rest period for a group of children:

A. The required staff/child ratio applicable to that group shall be maintained until all the children are resting quietly; and

B. Once all the children in the group are resting quietly:

(1) At least one staff member assigned to the group shall continue to remain in the room with the children; and

(2) Other staff members, if any, assigned to the group may leave the room but shall remain on the premises and within hearing range.

13A.17.10 Safety

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Emergency Safety Requirements.

A. (text unchanged)

B. If the child care facility is included within a comprehensive emergency and disaster plan, the facility operator shall ensure that:

(1) The comprehensive plan contents meet all emergency and disaster plan requirements set forth at **[**§A(2)(a)**]** *§A(3)(a)* and (b) of this regulation; and

(2) (text unchanged)

C. (text unchanged)

.02 First Aid and CPR.

A.—B. (text unchanged)

C. Whenever a child in care is being transported under child care facility auspices to or from the facility, there shall be at least one adult present in the vehicle who is currently certified in approved CPR and first aid. This requirement may be met by the driver of the vehicle *if the driver is an employee of the center*.

D.—E. (text unchanged)

13A.17.11 Health

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Infectious and Communicable Diseases.

A. (text unchanged)

B. Except in facilities for children with acute illness, an operator may not knowingly admit to care or retain in care a child with a transmissible infection or a communicable disease during the period of exclusion recommended for that infection or disease as shown **[**on a chart provided by the office**]** *in the Communicable Disease Summary, as published by the Maryland Department of Health*, unless the health officer grants approval for the child to attend child care during that period.

.03 Preventing Spread of Disease.

A. (text unchanged)

B. Hands shall be washed according to the posted approved procedure by a facility employee, *substitute*, volunteer, or child in care at least:

(1)—(3) (text unchanged)

C. (text unchanged)

.04 Medication Administration and Storage.

A.—E. (text unchanged)

F. **[**Effective July 1, 2011:**]** *Medication Administration Training.*

(1) (text unchanged)

(2) Medication may be administered to a child in care only by an employee who has completed approved medication *administration* training.

G.—H. (text unchanged)

.06 Alcohol and Drugs.

An operator may not allow the consumption of alcoholic beverages or use of illegal or nonprescribed controlled dangerous substances:

A. (text unchanged)

B. By an employee, *a substitute*, or a volunteer during an off-site program activity.

13A.17.12 Nutrition

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Food Service.

A. Food and Beverages.

(1) (text unchanged)

(2) For children in care, *unless provided by the child's parent,* the operator shall furnish:

(a)—(b) (text unchanged)

(3)—(6) (text unchanged)

B.—E. (text unchanged)

13A.17.13 Adolescent Facilities

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Requirements for Approval.

An applicant for a child care program offering care to children attending a middle school **[**or a junior high school**]** shall:

A.—B. (text unchanged)

13A.17.14 Educational Programs in Nonpublic Nursery Schools

Authority: Education Article, **[**§§2-206 and 2-303**]** *§§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418*; **[**Family Law Article, §§5-570 and 5-573;**]** *General Provisions Article, §4-333; Human Services Article, §1-202;* Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.); Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)

.02 Definitions.

A. In this chapter, the following terms have the meanings indicated.

B. Terms Defined.

(1)—(7) (text unchanged)

(8) "Letter of compliance" means a document issued by the Department pursuant to **[**COMAR 13A.16**]** *this subtitle* that authorizes the recipient to operate a letter of compliance facility.

(9)—(14) (text unchanged)

.03 Approval to Operate an Educational Program — General Requirements.

A. (text unchanged)

B. A bona fide church organization may be approved to operate an educational program without holding a child care center license or a letter of compliance *if child care is not a component of the program.*

C.—G. (text unchanged)

13A.17.15 Inspections, Complaints, and Enforcement

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Complaints.

[The office shall investigate both written and oral complaints that relate to a violation of a regulation, including anonymous complaints, and prepare a written report of the findings.**]**

The office shall investigate:

A. Both written and oral complaints that relate to a potential violation of a regulation under this subtitle, including anonymous complaints; and

B. Complaints of providing child care or advertising child care services without a valid letter of compliance.

.03 Warnings.

If an investigation of a complaint or an inspection of a facility indicates a violation of this subtitle that does not present an immediate threat to the health, safety, and welfare of a child in care, the office may issue a warning in writing, on an inspection report or by separate letter, that states:

A. The violation found, citing the regulation;

B. The time period for correcting the violation; and

C. That failure to correct the violation may result in sanctions being imposed or in suspension or revocation of the letter of compliance.

[.04] .*05* Suspension.

A. (text unchanged)

B. The office shall notify the operator in writing of the suspension by certified mail 20 calendar days in advance, and the notice shall specify:

(1)—(6) (text unchanged)

(7) That, if the suspension is upheld by the **[**Superintendent's designee**]** *Office of Administrative Hearings* following the hearing, the operator shall cease providing child care until the office determines that the health, safety, or welfare of a child in the facility no longer is threatened;

(8)—(9) (text unchanged)

C.—D. (text unchanged)

[.05] .*06* Emergency Suspension.

A. (text unchanged)

B. The office shall hand deliver written notice of the emergency suspension to the operator stating:

(1)—(2) (text unchanged)

(3) That the operator is entitled to a hearing before the **[**Superintendent**]** *Office of Administrative Hearings* within 7 calendar days of the operator's request for a hearing;

(4) That the **[**Superintendent**]** *Office of Administrative Hearings* shall issue a decision concerning the emergency suspension within 7 calendar days of the hearing;

(5)—(7) (text unchanged)

C. If unable to hand deliver a written notice to the operator, the Office may send notice by regular and certified mail to the operator's address.

[C.**]** *D.* (text unchanged)

[.06] .*07* Revocation.

A. The office may revoke a letter of compliance if:

(1) (text unchanged)

(2) The operator, *regardless of intent,* misrepresented or offered false information on the application or on any form or report required by the office;

(3) (text unchanged)

(4) The operator fails to comply with the:

(a) Prohibitions on the use of an individual as an employee, *substitute,* or **[**as a**]** volunteer as set forth, respectively, in COMAR 13A.17.06.03A and B **[**and .07C**]**, *COMAR 13A.17.06.05C, and COMAR 13A.17.06.07B*; or

(b) (text unchanged)

(5) (text unchanged)

(6) Violations required to be corrected during a period of suspension have not been corrected and the period has ended; **[**or**]**

(7) The letter of compliance is a continuing letter of compliance that was replaced by a conditional letter of compliance, and the:

(a) (text unchanged)

(b) Operator has failed to meet the requirements for reinstatement of the continuing letter of compliance**[.]***; or*

(8) The evaluation of information provided to or acquired by the office indicates that the operator is unable to care for the welfare of children.

B. If the office decides to revoke a letter of compliance, the office shall notify the operator in writing 20 calendar days before the effective date of the revocation, stating:

(1)—6) (text unchanged)

(7) That, if the revocation is upheld by the **[**Superintendent**]** *Office of Administrative Hearings* following the hearing, the operator shall cease providing child care; and

(8) (text unchanged)

C. (text unchanged)

[.07] .*08* Penalties.

A. (text unchanged)

B. Civil Penalty.

(1) A person who maintains and operates a nursery school or child care program *or advertises a child care program* without a **[**license or**]** letter of compliance, or who violates any regulation in this subtitle, is subject to a civil penalty imposed in a civil action of not more than $1,000 for each violation, and each day a violation occurs or the facility operates illegally is considered a separate violation.

(2) (text unchanged)

C. An individual against whom a civil penalty has been imposed under this regulation shall pay the full amount of the penalty promptly to the Department, as instructed by the civil citation or as otherwise directed by the office.

D. Appeals.

(1) An individual may appeal the imposition of a civil penalty under this regulation by filing an appeal with the office as instructed by the civil citation or as otherwise directed by the office.

(2) Appeals are conducted in accordance with the provisions of COMAR 13A.17.16.

13A.17.16 Administrative Hearings

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-573 and 5-580; State Government Article, §10-204;**]** *General Provisions Article, §4-333; Human Services Article, §1-202;* Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.); Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)

.01 Scope.

A. This chapter applies to hearings concerning actions taken by the Office of Child Care which adversely impact **[**on**]** child care center licenses and letters of compliance. These actions include denials, suspensions, **[**or**]** *and* revocations of licenses or letters of compliance, as well as reductions in capacity **[**or**]**, limitations on the ages or numbers of children who may be admitted to the child care center*, the imposition of civil penalties for providing or advertising child care services without a valid letter of compliance, and employment exclusions pursuant to COMAR 13A.17.06.03A or B.*

B. (text unchanged)

.02 Definitions.

A. (text unchanged)

B. Terms Defined.

(1)—(6) (text unchanged)

(7) Emergency Action.

(a) (text unchanged)

(b) "Emergency action" may include an emergency suspension, an immediate reduction in capacity, an immediate limitation on the ages or numbers of children who may be admitted to care, and an **[**appeal filed by an individual**]** *employment exclusion* pursuant to COMAR **[**13A.16.06.03D or 13A.17.06.03D**]** *13A.17.06.03A or B.*

(8)—(9) (text unchanged)

(10) "Letter of compliance" means a letter issued by the Department to a religious organization which meets the requirements of **[**Family Law Article, §5-573**]** *Education Article, §9.5-404*, Annotated Code of Maryland.

(11)—(16) (text unchanged)

.03 Hearing Requests.

A. A hearing shall be held when **[**an applicant, licensee, or holder of a letter of compliance requests a hearing to contest**]**:

(1) An applicant or holder of a letter of compliance requests a hearing to contest:

[(1)**]** *(a)* The denial of an application for a **[**license or**]** letter of compliance;

[(2)**]** *(b)* A revocation or suspension of a **[**license or**]** letter of compliance; or

[(3)**]** *(c)* Any other action that adversely impacts **[**on**]** the **[**licensee or**]** holder of the letter of compliance, including, but not limited to:

[(a)**]** *(i)*—**[**(b)**]** *(ii)* (text unchanged)

[(c)**]** *(iii)* A limitation on the ages or numbers of children who may be admitted to the child care center**[**.**]***;*

(2) An individual requests a hearing to contest the imposition of civil penalties for providing child care or advertising child care services without a valid letter of compliance; or

(3) An individual requests a hearing to contest the prohibition of employment at a facility holding a letter of compliance.

B. Non-emergency Action Hearing Requests. .

(1) All non-emergency action hearing requests shall be forwarded in writing to the Office and shall state the name and address of the **[**licensee or**]** holder of the letter of compliance *or the individual contesting the imposition of a civil penalty*, and the effective date and nature of the action appealed from.

(2)—(5) (text unchanged)

C. (text unchanged)

.04 Preliminary Conference.

A. **[**The Office shall hold a preliminary conference, on request of an appellant, before a hearing on an action.**]** *A preliminary conference may be held before a hearing on an action if an appellant requests the conference.*

.05 Denial or Dismissal of a Hearing Request.

A. The Office of Administrative Hearings may deny a request for a hearing if:

(1) The issue appealed is not one which adversely affects the **[**licensee or**]** holder of the letter of compliance; or

(2) (text unchanged)

B.—D. (text unchanged)

13A.17.17 Public Access to Licensing Records

Authority: *Education Article, §§9.5-401, 9.5-404, 9.5-405, 9.5-409, 9.5-411, and 9.5-413—9.5-418;* **[**Family Law Article, §§5-560, 5-564, and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.03 Request for Information from Licensing Records.

A. (text unchanged)

B. The written request shall:

(1) Contain the applicant's name, address, and telephone number; *and*

[(2) Be signed by the applicant; and**]**

[(3)**]** *(2)* (text unchanged)

[C. A request may be made in any form or format if it does not involve:

(1) Physical inspection of licensing records; or

(2) Preparation of a written or electronic:

(a) Copy of licensing records; or

(b) Report of information from licensing records.**]**

[D.**]** *C.* (text unchanged)

.04 Compelling Public Purpose.

A compelling public purpose shall exist for the custodian of record to permit inspection of licensing records other than the records specified under **[**State Government Article, §10-617(h)(2),**]** *General Provisions Article, §4-333(b),* Annotated Code of Maryland.

KAREN B. SALMON, Ph.D.
State Superintendent of Schools

Subtitle 18 LARGE FAMILY CHILD CARE HOMES

Notice of Proposed Action

[19-052-P]

The Maryland State Board of Education proposes to amend:

(1) Regulation **.02** under **COMAR 13A.18.01 Scope and Definitions**;

(2) Regulations **.01—.08** under **COMAR 13A.18.02 Registration Application and Maintenance**;

(3) Regulations **.02—.06** under **COMAR 13A.18.03 Management and Administration**;

(4) Regulation **.04** under **COMAR 13A.18.04 Operational Requirements**;

(5) Regulations **.05**, **.12**, and **.13** under **COMAR 13A.18.05 Home Environment and Equipment**;

(6) Regulations **.03—.08** and **.10** under **COMAR 13A.18.06 Provider and Staff Requirements**;

(7) Regulations **.02** and **.03** under **COMAR 13A.18.07 Child Protection**;

(8) Regulations **.01**, **.02**, **.06**, and **.08** under **COMAR 13A.18.08 Child Supervision**;

(9) Regulation **.04** under **COMAR 13A.18.09 Program Requirements**;

(10) Regulation **.01** under **COMAR 13A.18.10 Safety**;

(11) Regulations **.02—.04** under **COMAR 13A.18.11 Health**;

(12) Regulations **.01** and **.06** under **COMAR 13A.18.12 Nutrition**;

(13) Regulations **.02** and **.05—.09** under **COMAR 13A.18.14 Inspections, Complaints and Enforcement**;

(14) Regulations **.01**, **.03**, and **.04** under **COMAR 13A.18.15 Administrative Hearings**; and

(15) Regulations **.03** and **.04** under **COMAR 13A.18.16 Public Access to Licensing Records**.

This action was considered by the Maryland State Board of Education at its May 22, 2018, meeting.

Statement of Purpose

The purpose of this action is to clarify certain requirements pertaining to the registration and operation of large family child care homes and establish requirements for criminal background checks, swimming pool security, length of time for taking the basic health and safety training, and medical information being provided.

Comparison to Federal Standards

There is a corresponding federal standard to this proposed action, but the proposed action is not more restrictive or stringent.

Estimate of Economic Impact

I. Summary of Economic Impact. The purpose of the proposed amendments is to implement the requirements of the Child Care and Development Block Grant Act, as amended (42 U.S.C. 9858 et seq.), along with Section 418 of the Social Security Act (42 U.S.C. 618). Consistent throughout all four subtitles of regulations, the proposed amendments include statutory requirements of the Child Care and Development Fund reauthorization, modifications to provide clarity and more consistency between all subtitles, and corrections to the previous publication. The State will reimburse the cost to child care providers for the cost of fingerprinting to meet the new requirement. http://earlychildhood.marylandpublicschools.org/fingerprinting

II. Types of Economic Impact.	Revenue (R+/R-) Expenditure (E+/E-)	Magnitude
A. On issuing agency:	(E+)	Approximately $30,400
B. On other State agencies:	(R+)	Approximately $270
	Benefit (+) Cost (-)	Magnitude
D. On regulated industries or trade groups:		
(1) Centers and homes up-front cost of fingerprinting	(+)	Approximately $30,400
(2) Medical information	(+)	Approximately $53,700
(3) Swimming pool security	(+)	Approximately $30,000
E. On other industries or trade groups:	NONE	
F. Direct and indirect effects on public:	NONE	

III. Assumptions. (Identified by Impact Letter and Number from Section II.)

A. Background Clearances: In the State has processed fingerprint reimbursement requests for 60 providers (2% of the 2965 payment are in Large Family Care Home) as of January 31, 2019, for a total of $30,281 in obligations. The count for reimbursement to child care centers does not include all of the staff printed for each location—only the center itself. The cost to date for reimbursement of fingerprinting costs for FY18 is $10,400 and FY 2019 is $19,950 (July 1, 2018 through January 31, 2019). It is estimated that the total cost for FY 2019 will be $20,000. Therefore, the total estimated cost to the State is $30,400 over FY 2018 and FY 2019. The State is providing a one-time reimbursement for fingerprinting costs to child care providers.

B. Maryland Department of Public Safety and Correctional Services (DPSCS) Criminal Justice Information System is allowed to keep $2 from the FBI background check. The State estimates there are approximately 135 providers going through the fingerprinting process. Therefore, estimated revenue to the DPSCS is estimated to be $270 over FY 18 and FY 19.

D(1). Background Clearances: Child Care Centers and staff, and family child care homes and staff will incur up-front costs for meeting fingerprinting requirements. Cost for fingerprinting ranges from $35 to $75 per person. The State reimburses the cost of fingerprinting for providers meeting the new requirement. If the provider/center does not request reimbursement from the State, they would incur the cost of the fingerprinting.

D(2). Medical information for child care providers and staff of child care centers: The current number of statewide personnel in Child Care Centers, Letter of Compliance facilities, and Large Family Child Care Homes is 43,000 staff. There are 10,700 substitutes in Family Child Care who would be affected by the requirement to have medicals every 2 years. This is approximately 53,700 people needing bi-annual medicals, assuming they all remain

employed for the 2-year period. Many will transfer to other sites but will remain employed in Maryland child care. The estimated cost of each medical is between $75 and $125, depending on health insurance, co-pays, etc. Using these estimates, approx. 1,074 people (2% of the 53,700 people are in Large Family Care Home) there will be people spending $100 for a medical every 2 years, which would be an approximate cost of $53,700 per year.

D(3). Swimming Pool Security: According to a January 2018 survey of regional child care licensing offices, there are approximately 750 child care facilities with swimming pools. It is estimated that half of these pools already meet fencing requirements and would not incur additional costs. Each fence would cost an estimated $3,000 to $5,000 depending on the size of the pool and the outdoor space. Using these estimates, 7 pool (2% of the 375 are in Large Family Care Home) owners would spend an average of $4,000 per fence for a total of $30,000 to bring all facilities into compliance. This is a one-time-only cost. All new applicants would need to meet this requirement prior to becoming licensed.

Economic Impact on Small Businesses

The proposed action has a meaningful economic impact on small business. An analysis of this economic impact follows.

Intended Beneficiaries

Background Clearances/Fingerprinting: to comply with the Child Care and Development Block Grant (CCDBG) Act referenced in Part A, the State is providing reimbursement to child care centers and family child care homes for the cost of staff fingerprinting. While these facilities/staff will incur the up-front cost for fingerprinting, the State will reimburse that cost, thereby alleviating the economic impact to child care facilities who request reimbursement.

Health and Safety Training: to comply with the CCDBG Act referenced in Part A, the State utilized the Maryland State Department of Education's Learning Management System to develop and deliver the online Health and Safety training at no cost to child care providers. The State did not incur any direct costs for the development of the training. For those providers who choose not to take the free online training, or who fail both online attempts, the training can be obtained in a face to face setting for an average cost of $35. This cost is reimbursable to providers who hold a Maryland Child Care Credential at Level 2 or higher. Child care providers can obtain the training in Spanish from Penn State Better Kid Care for $5. This training is also eligible for reimbursement through the Maryland Credentialing Program.

Intended Beneficiaries: Households

Families with children enrolled in a regulated child care facility will benefit because their children will receive care and education services from staff and administration who have met higher standards for criminal background checks, health and safety training, updated staff medical information, and whose facilities will meet requirements for protecting children from swimming pool dangers.

Intended Beneficiaries: Businesses

The amendments are not expected to have an impact on any businesses beyond the child care businesses that comply with the new requirements.

Other Direct or Indirect Impacts: Adverse

Background clearances: Facilities who incur the cost of fingerprinting ($35—$75 per person) and choose not to request reimbursement will not benefit from the alleviation of those costs by the State.

Medical information for child care providers and staff of child care centers: Individuals working in family child care or child care centers will incur the cost of medicals every 2 years. The estimated cost of each medical is between $75 and $125, depending on health insurance, co-pays, and other variables.

Swimming Pool Security: An estimated 375 pool owners who are licensed child care programs would spend an average of $4,000 per facility, as a one-time cost, to come into compliance with swimming pool security requirements. New applicants for child care licensure/registration would need to meet this requirement prior to becoming licensed. This additional cost may encourage some child care providers to raise the fees they charge to families.

Other Direct or Indirect Impacts: Positive

Improving the quality of child care and early education in Maryland is expected to enhance the overall reputation of Maryland's early care and education industry, and this may help attract businesses to Maryland. Higher-quality child care and early education services for children may result in those children more effectively developing the skills they will need to succeed in school and in life and may positively affect the State workforce in the years to come. Maryland's compliance with the federal CCDBG Act ensures that federal funding continues, which in turn, supports working families in Maryland through the Child Care Subsidy program and other quality initiatives to improve long term benefits to children.

Long-Term Impacts

No long-term effects on Maryland small businesses are anticipated which may differ from, compound, mitigate, or offset the initial effects described above.

Estimates of Economic Impact

(1) Cost of providing goods and services:

Some child care providers who incur costs related to the amendments may charge higher fees to families for their services. Because child care fees are determined independently by each provider, the overall change, if any, in those expenses cannot be determined.

(2) Effect on the work force:

Families in Maryland's work force with young children and school-age children using child care services will have the ability to choose from regulated facilities that are meeting higher standards for: criminal background checks, health and safety training, staff medicals, and, if applicable, fencing requirements for swimming pools. Access to this information may enable families to make informed decisions when choosing a program for their children; and may be seen as a benefit for business growth in Maryland.

(3) Capital investment, taxation, competition, and economic development:

These proposals are not expected to have any direct effect on capital investment, taxation, competition, or economic development. However, as noted above, they may help provide a more attractive environment for business growth.

(4) Consumer choice:

Consumer choice is expected to be affected positively by making higher quality child care services available to families seeking those services.

Impact on Individuals with Disabilities

The proposed action has no impact on individuals with disabilities.

Opportunity for Public Comment

Comments may be sent to Jennifer A. Nizer, Director, Office of Child Care, Division of Early Childhood, Maryland State Department of Education, 200 West Baltimore Street, Baltimore, MD 21201, or call 410-767-7806 (TTY 410-333-6442), or email to jennifer.nizer@maryland.gov, or fax to 410-333-6226. Comments will be accepted through March 18, 2019. A public hearing has not been scheduled.

Open Meeting

Final action on the proposal will be considered by the State Board of Education during a public meeting to be held on April 23, 2019, at 9 a.m., at 200 West Baltimore Street, Baltimore, MD 21201.

13A.18.01 Scope and Definitions

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505—5-557.1, and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Definitions.

A. (text unchanged)

B. Terms Defined.

(1)—(14) (text unchanged)

(15) Employee.

(a) "Employee" means an individual who **[**for compensation**]** is employed to work in a child care home and who:

(i) Cares for or supervises children in the facility; or

(ii) Has access to children who are cared for or supervised in the facility.

(b) "Employee" includes a **[**paid**]** substitute *or volunteer*.

(c) "Employee" does not include an individual who is:

(i) (text unchanged)

(ii) A **[**registered**]** *licensed* or certified health care professional who is compensated by the provider or the parent of a child in care to provide a specified health care service to the child.

(d) For the purpose of applying the criminal background check requirements and the child and adult abuse and neglect record review requirements set forth in this subtitle, "employee" includes an individual who:

(i) **[**Is compensated by the provider or a resident to perform a service at the child care home;**]** *Meets the definition of an employee as set forth in this regulation*; *and*

[(ii) Has access to children in care; and**]**

[(iii)**]** *(ii)* (text unchanged)

(16) "Family child care" **[**means the care given to a child younger than 13 years old or to a developmentally disabled person younger than 21 years old in place of parental care for less than 24 hours a day, in a residence other than the child's residence, for which the provider is paid in cash or in kind**]** *has the meaning stated in Education Article, §9.5-301, Annotated Code of Maryland*.

(17) "Family child care teacher" means a staff member who:

(a) (text unchanged)

(b) Meets the professional requirements of COMAR **[**13A.18.05.06**]** *13A.18.06.06*.

(18)—(19) (text unchanged)

(20) "Identified as responsible for child abuse or neglect" means being determined by a local department *of social services or other state agency* to be responsible for child abuse or neglect or awaiting the local department's appeal hearing after the determination.

(21)—(22) (text unchanged)

(23) "Injurious treatment" means:

(a) **[**Deliberate infliction in any manner of any type of physical pain,**]** *Physical discipline*, including *but not limited to* spanking, hitting, shaking, or any other means of physical discipline, or enforcement of acts which result in physical pain;

(b) (text unchanged)

(c) Subjecting a child to verbal abuse intended to cause mental distress, such as shouting, cursing, shaming, *threatening*, or ridiculing; and

(d) (text unchanged)

(24)—(37) (text unchanged)

(38) Reasonable Accommodations.

(a) "Reasonable accommodations" means changes made to a child care facility's program or policies to allow a child with a disability equal access to the benefits of the child care facility and program.

(b) "Reasonable accommodations" does not include providing accommodations that would significantly:

(i) Change the nature of the program; or

(ii) Impose a monetary burden on the provider.

[(38)**]** *(39)*—**[**(43)**]** *(44)* (text unchanged)

[(44)**]** *(45)* Staff Member.

(a) "Staff member" means an individual 16 years old or older, whether paid or not, who is assigned responsibility for child care in a child care home **[**and whose assignment helps to maintain the staff/child ratios required by COMAR 13A.18.08.03**]**.

(b) (text unchanged)

[(45)**]** *(46)* "Successfully passed" means, when used in connection with *a criminal background check or a review of records of abuse and neglect of children or adults conducted on an individual, that the individual*:

[(a) A criminal background check, that an individual:

(i) Has not received a conviction, a probation before judgment disposition, a not criminally responsible disposition, or a pending charge for the commission or attempted commission of a crime listed at COMAR 13A.18.06.03A; or

(ii) If having received a conviction, a probation before judgment disposition, a not criminally responsible disposition, or a pending charge for the commission or attempted commission of a crime not listed at COMAR 13A.18.06.03A, has been assessed by the office as suitable for employment pursuant to COMAR 13A.18.06.03B; or

(b) A review of records of abuse and neglect of children or adults, that if an individual is:

(i) An employee of, or applying for employment by, the provider, the individual has been assessed by the office as being suitable for employment, pursuant to COMAR 13A.18.06.03B; or

(ii) An independent contractor, the individual has not been identified as responsible for the abuse or neglect of a child.**]**

(a) Does not have a disposition listed at COMAR 13A.18.02.07B or C;

(b) Does not have other behavior deemed harmful to children; or

(c) Has not been identified as responsible for the abuse or neglect of a child or an adult.

[(46)**]** *(47)*—**[**(48)**]** *(49)* (text unchanged)

[(49)**]** *(50)* "Volunteer" means an individual who:

(a) (text unchanged)

(b) Works in the child care home but is not a compensated employee; **[**and**]**

(c) Is not enrolled as a child in care at the child care home; *and*

(d) Is not an additional adult or a substitute.

13A.18.02 Registration Application and Maintenance

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505, 5-550—5-557.1, and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Registration — General Requirements.

A. Requirement to Be Registered.

(1) (text unchanged)

(2) A family child care home is not required to be registered if the provider:

(a) Is a relative of each child;

(b) Is a friend of each child's parent or legal guardian and the care is provided on a nonregular basis of less than 20 hours a month; or

(c) Has received the care of the child from a child placement agency licensed by the Department of Human Services.

[(2)**]** *(3)* (text unchanged)

B.—E. (text unchanged)

F. Except as provided under §G of this regulation, a residence approved for use as a child care home may not also be used to operate a:

(1) (text unchanged)

(2) Child care program that is subject to the requirements of *COMAR 13A.15,* COMAR 13A.16, or COMAR 13A.17.

G.—H. (text unchanged)

I. The operator shall not allow an employee, staff member, substitute, additional adult, or volunteer to:

(1) Be assigned to a group of children or have access to a child in care until the individual has successfully passed the child abuse and neglect clearance and a federal or State criminal background check; or

(2) Be alone with a child or group of children until all checks have been successfully passed.

.02 Initial Registration.

A.—B. (text unchanged)

C. Before the proposed opening date of the child care home, an applicant for initial registration shall:

(1) Ensure that an application for a federal and State criminal background check is submitted for:

(a) (text unchanged)

(b) Each employee, including **[**paid**]** substitutes *and volunteers*; and

(c) Each resident in the home who is 18 years old or older; *and*

(2) **[**Submit the following items to the office, if not submitted at the time the written application form was submitted**]** *Submit to the office each of the items specified under §D of this regulation that was not submitted at the time the written application form was submitted.*

[(a) Signed and notarized permission to examine records of abuse and neglect of children and adults for information about:

(i) The applicant;

(ii) Each employee;

(iii) Each substitute, whether paid or unpaid;

(iv) Each resident in the home who is 18 years old or older; and

(v) If required by the office, any other individual with regular access to the child care area during the approved hours of operation;

(b) A medical evaluation for the applicant and each resident in the home that:

(i) Was completed within 12 months before the date of application for registration;

(ii) Was conducted by a practicing physician, certified nurse practitioner, or registered physician's assistant; and

(iii*)* Is signed or verified by the individual who conducted the evaluation;

(c) Evidence of compliance with all applicable zoning and building codes;

(d) A written plan of operation;

(e) An emergency and disaster plan that meets the requirements of COMAR 13A.18.10.01A(3)(a) and (b);

(f) Workers' Compensation insurance information;

(g) A complete personnel list, on a form supplied or approved by the office, and all related supporting documentation required by the office;

(h) A complete staffing pattern, on a form supplied or approved by the office, which specifies by staff name all child care assignments;

(i) Documentation that all applicable training requirements set forth at COMAR 13A.18.06.05—.06 have been met by the applicant and each staff member;

(j) A 4-week menu of food to be served to children in care at the child care home;

(k) A written child discipline policy;

(l) If the child care home is located in a condominium or residence which requires homeowners' association membership, written proof of homeowner's liability insurance coverage as required by Maryland law; and

(m) Documentation that the home has met all lead safety requirements, as applicable, set forth in COMAR 13A.18.05.05; and

(n) All other documentation required by law or regulation, including but not limited to:

(i) Proof of an on-site inspection and approval by the local fire authority having jurisdiction;

(ii) A building use and occupancy permit, if applicable; and

(iii) Workers' Compensation insurance, if applicable.**]**

D. The applicant shall submit:

(1) Signed and notarized permission to examine records of abuse and neglect of children and adults for information about:

(a) The applicant;

(b) Each employee;

(c) Each substitute;

(d) Each volunteer;

(e) Each resident in the home who is 18 years old or older; and

(f) If required by the office, any other individual with access to the child care area during the approved hours of operation;

(2) A medical evaluation for the applicant, each resident in the home, and each employee or staff member as specified under COMAR 13A.18.06.04 that:

(a) Was completed within 12 months before the date of application for registration;

(b) Was conducted by a practicing physician, certified nurse practitioner, or registered physician's assistant;

(c) Includes verification that the individual:

(i) Is free of communicable tuberculosis, if indicated; and

(ii) If the applicant, is capable of performing the duties of their position;

(d) Is signed or verified by the individual who conducted the evaluation;

(3) Evidence of compliance with all applicable zoning and building codes;

(4) A written plan of operation;

(5) An emergency and disaster plan that meets the requirements of COMAR 13A.18.10.01A(3)(a) and (b);

(6) Workers' Compensation insurance information;

(7) A complete personnel list, on a form supplied or approved by the office, and all related supporting documentation required by the office;

(8) A complete staffing pattern, on a form supplied or approved by the office, which specifies by staff name all child care assignments;

(9) Documentation that all applicable training requirements set forth at COMAR 13A.18.06.05—.07 have been met by the applicant and each staff member;

(10) A 4-week menu of food to be served to children in care at the child care home;

(11) A written child discipline policy;

(12) If the child care home is located in a condominium or residence which requires homeowners' association membership, written proof of homeowner's liability insurance coverage as required by Maryland law;

(13) Documentation that the home has met all lead safety requirements, as applicable, set forth in COMAR 13A.18.05.05;

(14) If the home is located in an apartment or other property that is rented or leased by the applicant, submit written authorization from the lessor, owner, or landlord permitting child care in the home; and

(15) All other documentation required by law or regulation, including but not limited to:

(a) Proof of an on-site inspection and approval by the local fire authority having jurisdiction; and

(b) A building use and occupancy permit, if applicable.

[D.**]** *E.* (text unchanged)

F. Non-Maryland State Criminal Background Check. If an individual subject to the requirements of §C(1)(b) of this regulation currently resides or has resided in a state other than Maryland within 5 years before the date of application for registration, the individual shall:

(1) Apply for a state criminal background check to be performed by a duly authorized entity within that state; and

(2) Request the non-Maryland state entity performing the criminal background check to transmit the result of that background check directly to the Agency.

.03 Continuing Registration.

A. Application for Continuing Registration. To obtain a continuing registration, a provider shall submit to the office before expiration of the initial registration:

(1)—(2) (text unchanged)

(3) A medical evaluation that meets the requirements of Regulation **[**.02C(2)(b)**]** *.02D(2)* of this chapter for:

(a) (text unchanged)

(b) Each resident in the home who has child care responsibilities; **[**and**]**

(c) Each volunteer; and

[(c)**]** *(d)* (text unchanged)

(4) A completed and notarized release of information form that permits the office to examine records of abuse and neglect of children and adults for:

(a)—(c) (text unchanged)

(d) Each volunteer;

[(d)**]** *(e)*—**[**(e)**]** *(f)* (text unchanged)

(5) Documentation that the child care home has passed the most recent fire inspection required by the local fire authority having jurisdiction; **[**and**]**

(6) Written authorization from the lessor, owner, or landlord permitting the provider to continue providing child care in the home; and

[(6)**]** *(7)* (text unchanged)

B. Maintenance of Continuing Registration.

(1) (text unchanged)

(2) By the end of each 24-month period after the date of issuance of a continuing registration, the provider shall make available to the office the items specified in §A(2)—**[**(6)**]** *(7)* of this regulation.

.04 Provisional Status and Conditional Registration.

A. Provisional Status.

(1) (text unchanged)

(2) An initial registration may not be approved if the office has not yet received evidence that the applicant and, as applicable, each individual specified in Regulation .02C(1) and **[**(2)(a)**]** *D(1)* of this chapter has successfully passed a federal and State criminal background check and a review of child and adult abuse and neglect records.

(3)—(4) (text unchanged)

B. (text unchanged)

.05 Resumption of Service.

A. (text unchanged)

B. The application to resume service shall meet all initial registration application requirements, except that:

(1) (text unchanged)

(2) The office may accept as applicable to the new application the:

(a)—(b) (text unchanged)

(c) Results of the original criminal background checks conducted pursuant to Regulation **[**.02B(1)**]** *.02C(1)* of this chapter;

(d) Results of the original child and adult abuse and neglect clearances conducted pursuant to Regulation **[**.02C(2)(a)**]** *.02D(1)* of this chapter, if the clearances were completed within 12 months of the application; and

(e) (text unchanged)

.06 Response of the Office to Application.

A.—B. (text unchanged)

C. Within 30 days of receipt of a completed application for conversion of a small center license to a large family child care home registration pursuant to Regulation **[**.02D**]** *.02* of this chapter, the office shall issue a certificate of registration to the applicant.

.07 Denial of a Registration Application.

A. The office may deny a certificate of registration if:

(1) (text unchanged)

(2) An evaluation of the application *or any documents required* by the office reveals that the applicant, *regardless of intent,* reported false information;

(3)—(6) (text unchanged)

(7) An evaluation of the medical report or other information about the applicant or a resident indicates that the:

(a) Physical or mental health of the applicant or resident may pose a risk to children; **[**or**]**

(b) Applicant is unable to care for children; *or*

(c) Applicant, regardless of intent submitted false or altered medical documentation for the applicant, resident, substitute, or employee for consideration by the office;

(8) **[**An**]** *In addition to the requirements set forth at §B of this regulation, an* evaluation of the criminal record of the applicant, an employee including a **[**paid**]** substitute, *volunteer,* or a resident in the home *reveals that the individual has a criminal conviction, probation before judgment disposition, or not criminally responsible*

disposition, or is awaiting a hearing for a criminal charge that indicates behavior harmful to children;

(9) An evaluation of the information provided in records of abuse and neglect of children and adults reveals that the applicant, a staff member including a substitute, *a volunteer,* or a resident is identified as responsible for abuse or neglect of children or adults, or is currently under investigation for alleged acts of abuse or neglect of children or adults;

(10)—(11) (text unchanged)

B. The office shall deny a certificate of registration if an applicant or resident has received a conviction, a probation before judgment disposition, a not criminally responsible disposition, or a pending charge for the commission or attempted commission of:

(1) A crime involving:

(a) A child;

(b) Cruelty to animals;

(c) Domestic violence; or

(d) A weapons or firearms violation of federal or state laws;

(2) A sex offense;

(3) A violent crime classified as a felony, including physical assault or battery;

(4) Abduction or kidnapping;

(5) Abuse of a child or an adult;

(6) Confinement of an unattended child;

(7) Manufacturing, distributing, or dispensing a controlled dangerous substance;

(8) Perjury;

(9) A crime involving pornography;

(10) Possession with intent to manufacture, distribute, or dispense a controlled dangerous substance; or

(11) Reckless endangerment.

C. The office shall deny a certificate of registration if an applicant or resident has received a felony conviction for:

(1) Murder;

(2) Spousal abuse; or

(3) Arson.

D. The office shall deny a certificate of registration upon notification that the applicant is in noncompliance with Child Support Enforcement requirements pursuant to Family Law Article, §10-119.3, Annotated Code of Maryland.

[B.**]** *E.*—**[**C.**]** *F.* (text unchanged)

[D.**]** *G.* Denial Before Complete Application.

(1) The office may deny an application for registration at any point during the application process if, following evaluation of information received to that point, the office determines that a basis for denial exists as set forth in §A, *B, C, or D* of this regulation.

(2) (text unchanged)

.08 Voluntary Surrender of Registration.

A. A provider may voluntarily surrender a child care home registration at any time by notifying the office *in writing.*

B. (text unchanged)

13A.18.03 Management and Administration

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505, 5-550—5-557.1, and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Admission to Care.

A.—C. (text unchanged)

D. If a child is younger than 6 years old at the time of admission, the provider may not allow the child to remain in care if the parent does not, within 30 days after the child's admission, submit evidence to the provider on a form supplied or approved by the Office that the child has received an appropriate lead screening *or test* in accordance with applicable State or local requirements.

E. (text unchanged)

.03 Program Records.

The provider shall:

A. (text unchanged)

B. Maintain:

(1)—(2) (text unchanged)

(3) Records of food actually served by the provider for the most recent 4 weeks as required by COMAR **[**13A.18.12.01G**]** *13A.18.12.01I(2)*;

(4)—(5) (text unchanged)

C. Negotiate and maintain a written agreement with the child's parent that specifies:

(1)—(4) (text unchanged)

(5) If overnight care is to be provided to the child, the sleeping arrangements approved by the parent; **[**and**]**

D. Give, or advise the parent how to obtain, information supplied by the office concerning:

(1) (text unchanged)

(2) How to file a complaint with the office against a child care provider**[**.**]***; and*

E. Document that the health and safety training, as required by the office, was updated by the end of each 12-month period, measured from the date of initial registration employment.

.04 Child Records.

A.—D. (text unchanged)

E. **[**If the child is younger than 6 years old, there shall be documentation that the child has received an appropriate lead screening as**]** *As* required by State or local law**[**.**]**, *there shall be evidence that the child has received:*

(1) An appropriate lead screening for a child younger than 6 years old and born prior to January 1, 2015; or

(2) A lead test at age 12 months and again when the child is 24 months regardless of where the child resides, for any child born on or after January 1, 2015.

F. A medical evaluation and, if applicable, documentation of an appropriate lead screening *or test* that are transferred directly from another registered child care home, a licensed child care center, or a public or nonpublic school in Maryland may be accepted as meeting the requirements of §§D(3) and E of this regulation.

G.—K. (text unchanged)

L. Temporary Admission.

(1) (text unchanged)

(2) For a child to be temporarily admitted or retained in care, the parent or guardian shall present evidence of the child's appointment with a health care provider or local health department to:

(a) Receive a medical evaluation to include, if applicable, a lead screening *or test*;

(b)—(d) (text unchanged)

(3)—(4) (text unchanged)

.05 Staff Records.

The provider shall:

A.—E. (text unchanged)

F. If using volunteers in the child care program, maintain a record for each volunteer that includes:

(1) The date on which the volunteer received the child health and safety orientation required by COMAR 13A.18.06.02; **[**and**]**

[(2) If the volunteer is present at the child care home more than once per week:**]**

[(a)**]** *(2)* (text unchanged)

[(b)**]** *(3)* **[**A**]** *If present more than once per week, a* medical evaluation of the volunteer that was completed within 12 months before the start of the volunteer's duties.

.06 Notifications.

The provider shall:

A. Within 5 working days of its occurrence, provide written notification to the office about the:

(1) Addition of a new staff member, that includes:

(a) (text unchanged)

(b) Information about the individual's work assignment; **[**and**]**

(c) Proof of compliance with the laws and regulations pertaining to criminal background checks; and

[(c)**]** *(d)* (text unchanged)

(2) Ending of employment, for whatever reason, of an individual that includes the:

(a) (text unchanged)

(b) Date of the individual's last day of employment**[**.**]***;*

B.—D. (text unchanged)

E. Immediately notify the office of:

(1) **[**An**]** *The provider, a resident of the home, or an* employee who is under investigation for:

(a)—(b) (text unchanged)

(2) (text unchanged)

F. Within 5 working days after there is a new resident who is 18 years old or older:

(1) Submit to the office a signed and notarized release form giving the office permission to examine records of abuse and neglect of children *or* adults for information about the resident *pursuant to COMAR 13A.18.02.02D(1)*; and

(2) Ensure that the resident applies for a federal and State criminal background check *pursuant to COMAR 13A.18.02.02C(1) and F*; and

G. (text unchanged)

13A.18.04 Operational Requirements

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505, 5-550—5-557.1, and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.04 Restriction of Operations.

A. (text unchanged)

B. The office may base a restriction or reduction under §A of this regulation on any of the following factors:

(1)—(5) (text unchanged)

(6) Failure to comply with group size and staffing requirements set forth at **[**Chapter 08.03 of this subtitle**]** *COMAR 13A.18.08.03*; or

(7) (text unchanged)

C. A provider may appeal a restriction or reduction pursuant to §B of this regulation by filing a request for hearing:

(1) (text unchanged)

(2) In the case of an emergency reduction in capacity, **[**within 72 hours of**]** *not later than 30 calendar days after the* notification by the office of its decision to immediately reduce the number of children in care.

13A.18.05 Home Environment and Equipment

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-550, 5-551, 5-557.1, and 5-560;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.05 Lead-Safe Environment.

A. (text unchanged)

B. If the child care home is a residential rental property constructed before **[**1950**]** *1978*, which is an affected property as defined by Environment Article, §6-801(b), Annotated Code of Maryland, the provider shall submit a copy of the current lead risk reduction or lead free certificate.

C.—D. (text unchanged)

.12 Outdoor Activity Area.

A.—I. (text unchanged)

J. Any pool on the premises of the facility shall be made inaccessible to children in care and have security features, including but not limited to a:

(1) Fence that surrounds the pool;

(2) Self-closing and self-latching mechanism on the gate, door, or access to the pool;

(3) Lock that is operable and secured; and

(4) Sensor or alarm in the pool and on the access door.

.13 Swimming Facilities.

A.—B. (text unchanged)

C. A child in care may not use a pool, such as a fill-and-drain molded plastic or inflatable pool**[**, that does not have an operable circulation system approved by the local health department**]**.

13A.18.06 Provider and Staff Requirements

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-502, 5-505, 5-550—5-557.1, and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.03 Suitability for Employment.

A. A provider **[**may**]** *shall* not employ an individual who has received a conviction, a probation before judgment disposition, a not criminally responsible disposition, or a pending charge for the commission or attempted commission of:

(1)—(2) (text unchanged)

(3) A violent crime classified as a felony, *including physical assault or battery*;

(4)—(9) (text unchanged)

(10) Possession with intent to manufacture, distribute, or dispense a controlled dangerous substance; **[**or**]**

(11) Reckless endangerment**[**.**]***; or*

(12) The felony of:

(a) Murder;

(b) Spousal abuse; or

(c) Arson.

B.—F. (text unchanged)

.04 Staff Health.

A. Medical Evaluation.

(1) A provider shall obtain a medical evaluation **[**, including a tuberculosis screen, if indicated,**]** on a form supplied or approved by the office, that has been completed within 6 months before the individual begins work in the child care home, from each prospective:

(a)—(b) (text unchanged)

(2) The medical evaluation must include verification that the individual:

(a) Is free of communicable tuberculosis, if indicated; and

(b) If the applicant or a staff member, is capable of performing the duties of their position.

[(2)**]** *(3)* The medical evaluation may transfer directly from one child care home to another, or from a licensed child care center to the child care home, if the evaluation was completed within the previous **[**12**]** *24* months *of the transfer*.

(4) The medical evaluation shall be updated every 2 years.

B. (text unchanged)

.05 Child Care Home Directors.

A.—D. (text unchanged)

E. Except as set forth at §F of this regulation, to qualify as a director in a large family child care home, an individual shall:

(1)—(2) (text unchanged)

(3) Have successfully completed:

(a) (text unchanged)

(b) 3 semester hours or their equivalent of approved administrative training; **[**and**]**

(c) Effective January 1, 2016:

(i) (text unchanged)

(ii) Approved training in supporting breastfeeding practices**[**.**]***; and*

(d) Effective January 1, 2020, approved basic health and safety training;

(4) (text unchanged)

(5) Unless previously approved by the office to direct a child care program serving children younger than 2 years old, have completed 3 semester hours of approved training, or the equivalent, related **[**exclusively**]** to the care of children younger than 2 years old; and

(6) (text unchanged)

F. An individual is considered qualified as a director when that individual has:

(1) Completed training specified at §E(3)(c) and (d) of this regulation; and

[(1)**]** *(2)* (text unchanged)

[(2)**]** *(3)* Completed 3 semester hours of approved training, or the equivalent, related **[**exclusively**]** to the care of children younger than 2 years old.

G. A director shall:

(1) (text unchanged)

(2) According to the professional development plan, complete approved continued training, at the rate of at least 12 clock hours per full year of service as a director, that consists of a:

(a) (text unchanged)

(b) Maximum of 6 clock hours of elective training; **[**and**]**

(3) Document completion of the continued training on the professional development plan**[**.**]***; and*

(4) Document that the health and safety training, as required by the office, was updated by the end of each 12-month period, measured from the date of registration or employment in the position.

.06 Family Child Care Teachers.

A. (text unchanged)

B. **[**Except as set forth at §C of this regulation, to**]** *To* qualify *or continue to qualify* as a family child care teacher, an individual:

(1) Shall hold or have successfully completed:

(a) (text unchanged)

(b) **[**Either**]** 9 clock hours of approved pre-service training in communicating with staff, parents, and the public or at least one academic college course for credit; **[**and**]**

(c) **[**Either**]** *Approved pre-service training in child development and curriculum documented by:*

(i) 6 semester hours or 90 clock hours or their equivalent **[**of approved pre-service training**]**;

(ii) (text unchanged)

(iii) Accreditation by the National Association for Family Child Care as a family child care provider; **[**and**]**

(d) 3 clock hours of approved training in complying with the Americans with Disabilities Act; and

(e) Effective January 1, 2020, approved basic health and safety training; and

(2) (text unchanged)

C. An individual shall qualify as a family child care teacher if the individual *has met the requirements of §B of this regulation, and:*

(1)—(4) (text unchanged)

D. A family child care teacher in a child care home shall:

(1) According to the individual's professional development plan, complete approved continued training, at the rate of at least 12 clock hours per full year of employment as a child care teacher, that consists of a:

(a) (text unchanged)

(b) Maximum of 6 clock hours of elective training; **[**and**]**

(2) Document completion of the continued training on the professional development plan**[**.**]***; and*

(3) Document that the health and safety training, as required by the office, was updated by the end of each 12-month period, measured from the date of employment in the position.

E. Before a family child care teacher may supervise a child younger than 2 years old, the individual shall**[**, unless previously qualified by the office to supervise an infant or a toddler**]**:

[(1) Meet the requirements of §§A—B of this regulation and have completed 3 semester hours of approved training, or the equivalent, related exclusively to the care of children younger than 2 years old; or

(2) Be 19 years old or older and:

(a) Meet the requirements of §B(1)(a) and (b) and §B(2) of this regulation; and

(b) Have completed 6 semester hours of approved training, or the equivalent, related exclusively to the care of children younger than 2 years old.**]**

(1) Effective January 1, 2016, complete approved training in supporting breastfeeding practices; and

(2) Unless previously qualified by the office to supervise an infant or a toddler:

(a) Meet the requirements of §§A and B of this regulation and have completed 3 semester hours of approved training, or the equivalent, related to the care of children younger than 2 years old; or

(b) Be 19 years old or older and:

(i) Meet the requirements of §B(1)(a), (b), (d) and (e) and (2) of this regulation; and

(ii) Have completed 6 semester hours of approved training, or the equivalent, related to the care of children younger than 2 years old.

.07 Aides.

A. An aide shall:

(1)—(2) (text unchanged)

(3) Effective January 1, 2020, complete the approved basic health and safety training; and

[(3)**]** *(4)* (text unchanged)

[(4)**]** *(5)* Document completion of the continued training on the professional development plan**[.]***; and*

(6) Document that the health and safety training, as required by the office, was updated by the end of each 12-month period, measured from the date of employment in the position.

B.—C. (text unchanged)

.08 Substitutes.

A. (text unchanged)

B. A substitute shall:

(1)—(3) (text unchanged)

(4) **[**If paid, apply**]** *Apply* for a federal and State criminal background check at a designated law enforcement office in the State; and

(5) (text unchanged)

C.—D. (text unchanged)

E. Non-Maryland State Criminal Background Check. If an individual subject to the requirements of §B(4) of this regulation currently resides or has resided in a state other than Maryland within 5 years before the date of application for registration, the individual shall:

(1) Apply for a state criminal background check to be performed by a duly authorized entity within that state; and

(2) Request the non-Maryland state entity performing the criminal background check to transmit the result of that background check directly to the Agency.

F. Approval by Office.

(1) An individual designated as a substitute may not be used in that capacity unless the office has approved the individual.

(2) If information received by the office indicates that an individual designated as a substitute may present a risk to the health, safety, or welfare of children in care, the office may disapprove the use of that substitute.

(3) The office shall notify the provider of its decision to approve or disapprove a substitute within 30 days of the request being submitted.

.10 Volunteers.

A. (text unchanged)

B. The provider may not use as a volunteer an individual who has **[**been prohibited, or automatically would be prohibited, from employment at the child care home pursuant to Regulation .03A or B of this chapter.**]** *not successfully passed a criminal background check or a review of records of abuse and neglect of children or adults pursuant to COMAR 13A.18.02.02C or D(1).*

13A.18.07 Child Protection

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505, 5-550—5-557.1 and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Abuse/Neglect Reporting.

A. A provider, employee **[**or**]**, substitute, *or volunteer* who has reason to believe that a child has been:

(1)—(2) (text unchanged)

B.—C. (text unchanged)

D. A provider may not require an employee, **[**or**]** substitute, *or volunteer* to report through the provider, rather than directly to the local department or a law enforcement agency, when the employee **[**or**]**, substitute, *or volunteer* has reason to believe that a child has been abused or neglected.

.03 Child Discipline.

A. (text unchanged)

B. The provider, *an employee, substitute, volunteer, or other individual connected to the child care home* may not:

(1) Force a child to eat or drink;

(2) Punish a child for refusing to eat or drink; **[**or**]**

(3) Withhold food or beverages as punishment**[.]***; or*

(4) Spank, hit, shake, or use any other means of physical discipline.

C. (text unchanged)

13A.18.08 Child Supervision

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505, 5-550—5-557.1, and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Individualized Attention and Care.

A provider shall ensure that:

A. Each child receives:

(1) Attention to the child's individual needs, including but not limited to:

(a) Making reasonable accommodations for **[**children**]** *a child* with **[**special needs in accordance with applicable federal and State laws**]** *a disability*; and

(b) Allowing an adult who provides specialized services to a child **[**with special needs**]** access to provide those services on the facility premises as specified in the child's individual education plan, individual family service plan, or written behavioral plan; and

(2) (text unchanged)

B.—E. (text unchanged)

.02 Supervision by Qualified Staff.

A. (text unchanged)

B. The provider shall assign qualified *family* child care teachers to each group of children as needed to meet the requirements for group size and staffing set forth at Regulation .03 of this chapter.

C.—D. (text unchanged)

.06 Supervision During Transportation.

When child transportation is conducted to or from:

A. (text unchanged)

B. An off-site activity by an independent contractor and at least one child in care is being transported, the provider shall ensure that there is at least one *qualified and cleared* adult other than the driver present in the vehicle.

.08 Rest Time Supervision.

A. (text unchanged)

B. During a rest period for a group of children who are 2 years old or older:

(1) (text unchanged)

(2) Once all the children in the group are resting quietly:

(a) At least one *family* child care teacher or aide assigned to the group shall continue to remain in the room with the children; and

(b) (text unchanged)

C. To determine if a resting child is safe, breathing normally, and in no physical distress:

(1) Each resting child shall be observed at intervals **[**appropriate to the child's age and individual needs**]** *of at least every 15 minutes*; and

(2) (text unchanged)

13A.18.09 Program Requirements

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505, 5-550—5-557.1 and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.04 Rest Furnishings.

A.—F. (text unchanged)

G. A child under 12 months who falls asleep in a furnishing other than a crib shall be moved immediately to an approved sleeping arrangement specified at §A(4) of this regulation.

13A.18.10 Safety

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505, 5-550—5-557.1 and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Emergency Safety Requirements.

A. Emergency and Disaster Plan.

(1)—(6) (text unchanged)

(7) During an emergency evacuation or practice, a staff member shall take attendance records *and emergency cards* out of the child care home and determine the presence of each child currently in attendance.

B. If the child care home is included within a comprehensive emergency and disaster plan, the provider shall ensure that:

(1) The comprehensive plan contents meet all emergency and disaster plan requirements set forth at **[**§A(2)(a) and (b)**]** *§A(3)(a) and (b)* of this regulation; and

(2) (text unchanged)

C. (text unchanged)

13A.18.11 Health

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505, 5-550—5-557.1, 5-560—5-564 and 5-570—5-585;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Infectious and Communicable Diseases.

A. (text unchanged)

B. A provider may not knowingly admit to care or retain in care a child with a transmissible infection or a communicable disease during the period of exclusion recommended for that infection or disease as shown **[**on a chart provided by the office**]** *in the Communicable Disease Summary, as published by the Maryland Department of Health*, unless the health officer grants approval for the child to attend child care during that period.

.03 Preventing Spread of Disease.

A. (text unchanged)

B. Hands shall be washed according to the posted approved procedure by the provider, each staff member, each volunteer, *each substitute,* and each child in care at least:

(1)—(3) (text unchanged)

C. (text unchanged)

.04 Medication Administration and Storage.

A.—E. (text unchanged)

F. Medication Administration Training.

(1) (text unchanged)

(2) Medication may be administered to a child in care only by a staff member who has completed approved medication *administration* training.

G.—H. (text unchanged)

13A.18.12 Nutrition

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505, 5-550—5-557.1 and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.01 Food Service.

A. (text unchanged)

B. **[**For children in care**]** *Unless provided by the child's parent*, the provider shall furnish:

(1)—(2) (text unchanged)

C.—I. (text unchanged)

.06 Feeding Infants and Toddlers.

A.—C. (text unchanged)

D. Only whole, pasteurized milk will be served to a child younger than 2 years old who is not receiving formula or breast milk, except that skim milk, reconstituted nonfat dry milk, or 1**[**—**]** *or* 2 percent milk may be served upon the written prior approval of the child's parent and health care provider.

E. (text unchanged)

13A.18.14 Inspections, Complaints, and Enforcement

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505, 5-550—5-557.1, and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.02 Complaints.

The office shall investigate:

A. (text unchanged)

B. Complaints of *providing or advertising* unregistered family child care.

.05 Nonemergency Suspension.

A. (text unchanged)

B. The office shall suspend the certificate of registration upon notification that the provider is in noncompliance with Child Support Enforcement requirements pursuant to Family Law Article, §10-119.3, Annotated Code of Maryland.

[B.**]** *C.*—**[**D.**]** *E.* (text unchanged)

.06 Emergency Suspension.

A. (text unchanged)

B. The office shall hand deliver a written notice to the provider informing the provider of the emergency suspension, giving the reasons for the action, and notifying the provider of the right to request, within 30 days of the delivery of the notice, a hearing before the **[**Superintendent's designee**]** *Office of Administrative Hearings.*

C. If unable to hand deliver a written notice to the provider, the Office may send notice by regular and certified mail to the provider's address.

[C.**]** *D.* (text unchanged)

[D.**]** *E.* If a hearing is requested by the provider, the **[**Superintendent's designee**]** *Office of Administrative Hearings* shall hold a hearing within 7 calendar days of the date of the request.

[E.**]** *F.* Within 7 calendar days of the hearing, a decision concerning the emergency suspension shall be made by the **[**Superintendent's designee**]** *Office of Administrative Hearings.*

[F.**]** *G.*—**[**G.**]** *H.* (text unchanged)

.07 Revocation.

A. The office may revoke a certificate of registration if the:

(1) (text unchanged)

(2) Provider, *regardless of intent*, misrepresented or offered false information on the application or on any form or report required by the office;

(3)—(7) (text unchanged)

(8) **[**The provider**]** *Provider* fails to comply with the:

(a) Prohibitions on the use of an individual as an employee, *a substitute*, or a volunteer as set forth in COMAR 13A.18.06.03A, B, and F, **[**and .10B**]** *COMAR 13A.18.06.08F, or COMAR 13A.18.06.10B*; or

(b) (text unchanged)

(9)—(10) (text unchanged)

(11) Provider admits a child for treatment foster care in the home, unless the child is placed in the home in a preadoptive capacity; **[**or**]**

(12) **[**The child**]** *Child* care home is no longer the primary resident of the provider**[**.**]***;*

(13) Provider or a resident is identified as responsible for abuse or neglect of children or adults; or

(14) Provider or a resident has a criminal conviction, a probation before judgment disposition, or a not criminally responsible disposition, or is awaiting a hearing on a charge for a crime that:

(a) Is listed at COMAR 13A.18.02.07B or COMAR 13A.18.02.07C; or

(b) Indicates behavior harmful to children.

B. If the office decides to revoke a certificate of registration, the office shall notify the provider in writing at least 20 calendar days in advance of the revocation, stating:

(1)—(4) (text unchanged)

(5) That the provider is entitled to a hearing if requested in writing within 20 calendar days of **[**the delivery of**]** the *date of the* notice;

(6)—(8) (text unchanged)

C. (text unchanged)

.08 Penalties.

A. An individual found to be operating a child care home**[**, or advertising a family child care service,**]** without a valid family child care registration is guilty of a misdemeanor and on conviction is subject to a fine not exceeding:

(1)—(2) (text unchanged)

B. (text unchanged)

.09 Civil Citations.

A. The office may issue a civil citation imposing a civil penalty to an individual who provides unregistered family child care *or advertises a family child care home* in violation of the requirements of this subtitle.

B.—D. (text unchanged)

13A.18.15 Administrative Hearings

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-515—5-517 and 5-554;**]** *General Provisions Article, §4-333; Human Services Article, §1-202;* **[**State Government Article, §10-204;**]** Annotated Code of Maryland

Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.); Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)

.01 Scope.

A. This chapter applies to hearings concerning actions taken by the Office of Child Care which adversely impact **[**on**]** child care home registrations, such as registration denials, revocations, and suspensions, reductions in capacity, limitations on the ages or numbers of children who may be admitted to a child care home, *the imposition of civil penalties for providing or advertising unregistered family child care services without a valid large family child care certificate of registration*, **[**or**]** *and* employment exclusions pursuant to COMAR 13A.18.06.03A or B of this subtitle.

B. (text unchanged)

.03 Hearing Requests.

A. A hearing shall be held when **[**an applicant or provider requests a hearing to contest**]**:

(1) An applicant or provider requests a hearing to contest:

[(1)**]** *(a)*—**[**(2)**]** *(b)* (text unchanged)

[(3)**]** *(c)* Any other action that adversely impacts on registration, including, but not limited to:

[(a)**]** *(i)*—**[**(b)**]** *(ii)* (text unchanged)

(c) A limitation on the ages or numbers of children who may be admitted to the child care home**[**.**]***;*

(2) An individual requests a hearing to contest the imposition of civil penalties for providing unregistered child care or advertising family child care services without a valid large family child care certificate of registration; or

(3) An individual requests a hearing to contest the prohibition of employment at a large family child care home.

B. Nonemergency Action Hearing Requests.

(1) All nonemergency action hearing requests shall be forwarded in writing to the Office and shall state the name and address of the provider *or the individual contesting the imposition of a civil penalty*, and the effective date and nature of the action appealed from.

(2)—(5) (text unchanged)

C. (text unchanged)

.04 Preliminary Conference.

A. **[**The Office shall hold a preliminary conference, on request of an appellant, before a hearing on an action**]** *A preliminary conference may be held before a hearing on an action if an appellant requests the conference.*

B.—D. (text unchanged)

13A.18.16 Public Access to Licensing Records

Authority: *Education Article, §§9.5-301—9.5-308, 9.5-310—9.5-312, 9.5-320, and 9.5-321;* **[**Family Law Article, §§5-501, 5-505, 5-550—5-557.1 and 5-560—5-563;**]** *General Provisions Article, §4-333;* Human Services Article, §1-202; **[**State Government Article, §10-617;**]** Annotated Code of Maryland
Agency Note: Federal Statutory Reference—Americans with Disabilities Act of 1990 (42 U.S.C. §12101 et seq.); Pro-Children Act of 1994 (20 U.S.C. §6081 et seq.)*; Child Care Development Block Grant (45 CFR parts 98 and 99); (42 U.S.C. 9858 et seq.); §418 of the Social Security Act (42 U.S.C. 618)*

.03 Request for Information from Licensing Records.

A. (text unchanged)

B. The written request shall:

(1) Contain the applicant's name, address, and telephone number; *and*

[(2) Be signed by the applicant; and**]**

[(3)**]** *(2)*(text unchanged)

[C. A request may be made in any form or format if it does not involve:

(1) Physical inspection of licensing records; or

(2) Preparation of a written or electronic:

(a) Copy of licensing records; or

(b) Report of information from licensing records.**]**

[D.**]** *C.* (text unchanged)

.04 Compelling Public Purpose.

A compelling public purpose shall exist for the custodian of record to permit inspection of licensing records other than the records specified under **[**State Government Article, §10-617(h)(2),**]** *General Provisions Article, §4-333(b),* Annotated Code of Maryland.

KAREN B. SALMON, Ph.D.
State Superintendent of Schools

Errata

COMAR 22.01.02

At 46:3 Md. R. 108 (February 1, 2019), column 2, line 10 from the top:

For: Regulations **.01—.16** and new Regulations **.01—.16** under **COMAR**

Read: Regulations **.01—.16** and new Regulations **.01—.12** under **COMAR**

[19-04-17]

General Notices

Notice of ADA Compliance

The State of Maryland is committed to ensuring that individuals with disabilities are able to fully participate in public meetings. Anyone planning to attend a meeting announced below who wishes to receive auxiliary aids, services, or accommodations is invited to contact the agency representative at least 48 hours in advance, at the telephone number listed in the notice or through Maryland Relay.

MARYLAND DEPARTMENT OF HEALTH

Subject: Receipt of Application — Administration-Sponsored Community Health Facilities Grant Program
Add'l. Info: The Maryland Department of Health is accepting applications for the Community Health Facilities Grant Program for FY 2021 funding. This program provides capital funding for the design, construction, acquisition, renovation, and equipping of community facilities that provide behavioral health or developmental disabilities services.

Applicants interested in being considered to receive State funds for capital development should download an application packet from: https://health.maryland.gov/ocpbes/Pages/bond.aspx, or request an application as soon as possible from Mr. Ahmed Awad, Administrator, Administration-Sponsored Capital Bond Programs, at the Office of Capital Planning, Budgeting, and Engineering Services, Maryland Department of Health, 201 West Preston Street, Room 538E, Baltimore, MD 21201-2399, telephone 410-767-6589, e-mail Ahmed.Awad@maryland.gov.

Applications should be submitted to the Office of Capital Planning, Budgeting, and Engineering Services by April 17, 2019 in order to receive full consideration, should a bond loan be established in the 2020 General Assembly Session (Fiscal Year 2021 funding). Applications received after April 17, 2019 may be considered; however, ranking on the departmental priority list cannot be guaranteed.

Applicants who received planning (architectural and engineering) funds in previous years must submit a complete application if they want to be considered for funding in Fiscal Year 2021.

Technical assistance for preparation of the application will be provided by the Maryland Department of Health staff upon request. For further information, please call Mr. Ahmed Awad at 410-767-6589.
Contact: Ahmed Awad (410) 767-6589

[19-04-07]

MARYLAND DEPARTMENT OF HEALTH

Subject: Receipt of Application — Administration-Sponsored Federally Qualified Health Centers Grant Program
Add'l. Info: The Maryland Department of Health is accepting applications for the Federally Qualified Health Centers Grant Program for FY 2021 funding. This program provides capital funding for the design, construction, acquisition, renovation, and equipping of federally qualified health centers. Funding under this program is provided to facilities that have been designated as a federally qualified health center under section 330 of the Federal Public Health Service Act, 42 U.S.C. §254B.

Applicants interested in being considered to receive State funds for capital development should download an application packet from: https://health.maryland.gov/ocpbes/Pages/bond.aspx, or request an application as soon as possible from Mr. Ahmed Awad, Administrator, Administration-Sponsored Capital Bond Programs, at the Office of Capital Planning, Budgeting, and Engineering Services, Maryland Department of Health, 201 West Preston Street, Room 538E, Baltimore, MD 21201-2399, telephone 410-767-6589, e-mail Ahmed.Awad@maryland.gov.

Applicants should submit an application to the Office of Capital Planning, Budgeting, and Engineering Services by April 17, 2019 in order to receive full consideration, should a bond loan be established in the 2020 General Assembly Session (Fiscal Year 2021 funding). Applications received after April 17, 2019 may be considered; however, ranking on the departmental priority list cannot be guaranteed.

Applicants who received planning (architectural and engineering) funds in previous years must submit a complete application if they want to be considered for funding in Fiscal Year 2021.

Technical assistance for preparation of the application will be provided by the Maryland Department of Health staff upon request. For further information, please call Mr. Ahmed Awad at 410-767-6589.
Contact: Ahmed Awad (410) 767-6589

[19-04-08]

HISTORIC ST. MARY'S CITY COMMISSION

Subject: Public Meeting
Date and Time: March 23, 2019, 10:30 — 11:30 a.m.
Place: Blackistone Rm., 47407 Old State House Rd., St. Mary's City, MD
Contact: Porzia Purves (240) 895-4960

[19-04-10]

DEPARTMENT OF INFORMATION TECHNOLOGY

Subject: Public Meeting
Date and Time: March 20, 2019, 1 — 3 p.m.
Place: 100 Community Pl., 1st Fl. Conference Rm. Side B, Crownsville, MD
Add'l. Info: Maryland Radio Control Board Quarterly Meeting
Contact: Brittany Brothers (410) 697-9407

[19-04-11]

DEPARTMENT OF INFORMATION TECHNOLOGY

Subject: Public Meeting
Date and Time: March 22, 2019, 10 a.m. — 12 p.m.
Place: 100 Community Pl., 1st Fl. Conference Rm. Side B, Crownsville, MD
Add'l. Info: Maryland Council on Open Data Quarterly Meeting
Contact: Brittany Brothers (410) 697-9407

[19-04-12]

MARYLAND STATE LOTTERY AND GAMING CONTROL COMMISSION

Subject: Public Meeting
Date and Time: February 28, 2019, 10 a.m. — 12 p.m.
Place: Montgomery Business Park, 1800 Washington Blvd., Ste. 330, Baltimore, MD
Contact: Kathy Lingo (410) 230-8790

[19-04-02]

MARYLAND HEALTH CARE COMMISSION

Subject: Public Meeting
Date and Time: February 21, 2019, 1 — 4 p.m.
Place: 4160 Patterson Ave., Rm 100, Baltimore, MD
Contact: Valerie Wooding (410) 764-3570

[19-04-05]

MARYLAND HEALTH CARE COMMISSION

Subject: Public Meeting
Date and Time: March 21, 2019, 1 — 4 p.m.
Place: 4160 Patterson Ave., Rm 100, Baltimore, MD
Contact: Valerie Wooding (410) 764-3570

[19-04-06]

MARYLAND HEALTH CARE COMMISSION

Subject: Formal Start of Review
Add'l. Info: The Maryland Health Care Commission (MHCC) hereby gives notice of docketing of the following application for Certificate of Need:

Encompass Health Rehabilitation Hospital — Docket No. 18-16-2423. Construction of a new 60-bed inpatient rehabilitation hospital (42 new acute inpatient rehabilitation beds and 18 currently temporarily delicensed acute inpatient rehabilitation beds previously located at Laurel Regional Hospital to be located at Melford Boulevard at Marconi Drive (southeast corner), Bowie, Maryland. Estimated Project Cost: $39,019,894.

MHCC shall review the application under Health-General Article, §19-101 et seq., Annotated Code of Maryland, COMAR 10.24.01, and the applicable State Health Plan standards.

Any affected person may make a written request to the Commission to receive copies of relevant notices concerning the application(s). All further notices of proceedings on the application(s) will be sent only to affected persons who have registered as interested parties.

Persons desiring to become interested parties in the Commission's review of the above-referenced application(s) must meet the requirements of COMAR 10.24.01.01B(2) and (20) and must also submit written comments to the Commission no later than close of business March 18, 2019. These comments must state with particularity the State Health Plan standards or review criteria that you believe have not been met by the applicant(s) as stated in COMAR 10.24.01.08F.

Please refer to the Docket Number listed above in any correspondence on the application(s). Copies of the applications are available for review in the office of MHCC during regular business hours by appointment. All correspondence should be addressed to: Paul E. Parker, Director, Center for Health Care Facilities Planning and Development, Maryland Health Care Commission, 4160 Patterson Avenue, Baltimore, Maryland 21215
Contact: Ruby Potter (410) 764-3276

[19-04-09]

DEPARTMENT OF NATURAL RESOURCES/FISHING AND BOATING SERVICES

Subject: Public Notice — Commercial Striped Bass Common Pool Gill Net Season Modification — Effective 1/22/19
Add'l. Info: The Secretary of the Maryland Department of Natural Resources pursuant to COMAR 08.02.15.12H announces the opening of the 2019 commercial striped bass common pool gill net fishery on Tuesday, January 22, 2019, at 3 a.m., with a catch limit of 300 lbs/permit/week and 1200 lbs/vessel/day. The common pool fishery will close on Wednesday, January 23, 2019, at 6 p.m.

Mark J. Belton
Secretary of Natural Resources
Contact: Tamara O'Connell (410) 507-0779

[19-04-04]

DEPARTMENT OF NATURAL RESOURCES/FISHING AND BOATING SERVICES

Subject: Public Notice — Commercial Striped Bass Common Pool Gill Net Season Modification — Effective 2/5/19
Add'l. Info: The Secretary of the Maryland Department of Natural Resources, pursuant to COMAR 08.02.15.12H, announces the opening of the 2019 commercial striped bass common pool gill net fishery on Tuesday, February 5, 2019, at 3 a.m., with a catch limit of 300 lbs/permit/week and 1200 lbs/vessel/day. The common pool fishery will close on Wednesday, February 6, 2019, at 6 p.m.

Mark J. Belton
Secretary of Natural Resources
Contact: Tamara O'Connell (410) 507-0779

[19-04-13]

BOARD OF WELL DRILLERS

Subject: Public Meeting
Date and Time: February 27, 2019, 9 a.m. — 12 p.m.
Place: MDE, 1800 Washington Blvd., Baltimore, MD
Add'l. Info: A portion of this meeting may be held in closed session.
Contact: Elaine Nolen (410) 537-4466

[19-04-01]

WORKERS' COMPENSATION COMMISSION

Subject: Public Meeting
Date and Time: February 21, 2019, 9:30 — 11 a.m.
Place: 10 E. Baltimore St., Baltimore, MD
Add'l. Info: Portions of this meeting may be held in closed session.
Contact: Amy Lackington (410) 864-5300

[19-04-03]

COMAR ORDER INFORMATION SHEET

Date _____ Subscriber I.D. _____

Name_____

Company_____

Address_____

City_____State_____Zip_____

Tel._____ Fax_____

Email: _____

_____ Check enclosed, made payable to "Division of State Documents"

_____ Visa/Master Card/American Express/Discover card payment:

Acct.#_____ **Exp**._____

Signature _____Tel:_____

Return form & payment to: Office of the Secretary of State, Division of State Documents ~
State House ~ Annapolis, MD 21401 ~ Tel: 410-260-3876 ~ 800-633-9657 ext. 3876 ~ Fax: 410-280-5647

~~~~~~

SPECIAL COMAR PUBLICATIONS

Publication / Handbook	Print Price	S & H	Quantity	Total
Control of Ionizing Radiation (through supplement 29)	$163	$20	_____	_____
Control of Ionizing Radiation Supplement 28 ONLY	$18	$0	_____	_____
Control of Ionizing Radiation Supplement 29 ONLY	$12	$0	_____	_____
Forest Conservation Law	$15	$5	_____	_____
Forest Conservation Technical Manual 3rd Edition, 1997	$20	$8	_____	_____
Preventive Maintenance Handbook (PM Handbook) (green cover)	$15	$5	_____	_____
Vehicle Inspection Handbook (Feb 2012)	$48	$11	_____	_____
			Total	_____

If quantity is more than one, shipping charges may vary, please call 410-260-3876 for pricing.

COMAR SUBSCRIPTION SCHEDULES

PDF QUARTERLY UPDATES	PRINT SEMI-ANNUAL UPDATES
After March 30th	After June 30th
After June 30th	After December 31st
After September 30th	
After December 31st	

PDF – A replacement title(s) in its entirety will be sent in electronic format.

PRINT – Entire chapters affected will be sent for replacement and insertion into COMAR title book(s).
~~~~~~

COMAR IN PDF — ORDER FORM

Titles	Agency Name	Price[1]	Subscription[2]	Quantity	Total
Complete set of COMAR in PDF format		$1,000	$500	_____	_____
Title 01	Executive Department	$35	$24	_____	_____
Title 02	Office of the Attorney General	$22	$13	_____	_____
Title 03	Comptroller of the Treasury	$30	$20	_____	_____
Title 04	General Services	$16	$10	_____	_____
Title 05	Housing and Community Development	$78	$50	_____	_____
Title 07	Human Services	$80	$53	_____	_____
Title 08	Natural Resources	$78	$51	_____	_____
Title 09	Labor, Licensing and Regulation	$89	$60	_____	_____
Title 10	Maryland Department of Health (All parts) **	$272	$180	_____	_____
Title 10	Part 1 **	$48	$32	_____	_____
Title 10	Part 2 **	$75	$50	_____	_____
Title 10	Part 3 **	$75	$50	_____	_____
Title 10	Part 4 **	$50	$35	_____	_____
Title 10	Part 5 **	$69	$50	_____	_____
Title 11	Transportation (All parts) **	$106	$75	_____	_____
Title 11	Part 1 (Transportation) **	$42	$25	_____	_____
Title 11	Part 2 (MVA)**	$74	$50	_____	_____
Title 12	Public Safety and Correctional Services	$67	$43	_____	_____
Title 13A	Board of Education	$63	$42	_____	_____
Title 13B	Higher Education Commission	$25	$15	_____	_____
Title 14	Independent Agencies	$80	$53	_____	_____
Title 15	Agriculture	$48	$30	_____	_____
Title 16	Juvenile Service	$23	$15	_____	_____
Title 17	Budget and Management	$28	$16	_____	_____
Title 18	Assessments and Taxation	$20	$12	_____	_____
Title 19A	State Ethics Commission	$24	$14	_____	_____
Title 20	Public Service Commission	$49	$32	_____	_____
Title 21	State Procurement Regulations	$48	$30	_____	_____
Title 22	State Retirement and Pension System	$22	$13	_____	_____
Title 23	Board of Public Works	$18	$11	_____	_____
Title 24	Commerce	$34	$20	_____	_____
Title 25	State Treasurer	$16	$9	_____	_____
Title 26	Environment (All parts) **	$189	$125	_____	_____
Title 26	Part 1 **	$54	$35	_____	_____
Title 26	Part 2 **	$83	$52	_____	_____
Title 26	Part 3 **	$57	$38	_____	_____
Title 26	Part 4 **	$37	$24	_____	_____
Title 27	Critical Area Comm. for the Chesapeake and Atlantic Coastal Bays	$18	$10	_____	_____
Title 28	Office of Administrative Hearings	$16	$9	_____	_____
Title 29	State Police	$30	$18	_____	_____
Title 30	MD Institute for Emergency Medical Services Systems	$25	$17	_____	_____
Title 31	Maryland Insurance Administration	$68	$45	_____	_____
Title 32	Aging	$25	$15	_____	_____
Title 33	State Board of Elections	$42	$25	_____	_____
Title 34	Planning	$31	$18	_____	_____
Title 35	Veterans Affairs	$16	$9	_____	_____
Title 36	Maryland State Lottery and Gaming Control Agency	$48	$30	_____	_____
	Binders (not included in PDF price)	$15	+ S & H	_____	_____
				Total:	_____

Prices are for single-user license only ~ Multi-user licenses are available. Please call 410-260-3876 for pricing information.

[1] Price is per copy of each Title.

[2] Annual Subscription - Receive updated COMAR Title(s) quarterly. ~ Subscription quantities MUST match Title quantities.

** See the following page for description of contents.

COMAR IN PRINT — ORDER FORM (8 ½ x 11 format)

Titles	Agency Name	Price[1]	Subscription[2]	Quantity	Total
Complete set of COMAR in Print (includes binders)		$1,425	$700	_____	_____
Title 01	Executive Department	$47	$30	_____	_____
Title 02	Office of the Attorney General	$31	$20	_____	_____
Title 03	Comptroller of the Treasury	$41	$25	_____	_____
Title 04	General Services	$23	$12	_____	_____
Title 05	Housing and Community Development	$103	$70	_____	_____
Title 07	Human Services	$104	$70	_____	_____
Title 08	Natural Resources	$102	$70	_____	_____
Title 09	Labor, Licensing and Regulation	$116	$75	_____	_____
Title 10	Maryland Department of Health (All Parts)**	$350	$230	_____	_____
Title 10	Part 1 **	$65	$40	_____	_____
Title 10	Part 2 **	$99	$70	_____	_____
Title 10	Part 3 **	$99	$70	_____	_____
Title 10	Part 4 **	$69	$42	_____	_____
Title 10	Part 5 **	$91	$62	_____	_____
Title 11	Transportation (All parts) **	$137	$85	_____	_____
Title 11	Part 1 (Transportation)**	$55	$35	_____	_____
Title 11	Part 2 (MVA) **	$102	$70	_____	_____
Title 12	Public Safety and Correctional Services	$86	$55	_____	_____
Title 13A	Board of Education	$83	$60	_____	_____
Title 13B	Higher Education Commission	$34	$20	_____	_____
Title 14	Independent Agencies	$103	$70	_____	_____
Title 15	Agriculture	$63	$40	_____	_____
Title 16	Juvenile Service	$32	$20	_____	_____
Title 17	Budget and Management	$38	$25	_____	_____
Title 18	Assessments and Taxation	$28	$18	_____	_____
Title 19A	State Ethics Commission	$33	$20	_____	_____
Title 20	Public Service Commission	$64	$42	_____	_____
Title 21	State Procurement Regulations	$65	$42	_____	_____
Title 22	State Retirement and Pension System	$33	$18	_____	_____
Title 23	Board of Public Works	$26	$15	_____	_____
Title 24	Commerce	$47	$25	_____	_____
Title 25	State Treasurer	$23	$12	_____	_____
Title 26	Environment (All parts) **	$241	$160	_____	_____
Title 26	Part 1 **	$72	$42	_____	_____
Title 26	Part 2 **	$109	$72	_____	_____
Title 26	Part 3 **	$76	$50	_____	_____
Title 26	Part 4 **	$51	$30	_____	_____
Title 27	Critical Area Comm. for the Chesapeake and Atlantic Coastal Bays	$26	$15	_____	_____
Title 28	Office of Administrative Hearings	$23	$12	_____	_____
Title 29	State Police	$40	$22	_____	_____
Title 30	MD Institute for Emergency Medical Services Systems	$34	$20	_____	_____
Title 31	Maryland Insurance Administration	$90	$62	_____	_____
Title 32	Aging	$34	$18	_____	_____
Title 33	State Board of Elections	$57	$35	_____	_____
Title 34	Planning	$42	$25	_____	_____
Title 35	Veterans Affairs	$23	$12	_____	_____
Title 36	Maryland State Lottery and Gaming Control Agency	$65	$43	_____	_____
	Additional Binder	$15	+ S & H	_____	_____
	Shipping & Handling Total: _____			**Order Total:**	_____

[1] Price is per copy of each Title and <u>includes</u> binders.

[2] Annual Subscription - Receive updated information semi-annually ~ Subscription quantities MUST match Title quantities.

** See the following page for description of contents

Note: *COMAR prices are subject to change. Check the date on the lower right hand corner of this form. If the form is more than three months old, call the COMAR Subscription Manager (410-260-3876) to confirm prices.* ***<u>Fees are not refundable</u>****.*

Shipping/Handling

<u>Publication Total</u>	<u>Shipping</u>
$ 0-50	$15
$ 51-150	$25
$ 151-300	$30
$ 301-400	$45

$400 + please call Subscription Department.

State agencies using courier, may omit S&H

Last updated 10/2017

Date: _____

Subscriber Id.# _____

Maryland Register

Archive Order Form

The Division of State Documents has created pdf files of all the Maryland Register issues since 1974. The issues from 1974—2003 are scanned images of the actual Register in pdf format and, as such, are not searchable, while the issues beginning with 2004 are *searchable text* in pdf format files.

- Single issues of the Maryland Register from 1974—present

  _____ $10 Per issue of the Register from 1974—present via emailed pdf file.
  Please specify **Issue(s)**: _____

  _____ $15 Per issue of the Maryland Register from 1974—present via mailed hard-copy
  Please specify **Issue(s)**: _____

- An archival library of all Maryland Register issues from 1974—2017:

  _____ $375 2 DVDs (1974 — 2017)

  _____ $50 One year of the Maryland Register from 1974—2003 (unsearchable):
  Please specify **Year(s):** _____

- _____ $100 A single year of issues from 2004 forward will be available in January of the year following their publication. These will be searchable files, on CD.

Please specify year(s) between 2004 through 2017: _____

Note: All products purchased are for individual use only. Resale or other compensated transfer of the information in printed or electronic form is a prohibited commercial purpose (see State Government Article, §7-206.2, Annotated Code of Maryland). By purchasing a product, the buyer agrees that the purchase is for individual use only and will not sell or give the product to another individual or entity.

- Please order by *faxing* the completed form to:
  Fax: 410-280-5647
- By *mailing* it to:
  Division of State Documents
  State House
  Annapolis, MD 21401
- By *emailing it* to:
  dlsubscriptions_sos@Maryland.gov
- By *calling*: 410-260-3876

Business/Agency: _____

Name: _____

Billing Address: _____

_____

City, State, Zip _____

Tel: _____Fax:_____

Recipient's Email:_____

~~~
~~~

MDH Pamphlets ORDER FORM

Date: _____

Subscriber ID#:_____

Name: _____

Firm Name: _____

Address: _____ _____

City: _____ State: _____ Zip Code: _____

Phone: _____ Fax: _____

Email: _____

Codification #	Pamphlet Title	Price / #
COMAR 10.05	Freestanding Ambulatory Care Facilities — July 2017 ..... *	$10 × ____
COMAR 10.07.01	Acute General Hospitals and Special Hospitals — July 2017.....	$10 × ____
COMAR 10.07.02	Comprehensive Care Facilities and Extended Care Facilities — July 2017	$15 × ____
COMAR 10.07.03	Health Care Staff Agencies — July 2017.....	$10 × ____
COMAR 10.07.05	Residential Service Agencies — July 2017.....	$12 × ____
COMAR 10.07.06	Hospital Patient Safety Program — Apr 2018	$ 8 × ____
COMAR 10.07.07	Nursing Referral Service Agencies — Apr 2018	$ 8 × ____
COMAR 10.07.09	Bill of Rights: Comp. Care Facil. & Extended Care Facilities — Aug 2009.....	$ 9 × ____
COMAR 10.07.10	Home Health Agencies — June 2016.....	$ 8 × ____
COMAR 10.07.11	Health Maintenance Organizations — Apr 2018	$10 × ____
COMAR 10.07.14	Assisted Living Programs — July 2017	$15 × ____
COMAR 10.07.21	Hospice Care Programs — Apr 2018.....	$ 9 × ____
COMAR 10.10	Laboratory Regulations — Aug 2016	$18 × ____
COMAR 10.12.04	Day Care for the Elderly and Adults with a Medical Disability — Dec 2015	$10 × ____
COMAR 10.15.03	Food Service Facilities — July 2017.....	$15 × ____
COMAR 10.21	Mental Hygiene Regulations — July 2017.....	$27 × ____
COMAR 10.22	Developmental Disabilities — July 2017.....	$20 × ____
COMAR 10.47	Alcohol And Drug Abuse Administration — July 2017	$15 × ____
COMAR 10.51	Forensic Laboratories — Mar 2018.....	$15 × ____
COMAR NPA	Nurse Practice Act — Oct 2018 (*Yellow Cover*) □ 6x9 Bound Bk □ 8.5x11 Loose leaf □ Opt. Binder +$15**	$32 × ____
COMAR NPA Supp.	Nurse Practice Act Supplements: □ July 2018 -$18 □ Oct 2018 -$16	× ____
COMAR 10.62	Natalie Laprade Medical Cannabis Commission — July 2017.....	$15 × ____
COMAR 10.63	Community-Based Behavioral Health Programs & Services — Nov 2017	$13 × ____

Fees are not refundable

* *Price of pamphlets **includes** shipping*

** *Orders of 3 or more ~ call for pricing*

TOTAL: $_____

Payment Method, _____ Check enclosed, made payable to: "**The Division of State Documents**"

Choose/Check one: _____ VISA / Master Card / American Express / Discover card payment:

Acct.# _____ **Exp. Date**: _____

Signature: _____ Tel: _____

Return form and payment to: Office of the Secretary of State
Division of State Documents ~ State House ~ Annapolis, MD 21401
Tel: 410-260-3876 ~ 800-633-9657 ~ Fax: 410-280-5647

Note: COMAR prices may change. Check the date on the lower right hand corner of this form. If the form is more than 3 months old, call the Subscription Manager 410-260-3876 to confirm prices. **Last Updated 10/2018**

Date: _____

Subscriber Id.# _____

Maryland Register

Print and E-Version Order Form

The Maryland Register is a biweekly publication containing proposed, emergency, and final administrative regulations as well as other State government information. The Register serves as the temporary supplement to the Code of Maryland Regulations (COMAR). Any change to the text of regulations published in COMAR, whether by adoption, amendment, repeal, or emergency action, must first be published in the Register.

See separate Order Form for the Maryland Register Archive Issues from 1974 — 2016.

- ❖ _____ $225 A single year of the Maryland Register in Print ~ 1st Class Mail Delivery.
- ❖ _____ $ 15 1 Binder for half a year of Maryland Register issues in Print.
- ❖ _____ $ 25 2 Binders for a full year of Maryland Register issues in Print.
- ❖ _____ $190 A **single-user** annual e-Subscription, which provides a searchable pdf text file of each issue, emailed directly to one recipient's email address.
- ❖ _____ $130 *Per* **additional user,** *per account subscription*. Call 410-260-3876 for details.

Note: All products purchased are for individual use only. Resale or other compensated transfer of the information in printed or electronic form is a prohibited commercial purpose (see State Government Article, §7-206.2, Annotated Code of Maryland). By purchasing a product, the buyer agrees that the purchase is for individual use only and will not sell or give the product to another individual or entity.

- ❖ Please order by *faxing* the completed form to: Fax: 410-280-5647
- ❖ By *mailing* it to: Division of State Documents, State House, Annapolis, MD 21401
- ❖ By *emailing it* to: dlsubscriptions_sos@Maryland.gov
- ❖ By *calling*: 410-260-3876

Business/Agency: _____

Name: _____

Billing Address: _____

_____

City, State, Zip _____

Tel: _____ Fax: _____

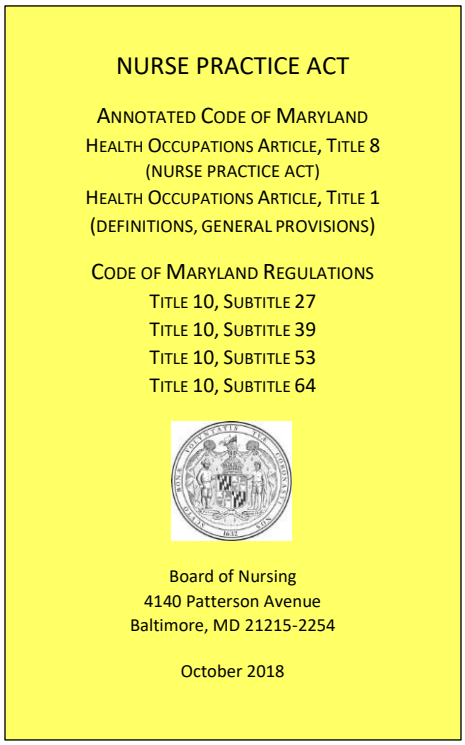
Recipient's Email: _____

~~~
~~~

The Nurse Practice Act 2018

The *newest* (Yellow Cover) edition of the
Nurse Practice Act October 2018 is now available!

It contains the *most current* sections of the Annotated Code of Maryland,
as well as the *most current* COMAR regulations effective through October 2018.



The handy 6”x9” bound Nurse Practice Act book is easy to carry along to appointments and meetings. Though compact, this 468-page book contains the complete set of Annotated Code of Maryland Articles and COMAR regulations that make up the Nurse Practice Act.

The comprehensive 8.5”x11” loose-leaf 336-page book has the *added advantage* of being “Updateable”! As the Annotated Code of Maryland Articles and the COMAR regulations are amended throughout the year, we will make available (approximately twice a year) Supplements that may be purchased for much less than a new book. These Supplements may be a few dozen pages or well over 100+ pages and will be priced accordingly, making it easy to remove and replace.

PRICING & ORDER INFORMATION

$32 for 6”x9” 468-page Bound Book

$32 for 8.5”x11” 336-page Loose-leaf Book

$28 for Bulk Orders of either book (3 or more books)

$15 for the *Optional* Red COMAR 3-Ring Binder

Please call **410-260-3876** to place your order today!

Office of the Secretary of State
Division of State Documents
State House
Annapolis, MD 21401

PUBLISHERS OF:

The Code of Maryland Regulations (COMAR)
The Maryland Register

For information, contact:
Telephone: 410.260.3876 or 800.633.9657
E-Mail address: dlsubscriptions_sos@maryland.gov
Website: www.dsd.state.md.us